



Enforcement Rules of KOSPI Market Listing Regulation

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CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of this Enforcement Rules is to stipulate the matters delegated by the KOSPI Market Listing Regulation and other matters necessary for its enforcement.

§2. Definitions

The terms used in this Enforcement Rules shall be defined as follows: (Amended on March 20, 2019; September 10, 2019))

1. [Deleted on September 10, 2019]

2. The term “the largest investor, etc.” means the largest investor and his/her affiliated persons [referring to the affiliated persons under each Subparagraph of Article 3 of the Enforcement Decree of the Act on Corporate Governance of Financial Companies (hereinafter referred to as “the Enforcement Decree of the Financial Companies Corporate Governance Act”)].

3. The term “certificate of issuance and registration” means the certificate of issuance and registration issued by the Korea Securities Depository (hereinafter referred to as “KSD”).

4. The term “over-allotment option” means the right of a managing underwriter to acquire new shares in a public offering or sale in a quantity equivalent to the over-allotment (referring to the quantity additionally allotted to the subscribers according to the condition of allotting a quantity in excess of the quantity initially to be publicly offered or sold to the subscribers) from the issuer at a predetermined price.

§3. Requirements for Paper Company

(1) “Requirements specified in the Enforcement Rules” in [§2(1)19] of the KOSPI Market Listing Regulation (hereinafter referred to as “the Regulation”) shall refer to each of the following subparagraphs: (Amended on June 25, 2014; December 2, 2015; September 10, 2019)

1. It shall not be the stock-listed corporation (including the corporation that has listed foreign stocks, etc. in foreign exchanges) under Article 9(15)3 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Act”);

2. As of the end of the latest business year, the company concerned shall hold the shares of another company (hereinafter referred to as “the company targeted for investment” in this Article) of which the total value is more than 50/100 of the total asset. Provided that, in cases where the applicant for initial listing has submitted documents verifying the current stock value and total asset as of the date of

application for the listing eligibility review, the documents may be used as the basis.

3. According to the income statement of the latest business year, the sales amount from the business areas not falling under any of the following items shall be less than 30/100 of the total sales amount:

- (a) Business of managing the company targeted for investment;
- (b) Businesses concerning corporate financing, including issuance, listing, etc. of stocks or corporate bonds;
- (c) Businesses generally required for the operation of company, including the preparation and implementation of budget, hiring and administration of human resources and development and operation of computer systems; and
- (d) Business incidental to the businesses under items (a) through (c).

4. The corporation concerned shall not have the actual control over the applicant for initial listing, considering its organization, workforce and the power to make decisions, etc.

(2) Notwithstanding paragraph (1), if the Exchange deems it necessary to keep the stocks, etc. owned by the largest shareholder, etc. of the relevant company (referring to the securities issued by the relevant company or by a third party underlying on the stocks, etc. of the relevant company) under mandatory holding for public interests and investor protection, the relevant company shall be deemed to be a paper company when applying the provisions concerning mandatory holding even in the case of not satisfying the requirements under paragraph (1). (Amended on September 10, 2019)

(3) Whether or not the company meets the requirements of paragraph (1) shall be determined on the basis of the written confirmation of a paper company that the applicant for listing or stock-listed corporation submitted at the time of filing the application for listing eligibility review or at the time of reporting the change of the largest shareholder of a paper company pursuant to [§79(1)3] of the Regulation.

§4. Holding Company Controlling Foreign Company

(1) “Requirements specified in the Enforcement Rules” in [§2(1)20(c)] of the Regulation shall refer to the requirements under each of the following subparagraphs: (Amended on July 22, 2021)

1. To hold only the stocks issued by a foreign company, and the total value of the stocks of the relevant foreign company shall be at least 50/100 of the total assets. Provided that, even if stocks issued by a domestic corporation are held by the foreign company, it is deemed to hold only the stocks issued by the foreign company as long as the domestic corporation is not a major subsidiary;

2. To establish a business office in Korea and be equipped with the workforce, computer facilities, and other physical facilities that are sufficient to perform the tasks related to corporate disclosure and management of operations of subsidiary, etc.;
3. To appoint a person having an address or residence in Korea, who is capable of communicating in Korean as a disclosure officer and a staff responsible for disclosure; and
4. In addition, to satisfy the requisites that the Exchange deems necessary to perform the responsibilities of a holding company.

(2) Notwithstanding paragraph (1), in cases where a listed holding company controlling foreign companies does not meet the requirements in paragraph (1), the Exchange may construe the company as a holding company controlling foreign companies if it deems necessary for the realization of public interest and investor protection considering the asset composition of the holding company controlling foreign companies and changes in stock prices of the foreign and domestic companies. (Amended on July 22, 2021)

§4-2. Procedures, etc. of Listing Review

(1) The procedures of listing review of stocks and application of review requirements stipulated in the latter part of [§4(3)] of the Regulation shall be as noted in each of following subparagraphs: (Amended on December 16, 2015; December 28, 2018)

1. The Exchange shall notify the expected date of notification of the results of the listing review without delay after the application was received, to the listing applicant in writing. Provided that, in cases where the listing review is not finished by the expected date of notification of listing review results, the revised date of notification of review results shall be notified again to the applicant in writing. (Amended on November 11, 2025)
2. The application of the qualitative review requirements noted in [§30(1)], [§36(3)], [§42(5)], [§53(1)], [§68(2)], [§76(2)] and [§124(6)] of the Regulation shall be conducted according to the guidelines for qualitative listing review in [Annex 2-2].
3. The Exchange may notify the listing applicant in writing or by electronic mail of the review opinion on the major issues concerning the review of listing eligibility.
4. In cases where the listing applicant submits in writing or by electronic mail an opinion letter concerning the review opinion noted in paragraph (3), the details of such opinion letter shall be factored in the report on review results.
5. In cases where the deliberation by the KOSPI Market Listing and Disclosure Committee noted in [§164] of the Regulation (hereinafter referred to as “Listing and

Disclosure Committee”) is to be made, such fact shall be notified to the applicant for listing eligibility review in writing at least three (3) days (based on business days: the same hereinafter in this Article) prior to the deliberation date and may have the applicant present its opinion at the Listing and Disclosure Committee. In such cases, the Exchange shall request the applicant in writing for statement of opinion by one day before the deliberation date.

6. In cases where the applicant for listing eligibility review was notified of the deliberation by the Listing and Disclosure Committee pursuant to paragraph (5), the applicant may present its opinions at the Listing and Disclosure Committee even if the Exchange did not request for statement of opinions. In such cases, the applicant shall apply for the opinion statement to the Exchange in writing by one day before the deliberation date.

7. When the listing eligibility review or listing review is finished, the Exchange shall notify the applicant in writing whether the application was approved or not. In such cases, when notifying the result of disapproval of the application, the causes for disapproval shall be stated in the notice.

8. In the case of requesting for stating in the securities registration statement, etc. and submission of current status with regard to the improvement and supplement, etc. pursuant to [§4-3(1)10], the details of such request shall be included in the notice that is made pursuant to subparagraph 7.

9. In cases where an applicant for listing eligibility review submits a written statement on the reasons for withdrawal of the application for listing eligibility review through its listing sponsor, the listing eligibility review shall be closed.

10. After the listing review process was closed, the Exchange may explain the results of review to the applicant and the listing sponsor (hereinafter referred to as the “applicant for listing, etc.”) and hear from them the opinions on the problems or improvements to be made with regard to the review process.

(2) The procedures of listing review and application of review criteria of the securities of Exchange Traded Funds (including those of foreign Exchange Traded Funds), Equity-linked Warrants and Exchange Traded Notes stipulated in the latter part of [§4(3)] of the Regulation shall be as noted in each of the following subparagraphs. In such cases, the provisions of paragraphs (1)7 and (10) shall apply *mutatis mutandis* with regard to the notification of review results and the opinion hearing, respectively. [December 16, 2015] (Amended on December 9, 2022; December 7, 2023)

1. The matters concerning the procedures for listing review of the securities of ETFs shall be governed by the provisions of the following items:

(a) [Deleted on December 9, 2022]

(b) The provisions of paragraph (1)¹ shall apply *mutatis mutandis* with respect to the expected date of notification of the results of the preliminary listing review;

(c) [Deleted on December 9, 2022]

(d) [Deleted on December 9, 2022]

(e) [Deleted on December 9, 2022]

(f) The Exchange shall notify in writing the applicant concerned of whether the initial listing was approved or not within five (5) days after the application date of initial listing. Provided that, in cases where it needs to revise or supplement the application, or additional review is necessary, the notification period may be extended. In such cases, the Exchange shall notify the applicant of the reasons and the estimated processing time; and

(g) The application of the review criteria of securities of ETFs stipulated in [§113(3)] (referring to [§119(2)] for those of foreign ETFs) of the Regulation shall be made in accordance with the guidelines for listing review of ETF securities in [Annex 2-3].

2. The matters concerning the procedures for listing review of equity-linked warrants shall be governed by the provisions of the following items:

(a) The provisions of subparagraph (1)f shall apply *mutatis mutandis* with respect to the notification of whether the initial listing of the ELWs was approved or not; and

(b) The application of the review criteria of ELWs stipulated in [§140] and [§141] of the Regulation shall be made in accordance with the guidelines for listing review of ELWs in [Annex 2-4].

3. The matters concerning the procedures for listing review of exchange traded notes shall be governed by the provisions of the following items:

(a) The provisions of subparagraph (1)f shall apply *mutatis mutandis* with respect to the notification of whether the initial listing of the ETNs was approved or not; and

(b) The application of the review criteria of ETNs stipulated in [§149-3] and [§149-4] of the Regulation shall be made in accordance with the guidelines for listing review of ETNs in [Annex 2-5]. In this case, the Exchange shall check whether the ETNs meet standardization requirements for early liquidation specified in paragraph 2(a)(i)⑥① in [Annex 2-5] based on the prospectus under [§112(2)1] which an applicant for the initial listing of the ETNs submits in accordance with [§123(2)2].

[November 4, 2015]

§4-3. Methods of Listing Review

(1) The methods of listing review of stocks stipulated in the latter part of [§4(3)] of the Regulation shall be as noted in each of following subparagraphs: (Amended on April 22, 2016; March 22, 2018; May 13, 2021)

1. In cases where a person who intends to list stocks, has entered into a lead management agreement with a person who will be the listing sponsor pursuant to [§3] of the Regulation on Securities Underwriting Business, etc. of Korea Financial Investment Association, the listing sponsor shall notify the Exchange of the fact on having entered into the agreement so as to identify any obstacles to listing in early stage and overcome them efficiently. Provided that, in cases where the listing sponsor has reported the fact on having entered into the agreement to Korea Financial Investment Association, it shall be construed as the notification to the Exchange has been made.

2. In cases where being notified pursuant to subparagraph 1 prior to receiving the application for listing eligibility review or listing review, or the applicant for listing, etc. requests for, the Exchange may provide assistance such as consultations, materials, etc. with regard to the listing eligibility review or listing review and securing liquidity after having been listed.

3. In cases where, in the process of corporate due diligence, any noncompliance or incompleteness with regard to the listing requirements was identified, the listing sponsor shall have the listing applicant to make improvements or supplementations necessary and check if such improvements or supplementations are maintained prior to applying for listing eligibility review.

4. The listing eligibility review or listing review shall be made based on the listing application (hereinafter referred to as the “application”), supplementary documents and opinions submitted by the applicant for listing, etc.

5. When it is deemed necessary for listing eligibility review or listing review, the Exchange may request the applicant for listing, etc. to provide additional materials or opinions (including opinions of outside experts such as attorney-at-law, certified public accountants, etc.)

5-2. When requesting the applicant for listing, etc. for additional materials or opinions pursuant to subparagraph 5, such request shall be made in writing, via telephone or electronic mail, etc. In such cases, the scope of request shall be minimized to the extent that it does not bring about any obstacles to the business affairs of the applicant for listing, etc.

6. When it is deemed necessary for listing eligibility review or listing examination, professional advice from experts in the industry to which the applicant belongs regarding the technological prowess and growth potentials of the applicant may be received.

6-2. The Exchange may operate an expert meeting for professional advice pursuant to subparagraph 6. In such cases, matters necessary for the members and the operation of the expert meeting shall be specified by the Exchange.

7. When it is deemed necessary for listing eligibility review or listing review, the Exchange may request the applicant for listing, etc. for an interview, and the provisions of the latter part of subparagraph 5-2 shall apply *mutatis mutandis* to the methods, etc. of interview request.

8. When it is deemed necessary for listing eligibility review or listing review, the Exchange may, in consultation with the applicant for listing, etc., make a visit to the place of business or office, etc. of the listing applicant, and the provisions of the latter part of subparagraph 5-2 shall apply *mutatis mutandis* with regard to the methods, etc. of such on-site visits.

9. In cases where the applicant for listing eligibility review makes improvements and supplementations to the matters concerning the listing requirements after the application for listing eligibility review, the listing eligibility review shall be made taking the details of such improvements and supplementations into account.

10. The Exchange may request the applicant for listing eligibility review to state the improvements and the supplementations noted in subparagraph 9 and other review-related matters that are deemed necessary to be disclosed for the sake of public interest and investor protection in the securities registration statement, etc.

11. In cases where the request for stating in the securities registration statement, etc. was made pursuant to subparagraph 10, and when falling under any of the following items during the three (3) year-period from the listing date, the Exchange may request the KOSPI-listed corporation concerned to submit a statement on the status of such situation:

(a) Case where the details of the improvements and supplementations were changed; and

(b) Case where it is deemed necessary to confirm if the details of the improvements and supplementations were implemented and are maintained.

12. If the supervision of financial statements under [§23] of the Regulation on External Audit and Accounting, etc. is in progress, the results thereof can be reflected in the listing eligibility review. Provided that the same does not apply where it is not confirmed whether or not to conduct the inspection.

(2) The provisions of paragraphs (1)2, (4) through (5)2, (7) and (10) shall apply *mutatis mutandis* to the methods of listing review of securities of ETFs (including those of foreign ETFs), ELWs and ETNs stipulated in the latter part of [§4(3)] of the Regulation. [December 16, 2015]

[November 4, 2015]

§5. Financial Documents

“Financial documents specified in the Enforcement Rules” in the forepart of the body other than each item of [§5(2)] of the Regulation shall refer to the financial documents among the application documents of listing eligibility review in [Annex 1]. Provided that, for a holding company (including a foreign holding company), it shall be limited to the financial documents of the relevant holding company.

§6. Application Documents for Delisting and Deliberation Criteria

(1) The application for delisting pursuant to [§7(3)] of the Regulation shall refer to [Annex: Form No. 1], and the supplementary documents shall fall under each of the following subparagraphs. (Amended on September 2, 2014; July 23, 2020)

1. For stocks (excluding subparagraphs 2 and 4): copies of the minutes of the shareholders’ general meeting where delisting was resolved by a special resolution [referring to more than two third (2/3) of the votes of the attended shareholders and more than one third (1/3) of the total number of the issued stocks.]

2. For different classes of stocks (including different class of foreign stocks: the same in this Subparagraph hereinafter.): documents falling under any of the following items:

(a) Copies of the minutes of the shareholders’ general meeting where delisting of the relevant different class of stocks is resolved [it shall refer to more than two third (2/3) of the votes of the attended shareholders and more than one third (1/3) of the total number of the issued stocks of the same class.];

(b) Documents where the majority of the total number of the issued different class of stocks concerned agrees and confirms delisting of the different class stocks concerned, and that they sign [including electronic signature pursuant to Article 2(2) of the Electronic Signature Act] or seal.

3. For debt securities and foreign debt securities: Copies of the agreements of all creditors on the delisting.

4. For investment company stocks and beneficiary certificates: Documents falling under any of the following items:

(a) Copies of the minutes (limited to the case of holding the shareholders' general meeting or beneficiaries' general meeting) of the shareholders' general meeting or beneficiaries' general meeting with regards to delisting

(b) Any other documents which certify the resolution and decision relating to the application for delisting

5. For ELWs: Documents that certify the fact that the issuer or liquidity provider holds the entire quantity of the relevant ELWs.

5-2. For ETNs: Documents that certify the fact the issuer or liquidity provider holds all or at least 95/100 of the relevant ETNs.

6. For other securities: Documents that the Exchange deems necessary with regards to delisting.

(2) "Matters for investor protection stipulated in the Enforcement Rules" in [§7(5)] of the Regulation shall refer to the matters in each of the following subparagraphs: (Amended on March 27, 2015; March 20, 2019; April 26, 2019)

1. The largest shareholder, etc. [including the joint holders under Article 141(1) of the Enforcement Decree of the Act, while excluding the relevant KOSPI-listed corporation; the same hereinafter in this Article] shall have acquired the concerned stocks (including DRs of foreign stocks; the same hereinafter in this Paragraph) through a tender offer (including the methods equivalent thereto) or purchase in the Exchange markets;

2. As of the application date for delisting, the largest shareholder, etc. of the relevant KOSPI-listed corporation shall hold at least 95/100 of the total number of issued shares (excluding treasury stocks) of the relevant issue;

3. The largest shareholder, etc. of the relevant KOSPI-listed corporation shall have firmly agreed to give the investors (excluding the largest shareholder, etc. of the KOSPI-listed corporation concerned) an opportunity to sell the shares held for a certain period after the delisting; and

4. In addition, the measures necessary for public interests and investor protection, including the terms and conditions for tender offer, shall have been satisfied.

§7. Foreign Exchange Rates

(1) "Foreign exchange rate stipulated in the Enforcement Rules" in [§10(3)] of the Regulation shall refer to the base exchange rate determined and published pursuant to the Foreign Exchange Transactions Regulation as of the preparation date of the documents, etc. (in the case of the listing amount, it shall be the application date for

listing).

(2) Notwithstanding paragraph (1), the matters concerning the financial details, etc. of the statements made in the documents shall apply with the exchanges rate in each of following subparagraphs:

1. Matters concerning the financial details stated in the statement of financial position: The base exchange rate determined and published pursuant to the Foreign Exchange Transactions Regulation as of the end of the business year for which the documents are prepared.

2. Matters concerning financial details stated in the income statement and comprehensive income statement: The arithmetic average of daily base rates determined and published pursuant to the Foreign Exchange Transactions Regulation during the business year for which the documents are prepared.

3. Par values relating to the designation of administrative issues of foreign stocks in [§57] of the Regulation and the delisting of foreign stocks in [§58] of the Regulation: the base exchange rate determined and published pursuant to the Foreign Exchange Transactions Regulation on the last day of the latest business year.

§7-2. Explanation of Differences in Accounting Standards

(1) “Matters set forth in the Enforcement Rules” in the proviso to [§11(2)] of the Regulation shall refer to each of the followings:

1. Details of the differences between the accounting standards adopted by the foreign company concerned and the accounting standards noted in each subparagraph of [§11(2)] of the Regulation; and

2. The effect that the details noted in subparagraph 1 has on the financial statements of the foreign company concerned.

(2) Each listing applicant shall submit a document containing the matters under paragraph (1) along with the audit report of the foreign company concerned to the Exchange.

[June 8, 2016]

§8. Signature or Seal of Listing Sponsor

The listing sponsor shall state the fact that the documents prepared and submitted to the Exchange pursuant to the latter part of [§12(2)1] of the Regulation have been prepared in person and sign or write its name and affix the seal on the statement.

§9. Duties of Listing Sponsor

(1) In cases where the listing sponsor acquires the securities pursuant to the latter part of [§13(3)1] of the Regulation, the requirements noted in each of the following subparagraphs shall be satisfied:

1. Acquisition method: To acquire the securities issued by way of private offering;
2. Acquisition time: To acquire the concerned securities during the period from the application date for listing eligibility review to the application date for initial listing; and
3. Acquisition quantity: In cases where no one acquires a portion of the securities publicly offered and sold in accordance with the underwriting agreement signed with the listing applicant and the listing sponsor acquires the remaining quantity, to include the quantity acquired.

(2) The listing sponsor shall submit to the Exchange the analysis of financial conditions, etc. of the listing applicant at least once per semiannual period for two (2) years from the listing date pursuant to the main sentence of [§13(3)5] of the Regulation. Provided that, if the remaining of the semiannual period to which the listing date belongs is less than two (2) months, this provision shall apply starting from the following semiannual period.

§10. Recognized Overseas Securities Markets

“Overseas securities market specified in the Enforcement Rules” in [§13(4)] of the Regulation shall refer to any of the following exchanges (hereinafter referred to as “recognized overseas securities markets”): (Amended on June 25, 2016; June 28, 2019)

1. NYSE (New York Stock Exchange);
2. NASDAQ (National Association of Securities Dealers Automatic Quotation, Inc.);
3. Euronext;
4. Tokyo Stock Exchange;
5. London Stock Exchange;
6. Deutsche Börse AG;
7. Hong Kong Exchanges and Clearing;
8. Singapore Exchange;
9. Australian Securities Exchange;
10. Toronto Stock Exchange;
11. Bolsa de Madrid;
12. Swiss Exchange;
13. Borsa Italiana; and
14. Other advanced foreign securities markets that are internationally recognized, in consideration of stability, liquidity, and transparency, etc. of the market.

(2) Notwithstanding paragraph (1), in case where the Exchange deems necessary for public interests and investor protection, the securities market partly composing recognized overseas securities markets may not be considered as the one.

§11. Qualifications of Auditor of Foreign Companies

(1) “Qualifications set forth in the Enforcement Rules” in [§15(1)1] of the Regulation shall refer to each of the following subparagraphs: (Amended on March 20, 2019)

1. At least five (5) years have elapsed since the incorporation;
2. The number of affiliated certified public accountants shall be fifty (50) or more;
3. The sales amount of the latest business year shall be at least KRW 10 billion;
4. The sum of the reserves for damage compensation under Article 28 of the Certified Public Accountant Act and the joint fund for damages under Article 32 of the Act on External Audit of Stock Companies, Etc. (hereinafter referred to as “the External Audit Act”) shall be KRW 2 billion or more, or it shall have purchased the compensation liability insurance policy under Article 38(1) of the Enforcement Decree of the Act on External Audit of Stock Companies, Etc. (hereinafter referred to as “the Enforcement Decree of the External Audit Act”);
5. An agreement for audit quality control has been entered into with an accounting corporation satisfying the requirements of items (b)(i) and (b)(ii) of subparagraph 2 of paragraph (2);
6. There shall be no record of having been taken measures of recommendation on cancelling of the registration or imposing of business suspension in whole or in part, by the Securities and Futures Commission, in the recent three (3) years; and
7. The corporation shall be registered as an auditor of listed companies in accordance with Article 9-2 of the External Audit Act. (Amended on November 11, 2025)

(2) “Qualifications set forth in the Enforcement Rules” in [§15(1)2] of the Regulation shall refer to the qualification classified in each of the following subparagraphs:

1. Case where the applicant for initial listing of foreign stocks, etc. is not a company listed on foreign exchanges,
 - (a) To meet the requirements under subparagraphs 1 through 3 of paragraph (1). Provided that paragraph (1)2 shall not apply in the case where the foreign accounting corporation satisfies items (b)(i) and (b)(ii); and
 - (b) The foreign accounting corporation shall meet all of the following

requirements, or it shall have an agreement for audit quality control entered into with an accounting corporation that meets all of the following requirements:

- (i) Its member firms shall be operating distributed in at least one hundred (100) countries; and
- (ii) The number of certified public accountants affiliated with the member firms shall be at least one hundred thousand (100,000).

2. Case where the applicant for initial listing of foreign stocks is a company listed in the foreign exchange,

- (a) To meet the requirements under subparagraphs 1 through 3 of paragraph (1). Provided that paragraph (1)2 shall not apply in cases where items (b)(i) and (b)(ii) are satisfied; and
- (b) To have foreign accounting firm satisfy all of the following requirements or to have entered into an agreement for audit quality control with the accounting firm that meets all of the following requirements.
 - (i) The member companies shall be operating in at least thirty (30) countries; and
 - (ii) The number of certified public accountants affiliated with the member companies shall be at least two thousand (2,000).

§12. Listing Agreement

The listing agreement stipulated in [§16(3)] of the Regulation shall refer to [Annex: Form No. 2].

§13. Listing Specifications

(1) The listing particulars stipulated in [§17(1)] of the Regulation shall be prepared in accordance with [Annex: Form No. 2-2].

(2) Listing specifications stipulated in paragraph (1) shall be submitted by the date falling under each of the following subparagraphs.

1. For new listing and relisting: The application date for listing
2. For listing after merger: The application date for listing of newly issued stocks, and
3. For back-door listing: The date falling under any of the subparagraphs of [§31(2)] relating to the mandatory holding for backdoor listing.

(3) The listing specifications of paragraph (1) shall be checked, reviewed, and signed by the representative director and listing sponsor of the company concerned.

CHAPTER II. STOCK CERTIFICATES

Section 1. Common Provisions

§14. Method of Calculating the Base Market Capitalization

“Methods stipulated in the Enforcement Rules” in subparagraph 5(c) of [§18] of the Regulation shall refer to the methods under each of the following subparagraphs:

1. For initial listing of the depositary receipts (DRs) of foreign stocks: the amounts calculated by multiplying the arithmetic average of daily closing prices that were established in the foreign exchange (referring to the overseas exchange market where the underlying stocks of DRs are listed) for ninety (90) days retroactive from the listing application date, by the total number of shares issued as of the listing application date;
2. For listing through public offerings in Korea and abroad at the same time: the amounts calculated by multiplying the total number of common shares to be listed as of the listing application date by the price lower between the price of public offering or sale in Korea and the price of offering or sale in foreign countries;
3. For relisting {limited to cases where it cannot be calculated in accordance with subparagraph 5(a) of [§18] of the Regulation}: the amounts calculated by multiplying the appraised price pursuant to [Annex 1] of the Enforcement Rules of KOSPI Market Business Regulation by the total number of common stocks to be listed;
4. For initial listing of different classes of stocks (including foreign different classes of stocks) {limited to cases where it cannot be calculated in accordance with item (a) or (b) of subparagraph 5 of [§18] of the Regulation}: the amounts calculated by multiplying issuing price at the time of the latest public offering or sale by the number of different classes of stocks to be listed; and
5. For any other cases: the amounts that are calculated by the methods separately specified by the Exchange.

§15. Submission period of additional documents after the application for listing eligibility review

“Date specified in the Enforcement Rules” in the main sentence of the part other than each subparagraph of [§21(1)] of the Regulation shall refer to the date falling under any of the subparagraphs of [§31(2)] concerning mandatory holding for backdoor listing. (Amended on September 10, 2019)

§16. Notification of Results of Listing Eligibility Review

(1) Pursuant to the proviso to [§22(1)] of the Regulation, the deadline for the notification of the result of the listing eligibility review shall comply with each of the following subparagraphs: (Amended on June 25, 2014; July 31, 2015; December 2, 2015)

1. For listing eligibility review (excluding the case falling under subparagraph 2) for initial listing of the foreign stocks, etc. (including common stocks of foreign holding company; the same hereinafter in this Article) that are not listed on the recognized overseas securities market: within sixty-five (65) days (on the basis of the business day; the same hereinafter in this article) from the date of having received the application for eligibility review.

2. For listing eligibility review of common stocks and foreign stocks, etc. of a company that is not subject to deliberation of corporate sustainability pursuant to [§30(2)] and [§53(1)] of the Regulation: within twenty (20) days from the date of having received the application for listing eligibility review. Provided that, for the foreign stocks, etc. that are not listed on the recognized overseas securities markets, it shall be within thirty (30) days.

3. For listing eligibility review for initial listing of common stocks of a company to which the requirements for the period in operation and the business performance pursuant to [§31(2)] of the Regulation are not applied: within thirty (30) days from the date of having received the application for listing eligibility review.

(2) Pursuant to the proviso to [§22(1)], in cases where the listing sponsor of a foreign stock, etc. that has run into a cause for delisting within one (1) year from the initial listing date makes the arrangement for initial listing of another foreign stock, etc. for the first time since the occurrence of such cause, the Exchange may extend the notification deadline of the result of listing eligibility review of the foreign stock concerned specified in paragraph (1) and the main sentence of [§22(1)] of the Regulation up to one (1) month.

(3) “Financial documents stipulated in the Enforcement Rules” in the forepart of [§22(3)] of the Regulation shall refer to the financial documents of the documents of application for listing eligibility review specified in [Annex 1]. Provided that, in the case of a holding company (including foreign holding company), it shall be limited to the financial documents of the holding company concerned.

§17. Invalidation of the Results of Listing Eligibility Review

(1) “Financial documents stipulated in the Enforcement Rules” in the forepart of [§23(1)1(c)] of the Regulation shall refer to the financial documents of the documents of application for listing eligibility review specified in [Annex 1]. Provided that, in the case of a holding company (including foreign holding company), it shall be limited to the financial documents of the holding company concerned.

(2) “Cases stipulated in the Enforcement Rules” in [§23(1)1(f)] shall refer to the cases falling under any of the following subparagraphs:

1. Case of issuing new stocks by the method of allotment to the third party during the period from application date for listing eligibility review to the day before the listing date. Provided that, in cases where listing sponsors intend to acquire stocks for the investment duties pursuant to [§13(3)1] of the Regulation, this subparagraph shall not apply.

2. Other cases where the Exchange deems necessary for public interests and investor protection.

§18. Deferment of Listings and Filing of Objection

(1) “Cases stipulated in the Enforcement Rules” in the proviso to [§24(2)1] of the Regulation shall refer to the cases noted in any of the following subparagraphs: (Amended on September 10, 2019)

1. Where the court has made a decision or ruling on such matters as the validity of issuance of new shares, and the Exchange deems that there is no or little possibility of denying the validity of issuance of the relevant new shares;

2. Where the relevant securities are under mandatory holding in the KSD until the court makes a decision or ruling on the validity of issuance of new shares, and a written affirmation on mandatory holding, stating that the securities under mandatory holding will not be electronically registered for transfer between accounts and establishment or deletion of a right of pledge, etc. (hereinafter referred to as “disposal, etc.”) unless the Exchange deems it necessary, has been submitted; and

3. In addition, other cases where the Exchange deems it necessary for public interest and investor protection.

(2) In cases where the applicant for listing files an objection to the deferment of listing pursuant to [§24(6)], the applicant shall submit the application for objection noted in the [Annex: Form No. 3] with the documents noted in each of the following subparagraphs attached:

1. Documents related to the lawsuit about the validity of issuance of new shares;

2. Opinion statements of relevant experts such as lawyers, certified public accountants and appraisers; and

3. In addition, with regard to raising the objection, the documents that the Exchange deems necessary.

(3) In the case of receiving an objection pursuant to paragraph (2), unless there is any special reason, the Exchange shall call a meeting of the Listing and Disclosure Committee meeting pursuant to [§164] of the Regulation within fifteen (15) days (it shall be on the basis of business days; the same hereinafter in this Article) since receiving the objection to deliberate whether or not to defer the listing. In such cases, the Exchange shall grant the representative of applicant for listing an opportunity to present his/her opinion. (Amended on November 4, 2015)

(4) The Exchange shall make the decision on listing deferment of the securities concerned within three (3) days of deliberation by the Listing and Disclosure Committee pursuant to paragraph (3).

(5) When the Exchange has made the decision noted in paragraph (4), the Exchange shall notify in writing details of the decision concerned to the applicant for listing without delay. In such cases, the applicant for listing shall not be allowed to file an objection to the decision noted in paragraph (4).

§19. Filing of Official Objection to Delisting Decision

(1) In cases where a KOSPI-stock-listed corporation files an objection to the delisting decision pursuant to [§25(2)] of the Regulation, it shall submit to the Exchange an application for an objection to the delisting decision noted in [Annex: Form No. 4] by attaching each of the following documents: (Amended on June 25, 2014; March 20, 2019)

1. An improvement plan that includes the matters in each of the following items;

(a) In the case of the cause of the auditor's opinion not up to standards, the improvement plans to resolve the cause for delisting by revising the audit opinion of the relevant business year (referring to the first business year when it fell under the 'auditor's opinion not up to standards' under [§48(1)2] of the Regulation; the same hereinafter in this Article) or to receive an 'unqualified' audit opinion on the audit report of the following business year (referring to the business year following the relevant business year; the same hereinafter); and

(b) In the case of other causes for delisting, plans to resolve the relevant causes.

2. Documents falling under each of the following items;

(a) In the case of the auditor's opinion not up to standards: A copy of the re-audit contract concluded with the auditor on the relevant audit report. Provided that it shall be limited to the case where it has submitted an improvement plan for resolving the cause for delisting through the revision of the audit opinion of the

relevant business year pursuant to subparagraph 1(a);

(b) In the case of stock distribution not up to standards: The confirmation letter of the financial investment company, etc. which certifies the plan for stock distribution;

(c) In the case of trading volume not up to standards: Copies of the agreement of liquidity provision;

(d) In the case of corporate governance not up to standards and violation of the requirements for backdoor listing: Copies of the minutes of the board of directors related to the resolution of the relevant causes; and

(e) In the case of other reasons for delisting: The confirmation letter of the expert that certifies the resolution of the causes for delisting concerned or the plan for resolution

3. In addition, the documents relevant to the filing of an objection, which the Exchange deems necessary.

(2) In the case of receiving an official objection pursuant to paragraph (1), unless there is any special reason, the Exchange shall call the Listing and Disclosure Committee within twenty (20) days (it shall be on the basis of business days: the same hereinafter in this Article) since receiving the objection and deliberate the matters noted in each of the following subparagraphs. In such cases, the representative of the KOSPI-stock-listed corporation concerned shall be given an opportunity to present his/her opinions. (Amended on June 25, 2014; July 31, 2015; November 4, 2015; March 20, 2019)

1. The appropriateness of the objection;

2. The feasibility of improvement plan, whether or not to grant the period for improvement and the length of the improvement period;

3. Whether or not to suspend the trading of securities concerned and the length of suspension period;

4. Whether or not to delist the securities concerned; and

5. In the case of the auditor's opinion not up to standards, the likelihood of resolving the cause for delisting through the revision of the audit opinion on the relevant audit report or receiving an 'unqualified' audit opinion on the audit report of the following business year, etc.

(3) The Exchange shall make the decision on delisting of the security concerned, granting of the period for improvement, etc. within three (3) days since the date of deliberation at the Listing and Disclosure Committee pursuant to paragraph (2). In such cases, the period for improvement period that may be granted shall be in accordance

with the following subparagraphs: (Amended on April 29, 2026)

1. If an objection is filed due to grounds falling under [§48(1)] of the Regulations, the improvement period shall not exceed one (1) year; and [April 29, 2026]

2. If an objection is filed due to grounds falling under [§48(2)] of the Regulations, the improvement period shall not exceed six (6) months. Provided that, if an improvement period has already been granted by the Corporate Review Committee pursuant to [§51(4)], the improvement period granted pursuant to this paragraph shall not exceed a total of one (1) year when combined with the previously granted improvement period. [April 29, 2026]

(4) Any KOSPI-stock-listed corporation that was granted with an improvement period in accordance with paragraph (3) or paragraph (7)¹ shall request for a review of the implementation of the improvement plan by submitting each of following documents within seven (7) days of the expiry (including expiry by the request from the corporation concerned) of the improvement period: (Amended on June 25, 2014; July 31, 2015; March 8, 2021; December 9, 2022)

1. The details on the implementation of the improvement plan;

2. A confirmation statement on the outcome of implementation of improvement plan issued by the experts in the relevant areas (in the case where, due to falling under the auditor's opinion not up to standards, an improvement plan for an 'unqualified' audit opinion on the audit report of the following business year was submitted, it shall be the audit report of the following business year); and

3. Other documents that the Exchange deems necessary for the assessment of the outcome of implementation of the improvement plan.

(5) In the case of receiving the request pursuant to paragraph (4), unless there is a special reason, the Exchange shall call the Listing and Disclosure Committee within twenty (20) days of receiving such an objection to deliberate implementation of improvement plan and whether or not to delist the company; and make the decision on delisting of the stock concerned within three (3) days of the deliberation date. Provided that, in any of the following cases, the Exchange may additionally grant an improvement period not exceeding three (3) months and, with regard to the deliberation procedure after the termination of the relevant improvement period, paragraph (4) and the main sentence of this paragraph shall apply *mutatis mutandis*. (Amended on December 9, 2022; February 27, 2025; November 11, 2025)

1. In the case where it is clearly recognized that there will be implementation of important parts of the improvement plan, such as change of the largest shareholder, paid-in capital increase, etc.; and (February 27, 2025)

2. In the case where a court ruling or decision that has a significant impact on the implementation of the improvement plan is scheduled and it is necessary to confirm it.

(February 27, 2025)

(6) [Deleted on July 9, 2025]

(7) “Cases where the Enforcement Rules stipulate that the deliberation of the Listing and Disclosure Committee is not necessary” stated in [§25(5)] of the Regulation shall refer to the cases noted in any of the following subparagraphs: (Amended on March 8, 2021; December 9, 2022)

1. Where a KOSPI-stock-listed corporation with the auditor’s opinion not up to standards files an objection pursuant to paragraph (1) and the Exchange decided to grant an improvement period. In such cases, the Exchange shall grant the period of improvement from the statutory submission deadline of annual reports for the following business year to the tenth day; and
2. Where a KOSPI-stock-listed corporation with the auditor’s opinion not up to standards resolves the cause for delisting through the revision of the audit opinion on the relevant audit report or receives an “unqualified” audit opinion on the audit report for the following business year, and the Exchange decided not to delist.
3. [Deleted on July 9, 2025]
4. [Deleted on July 9, 2025]
5. Where, as a case where a KOSPI-stock-listed corporation that falls under the cause of failure to submit regular report stipulated in [§48(1)1] of the Regulation was granted an improvement period through an official objection pursuant to paragraph (1), the Exchange deems the corporation has resolved the relevant delisting cause by submitting the regular report that the listed corporation failed to submit within the improvement period.

(8) In cases where the Exchange has made the decision noted in paragraphs (3), (5), and (7) the Exchange shall notify in writing the details of the decision concerned to the KOSPI-stock-listed corporation concerned without delay. (Amended on March 8, 2021; July 9, 2025)

(9) No KOSPI-stock-listed corporation shall file an objection to the delisting decision, etc. made by the Exchange pursuant to paragraphs (3) and (5), and the proviso to [§25(4)] of the Regulation. (Amended on March 8, 2021)

(10) In cases where the Exchange has confirmed the fact that any of the causes under each of the subparagraphs of [§48(2)] of the Regulation has occurred before completing the deliberation of the Corporate Review Committee under paragraph (2) or (5) and after starting the deliberation of the Corporate Review Committee pursuant to [§49(2) or (4)] of the Regulation, the Listing and Disclosure Committee shall make the deliberation taking into account the impact of the relevant cause on whether or not to

delist. [July 31, 2015] (Moving from paragraph 8 on March 8, 2021)

Section 2. Common Stocks

§20. Application Documents for Listing Eligibility Review

The application for listing eligibility review of common stocks under [§26] of the Regulation and the documents to be attached thereto shall be stipulated in [Annex 1].

§21. Mandatory Holding

(1) “Where accordingly stipulated in the Enforcement Rules” in [§27(3)1(d)] of the Regulation shall refer to a case where a specially related person of the largest shareholder falls under any of the following subparagraphs, and where the Exchange deems it necessary to exempt the specially related person from the obligation of mandatory holding. In such cases, the specially related person shall be limited to the person who owns less than 5/100 of the total number of common stocks (excluding the cases falling under subparagraph 5). [June 25, 2014] (Amended on December 2, 2015; September 10, 2019)

1. Where actual address of the specially related person is unknown;
2. Where the specially related person concerned is excluded from the enterprise group where the largest shareholder belongs pursuant to Article 5 of the Enforcement Decree of the Monopoly Regulation and Fair Trade Act;
3. Where the specially related person concerned has different kind of interest from that of the largest shareholder;
4. Case of falling under subparagraphs 1 through 3; and
5. Where it falls under any of subparagraphs 1 through 4 and is recognized that the impact on the management stability of the applicant for initial listing, realization of public interests and protection of investors is not material, when taking the followings comprehensively into account:
 - (a) Controlling power of the largest shareholder;
 - (b) The degree of establishment and operation of the professional management system;
 - (c) The purpose of shareholding by the specially related persons and the possibility of selling off their holdings; and
 - (d) The likelihood of change of the largest shareholder through the sale

shareholdings of the specially related persons.

(2) Pursuant to [§27(4)] of the Regulation, in the case of falling under any of the following subparagraphs, such amount shall be excluded from the stocks, etc. subject to mandatory holding. (Amended on June 25, 2014; July 31, 2015; September 10, 2019; December 9, 2022)

1. For the case of [§27(1)1] of the Regulation, when the largest shareholder, etc., who is a professional investor, holds for the purpose of investment.

2. For the case of [§27(1)3 and 4] of the Regulation, when falling under any of the following items:

(a) [Deleted on July 9, 2025]

(b) Where employees registered in the Employee Stock Ownership Association pursuant to the Framework Act on Labor Welfare;

(c) Trading at the KOSDAQ market or overseas stock markets;

(d) Acquisition of stocks owned by foreign investors under the Foreign Investment Promotion Act;

(e) Acquisition through fulfillment of statutory duties or court rulings;

(f) Where the number of acquired stocks is less than one hundred (100);

(g) Where the largest shareholder, etc. (officers of the applicant for initial listing shall include persons falling under each subparagraph of Article 401-2(1) of the Commercial Act; the same hereinafter in this paragraph) has acquired [limited to the case of acquiring after one (1) year retroactive from the date of application for listing eligibility review] the relevant stocks, etc. from a third party to replace the obligation of mandatory holding of a person who falls under [§27(1)3 and 4] of the Regulation, or a person who is not the largest shareholder mandatorily holds such stocks, etc. as of the date of applying for listing eligibility review, which is deemed inevitable by the Exchange; and

(h) Acquisition of stocks, etc. from a specially related person who has not been requested for mandatory holding as he/she falls under [§27(3)1(d)] of the Regulation.

(i) Where, as a case where the listing applicant was established via a spin-off, the Exchange deems that a shareholder of the parent company has acquired the stocks, etc. for the protection of shareholders of the parent company of the listing applicant (refers to the parent company pursuant to Article 342-2(1) of the Commercial Act; hereinafter the same in this item).

3. Case where the secondary offering of stocks owned by a person falling under [§27(1)1] of the Regulation has been finalized through the filing and acceptance of securities statements in accordance with the Act. (Amended on July 9, 2025)

(3) “Professional investor” in paragraph 2(1) shall refer to a person falling under any of the following subparagraphs from among the professional investors under Article 9(5) of the Act. (Amended on July 31, 2015; March 20, 2019)

1. The State;
2. The Bank of Korea;
3. Banks under Subparagraph 1 of Article 4 of the Enforcement Decree of the Act;
4. The Korea Development Bank established under Korea Development Bank Act;
5. The Industrial Bank of Korea established under the Industrial Bank of Korea Act;
6. The Export-Import Bank of Korea established under the Export-Import Bank of Korea Act;
7. The National Agricultural Cooperative Federation established under the Agricultural Cooperatives Act;
8. The National Federation of Fisheries Cooperatives established under the Fisheries Cooperatives Act;
9. Insurance Companies registered under the Insurance Business Act;
10. Financial investment business entities. Provided that trust business entities, discretionary investment business entities, investment advisory business entities, and concurrently-run financial investment business entities prescribed in Article 3(1)2 of the Act on Corporate Governance of Financial Companies (hereinafter referred to as “the Financial Companies Corporate Governance Act”) shall be excluded.
11. Securities finance companies;
12. Merchant banks;
13. Specialized credit finance company registered under the Specialized Credit Finance Business Act;
14. Mutual savings banks established under the Mutual Savings Banks Act and the Korea Federation of Savings Banks;
15. The National Forestry Cooperatives Federation established under the Forestry Cooperatives Act

16. The Korean Federation of Community Credit Cooperatives established under the Community Credit Cooperatives Act;

17. The National Credit Union Federation of Korea established under the Credit Unions Act;

18. The Korea Housing Finance Corporation established under the Korea Housing Finance Corporation Act;

19. The collective investment schemes. Provided that privately placed funds and the collective investment schemes established or created under the Acts prescribed in each of the subparagraphs of Article 6(1) of the Enforcement Decree of the Act shall be excluded.

20. The Korea Credit Guarantee Funds established under the Credit Guarantee Fund Act;

21. The Technology Guarantee Fund under the Technology Guarantee Fund Act;

22. Funds established under the relevant Acts (excluding Funds referred to in subparagraphs 20 and 21) and corporations that manage and operate such funds;

23. Corporations that manage any aid businesses under relevant Acts; and

24. Any other professional investors that the Exchange deems it reasonable to be excluded when calculating the number of the stocks held by the largest shareholder, etc. considering the characteristics of the professional investors, purpose of holding stocks, etc.

(4) Documents to be submitted with respect to the mandatory holding under [§27(5)] of the Regulation and the submission timing thereof shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

[§22. Application Documents for Initial Listing](#)

Application for initial listing eligibility review of common stocks and the supplementary documents pursuant to [§28(1)] of the Regulation shall be specified in [Annex 3].

[§23. Exceptions to the Criteria on Stock Distribution](#)

(1) “Cases stipulated in the Enforcement Rules” in the proviso to [§29(1)3(a)] of the Regulation shall refer to the case of a bank holding company where the Korea Deposit Insurance Corporation is the largest shareholder, and where the total number of the common stocks held by general shareholders is more than 10 million or more than

5/100 of the total number of common stocks.

(2) “Quantity specified in the Enforcement Rules” in [§29(1)3(a)(i)&(ii)] of the Regulation shall refer to five (5) million. Provided that, in cases where the total number of common stocks to be listed surpasses fifty (50) million, it shall refer to the quantity equivalent to 10/100 of the total number of common stocks to be listed.

§24. [Deleted on June 25, 2014]

§25. Merger, etc.

“Grounds specified in the Enforcement Rules” in the part other than each of the subparagraphs of [§29(5)] of the Regulation shall refer to any of the following subparagraphs:

1. Merger;
2. Spin-off;
3. Merger after spin-off;
4. Inclusion of a company as a subsidiary company;
5. Acquisition of assets. Provided that it shall be limited to the case where acquired assets become the major assets of the acquiring company;
6. Acquisition of business. Provided that it shall be limited to the case where the transferred business falls under the main business of the acquiring company; and
7. Organizational change of limited company into stock company pursuant to Article 607 of the Commercial Act.

§26. Calculation of Number of General Shareholders

Pursuant to [§29(6)] of the Regulation, calculation of the number of general shareholders in applying the criteria for listing eligibility review shall be based on the status of stock distribution in [Annex: Form No. 5] and the register of stockholders as at the end of the latest business year (if the register of stockholders was closed after the end of the latest business year, it shall be as at the time of closing) and the register of holders (referring to the “register of holders” under the Act on Electronic Registration of Stocks, Bonds, Etc.; the same hereinafter). (Amended on June 28, 2019; September 10, 2019)

§26-2. Methods of Applying Criteria on Exemption from Corporate Sustainability Review

(1) The equity capital, sales amount, and the income before tax from continuing operations noted in each subparagraph of [§30(2)] of the Regulation shall apply in a manner specified in each of the following subparagraphs. In such cases, [§29(2)2] of the Regulation shall apply *mutatis mutandis* to holding companies. (Amended on June 28, 2019)

1. Equity capital: For a company with a subsidiary (if the company is not a holding company, it shall be limited to the business year for which the Korean International Financial Reporting Standards were applied), it shall be based on the amount obtained by excluding non-controlling interests from the total shareholders' equity in the consolidated financial statement.

2. Sales amount: For the holding company, it shall be based on the sales amount in the consolidated financial statement.

3. Income before tax from continuing operations: For a company with a subsidiary (if the company is not a holding company, it shall be limited to the business year for which the Korean International Financial Reporting Standards were applied), it shall be based on the amount in the consolidated financial statement.

(2) The corporations under [§30(2)] of the Regulation shall include the KOSDAQ-listed corporations, and the criteria noted in each subparagraph of the same Paragraph shall apply based on the details of disclosure made in the KOSDAQ Market. [October 2, 2014]

§27. Criteria for Change of Management Rights

(1) “Cases where the management right of a common-stock-listed corporation is deemed to have been changed” in the part other than each subparagraph of [§32] of the Regulation shall refer to the cases where the number of shares of the common-stock-listed corporation held by the key investors (referring to the person falling under any of the subparagraphs in [§28(2)]) of the target company for the backdoor listing as of the date noted in any of the following subparagraphs (referred to as “base date for change of management rights” hereinafter in this Article) is more than the number of shares held by the largest shareholder, etc. of the common-stock-listed corporation: (Amended on June 25, 2014)

1. For the merger noted in subparagraphs 1(a) of [§32] of the Regulation or the all-inclusive stock swap noted in subparagraph 1(b) of the same Article: The submission date of the material fact report concerned;

2. For the acquisition of material business noted in subparagraphs 1(c) of [§32] of the Regulation or the acquisition of material asset noted in subparagraph 2(a) of the same

Article: The date noted in any of the following items:

(a) In the case of reporting on the acquisition of material business or the acquisition of material asset pursuant to [§7] of the KOSPI Market Disclosure Regulation (hereinafter referred to as “Disclosure Regulation”), the submission date of the material fact report concerned;

(b) In the case of reporting the issuance of new stocks or equity-related bonds (referring to the equity-related bonds pursuant to Article 165-10(1) of the Act. the same hereinafter) by means of third-party allotment pursuant to [§7] of the Disclosure Regulation within six (6) months after the submission date of the material fact report on the acquisition of material business or asset, the issuance date of the new stocks or equity-related bonds concerned; and

(c) In the case of reporting the change of the largest shareholder pursuant to [§7] of the Disclosure Regulation within six (6) months after the submission date of the material fact report on the acquisition of material business or asset, the reporting date.

3. For the investment in kind noted in subparagraph 2(b) of [§32] of the Regulation: The submission date of the material fact report concerned; and

4. For the transactions noted in subparagraph 3 of [§32] of the Regulation: As the date equivalent to dates noted in subparagraphs 1 through 3, the date determined by the Exchange by taking into consideration such factors as the nature and procedures of transactions.

(2) The decision on whether the change of management rights has occurred or not pursuant to paragraph (1) shall be made on the basis of the number of shares with voting rights, and the number of voting shares shall be calculated by including the shares noted in each of the following subparagraphs:

1. The shares to be delivered in accordance with the transaction falling under any subparagraph of [§32] of the Regulation;

2. The shares to be additionally issued following the exercise of rights of equity-related bonds that remain unexercised as of the base date for the change of management rights (shall be based on the conversion price as of the base date for the change of management rights); and

3. The shares or equity-related bonds that have the delivery claims pursuant to the laws or other agreements as of the base date for the change of management rights (shall be based on the number of new shares to be issued by exercising the rights).

(3) Notwithstanding paragraph (1), in cases where there is no change in the largest shareholder status of a common-stock-listed corporation for the past one (1) year since the base date for the change of management rights, and the largest shareholder

maintains the largest shareholder status of the common-stock-listed corporation as of the base date for the change of management rights (the case where a largest shareholder is added as a result of the transactions falling under any of subparagraphs of [§32] of the Regulation shall be excluded), it shall be deemed that the management rights have not been changed.

(4) In cases of subparagraphs 1(c) [§32] of the Regulation and subparagraph 2(a) of the same Article, where the fact that the change of management rights of a KOSPI-stock-listed corporation is planned within six (6) months after the submission date of the material fact report on the acquisition of material business or asset is confirmed, it shall be deemed that the management rights have been changed with regard to the transactions falling under backdoor listing.

§28. Effect of Listing, etc.

(1) “Case where there is an effect of listing the equity securities of an unlisted corporation” in the part other than each subparagraph of [§32] of the Regulation shall refer to a case falling under any of the following subparagraphs:

1. Merger noted in subparagraph 1(a) of [§32] of the Regulation: Case of a merger where the common-stock-listed corporation is the surviving company. Provided that the case where the unlisted corporation is wholly-owned subsidiary of the common-stock-listed corporation shall be excluded.
2. All-inclusive stock swap noted in subparagraph 1(b) of [§32] of the Regulation: Case where the common-stock-listed corporation holds the total number of equity securities issued by the target company for backdoor listing subsequent to the all-inclusive stock swap.
3. Acquisition of material business noted in subparagraph 1(c) of [§32] of the Regulation: Case where the asset or sales amount of the target business for acquisition is 30/100 or more of the total asset or sales amount as of the end of the latest business year of the target company for backdoor listing.
4. Acquisition of material assets under subparagraph 2(a) [§32] of the Regulation: Case where the common-stock-listed corporation acquires the shares issued by the target company for backdoor listing from the key investors of the target company for backdoor listing and as a result of the acquisition concerned, the common-stock-listed corporation holds at least 50/100 of equity securities issued by the target company for backdoor listing or holds at least 30/100 of equity securities of the target company for backdoor listing while being the largest investor.
5. Investment in kind under subparagraph 2(b) [§32] of the Regulation: Subsequent to the investment in kind, the common-stock-listed corporation holds more than 50/100 of equity securities issued by the target company for backdoor listing or holds at least 30/100 of equity securities issued by the target company for backdoor listing while being the largest investor.

6. The cases similar to those noted in subparagraphs 1 through 5, the case where the Exchange deems that it has the effect of listing the equity securities of an unlisted corporation.

(2) “Person stipulated in the Enforcement Rules” in the part except for each item of subparagraph 2 of [§32] of the Regulation shall refer to a person falling under any of the following subparagraphs:

1. The largest shareholder, etc. of an unlisted corporation (including the largest investor, etc.); and
2. The person holding at least 5/100 of total equity securities issued by the unlisted-corporation.

(3) “Amount specified in the Enforcement Rules” in subparagraph 2(b) [32] of the Regulation shall refer to the amount equivalent to 10/100 of the total assets of the common-stock-listed corporation at the end of the latest business year.

(4) “Transactions specified in the Enforcement Rules” in subparagraph 3 [§32] of the Regulation shall refer to a transaction falling under any of the following subparagraphs:

1. Case where an unlisted corporation merges with a common-stock-listed corporation by means of the spin-off pursuant to Article 530-2(2) of the Commercial Act; and
2. In addition, the transaction that the Exchange deems to fall under the backdoor listing in view of public interests and investor protection.

§29. Submission of Confirmation Statement on Backdoor Listing

(1) “Grounds stipulated in the Enforcement Rules” in [§33(1)] of the Regulation shall refer to any of the following subparagraphs:

1. Case where a common-stock-listed corporation has entered into or made a resolution/decision to enter an agreement with an unlisted corporation on a merger (including a merger after spin-off prescribed in [§28(4)1]), all-inclusive stock swaps or acquisition of material business;
2. Case where a common-stock-listed corporation has entered into or made a resolution/decision to enter into an agreement with an unlisted corporation on acquisition of material asset (limited to the equity securities of the unlisted corporation concerned, which is acquired from the key investors of the relevant unlisted corporation);
3. Case where a common-stock-listed corporation has made a resolution/decision to issue new stocks by way of third-party allotment or equity-related bonds, or has

made the report on the change of largest shareholder pursuant to [§7] of the Disclosure Regulation within six (6) months after submitting the material fact report on the acquisition of material business or asset;

4. Case where a common-stock-listed corporation issues new stocks to the key investors of the unlisted corporation by way of third-party allotment and the payment for new stocks is made by the equity securities of the unlisted corporation concerned, and the resolution/decision to issue the new stocks concerned has been made. In such cases, after the disclosure pursuant to [§7] of the Disclosure Regulation, if there is a corrective disclosure according to the result of the court's review on the investment in kind pursuant to Article 422 of the Commercial Act, it shall be included; and

5. In addition, the cases similar to those noted in subparagraphs 1 through 4, which the Exchange deems necessary for public interest and investor protection.

(2) The confirmation statement of backdoor listing under [§33(1)] of the Regulation shall refer to the forms under [Annex: Form No. 6] through [Annex: Form No. 12], and the supplementary documents shall be each of the following subparagraphs:

1. Details of the stocks of the common-stock-listed corporation concerned that is held by the key investors of the unlisted corporation;

2. Summary of the register of shareholders of the unlisted corporation;

3. Details on shareholding of the largest shareholder, etc. of the common-stock-listed corporation; and

4. In addition, the documents that the Exchange deems necessary to prove the change of management rights pursuant to [§27].

§30. Application Documents for Listing Eligibility Review

The application for listing eligibility review of backdoor listing and the supplementary documents under [§34] of the Regulation shall be stipulated in [Annex 1].

§31. Mandatory Holding

(1) Stocks, etc. subject to mandatory holding with respect to backdoor listing under the forefront of [§35(1), excluding each subparagraph] of the Regulation shall be classified into each of the following subparagraphs: (Amended on September 10, 2019)

1. For the key investors of the target company for backdoor listing (officers of the target company for backdoor listing shall include persons falling under each subparagraph of Article 401-2(1) of the Commercial Act; the same hereinafter in this paragraph): The stocks, etc. issued by the applicant for backdoor listing and the target company for backdoor listing;

2. For a person who acquired the stocks, etc. issued by the target company for backdoor listing by way of third-party allotment: The stocks, etc. issued by the target company for backdoor listing, limiting to backdoor listing subsequent to a merger or all-inclusive stock swap; and

3. For a person who acquired the stocks, etc. held by the key investors of the target company for backdoor listing: The stocks, etc. issued by the applicant for backdoor listing. Provided that, in the case of backdoor listing subsequent to a merger or all-inclusive stock swap, the stocks, etc. issued by the target company for backdoor listing shall be included.

(2) The provisions of [§27] of the Regulation shall apply *mutatis mutandis* with respect to the scope and period of mandatory holding of backdoor listing under [§35(2)] of the Regulation. In such cases, the “listing date” under paragraph (1) of the same Article shall be the date falling under any of the following subparagraphs: (Amended on September 10, 2019)

1. A merger falling under subparagraph 1(a) of [§32] of the Regulation or all-inclusive stock swap falling under subparagraph 1(b) of [§32] of the Regulation: the listing date of new stocks subsequent to the relevant transaction;

2. The acquisition of material business falling under subparagraph 1(c) of [§32] of the Regulation or the acquisition of material asset falling under subparagraph 2(a) of [32] of the Regulation: the closing date of the acquisition of material business or assets. Provided that, in cases where the closing date of listing eligibility review is after the closing date of the acquisition of business or asset, it shall be the day after the closing date of listing eligibility review.;

3. Notwithstanding subparagraph 2, in case where the change of management rights occurs pursuant to [§27] as a result of issuing the new stocks by way of third-party allotment or equity-related bonds within six (6) months of submitting the material fact report on the acquisition of material business or asset, it shall be the listing date of new stocks issued by way of third-party allotment or issue date of equity-related bonds. Provided that, in cases where the closing day of listing eligibility review is after the listing date of the new stocks concerned or issue date of equity-related bonds, it shall be the day after the closing day of listing eligibility review.

4. Notwithstanding subparagraph 2, in cases where the report on change of the largest shareholder pursuant to [§7] of the Disclosure Regulation has been submitted within six (6) months of submitting the material fact report on the acquisition of material business or asset. Provided that the case where the change of largest shareholder was caused by the issuance of new stocks by way of third-party allotment pursuant to subparagraph 3 shall be excluded:

(a) Case of undergoing the listing eligibility review by submitting the application for backdoor listing eligibility review at the time of making the decision or resolution on the acquisition of material business or asset: The reporting day of

the change of the largest shareholder. Provided that, if the closing day of listing eligibility review is after the reporting day concerned, it shall be the next day of the closing day of listing eligibility review; and

b. Case of undergoing the listing eligibility review by submitting the application for backdoor listing eligibility review at the time of reporting the change of largest shareholder: The day after the closing day of listing eligibility review.

5. Case of the investment in kind falling under subparagraph 2(b) of [§32] of the Regulation: The listing date of new stocks subsequent to the investment in kind. Provided that, if the closing day of listing eligibility review is after the listing day of new stocks concerned, it shall be the day after the closing day of listing eligibility review; and

6. Transaction falling under subparagraph 3 of [§32] of the Regulation: As the day equivalent to the days noted in subparagraphs 1 through 5, the day that the Exchange determines by taking into consideration such factors as the nature and procedures of transaction,

(3) The documents to be submitted with respect to the mandatory holding obligation of the applicant for backdoor listing and the submission timing thereof under [§35(2)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§32. Exception for Limit of Change of the Largest Shareholder

“Cases that are stipulated in the Enforcement Rules” in the proviso [37(1)3] of the Regulation shall refer to the case falling under any of the following subparagraphs:

1. Where the largest shareholder has been changed subsequent to the sale of the shares held by the State, etc.
2. Where the largest shareholder has been changed subsequent to inheritance or devise
3. Where the largest shareholder of an unlisted corporation is a paper company, where the largest shareholder (limited to the case of individuals) of the paper company has become the largest shareholder of the unlisted corporation
4. Where a listed corporation that is spun off due to a spin-off resulting from carving-out or a merger after spin-off has become the largest shareholder of the unlisted corporation
5. Any other cases where the Exchange deems that there was no actual change of management rights considering relationship between the parties of a transaction, changes in shareholding structure subsequent to the transactions, etc.

§32-2. Application of Re-listing After Merger

“Merger conducted as stipulated in the Enforcement Rules” in [38(1)3] of the Regulation shall refer to a case falling under any of the following subparagraphs. Provided that any cases falling under backdoor listing shall be excluded:

1. Where a common-stock-listed corporation is merged into an unlisted corporation that is a holding company or an affiliated company prescribed in the Act on Monopoly Regulation and Fair Trade or the Financial Holding Companies Act (referred to as the “holding company, etc.” hereinafter in this Article); and
2. Where a common-stock-listed corporation merges with an unlisted corporation that is a holding company, etc. to establish a new company.

[November 4, 2015]

§33. Application Documents for Listing Eligibility Review

The application for listing eligibility review of relisting and the supplementary documents under [§39(1)] of the Regulation shall be stipulated in [Annex 1].

§34. Mandatory Holding

(1) The provisions of [§27] of the Regulation shall apply *mutatis mutandis* with respect to the scope and period of mandatory holding for general relisting under [§40(2)] of the Regulation. (Amended on September 10, 2019)

(2) The documents to be submitted with respect to the mandatory holding by the applicant for general relisting and the submission timing thereof under [§40(2)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§35. Application Documents for Relisting

The application for relisting and the supplementary documents under the forepart of [§41(1)] of the Regulation shall be stipulated in [Annex 4].

§36. Criteria for Relisting Review

(1) “Quantity specified in the Enforcement Rules” in the proviso to [§42(1)2(a)(i)] of the Regulation shall refer to four (4) million stocks. Provided that, in cases where the total number of common stocks to be listed is higher than 40 million, it shall be the amount equivalent to 10/100 of the total number of common stocks to be listed.

(2) “Small-scale merger specified in the Enforcement Rules” in the proviso to [§42(1)5] shall refer to the case where the total number of the new stocks that the corporation surviving the merger has issued in accordance with the merger does not surpass 5/100

of the total number of the issued stocks of the relevant corporation. Provided that any case where the amount paid to the shareholders of the expired corporation due to the merger surpasses 2/100 of equity capital of the surviving corporation shall be excluded.

§37. Application Documents for Supplementary Listing

The application for supplementary listing of common stocks and the supplementary documents under [§43(1)] of the Regulation shall be stipulated in [Annex 5].

§38. Mandatory Holding

(1) “Business transferor or asset transferor stipulated in the Enforcement Rules” in [§44(1)1] of the Regulation shall refer to the business or asset transferor (including the key investor of the unlisted corporation) that is an unlisted corporation.

(2) “Change in the largest shareholder, etc. stipulated in the Enforcement Rules” in [§44(1)1&2] of the Regulation shall refer to a case where the management rights of a common-stock-listed corporation is changed pursuant to [§27] with respect to the important acquisition of business or asset and investment in kind.

(3) Supplementary documents concerning the mandatory holding for supplementary listing of common stocks under [§44(3)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§39. Application Documents for Shelf-listing

(1) The application for shelf-listing pursuant to the latter part of [§45(1)] of the Regulation shall refer to [Annex: Form No. 13].

(2) The format of the written notice on issuance of new stocks pursuant to [§45(2)] of the Regulation shall refer to [Annex: Form No. 14] and the documents to be attached shall be each of the following subparagraphs: (Amended on September 10, 2019)

1. A certificate of issuance and registration;
2. A certified copy of corporate registration. In such cases, it may be submitted within seven (7) days of registration of change;
3. A copy of request for issuance of new stocks or conversion, or a document proving exercise of stock options; and
4. Other documents that the Exchange deems necessary for listing eligibility review.

(3) When submitting a written notice on issuance of new stocks for the purpose of making an application for supplementary listing of new stocks pursuant to [§45(2)], the notice may be filed on a weekly basis.

§40. Application Documents for Listing Change of Stocks

The application for listing change of common stocks and the supplementary documents under [§46(1), excluding each subparagraph] of the Regulation shall be stipulated in [Annex 6].

§40-2. Methods of Applying the Reasons for Failure to submit Regular Reports

(1) In cases where a common-stock-listed corporation fails to submit the regular reports by the statutory deadline due to corresponding to any of the following subparagraphs within three (3) months before the statutory deadline, the concerned common-stock-listed corporation shall file an application for an extension of the statutory deadline, and the Exchange may postpone the designation as an administrative issue pursuant to [§47(1)1] of the Regulation until the date specified in each of the concerned subparagraphs. (Amended on March 11, 2020)

1. In cases where it is impossible for an auditor of a common-stock-listed corporation (including the subsidiary companies of the concerned corporation) to conduct an audit since the auditor falls under any of the subparagraphs of Article 13 (2) of the Enforcement Decree of the External Audit Act: The date that becomes three (3) months from the statutory deadline for submission of regular reports; and

2. In other cases where a common-stock-listed corporation cannot submit the regular reports normally by the statutory deadline due to inevitable circumstances, and it is acknowledged through the approval of the Financial Services Commission or the Securities and Futures Commission, etc.: The date determined by the approval of the Financial Services Commission or the Securities and Futures Commission, etc.

(2) Notwithstanding Paragraph (1), in cases where a common-stock-listed corporation fails to submit the regular reports by the statutory deadline due to a reason that falls under any of the subparagraphs of Paragraph (1) within three (3) months before the statutory deadline, the concerned common-stock-listed corporation shall explain the reasons for its non-submission to the Exchange, and the Exchange may postpone the designation as an administrative issue pursuant to [§47(1)1] of the Regulation by applying Paragraph (1) mutatis mutandis only when it deems necessary. (Amended on March 11, 2020)

[March 31, 2017]

§41. Methods of Applying the Reasons for Impairment of Capital Stock

In the case of causes for impairment of capital stock under [§47(1)3] of the Regulation, if a common-stock-listed corporation submits the financial position statement which verifies the dissolution of the relevant cause for designation of administrative issue and the related audit reports (limited to auditor's opinion of "unqualified") of the person

falling under each of the following subparagraphs by the submission date of audit report under [§7] of the Disclosure Regulation, whether to designate as administrative issue or not shall be reviewed based on such verifying materials. In such cases, the base time for review shall be the submission date of the relevant verifying materials. (Amended on June 25, 2014; March 27, 2015; July 31, 2015; March 20, 2019)

1. The same auditor as the auditor for regular financial statement in the latest business year (referred to as the “same auditor” hereinafter)
2. The auditor designated by the Securities and Futures Commission pursuant to Article 11 of the External Audit Act (limited to the case where the same auditor was imposed of a measure of restricting the auditing of the relevant listed corporation pursuant to Article 29(3)4 of the same Act)
3. The accounting firm satisfying the criteria of each subparagraph of [§11(1)] (limited to the case where the same auditor is asked to cancel the registration and to suspend the entire or a part of business pursuant to Article 39(1) of the Certified Accountant Act). In such cases, whether to satisfy the criteria or not shall be decided based on “items (b)(i) and (b)(ii) of paragraph (2)1” instead of “item (b)(i) and (b)(ii) of paragraph (2)2” of [§11(1)5].

§42. Methods of Applying Causes for Stock Distribution not up to Standards

- (1) “Quantity specified in the Enforcement Rules” in [§47(1)4(b)(i)] of the Regulation shall refer to two (2) million stocks.
- (2) For the par value stocks in [§47(1)4(b)(ii)] of the Regulation, it shall be based on par value of KRW 5,000.
- (3) Designation of administrative issues due to the causes for stock distribution not up to standards under [§47(1)4] of the Regulation shall be made based on the status of stock distribution on the latest annual report and the register of stockholders and the register of holders as at the end of the latest business year (if the register of stockholders was closed after the end of the latest business year, it shall be as of the time of closing). (Amended on September 10, 2019)
- (4) With respect to paragraph (3), common-stock-listed corporations shall submit the status of stock distribution under [Annex: Form No. 5] to the Exchange two (2) weeks before the submission date of the relevant annual report. In such cases, the status of stock distribution shall be prepared based on the general shareholders and the number of floating stocks.
- (5) Notwithstanding paragraph (3), when the common-stock-listed corporations submit the status of stock distribution or the register of stockholders that verifies the fact that the cause for designation of the administrative issue was resolved by the submission deadline of the annual report, the review on whether to designate it as the administrative issue made be conducted based on such verifying materials. In such cases, the timing of

the review shall be the submission date of the relevant verifying materials.

§43. Methods of Applying the Reasons for Trading Volume not up to Standards

(1) “Average monthly trading volume for a semiannual period” in [§47(1)5] of the Regulation shall refer to the amount calculated by dividing the total trading volume (considering the trading days of the relevant stock certificates) for half a year by the common-stock-listed corporation in the KOSPI Market (including trading volume at multilateral trading companies) into six (6) months. In such cases, the calculating formula shall be “[number of trading days during semiannual period /number of trading days of the stocks concerned during semiannual period) x total trading volume during half a year]/6”. (February 27, 2025)

(2) When calculating monthly average trading volume of paragraph (1), the trading volume before listing change in the case where there is a reverse stock-split, stock-split, capital increase or decrease during a semiannual period or before the listing of new stocks shall be calculated by adjusting the matters of the following subparagraphs:

1. In the case of a reverse stock split or stock split, it shall be adjusted pursuant to the ratios of the reverse stock-split, or the stock-split concerned;
2. In the case of a capital increase, it shall be adjusted according to the ratio of the capital increase. Provided that, in cases where there is a stock falling under each item of subparagraph 7 of [§18] of the Regulation among the new stocks issued through the capital increase, it shall be adjusted based on the rate of increase of the floating stocks; and
3. In the case of a capital decrease, it shall be adjusted according to the ratio of the capital decrease. Provided that, in the case where there is a stock falling under each item of subparagraph 7 of [§18] of the Regulation among the new stocks issued through the capital decrease, it shall be adjusted based on the rate of decrease of the floating stocks.

(3) [Deleted on July 31, 2015]

(4) The application method for stock distribution specified in [§42(3)] shall apply *mutatis mutandis* to the numbers of general shareholders and their stocks noted in [§47(1)5b] of the Regulation.

§44. Methods of Applying Reasons for Corporate Governance not up to Standards

(1) In applying [§47(1)6] of the Regulation, the Exchange shall validate the qualifications of outside directors and the audit committee of a common-stock-listed corporation based on the written confirmation submitted by the concerned common-stock-listed corporation. (Amended on March 11, 2020)

(2) In the case of falling under any of the following subparagraphs, it may be deemed not correspondent to the reason for designation as administrative issue noted in [§47(1)6] of the Regulation. Provided that it shall be limited to the case where the common-stock-listed corporation concerned submits the document proving the fact to the Exchange. (Amended on February 10, 2021)

1. Where the company falling under the causes for designation as administrative issue has rectified the relevant cause through a resolution at a general meeting of shareholders, etc.; and

2. Where the KOSPI-listed corporation falls under the causes for designation as administrative issue, which the common-stock-listed corporation is not responsible for, such as the resignation or death of outside director or the procedures for selection and appointment of outside director in accordance with other laws and regulations.

(3) The common-stock-listed corporation that was not designated as administrative issue as it falls under paragraph (2)2 shall clear up the cause concerned at the first general meeting of shareholders called after the submission of documentary proof pursuant to the proviso to the part of paragraph (2) except each subparagraph. Provided that this provision shall not apply to the common-stock-listed corporation that falls under the reason for designation as administrative issue due to the procedures for selection and appointment of outside director in accordance with other laws.

(4) The case of being below the number of outside directors or the criteria for audit committee of [§47(1)6(b)&(d)] of the Regulation shall refer to the case where the company which has satisfied the criteria for the number of outside directors pursuant to [§77] of the Regulation or the composition criteria of audit committee pursuant to [§78] of the Regulation, since then, does not satisfy the criteria concerned because of the resignation, death, etc. of the outside director or the audit committee member.

(5) “Efforts specified in the Enforcement Rules” in the proviso to [§47(1)6] of the Regulation shall refer to each of the followings: [December 20, 2017]

1. Introduction of an electronic voting system;
2. Solicitation to exercise voting rights by proxy;
3. Request for exercise of voting rights to institutional investors, etc.; and
4. Other actions taken to establish the general meeting of shareholders.

§45. Methods of Applying the Reasons for Sales Amount and Stock Prices not up to Standards

(1) The causes for the sales amount not up to standards under [§47(1)7] of the Regulation shall apply in accordance with each of the following subparagraphs;

1. If the business year of a common-stock-listed corporation which arrives after the corporation changed the settlement of accounts period is less than 6 months, it shall not apply to the business year concerned.

2. If a common-stock-listed corporation has been spun off in order for conversion into a holding company, and the conversion process was not completed during the business year which includes the due date for the spin-off, it shall apply to the business year concerned based on the sales amount of the consolidated financial statement.

(2) [Deleted on December 9, 2022]

(3) The average listed market capitalization of common stock for the latest fiscal year, noted in [§47(1)7(a)] of the Regulation, shall be calculated as the simple arithmetic mean of the daily listed market capitalization for the latest fiscal year. Provided that if trading is suspended on a day during the latest fiscal year, the listed market capitalization on the day immediately before the suspension shall be applied. [July 9, 2025]

§46. Designation as Administrative Issues and Release Therefrom, etc.

(1) The timing of designating as administrative issues and releasing therefrom pursuant to [§47(4)] of the Regulation shall be determined in [Annex 7]. In such cases, when the designation as administrative issue is maintained by the decision made pursuant to paragraph (3) or (5) of [§19], the criteria on whether the cause of release from designation as administrative issue and on the timing for the release are applied from the date of trade resumption of the stock concerned. (Amended on July 31, 2015)

(2) In the “unlisted corporation” under [§47(3)] of the Regulation, the KOSDAQ-listed corporations shall be excluded.

§47. Target Company for the Agreement among Financial Institutions

“Cases stipulated in the Enforcement Rules” in the proviso to [§48(1)11] of the Regulation shall refer to the cases where a note or check issued for the purpose of financing by the common-stock-listed corporation, which has been selected as a company to put through the corporate restructuring in accordance with the agreement among the financial institutions for the promotion of corporate restructuring (hereinafter referred to as “agreement among financial institutions”), has been dishonored as a result of bounce during the grace period for exercise of claim rights.

§48. Methods of Applying the Reasons for Delisting

(1) Concerning the reasons for failure to submit the regular reports stipulated in [§48(1)1] of the Regulation, the delisting may be postponed by applying *mutatis*

mutandis the methods of applying the reasons for failure to submit regular reports noted in [§40-2]. [March 31, 2017]

(2) In the case of a corporation that has filed an official objection to delisting pursuant to [§25] of the Regulation as it falls under the cause of the auditor's opinion not up to standards under [§48(1)2] of the Regulation, it may be recognized that the relevant cause for delisting was resolved based on the audit report in each of the following subparagraphs: [March 20, 2019] (Amended on March 8, 2021; December 9, 2022)

1. With regard to a corporation that submitted an improvement plan for an unqualified audit opinion on the audit report of the next business year pursuant to [§19(1)1(a)], the audit report of the next business year; and

2. [Deleted on July 9, 2025]

(3) In the case of the causes for the impairment of capital stock under [§48(1)3] of the Regulation, if a common-stock-listed corporation submits the financial statements that verify the removal of relevant reasons for delisting and the related audit reports (limited to the case of unqualified opinion) issued by the person falling under each subparagraph of [§41] by the statutory deadline for the submission of annual report (in the case of falling under any of the following subparagraphs, the date specified in each subparagraph), it can be reviewed whether or not the corporation falls under the reasons for delisting, based on the verifying materials (the time of review shall be the date of submission of the verifying materials concerned). (Amended on June 25, 2014; March 27, 2015; March 31, 2017; March 11, 2020; February 10, 2021; May 13, 2021)

1. In cases where the common-stock-listed corporation falls under any of subparagraphs in [§40-2(1)] and fails to submit its annual report by the statutory submission deadline and the designation as an administrative issue is postponed, the date specified in the relevant subparagraph;

2. In cases where the common-stock-listed corporation falling under [§48(1)2] of the Regulation, which is the auditor's opinion not up to the standard, has resolved the cause for delisting by changing the opinion of the auditor, the date on which the relevant audit report is submitted; and

3. In cases where the common-stock-listed corporation submits its annual report within ten (10) days from the statutory submission deadline after being designated as an administrative issue pursuant to [§47(1)1] of the Regulation due to the non-submission of the annual report, the date on which the concerned annual report is submitted.

(4) Concerning the causes for the stock distribution not up to standards under [§48(1)4] of the Regulation, [§42(3)&(4)] shall apply *mutatis mutandis*.

(5) Notwithstanding paragraph (3), in cases where a common-stock-listed corporation submits the status of stock distribution or the register of stockholders which proves the

dissolution of the reason concerned for the delisting until the submission date of the annual report, whether to correspond with reason for delisting or not shall be reviewed based on the certified materials. In such cases, the time for reviewing shall be on the submission date of the certified materials concerned. (Amended on March 31, 2017)

(6) Paragraphs (1) and (2) of [§43] shall apply *mutatis mutandis* in calculating “monthly average trading volume for semiannual period” [§48(1)5] of the Regulation.

(7) The causes for the corporate governance not up to standards under [§48(1)6] of the Regulation shall be reviewed based on the annual report to be submitted for the first time after the designation as administrative issue in accordance with [§47(1)6] of the Regulation. Provided that, in the case of being designated as administrative issue pursuant to [47(1)6(b)&(d)] because deficient outside directors or audit committee members are not appointed at the general meeting of shareholders, the review shall be based on the annual report of the following business year.

(8) [Deleted on December 9, 2022].

(9) [Deleted on December 9, 2022]

(10) The causes for the sales amount not up to standards under [§48(2)2] of the Regulation shall be reviewed based on the auditor’s report. [December 9, 2022] (Amended on July 9, 2025)

(10) [§45(3)] shall apply *mutatis mutandis* to the calculation method of the average listed market capitalization of common stocks for the latest fiscal year noted in the proviso to [§48(2)2] of the Regulation. [July 9, 2025]

§49. Special Provisions on Application of Reasons for Delisting

(1) In cases where the common-stock-listed corporation falling under the reason for audit opinion not up to standards pursuant to [§47(1)2(a)] of the Regulation, the reason for impaired capital pursuant to [§47(1)3], the reason for stock distribution not up to standards pursuant to [§47(1)4], and the reason for corporate governance not up to standards pursuant to [§47(1)6] in the previous business year of the latest business year does not submit the annual report of the latest business year, the matters concerned shall be deemed to have been continued for the latest business year. (Amended on March 11, 2020)

(2) In the case of the reason for stock distribution not up to standards pursuant to [§48(1)4] of the Regulation, impaired capital pursuant to [§48(2)1] of the Regulation, and the reason for sales amount not up to standards pursuant to [§48(2)2] of the Regulation, if the business year that comes after the common-stock-listed corporation changed the settlement of account period is less than six (6) months, it shall not apply in the business year concerned. (Amended on December 9, 2022)

§50. Judgment Criteria for Listing Maintenance Review

(1) The decision on whether or not a common-stock-listed corporation is subject to the listing maintenance review pursuant to the latter part other than each item of [§48(2)6]] and [§58] of the Regulation shall be made in accordance with each of the following subparagraphs. (Amended on June 25, 2014; March 27, 2015; December 30, 2015; April 22, 2016; December 27, 2016; June 28, 2019; March 8, 2021; December 9, 2022; June 14, 2024)

1. Evasion of the causes for delisting under [§48(2)6(a)] of the Regulation: Case where the cause of delisting relating to sales amount not up to standards noted in [§48(2)2] of the Regulation has been resolved by an intentional or temporary sales after having been designated as the administrative issue due to the reason for sales amount not up to standards pursuant to [§47(1)7] of the Regulation. In such cases, it shall be judged where or not it is subject to the listing maintenance review in consideration of the sales, income before tax from continuing operations, business characteristics, and transactional relations, etc.

2. Disclosure of the facts about embezzlement and misappropriation pursuant to [§48(2)6(b)] of the Regulation: Case where the disclosure about embezzlement, misappropriation, etc. falling under [§7(1)2(d)(iii)] of the Disclosure Regulation is made or the related fact is confirmed with the indictment of prosecutor, etc. and the amount of such embezzlement or misappropriation is equivalent to 5/100 (25/1,000 for large-sized corporations) or more of its equity capital (referring to what is calculated by applying the provisions of [§3] of the Disclosure Regulation to the equity capital specified in [§2(10)] of the same Regulation). In such cases, the embezzlement and misappropriation by former and present officers and employees (in the case of a company with executive officers, the executive officers shall be included: the same hereinafter.) shall be included.

3. Violation of accounting standards under [§48(2)6(c)] of the Regulation:

(a) Case where the annual report, correction of annual report and inspection of the Securities and Futures Commission confirm the fact of violating the accounting standards and it falls under the delisting reason when the details of the violation concerned is taken into consideration. In such cases, when judging whether to fall under the reason for delisting due to impaired capital pursuant to [§48(1)3] and [§48(2)1] of the Regulation, the non-controlling interests shall not be excluded in calculating the total shareholders' equity; and

(b) Case of having confirmed the fact that the Financial Services Commission or the Securities and Futures Commission made a decision (excluding cases where it is decided that no measure is necessary for the listing management of the Exchange) to notify to or file a complaint against the common-stock-listed corporation (including the current and former officer) with the prosecutor, or that the prosecutor indicted directly, because of the violation of accounting standards. Provided that the case where the amount of violation (excluding the

amount of violations which are minor such as a failure to state footnotes, account classification errors, etc.) is less than 5/100 (25/1,000 for KOSPI-listed corporations with KRW 2 trillion or more of total assets as of the latest business year) of equity capital of the listed company concerned shall be excluded. (Amended on November 11, 2025)

4. Suspension of main business under [§48(2)6(d)] of the Regulation: The case where it is difficult to maintain the viable business operation by falling under any of the following items. In such cases, the decision on whether or not it falls under a cause shall be made considering the annual and quarterly sales amount, etc. of the entire business or the remaining part of the business, and the listed holding company (including a corporation that has made a public disclosure on its decision to spin off or to merge after spin-off for the conversion into a holding company) and foreign stocks, etc. shall be based on the sales amount stated in the consolidated financial statements:

(a) Case of suspending the production and sales operation of main business;

(b) Case where the permit for main business is terminated or returned;

(c) Case where the main business is transferred or moved subsequent to the spin-off or the merger after spin-off; and

(d) Case where the quarterly amount of sales is less than KRW 500 million. In such cases, [§45(1)] shall apply *mutatis mutandis*. Provided that this item shall not apply to the quarter in any of the following items; (Amended on July 9, 2025)

(i) The first quarter of less than one (1) month that occurs after a corporation that has listed its common stocks changes its fiscal year end; [July 9, 2025]

(ii) The quarter falling within the fiscal year in which the listing date of a newly listed corporation that satisfies the management performance requirements of [§29(1)4(d) or (e)] of the Regulation falls and the five consecutive fiscal years starting from the fiscal year thereafter; or [July 9, 2025]

(iii) The quarter in which the average listed market capitalization of common stocks is KRW 100 billion or more. In this case, [§45(3)] shall apply *mutatis mutandis* to the calculation method for the average listed market capitalization of common stocks for the latest quarter, but "the latest fiscal year" shall be deemed as "the latest quarter". [July 9, 2025]

(e) Case where as a result of a foreign holding company (including the holding company controlling a foreign company; the same hereafter in this Item) disposing the whole or a part of equity of subsidiary (referring to a subsidiary whose sales or net income as of the end of latest business year exceeds 50/100 of the sales or net income in the consolidated financial statement of foreign holding company), the subsidiary concerned loses the status of being the subsidiary of

foreign holding company;

(f) In addition, case where the Exchange deems that in actual fact, the operation of main business has been ceased.

5. Case where it is deemed necessary pursuant to [§48(2)6(f)] of the Regulation:

(a) Case where a common stock-listed corporation not meeting up standards of audit opinion under [§48(1)2 and 2-2] of the Regulation is confirmed to have resolved the relevant delisting reason; (Amended on February 27, 2025; July 9, 2025)

(b) Other cases where the Exchange deems necessary for realizing the public interest;

(2) “Audit report stipulated in the Enforcement Rules” in [§48(2)6(e)] of the Regulation shall refer to the audit report under [§48(3)]. (Amended on March 31, 2017; February 10, 2021; December 9, 2022)

(3) Detailed criteria to judge whether or not a corporation is subject to listing maintenance review pursuant to each subparagraph of the paragraph (1) shall be separately determined by the Exchange. [December 18, 2020]

§50-2. Exclusion of Being Subject to the

(1) When making a decision on whether a common-stock-listed corporation is subject to deliberation by the corporate review committee or not pursuant to the main sentence of [§49(1)] of the Regulation, if the corporation falls under any of the following subparagraphs, the Exchange may exclude the relevant corporation from being subject to the deliberation by the corporate review committee. (Amended on July 31, 2015; December 9, 2022)

1. Case where the matters concerned fall under any of the following items when considering the agent, cause-and-effect, details of behavior, etc. of the matters falling under any of the subparagraphs of [§48(2)] of the Regulation (referred to as the “matters of listing maintenance review” hereinafter in this Article):

(a) Case of occurrence due to the same cause act as that of the listing maintenance review completed in the past; and

(b) Case of the matter where the review has already been completed since its occurrence in the future was predicted in the course of the listing maintenance review in the past.

2. Case where the matters of listing maintenance review are confirmed after the date

when the matters fall under any of the following items. In such cases, occurrence of the matters of the listing maintenance review shall be on the basis of the time when the behavior related to the matters concerned has completed:

(a) Date of the decision for termination of rehabilitation procedure in accordance with the application for commencement of rehabilitation procedures after occurrence of the matters of the listing maintenance review;

(b) Date of the transfer or spin-off of a part of the business where the matters of the listing maintenance review have occurred. In such cases, the date of spin-off or the business transfer shall be based on the registration date of the spin-off, or the transfer date noted in the business transfer/acquisition agreement;

(c) Date when three (3) years have elapsed since the change of the largest shareholder after the occurrence of the matters of the listing maintenance review. Provided that, in cases where the change of the largest shareholder has been concluded with the specially related person or the person who has shared the experience of joint acquisition of management rights in the past or where the largest shareholder or the representative director (referring to representative executive officers in the case of a company with executive officers) at the time of occurrence of the matters of the listing maintenance review remains to be the largest shareholder or is during his or her term of office, this item shall not apply; and

(d) Date when the time has passed 5 years since the occurrence of the matters of the listing maintenance review.

3. Case where the reason for delisting pursuant to [§48(2)6(e)] of the Regulation has resolved through the approval of the rehabilitation plan.

4. The case falling under subparagraph 1 or 2 or the case where the Exchange deems the review by the corporate review committee unnecessary because the listing eligibility of the common-stock-listed corporation concerned has been approved.

(2) Notwithstanding paragraph (1), in the case of falling under any of the following subparagraphs, subparagraphs 1 and 2 of paragraphs (1) shall not apply: (Amended on July 31, 2015)

1. Case where the officer related to the matters of the listing maintenance review concerned is during his or her term of office;

2. Case of falling under delisting criteria noted in each subparagraph of [§48(1)] of the Regulation when reflecting the matters of the substantial review concerned;

3. Case where the Exchange deems the matter of the listing maintenance review concerned to have a significant influence on listing eligibility of the common-stock-listed corporation.

(3) Concerning the decision for being subject to deliberation by the corporate review committee pursuant to paragraph (1), the common-stock-listed corporation concerned may submit the improvement plan to the Exchange. In such cases, the Exchange can consider the improvement plan when deciding the target for the review and can check whether the plan is implemented or not.

[September 13, 2013]

§51. Procedure of Listing Maintenance Review, etc.

(1) Pursuant to [§49(6)] of the Regulation, in cases where a common-stock-listed corporation was confirmed to fall under any of the subparagraphs of [§48(2)] of the Regulation, the Exchange shall notify in writing each of the following matters to the corporation concerned without delay:

1. The matters concerning the method and procedures of the listing maintenance review;
2. The matters concerning the actions to be taken, including delisting, in case where the listing maintenance review reveals that the corporation fails to maintain the listing eligibility; and
3. Additionally, other matters necessary for the maintenance review.

(2) “Without delay” in [§49(2)] of the Regulation shall refer to the period within twenty (20) days (based on the business days) from the date of decision for being subject to the deliberation by the Corporate Review Committee. Provided that, in cases where a common-stock-listed-corporation submits the improvement plan within fifteen (15) days from the date of receiving notification pursuant paragraph (1), the period shall be within twenty (20) days from the date of submission of the improvement plan, and in cases where the general meeting of shareholders or submission of annual report, etc. is scheduled, which can influence on the result of deliberation by the Corporate Review Committee, the period may be extended within one (1) month. (Amended on July 31, 2015; November 11, 2025)

(3) The Corporate Review Committee shall review the matters under each of the following subparagraphs pursuant to [§49(2)] of the Regulation. In such cases, the common-stock-listed corporation may submit the improvement plan to the Exchange, and the Corporate Review Committee may consider the relevant improvement plan for the review.

1. Whether or not to maintain the listing eligibility of the relevant listed corporation;
2. Granting the grace period for improvement; and
3. Whether or not to halt trading of the relevant securities and the period thereon.

(4) The Exchange shall make the decision on whether or not to delist the company concerned, to grant the improvement period, or to halt trading, and the period thereon within three (3) days from the deliberation date of the Corporate Review Committee. In such cases, the improvement period shall not exceed one (1) year. (Amended on July 9, 2025)

(5) A common-stock-listed-corporation granted an improvement period pursuant to paragraph (4) shall, within seven (7) days after the end of the improvement period (or, in the case of an application made pursuant to [§49(4)3] of the Regulation before the end of the improvement period, it shall be the date of application), submit to the Exchange a report on the implementation of the improvement plan and other documents deemed necessary by the Exchange in relation to the deliberation on the implementation of the improvement plan, and request a deliberation on the implementation of the improvement plan.

(6) In the case where the Exchange receives a request for deliberation pursuant to paragraph (5) (including cases falling under [§49(4)1 and 2] of the Regulations), unless there are special reasons, it shall convene a corporate review committee within twenty (20) days from that date to deliberate on the implementation of the improvement plan and the maintenance of listing eligibility, and shall decide on whether to delist within three (3) days from the date of deliberation. Provided that, in any case falling under any of the subparagraphs of [§19(5)], the Exchange may grant an additional improvement period not exceeding three (3) months, and paragraph (5) and the main sentence of this paragraph shall apply to the deliberation procedures of the Corporate Review Committee after the end of the improvement period. (Amended on December 18, 2020; February 27, 2025; July 9, 2025; November 11, 2025)

(7) After making the decision pursuant to paragraph (4) or (5), the Exchange shall notify in writing the details of decision to the company concerned without delay.

(8) The documents to be submitted and the submission deadline concerning the mandatory holding pursuant to [§49(5)] of the Regulation shall be stipulated in [Annex 2].

(9) The occurrence of a reason for delisting under each subparagraph of [§48(1)] of the Regulation shall not affect the listing maintenance review under [§49] of the Regulation and the objection against delisting subsequent to the listing maintenance review under [§25] of the Regulation. (February 27, 2025)

(10) In addition to paragraphs (1) through (7), matters necessary for listing maintenance review shall be determined by the Exchange separately.

(Wholly amended on June 25, 2014)

Section 3. Foreign Stocks, etc.

§52. Application Documents for Listing Eligibility Review, Mandatory Holding and Initial Listing

- (1) The application for listing eligibility review of foreign stocks, etc. under [§52(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 1].
- (2) The documents to be submitted with respect to the mandatory holding of foreign stocks, etc. under [§52(1)] of the Regulation and the submission timing thereof shall be stipulated in [Annex 2]. (Amended on September 10, 2019)
- (3) The application for initial listing of foreign stocks, etc. under [§52(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 3].
- (4) When applying the proviso to [§27(1)1] of the Regulation concerning common stocks *mutatis mutandis*, the private equity fund under Article 9(19) of the Act (hereinafter referred to as “private equity fund”) shall include the foreign corporations equivalent thereto under the foreign statutes. [June 25, 2014] (Amended on December 18, 2020; March 17, 2022; December 9, 2022)

§53. Method of Applying the Criteria for Listing Eligibility Review

- (1) The number of general shareholders in the latter part of [§53(1)2(a)] of the Regulation shall be calculated based on the holders stated in the register of holders for the foreign stocks, etc. publicly offered and sold in Korea. (Amended on June 28, 2019; September 10, 2019)
- (2) The sales amount and income before tax from continuing operations under [§53(2)3] of the Regulation shall be based on the amounts in the consolidated financial statements. (Amended on June 28, 2019)
 1. [Deleted on June 28, 2019]
 2. [Deleted on June 28, 2019]

§54. Application Documents, etc. for Supplementary Listing

- (1) The application for supplementary listing of foreign stocks, etc. under the forepart of [§55(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 5].
- (2) Supplementary documents concerning mandatory holding for supplementary listing of foreign stocks, etc. under the forepart of [§55(1)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

(3) “Conversion of foreign stocks to DRs as stipulated in the Enforcement Rules” in the latter part of [§55(1)] of the Regulation shall refer to the case where the total number of DRs of foreign stocks that are additionally issued by the conversion and those which have already been issued is more than the number of DRs of foreign stocks listed. In such cases, application for supplementary listing shall be limited to the amount exceeding the number of DRs of foreign stocks listed.

§55. Application Documents for Listing Change

The application for listing change of foreign stocks, etc. under [§56(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 6].

§56. Designation and Cancellation of Administrative Issue

The timing of designation as and release from administrative issues under [§57(1)] of the Regulation shall be stipulated in [Annex 7].

Section 4. Different Classes of Stocks

§57. Application Documents for Listing Eligibility Review, Mandatory Holding and Initial Listing

(1) The application for listing eligibility review of different class of stocks under [§60(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 1].

(2) Documents to be submitted with respect to the mandatory holding of different class of stocks under [§60(1)] of the Regulation and the submission timing thereof shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

(3) The application for initial listing of different class of stocks under [§60(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 3].

§58. Method of Application of Criteria for Initial Listing

(1) Calculation of the number of general shareholders under [§61(1)6] of the Regulation shall be made based on the status of stock distribution in [Annex: Form No. 5], the register of shareholders and the register of holders as at the end of the latest business year (if the register of shareholders was closed after the end of the latest business year, it shall be the time of such closing). (Amended on June 28, 2019; September 10, 2019)

(2) “Criteria specified in the Enforcement Rules” in [§61(1)9] of the Regulation shall

refer to any of the following subparagraphs:

1. Case where the relevant different class of stock can be overused as a means to defend the management rights of the existing controlling shareholder;
2. Case where the imbalance between the proportional profits relating to corporate control and the equity contribution occurs, infringing the shareholders' interests;
3. Case where financial resources for distribution of profits or repayment are not held enough; and
4. Any other cases that are deemed to be against public interests and investor protection.

§59. Application Documents for Supplementary Listing

(1) The application for supplementary listing of different class of stocks under [§62] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 5].

(2) Supplementary documents concerning mandatory holding for supplementary listing of different class of stocks under [§62] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§60. Application Documents for Listing Change

The application for listing change of different class of stocks under [§63] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 6].

§61. Designation of Administrative Issue

(1) With respect to the reasons for the number of general shareholders not up to standards under [§64(1)2] of the Regulation, the methods of applying the reasons for stock distribution not up to standards of common stocks under paragraphs (3) through (5) of [§42] shall apply *mutatis mutandis* thereto. (Amended on June 28, 2019)

(2) The methods for calculating the average monthly trading volume of common stocks for semiannual period under [§43(1) & (2)] shall apply *mutatis mutandis* to the calculation of “average monthly trading volume in the semiannual period” in [§64(1)4] of the Regulation.

(3) In the case of the reason for trading volume not up to standards pursuant to [§64(1)4] of the Regulation, if a liquidity provision agreement [limited to the agreement, of which the period is at least six (6) months] under [§20-3(1)] of the KOSPI Market Business Regulation (referred to as “Business Regulation” hereinafter) has been

concluded as of the end of semiannual period , it shall be deemed to have the reason for designation of administrative issue dissolved.

(4) The timing of designation of different class of stocks as administrative issues under [§64(3)] of the Regulation and release therefrom shall be stipulated in [Annex 7].

§62. Delisting

(1) The methods of applying the reasons for stock distribution not up to standards of common stocks stipulated in [§48(3)&(4)] of the Regulation shall apply *mutatis mutandis* with respect to the reasons for shortfall of the number of shareholders noted in [§65(1)2] of the Regulation. (Amended on March 31, 2017)

(2) The method of calculating the average monthly trading volume of common stocks during the semiannual period specified in [§43(1)&(2)] shall apply *mutatis mutandis* to the calculation of “average monthly trading volume in semiannual period” noted in [§65(1)4] of the Regulation.

Section 5. Special Purpose Acquisition Company

§63. Application Documents for Listing Eligibility Review, Mandatory Holding, Initial Listing

(1) The application for listing eligibility review of stocks of special purpose acquisition companies under [§67(1)] of the Regulation and the supplementary documents shall be stipulated in [Annex 1].

(2) The documents to be submitted with respect to the mandatory holding of stocks of special purpose acquisition companies under [§67(4)] of the Regulation and the submission timing thereof shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

(3) The application for initial listing of stocks of special purpose acquisition companies under [§67(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 3].

§64. Matters required to be entered in the Articles of Incorporation, etc.

(1) “Matters that are stipulated in the Enforcement Rules” in [§68(1)9(f)] of the Regulation shall refer to the matters required to be entered in the articles of incorporation of special purpose acquisition company pursuant to [Annex 8].

(2) “Matters stipulated in the Enforcement Rules” in [§68(1)10] of the Regulation shall refer to all of the following subparagraphs: (Amended on June 25, 2014)

1. The details that shareholders, etc. (referred to as the person holding stocks , etc. of the special purpose acquisition company concerned: the same hereinafter in this Section) will not exercise their votes on the resolution of the general meeting of shareholders regarding approval of merger pursuant to Article 522 of the Commercial Act, or will exercise their votes in accordance with the proportion of pros and cons (including abstention and invalidity) not to influence the details of the resolution of the number of stocks calculated by subtracting the number of stocks held by the shareholders, etc. as of the application date of listing eligibility review from the number of stocks (including the number of stocks voted in writing) held by the shareholders attended at the shareholders' general meeting concerned by delegating their votes to the KSD. Provided that the main sentence of this subparagraph shall not apply to the stocks, etc. which shareholders, etc. have acquired after initial offering of stocks of the special purpose acquisition company.

2. The details that the shareholders, etc. as of the application date for listing eligibility review will not exercise appraisal rights pursuant to Article 522 of the Commercial Act.

3. The details that the shareholders, etc. as of the application date for listing eligibility review, in cases where the special purpose acquisition company is dissolved as it falls under any of the items of Article 1-4-2(5)2 of the Regulations on Financial Investment Business, will comply with the methods and the procedures specified in the articles of incorporation in terms of return of money deposited in or trusted with deposit institutions, etc. [referring to the institutions prescribed and publicly notified by the Financial Services Commission in accordance with Article 1-4-2(2) of the Regulations on Financial Investment Business].

4. The details that the relevant shareholders etc. will perform their duties of compensation for the damage in the case where the damage has occurred due to the violation of the agreement pursuant to the subparagraphs 1 through 3.

§65. Application Documents for Supplementary Listing

(1) The application for supplementary listing of stocks of special purpose acquisition companies under [§69] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 5].

(2) Supplementary documents concerning mandatory holding for supplementary listing of stocks of special purpose acquisition companies under [§69] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§66. Application Documents for Listing Change

The application for listing change of stocks of special purpose acquisition companies under [§70] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 6].

§67. Designation of Administrative Issues

(1) In the case of application of the causes for the corporate governance not up to standards under [§71(1)] of the Regulation, it shall be confirmed whether or not the executive officers of the listed special purpose acquisition company fall under any of the subparagraphs of Article 5(1) of the Financial Companies Corporate Governance Act, based on the written confirmation under [§44(1)]. (Amended on March 20, 2019)

(2) “Quantity specified in the Enforcement Rules” in [§71(2)1(b)(i)] of the Regulation shall refer to two (2) million stocks.

(3) The methods of applying the reasons for stock distribution not up to standards regarding common stocks pursuant to [§42(2) through (5)] shall apply *mutatis mutandis* to the reasons for stock distribution not up to standards pursuant to [§71(2)1] of the Regulation.

(4) The timing of designating as and release from administrative issues under [§71(4)] of the Regulation shall be stipulated in [Annex 7].

§68. Delisting

(1) With respect to the reasons for stock distribution not up to standards under [§72(2)1] of the Regulation, the filing of an objection under [§48(3)] of the Regulation concerning common stocks and the methods of applying the reasons for stock distribution not up to standards under [§48(3)&(4)] of the Regulation shall apply *mutatis mutandis* thereto. (Amended on June 25, 2014; March 31, 2017)

(2) “Any person who has special interests specified in the Enforcement Rules” in [§72(2)8(a)(iv)] of the Regulation shall refer to a company falling under any of the following subparagraphs: (Amended on March 20, 2019)

1. The financial investment business entity under Paragraph (4)14(c) of Article 6 of the Enforcement Decree of the Act;

2. The shareholders (excluding the financial investment company noted in subparagraph 1: the same hereinafter in this Article) as of the application date for listing eligibility review;

3. The company, a person of which falling under any of the following items is the large shareholder prescribed in Subparagraph 6 of Article 2 of the Financial Companies Corporate Governance Act:

- (a) The financial investment company noted in subparagraph 1. In such cases, the person who, as an officer or employee of the financial investment company concerned, has carried out or is carrying out the work related to the establishment or operation of the listed special purpose acquisition company and his/her spouse and lineal ascendants and descendants shall be included.;

(b) The shareholders, etc. as of the application date for listing eligibility review. In such cases, if the shareholder, etc. concerned is a company, the officers of that company and their spouses or lineal ascendants and descendants shall be included, and in case of an individual, his/her spouses or lineal ascendants and descendants shall be included; and

(c) The officers and employees of the listed special purpose acquisition company concerned. In such cases, the spouses and lineal ascendants and descendants of the officers and employees shall be included.

4. The company for which the person falling under any of subparagraph 3 holds 5/100 or more of total number of the shares issued;

5. The financial investment companies under subparagraph 1 or the large shareholders and the affiliated companies under the Monopoly Regulation and Fair Trade Act (hereinafter referred to as “the affiliated company”) of the shareholders, etc. (limited to the case where the relevant shareholders, etc. are corporations; the same hereinafter in this Article) as of the date of application for eligibility review for initial listing; and

6. The company that concurrently holds or has held the position of officer and employee in the recent two (2) years in the listed special purpose acquisition company concerned, the financial investment company noted in subparagraph 1 or the shareholders, etc. as of the application date for listing eligibility review for initial listing.

(3) The total number of shares held pursuant to paragraph (2)4 shall include the number of shares noted in each of the following subparagraphs:

1. The number of stocks that would be issued subsequent to the exercise of rights of stocks, etc.; and

2. The number of shares held by the affiliated companies of the financial investment company noted in paragraph (2)1 and the shareholders, etc. as of the application date for listing eligibility review.

(4) In the case of applying *mutatis mutandis* [§48(2)6] of the Regulation regarding common stocks pursuant to the main sentence of [§72(1)] of the Regulation, [§50(1)4(d)] of the Regulation regarding the quarterly sales amount shall be excluded. [June 25, 2014] (Amended on December 9, 2022)

§69. Application Documents for Listing Eligibility Review

The application for listing eligibility review and the supplementary documents under [§74] of the Regulation shall be stipulated in [Annex 1].

§70. Documents to be submitted with respect to Mandatory Holding and Submission Timing thereof

The documents to be submitted with respect to the mandatory holding for listing after merger and the submission timing thereof under [§75(2)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§70-2. Application Documents for Listing after Merger

(1) "The application for listing after merger and the supplementary documents stipulated in the Enforcement Rules" under [§76-2(1)2] of the Regulation shall refer to the documents specified in [Annex 3-2].

(2) The listing application and supplementary documents under [§76-2(1)] of the Regulation shall be submitted to the Exchange immediately after the merger is registered. Provided that the submission deadline may be adjusted when the Exchange deems it necessary.

[February 14, 2022]

Section 6. Obligations of KOSPI-Stock-Listed Corporations

§71. Reporting Obligations

(1) "Incidents stipulated in the Enforcement Rules" in [§79(1)2] of the Regulation shall refer to a case falling under any of the following subparagraphs: (Amended on September 10, 2019; November 29, 2024)

1. [Deleted on September 10, 2019]
2. Case of listing the DRs, or having been imposed of a measure such as delisting or suspension of trading by the overseas securities market where the DRs are listed;
3. Where the register of holders of the DRs has been prepared; and
4. In addition, where any material incidents or facts concerning the rights, benefits or handling of the DRs have occurred.

(2) "Paper company stipulated in the Enforcement Rules" in [§79(1)3] of the Regulation shall be a company falling under the criteria under [§3(1)].

(3) The reporting of the change in the largest shareholder of a paper company noted in [§79(1)3] of the Regulation shall be made by [Annex: Form No. 15]. In such cases, a written confirmation on paper company in [Annex: Form No. 16] shall be attached.

(4) “Cases stipulated in the Enforcement Rules” in [§79(1)8] of the Regulation shall refer to each of the following subparagraphs:

1. Case where the company which has listed foreign stocks, etc. falls under any of the following items:

(a) Where there has been a change in the details of the appointment contract entered into with depository institutions or listing agents in connection with issuance of foreign stocks, etc.;

(b) Where there have been measures such as delisting, trading suspension, etc. taken by overseas securities markets in relation to listing management;

(c) Where the beneficial owners' list of foreign stocks, etc. has been prepared; and

(d) Where the number of DRs of foreign stocks has changed as a result of conversion of DRs into foreign listed stocks or vice versa.

2. Case where the total accumulated number (excluding previously reported number of shares) of shares to be issued by each of the conversion request of convertible stocks (referring to different classes of stocks under Article 346 of the Commercial Act: the same shall apply hereinafter) and CBs, the exercise of subscription rights of BWs, and the request of exchange of EBs has reached to or exceeds 1/100 of the total number of shares issued;

3. Case where an adjustment of the conversion price of convertible stocks and CBs, exercise price of BWs or exchange price of EBs has been made; and

4. Other material incidents or facts concerning the rights, benefits, or handling of the securities.

(5) The reporting deadline of matters noted in [§79(2)] of the Regulation shall be each of the followings:

1. The matters noted in item (d) of paragraph (4)1 and [§79(1)7] of the Regulation: By the fifth day of the month following the month to which the day of replacement or conversion concerned belongs. Provided that, when the quantity change (referring to the amount obtained by subtracting the number of common stocks or DRs of foreign stocks replaced or converted from the underlying foreign listed stocks from the number of common stocks or DRs of foreign stocks replaced or converted into foreign listed stocks after the first day of each month) is higher than 1/100 of the number of listed stocks or DRs of foreign stocks, it shall be reported immediately; and

2. The matters excluded from subparagraph 1: Without delay.

(6) “Documents stipulated in the Enforcement Rules” in [§79(5)] of the Regulation shall refer to the document stating the matters on operation of internal accounting management system (referring to a system equivalent to the internal accounting management system prescribed in Article 8 of the External Audit Act) in [Annex: Form No. 17] (hereinafter referred to as “written report on operation of internal accounting management system”), which has been reviewed, confirmed and signed by the representative director. In such cases, the written report on operation of internal accounting management system shall include the matters of the following subparagraphs: (Amended on December 28, 2018; March 20, 2019)

1. The internal accounting regulation and the matter about the unit that manages and operates the internal accounting regulation;
2. Operational status of internal accounting management system that the internal accounting manager (referring to the standing officer responsible for the management and operation of internal accounting management system: the same hereinafter) has reported to the board of directors or audit committee (referring to the auditor, in case of having appointed an auditor). In such cases, the internal accounting manager shall describe the operational status for a period that is longer than three (3) months prior to the application date for listing eligibility review;
3. Details of report that the audit committee submitted after evaluating the operation of operation of internal accounting management system;
4. Auditor’s review opinion or audit opinion on operational status of internal accounting management system. In such cases, the auditor shall refer to the auditor who audited the financial statement of the latest business year, Provided that, if the Exchange deems it necessary due to an unavoidable reason, the member company falling under the qualifications for auditor for foreign company, etc. under subparagraph 1(b) of [§11(2)] and subparagraph 2(b) of the same paragraph shall be included; and (Amended on November 11, 2025)
5. In addition, the matters that the Exchange deems necessary to ascertain the appropriateness of the establishment and operation of internal accounting management system.

(7) Notwithstanding paragraph (6), in cases where the company that has listed foreign stocks, etc. operates internal accounting management system in accordance with the laws and regulations of the home country, the Korean translation of the report related to the operation of internal accounting management system that is prepared in accordance with the laws and regulations of the home country may be used on behalf of the written report on operation of internal accounting management system.

§72. Reporting of Changes in Shareholding of the Largest Shareholder, etc.

(1) The report of the changes in shareholding of the largest shareholder pursuant to [§83(1)] of the Regulation shall be stipulated in [Annex: Form No. 18].

(2) “Professional investors specified in the Enforcement Rules” in [§83(2)] of the Regulation shall refer to a person who falls under any of subparagraphs of [§21(3)].
(Amended on June 25, 2015)

CHAPTER III. DEBT SECURITIES

Section 1. Debt Securities

§73. Application Documents, etc. for Initial Listing

- (1) The application for initial listing of debt securities under the forepart of [§86(1)] of the Regulation and the supplementary documents to be attached thereto shall be stipulated in [Annex 3].
- (2) “Request for listing of government debt securities” under the latter part of [§86(1)] of the Regulation shall be as stipulated in [Annex: Form No. 19].
- (3) “The time stipulated in the Enforcement Rules” in the proviso to [§86(2)] of the Regulation shall mean by the 10th day of the month following the month which includes the date of issuance of the relevant debt securities.
- (4) Acting as an agent for application for initial listing by managing underwriter pursuant to [§86(3)] of the Regulation shall comply with what the underwriting and sales contracts stipulate.

§74. Application for Shelf-Listing

- (1) The application for shelf-listing of debt securities under the latter part of [§87(1)] of the Regulation shall be as stipulated in [Annex: Form No. 20].
- (2) The application for shelf-listing of debt securities noted in the latter part of [§87(1)] of the Regulation shall be submitted fifteen (15) days before the last day of the year prior to the year when the issuing plan has been confirmed. Provided that, in cases where the issuing plan has been confirmed during the year, it shall be submitted until 15th of the previous month of the date when sales firstly began.
- (3) An applicant who has submitted the application for shelf-listing pursuant to [§87(2)] of the Regulation shall inform the Exchange of the monthly results of issuance until 20th of the next month. In such cases, the issuance results may be notified directly by the applicant or through the agency.
- (4) The Exchange shall adjust the amount to be listed according to the details of the notification under paragraph (3).

§74-2. Review Criteria for Initial Listing of Debt Securities

- (1) “Person stipulated in the Enforcement Rules” in subparagraph 6(a) of [§88] of the Regulation shall refer to the person who is in possession of securitization assets as prescribed in Subparagraph 2 of Article 2 of the Asset-Backed Securitization Act and falls under any of the following subparagraphs:

1. The Korea Development Bank;
2. The Export-Import Bank of Korea;
3. The Industrial Bank of Korea
4. Banks (including the credit business sector of the National Fisheries Cooperatives and the branches of foreign banks);
5. Financial investment business entities (limited to investment traders, investment brokers or collective investment business entities);
6. Merchant banks;
7. Insurers;
8. Specialized credit financial companies;
9. The Korea Asset Management Corporation;
10. The Korea Land and Housing Corporation;
11. The NongHyup Bank;
12. The Korea Deposit Insurance Corporation and the resolution financial institutions;
13. The Small and Medium Business Corporation;
14. The Korea Credit Guarantee Fund and the Korea Technology Credit Guarantee Fund;
15. The Korea Housing and Urban Guarantee Corporation; and
16. The Korea Housing Finance Corporation.

(2) The “credit rating stipulated in the Enforcement Rules” in subparagraph 6(b) of [§88] shall be ‘AAA’ from among the investment grades.

[November 4, 2015]

[§75. Application Documents for Relisting](#)

The application for relisting and the supplementary documents under the main sentence of [§89(1)] of the Regulation shall be stipulated in [Annex 4].

§76. Application Documents for Supplementary Listing

The application for supplementary listing of debt securities and the supplementary documents under [§90] of the Regulation shall be stipulated in [Annex 5].

§77. Application Documents for Listing Change

The application for listing change of debt securities and the supplementary documents under [§91] of the Regulation shall be stipulated in [Annex 6].

§78. Methods of Applying Reasons for Delisting

(1) With respect to the reasons for failure to submit the regular reports under [§91(1)(b)] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§48(1)] shall apply *mutatis mutandis*. [March 31, 2017]

(2) [Deleted on February 6, 2023]

(3) The “cases stipulated in the Enforcement Rules” in the proviso to [§92(1)(f)] of the Regulation shall refer to the case falling under target company for the agreement among financial institutions.

(4) The status of business operations under [§92(1)(g)(i) through (iv)] of the Regulation shall be determined based on the fact that whether the sales of the remaining business divisions have met the minimum threshold set by the Exchange. Provided that an exception may be made in cases where there is no capital impairment (a corporation with a subsidiary shall be based on the capital and the total capital in the individual financial statements). [March 31, 2022]

(5) The significant violation of domestic accounting standards noted in [§92(1)(j)] of the Regulation shall refer to the case falling under any of the following subparagraphs. [October 2, 2014] (Amended on November 4, 2015; March 31, 2022; June 14, 2024)

1. Case where the matters of violation of accounting standards have been confirmed through annual report, correction of annual report, and the results from an inspection by the Securities and Futures Commission, and case of falling under the reason for delisting if reflecting the matters of violation concerned.

2.

2. Case where the Financial Services Commission or Securities and Futures Commission makes a decision to notify to or file a complaint against the KOSPI-listed corporation concerned with the prosecutor or where the fact that the prosecutor indict directly has been confirmed due to violation of accounting standards, and case of falling under the reason for delisting if reflecting the matters of violation concerned.

§78-2. Methods of Applying Capital Impairment to Reasons for Delisting

(1) In the case of the reason of impaired capital under [§92(1)1(d)] of the Regulation, if a company owning a subsidiary company applies the Korean International Financial Reporting Standards under Article 5(1)1 of the External Audit Act, delisting shall apply on the basis of capital stock and the total stockholders' equity (excluding non-controlling interests) in consolidated financial statement.

(2) In the case of the reason of impaired capital under [§92(1)1(d)] of the Regulation, if a corporation that listed debt securities submit a statement of financial position proving the resolution of the reason for delisting and the audit report (limited to cases where the audit opinion is “unqualified”) by the statutory submission deadline of a business report, the Exchange may review whether the corporation falls under delisting criteria on the basis of the evidential documents (the timing of the review shall be the date of submitting the documents). Provided that, if it falls under any of the following subparagraphs, the deadline for submitting evidential documents shall be the date specified in the subparagraph:

1. Case where a corporation that listed debt securities falls under any of the subparagraphs of [§40-2(1)] and fails to submit a business report by the statutory submission deadline: The date specified in each subparagraph; and
2. Case where a corporation that listed debt securities submits a business report within 10 days from the statutory submission deadline: The date on which the business report is submitted.

[February 6, 2023]

§79. Reporting Obligations

(1) The “matters stipulated in the Enforcement Rules” in [§93(1)] of the Regulation shall refer to any of the following cases: (Amended on October 2, 2014; November 4, 2015)

1. Case where a decision has been made to redeem the issued debt securities before their maturity;
2. Case where the coupon rate of floating rate debt securities has been changed; and
3. Case where warrants, bonds with subscription warrants, convertible bonds, or exchangeable bonds fall under any of the following items:
 - (a) Where subscription rights, conversion rights, or exchange rights of the securities concerned have been exercised; and
 - (b) Where the exercise price of subscription rights, conversion price, or exchange price is changed. In such cases, the copies of the minutes of the board of directors

concerning the matters of change shall be submitted.

4. Case where the contingent capital securities fall under any of the following items:

(a) Where an event for the conversion into stocks or debt restructuring has occurred and consequently there was a partial change in the listing amount; and

(b) Where the conversion price of the contingent convertible bonds has changed. In such cases, a copy of minutes of the board of directors' meeting that contain such fact shall be submitted.

5. In addition, when important matters related to the rights, benefits or handling of debt securities has taken place.

(2) Report on the exercise of subscription rights, conversion rights or exchange rights pursuant to paragraph (1)3(a) shall be written in accordance with [Annex: Form No. 21]. (Amended on October 2, 2014)

Section 2. Foreign Debt Securities

§80. Application Documents for Initial Listing

The application for initial listing of foreign debt securities and the supplementary documents under [§94(1)] of the Regulation shall be stipulated in [Annex 3].

§81. Application Documents for Supplementary Listing and Listing Change

(1) The application for supplementary listing of foreign debt securities and the supplementary documents under [§96] of the Regulation shall be stipulated in [Annex 5].

(2) The application for listing change of foreign debt securities and the supplementary documents under [§96] of the Regulation shall be stipulated in [Annex 6].

§82. Reporting Obligations

“An event or cause stipulated in the Enforcement Rules” in [§98] of the Regulation shall refer to any of the following subparagraphs:

1. Case of issuing foreign debt securities in Korea;

2. Case of redemption or retirement of listed foreign debt securities;

3. Case of amending the trust agreement, issuance agreement or agreement for underwriting of the listed foreign debt securities concerned;

4. Case of changing the listing agent or the details of the agreement for appointment of listing agent;
5. Case where an overseas stock market has imposed the measures that are necessary for listing administration such as delisting, trading suspension, etc.; and
6. In addition, in cases where material matters concerning any rights, benefits, or handling of foreign debt securities have occurred.

CHAPTER IV. COLLECTIVE INVESTMENT SECURITIES

Section 1. Common Provisions

[November 4, 2015]

§82-2. Definitions

The “beneficiary certificates that are stipulated in the Enforcement Rules” in subparagraph 2(d) of [§99] of the Regulation shall refer to any of the following subparagraphs: (Amended on April 30, 2026)

1. Beneficiary certificates issued by the trust business entities pursuant to the Asset-Backed Securitization Act; and [April 30, 2026]
2. Beneficiary certificates issued by the Korea Credit Guarantee Fund pursuant to the Credit Guarantee Fund Act. [April 30, 2026]

Section 1-2. Stocks of Investment Companies

§83. Application Documents for Initial Listing

- (1) The application for initial listing of stocks of investment companies and the supplementary documents under [§101(1)] of the Regulation shall be stipulated in [Annex 3].
- (2) The documents to be submitted with respect to the mandatory holding for initial listing of stocks of investment companies under the latter part of [§101(2)] of the Regulation shall be stipulated in [Annex 2].

§84. Application for Supplementary Listing

The application for additional listing of stocks of investment companies and the attached documents noted in [§102(1)] of the Regulation shall be specified in [Annex 5].

§85. Application for Listing Change

The application for listing change of stocks of investment companies and the supplementary documents under [§103(1)] of the Regulation shall be stipulated in [Annex 6].

§86. Reporting Obligations

The “matters stipulated in the Enforcement Rules” in [§105(1)] of the Regulation shall refer to the case where resolutions or decisions falling under any of the following subparagraphs are made or where the matters falling under any of the following subparagraphs occur. (Amended on March 27, 2015)

1. Convocation of a general meeting of shareholders and the agenda thereof;
2. The closing date of register of shareholders or the record date;
3. The outcomes of general shareholders meeting. In such cases, the minutes, statements of closing accounts and auditor’s audit report, etc. shall be attached;
4. Relocation of the head office. In such cases, a certified copy of register, etc. shall be attached;
5. Amendment or termination of the agreement for entrustment of management, sales or consignment sales that were entered into with the collective investment company, trust business entity, investment broker, investment trader or general administration management company;
6. Issuance of new stocks or capital reduction;
7. Merger with other investment company;
8. Case where the net asset value fell below the minimum net asset value stipulated in the article of incorporation pursuant to Article 194(2)7 of the Act;
9. Case where registration of change has been filed pursuant to Article 182(8) of the Act;
10. Case where the net asset value has been appraised pursuant to Article 238 of the Act;
11. Case where, as a result of investigation pursuant to Article 252 of the Act, the FSC has imposed a measure pursuant to [§253] of the Regulation (including the measures taken against the collective investment company, trust business entity, investment broker, investment trader or general administration management company with whom the agreement for entrustment of management, sales or

consignment sales has been entered with the investment company concerned);

12. Case where a lawsuit that may have significant impact on the corporate management has been filed;

13. Case where a cause for dissolution pursuant to Article 202(1) of the Act has occurred;

14. Case where the duration of investment company has been extended; and

15. Additionally, material matters concerning the rights, benefit or handling of securities. In such cases, when a profit distributed pursuant to Article 242 of the Act is more than the price change limit (referred to as “price change limit” hereinafter) under [§20] of the Business Regulation based on the closing price as of 10 days (on the basis of business days) before the record date pursuant to [§132(1)] of the Enforcement Rules of the Business Regulation, it shall be deemed as the important matters regarding earnings.

Section 2. Beneficial Certificates

§87. Application for Initial Listing, etc.

(1) The application for initial listing of beneficiary certificates and the supplementary documents under [§106(1)] of the Regulation shall be stipulated in [Annex 3].

(2) The “beneficiary certificates that are stipulated in the Enforcement Rules” in the proviso to [§106(2)] of the Regulation shall refer to any of the following subparagraphs: (November 4, 2015; Amended on April 30, 2026)

1. Beneficiary certificates issued by the trust business entities pursuant to the Asset-Backed Securitization Act; and [April 30, 2026]

2. Beneficiary certificates issued by the Korea Credit Guarantee Fund pursuant to the Credit Guarantee Fund Act. [April 30, 2026]

§88. Application for Supplementary Listing

The application for supplementary listing of beneficiary certificates and the supplementary documents under [§107(1)] of the Regulation shall be stipulated in [Annex 5].

§89. Application for Listing Change

The application for listing change of beneficiary certificates and the supplementary

documents under [§108(1)] of the Regulation shall be stipulated in [Annex 6].

§90. Reporting Obligations

“An event or cause that is stipulated in the Enforcement Rules” in [§110(1)] of the Regulation shall refer to any of the following subparagraphs: (Amended on November 4, 2015; March 8, 2021)

1. Case of beneficiary certificates issued by the collective investment companies:

- (a) In the event that there is a change in the registration pursuant to Article 182(8) of the Act or in the trust agreement pursuant to Article 188(2) of the Act;
- (b) In the event that an approval for termination of investment trust contract, in whole or in part, has been obtained;
- (c) In the event that the trust agreement is to be terminated;
- (d) In the event that the disciplinary measures such as cancellation of registration have been imposed;
- (e) In the event that the decision was made to close the original register of listed beneficiary certificates concerned;
- (f) In the event that the decision was made to acquire or dispose main investment assets or to distribute profits; and
- (g) In addition, in cases where the matters that may significantly affect the management of assets of investment trust have occurred.

2. [Deleted on November 4, 2015]

3. Case of beneficiary certificates issued by the Korea Housing Finance Corporation pursuant to Korea Housing Finance Corporation Act:

- (a) Case where the contract has been amended pursuant to the Korea Housing Finance Corporation Act; (Amended on April 30, 2026)
- (b) Case where the entrustment contract of bond management has been terminated pursuant to the Korea Housing Finance Corporation Act;
- (c) Case where the disciplinary measures such as revoked authorization have been imposed pursuant to the Korea Housing Finance Corporation Act;
- (d) Case where the decision has been made to close the original register of the beneficiary certificates concerned; and

(e) In addition, cases where important matters which may significantly affect the management of assets of investment trust have occurred.

4. Case of beneficiary certificates issued by the trust business entities pursuant to the Asset-Backed Securitization Act:

(a) Case where the contract has been amended pursuant to the Asset-Backed Securitization Act; (Amended on April 30, 2026)

(b) Case where the entrustment contract for asset management has been terminated pursuant to the Asset-Backed Securitization Act;

(c) Case where disciplinary measures such as revoked authorization has been imposed pursuant to the Asset-Backed Securitization Act;

(d) Case where the decision has been made to close the original register of the beneficiary certificates concerned; and

(e) In addition, cases where the matters which may have significant impact on the management of asset of investment trust have occurred.

5. Case of beneficiary certificates issued by the Korea Credit Guarantee Fund pursuant to the Korea Credit Guarantee Fund Act: (Amended on April 30, 2026)))

(a) Case where the trust agreement has been amended pursuant to the Korea Credit Guarantee Fund Act; (Amended on April 30, 2026)

(b) Case where a disposition such as revocation of authorization has been imposed pursuant to the Korea Credit Guarantee Fund Act; (Amended on April 30, 2026)

(c) Case where the decision has been made to close the register of the relevant beneficiary certificates; and (Amended on April 30, 2026)

(d) In addition, cases where any other event occurs which significantly affects the management of investment trust property. (Amended on April 30, 2026)

Section 3. Exchange Traded Funds (ETFs)

§91. Application Document for Preliminary Listing Review

(Amended on December 9, 2022)

(1) The application for preliminary listing review of ETF securities and the supplementary documents under [§112(1)] of the Regulation shall be stipulated in [Annex 1]. (Amended on December 9, 2022)

(2) [Deleted on December 9, 2022]

§91-2. Application Document for Initial Listing

The application for initial listing of ETF securities and the supplementary documents under [§113(1)] of the Regulation shall be stipulated in [Annex 3]. Provided that, in the case where there is not any change in the documents that the applicant for initial listing has already submitted to the Exchange in relation with the listing of the ETF securities, the submission of the relevant supplementary documents may be omitted.

[December 9, 2022]

§92. Synthetic ETFs

(1) “At least the grade stipulated in the Enforcement Rules” in [§113(2)5(a)(ii)] of the Regulation shall refer to the case where the credit rating (referring to the latest grade received within one (1) year before the application date for listing) assessed by multiple credit rating agencies is higher than the grades falling under the following subparagraphs. (Amended on December 9, 2022)

1. Case of domestic credit rating agency

- (a) Korea Investors Service Inc.: AA-
- (b) NICE Information Service Co., Ltd.: AA-
- (c) Korea Ratings: AA-

2. Case of foreign credit rating agency

- (a) S&P: A-
- (b) Moody's: A3
- (c) Fitch: A-

3. The grade, received from additional credit rating agency, which the Exchange deems falling under the criteria of subparagraphs 1 and 2

(2) “Details of the risk management system” in [§113(2)5(b)] of the Regulation shall refer to each of the following subparagraphs. (Amended on December 9, 2022)

1. Methods of assessing the risk exposure of trading counterparties

- (a) Calculation of assessed risk exposure: To calculate the assessed risk exposure of a trading counterparty (referred to as the “assessed risk exposure”; the same hereinafter) everyday pursuant to [§4-54(5)] of the Regulations on Financial Investment Business.

(b) Valuation of OTC derivatives products: To evaluate OTC derivatives products for calculation of the assessed risk exposure through multiple bond rating agencies prescribed in Article 263 of the Act (including any company that has obtained an equivalent authorization in accordance with foreign laws and regulations or has a reputation to be capable of conducting an independent evaluation, as recognized by the Exchange).

2. Methods of managing risks of trading counterparties

(a) Limits on assessed risk exposure: To manage the assessed risk exposure to fall below the criteria specified in the trading agreement on OTC derivatives products. In such cases, the assessed risk exposure shall be kept below 5/100 of the total net capital (referring to the amount calculated by subtracting the total liabilities from the total assets of the ETF concerned.)

(b) Constant monitoring of the requirements of trading counterparties, etc.: To have a management system that can check whether the requirements of trading counterparties under [§113(1)5(a)] of the Regulation are met and grasp the assessed risk exposure at all times, and publicly announce the result without delay.

(c) Trading agreement on OTC derivatives products: To comply with the standards stipulated in the agreement determined by ISDA. In such cases, there shall be a conclusion of basic agreement.

(3) “Details on the collateral management system” in [§113(2)5(c)] of the Regulation shall refer to each of the following subparagraphs: (Amended on June 25, 2014; December 9, 2022)

1. Criteria for pledged assets: pledged assets shall satisfy the nature of each of the following items. Provided that, in cases where the Exchange deems the pledged assets concerned inappropriate for investor protection and market administration, it shall be deemed not satisfying the nature concerned.

(a) To be with high liquidity and to be exchangeable with currency that is used internationally

(b) Financial company can acquire immediately

(c) To be objective and to be able to have daily evaluation with fair price

(d) To be distributed properly

(e) To have little correlation with the trading counterparty of OTC derivatives products

(f) To be able to exercise a security right timely

2. Collateral ratio: To comply with the requirements for the ratio of loan-to-value and collateral maintenance by pledged asset noted in each of the following items:

(a) Ratio of loan-to-value by pledged asset

(i) Cash: 100/100 or less

(ii) Government debt securities, municipal government debt securities, agency debt securities, financial debt securities (referring to the “financial bonds” noted in Article 19 of the Enforcement Decree of the Banking Act), and other similar debt securities recognized by the Exchange (limited to those listed): 95/100 or less.

(iii) Stocks listed in the domestic stock market or overseas stock market and equity-related bonds (limited to those listed): 80/100 or less

(iv) Debentures (limited to those listed) other than (ii) and (iii): 85/100 or less

(v) Other assets: Up to the ratio decided by the Exchange considering the ratio of loan-to-value noted in (i) through (iv).

(b) Ratio of collateral maintenance: To keep the value of pledged asset (it shall be calculated considering the ratio of loan-to-value noted in item (a); same hereinafter in this Item.) so that the assessed risk exposure shall fall below the standard specified in paragraph (2)2(a). In such cases, if the trading agreement for OTC derivatives products is accompanied with provision of funds, the ratio of value of pledged asset compared to the maximum amount of the estimated loss that can occur due to bankruptcy of the trading counterparty before setting-off shall be maintained at 95/100 or more.

3. Method of management of pledged assets:

(a) To decide the standards of collateral settlement, addition, and cancellation, and to comply with these standards. In such cases, the appraisal of pledged assets for the settlement, etc. shall be made by the assessing agencies for pledged assets noted in subparagraph 4 and [§113(2)5(c)(iii)] of the Regulation.

(b) To establish the standards for measurements in the case of default of provision of collateral, and to comply with these standards

(c) To prepare for measurements and the procedure pursuant to domestic laws and regulations or those of the home country so that the enforcement of a security right is possible in the case of occurring of bankruptcy by the trading counterparty

4. Agencies for safekeeping and assessing of pledged assets: To satisfy all of the criteria stipulated in each of the following items:

(a) To prepare the human resources and computation equipment to perform the duties specified the management method of pledged assets pursuant to subparagraph 3;

(b) To clarify the appraisal criteria for evaluation of pledged assets;

(c) To be recognized to have public confidence considering the capital size, business track record, number of customers, etc.

(4) “Requirements stipulated in the Enforcement Rules” in [§113(1)6] shall refer to the criteria stipulated in paragraph (3)1 [excluding item (f)]. (Amended on December 9, 2022)

§92-2. Setting of Expiration Date

“Cases stipulated in the Enforcement Rules” in [§113(1)6] shall refer to the case of listing bond-type (including bond derivatives-type) ETF securities in accordance with [Annex: Form No. 15] of the Enforcement Rules of the Regulations on Business Conduct and Services of Financial Investment Companies.

[August 30, 2022]

§93. Application Documents for Supplementary Listing and Listing Change

(1) The application for supplementary listing and the documents to be attached thereto of ETF securities under [§114(1)] of the Regulation shall be specified in [Annex 5].

(2) The application for listing change and the documents to be attached thereto of ETF securities under [§114(1)] of the Regulation shall be specified in [Annex 6].

§94. Designation of Administrative Issue

(1) [Deleted on December 16, 2015]

(2) The criteria for release from designation of administrative issue under [§115(3)] of the Regulation shall refer to the cases where the relevant cause has been dissolved as of the end of the semiannual period which includes the date for designation of administrative issue.

(3) The timing of designation as and release from administrative issues under [§115(3)] of the Regulation shall be stipulated in [Annex 7].

§95. Delisting

(1) The coefficient of correlation specified in the latter part of [§116(1)1] of the Regulation shall be calculated by dividing the covariance of daily change rates of net

assets value per unit or per share of ETF securities and daily change rates of the underlying asset price or the index by the product of standard deviations of those two values. In such cases, the coefficient of correlation may be calculated by considering each of the following subparagraphs: (Amended on January 25, 2019)

1. Case of being targeted for the operation in accordance with the change in price of underlying asset or the change of index into negative, magnification of the negative concerned;
2. Case where the price or index of an underlying asset is indicated as foreign currency, the foreign exchange rate concerned;
3. ETF securities, payment of interests or dividends of underlying assets, etc.;
4. Case where there is an error as to calculating the price or index of underlying assets and net asset value; and
5. Any other matters equivalent to those under subparagraphs 1 through 4 that are deemed to be necessary by the Exchange for market management.

(2) Pursuant to the latter part of [§116(2)] of the Regulation, in cases where the Exchange deems the matters of delisting concerned can be resolved in a short term due to the expansion of trading agreement on OTC derivatives products, the change in the trading counterparty, etc., delisting may be postponed. In such cases, a period of deferment shall be the period that the Exchange determines within 45 days (on the basis of business days) since occurrence date of delisting matters.

§96. Reporting Obligations

(1) “Causes set forth in the Enforcement Rules” in [§117(1)3] shall refer to any of the following subparagraphs: (Amended on February 23, 2015; December 16, 2015; January 25, 2019; April 9, 2020; December 9, 2022)

1. Assessed risk exposure of a trading counterparty for each day and its ratio to total net assets;
2. Case where the trading counterparty has been changed, added, or terminated. In such cases, it shall be reported by no later than twenty (20) business days (five (5) days in case the Exchange deems there are unavoidable reasons such as sudden change in the KOSPI market conditions) from the scheduled date of change, addition or termination, and the trading counterparty changed or added shall meet the criteria noted in [§113(2)5(a)] of the Regulation;
3. Case where there has been any change in the grades under [§113(2)5(a)(ii)] of the Regulation;
- 3-2. Case where it has submitted the net capital ratio under [§113(2)5(a)(iii)] of the

Regulation to the Financial Services Commission pursuant to Article 33(1) of the Act or has reported it to the Governor of the Financial Supervisory Service pursuant to Paragraphs (4) and (5) of Article 3-26 of the Regulations on Financial Investment Business. In such cases, the financial ratios of foreign financial companies recognized by the Exchange under [§113(2)5(a)(iii)] of the Regulation (referred to as the “financial ratios of foreign financial companies, etc.” hereinafter in this Article) shall be reported based on the end of each quarter, whereas, if the financial ratios of foreign financial companies, etc. fall below the criteria set forth in the latter part of [§116(1)5(c)] of the Regulation, it shall be reported on the basis of the end of each month;

4. Case where the net capital ratio or the financial ratios of foreign financial companies, etc. fall below the ratio criteria set forth in [§116(1)5(c)] of the Regulation and the case where the relevant cause is resolved;

5. Case of falling under the matters of delisting specified in [§116(1)5] of the Regulation;

6. Case of changing the assessing agency of OTC derivatives products. In such cases, the assessing institution concerned shall be bond rating agency pursuant to [§92(2)1(b)] of the Regulation;

7. Case of changing the agencies for safekeeping and assessing of pledged assets. In such cases, the safekeeping and assessing agency concerned shall satisfy the requirements stipulated in [§92(3)4] and [§113(2)5(c)(iii)] of the Regulations; or

8. Case where change occurs in the details of trading agreement on OTC derivatives products.

(2) “Matters specified in the Enforcement Rules” in [§117(1)4] of the Regulation shall refer to the terms to maturity and the credit ratings of the bonds incorporated at the end of each month. [May 2, 2017]

(3) “Cases stipulated in the Enforcement Rules” in [§117(1)7] of the Regulation shall refer to the cases noted in any of the following subparagraphs: (Amended on November 19, 2013; June 25, 2014; September 2, 2014; December 16, 2015; May 2, 2017; January 25, 2019; ; July 23, 2020; December 9, 2022)

1. Case where a resolution or decision about the stocks of ETFs falling under each of the following items is made, or the matters falling under each of the following items occur;

(a) Convocation of a general meeting of shareholders and the agenda thereof;

(b) Closing date of register of shareholders or the record date;

(c) Outcomes of general meeting of shareholders. In such cases, the minutes,

statements of closing accounts and auditor's audit report, etc. shall be attached;

(d) Relocation of the head office. In such cases, a certified copy of register, etc. shall be attached;

(e) Amendment or termination of the agreement for entrustment of management, sales or consignment sales that were entered into with the collective investment company, trust business entity, investment broker, investment trader or general administration management company;

(f) Issuance of new shares or capital reduction

(h) Where the net asset value fell below the minimum net asset value stipulated in the articles of incorporation pursuant to Article 194(2)7 of the Act;

(i) Where registration of change has been filed pursuant to Article 182(8) of the Act;

(j) Where the net asset value has been appraised pursuant to Article 238 of the Act;

(k) Where, as a result of investigation pursuant to Article 252 of the Act, the Financial Services Commission has taken a measure against the ETF pursuant to Article 253 of the Act (including the measures taken against the collective investment company, trust business entity, investment broker, investment trader or general administration management company that entered into the agreement for entrustment of management, sales or consignment sales with the ETF concerned);

(l) Where a lawsuit that may have material impact on the corporate management has been filed;

(m) Where a cause for dissolution pursuant to Article 202(1) of the Act has occurred;

(n) Where the duration of the ETF has been extended.

2. Case where resolution or decision about ETF beneficiary certificate falling under each of the following items is made, or the matters falling under each of the following items occur

(a) In the event that according to Article 182(8) of the Act, there is a change in the registered matter or the trust agreement;

(b) In the event that an approval for termination of ETFs, in whole or in part, has been obtained;

(c) In the event that the trust agreement is to be terminated;

(d) In the event that the disciplinary measures such as revoked registration have been imposed;

(e) In the event that the decision was made to close the original register of the ETF beneficiary certificate concerned;

(h) Where the general business management company has been changed

(g) In addition, in cases where the matters that may have material impact on the management of the assets of the investment trust have occurred.

3. Case where there has been a change in authorized participants, or an additional authorized participant is admitted;

4. Case where an agreement for liquidity provision pursuant to [§113(2)2(b)] of the Regulation is entered with a liquidity providing member or such agreement is changed or terminated thereafter;

5. Case where the computer system of liquidity provider has failed or recovered from the failure;

6. Case where there has been a halt or a significant error in the calculation of the price or index that the ETF tracks or in the public announcement, or that halt or error has been resolved;

6-2. Case where an ETF listed corporation or its interested party (referring to the interested parties in the main sentence of the part other than each subparagraph under Article 84(1) of the Act; The same shall apply hereinafter) is an entity that calculates the price of index that the ETF tracks, and the concerned listed corporation changes the internal control standards related to the price or index calculation;

7. Case where the correlation coefficient under [§116(1)1] of the Regulation fell below the criteria set forth in the same subparagraph;

8. Case where there is an error in the details of asset composition pursuant to [117(1)2] of the Regulation (including the details of asset composition necessary for the creation and redemption) or where the error is resolved;

9. Case where the disparate ratio that was calculated in accordance with the formula in [§20-4(2)] of the KOSPI Market Business Regulation based on the net asset value per unit or share calculated in real time at the closing of regular sessions is not lower than the ratio specified in each of the following items:

(a) For an issue constituting an index with domestic underlying assets only: 1%;
and

(b) For other issues: 2%

10. In addition, cases where the Exchange deems it necessary for realization of public interest and investor protection.

§97. Application Documents for Preliminary Listing Review and Initial Listing

(1) The application for preliminary listing review of foreign ETF securities and the supplementary documents under [§118] of the Regulation shall be stipulated in [Annex 1]. [December 9, 2022]

(2) The application for initial listing of foreign ETF securities and the supplementary documents under [§118] of the Regulation shall be stipulated in [Annex 3]. Provided that, in the case where there is not any change in the documents that the applicant for initial listing has already submitted to the Exchange, the submission of the relevant documents may be omitted (Amended on December 9, 2022). (Amended on December 9, 2022)

§98. Application Documents for Supplementary Listing and Listing Change

(1) The application for supplementary listing of foreign ETF securities and the supplementary documents under [§120(1)] of the Regulation shall be stipulated in [Annex 5].

(2) The application for listing change of foreign ETF securities and the supplementary documents under [§120(1)] of the Regulation shall be stipulated in [Annex 6].

§99. Reporting Obligations

“Cases that are stipulated in the Enforcement Rules” in [§123(1)4] of the Regulation shall refer to the case falling under any of subparagraphs of [§96(3)] of the Regulation. (Amended on January 25, 2019)

Section 4. Stocks of Real Estate Investment Funds

§100. Application Documents, etc. for Listing Eligibility Review

(1) The application for listing eligibility review of stocks of real estate investment trusts and the supplementary documents under [§124(1)] of the Regulation shall be stipulated in [Annex 1].

(2) The documents to be submitted with respect to the mandatory holding for initial

listing of stocks of a real estate investment trust and the submission timing thereof under [§124(3)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§100-2. Requirements for Real Estate Investment Funds Applied with Special Provisions on Sales Amount

“Requirements set forth in the Enforcement Rules” in [§124(5)6(a)(iii)] of the Regulation shall refer to the requirements noted in each of the followings: (Amended on December 28, 2018)

1. It shall be a real estate investment trust that was selected pursuant to the ‘Criteria for selection of rearrangement project-linked enterprise-type rental business operator’ determined and announced by the Minister of Land, Infrastructure and Transport pursuant to Article 46-2(2) of the Act on the Maintenance and Improvement of Urban Areas and Dwelling Conditions for Residents; and
2. It shall be a real estate investment trust that has received a financial support from the housing and urban fund prescribed in Article 3 of the Housing and Urban Fund Act or a guarantee support from the Housing and Urban Guarantee Corporation under Article 16 of the same Act.

[July 9, 2025]

§101. Documents Related to Violation of Accounting Standards

The “financial documents stipulated in the Enforcement Rules” in [§125(3)] of the Regulation shall refer to the financial documents from among the application documents for listing eligibility review under [Annex 1].

§102. Invalidation of the Result of Listing Eligibility Review

(1) The “financial documents stipulated in the Enforcement Rules” in [§126(1)3] of the Regulation shall refer to the financial documents from among the application documents for listing eligibility review under [Annex 1].

(2) The “cases that are stipulated in the Enforcement Rules” in [§126(1)6] of the Regulation shall refer to a case falling under any of the following subparagraphs:

1. Case of issuing new stocks by the way of third-party allotment from the application date for listing eligibility review to the day before the initial listing date; and
2. Any other cases where the Exchange deems it necessary for public interests and investor protection.

§103. Application Documents for Initial Listing

The application for initial listing of stocks of real estate investment funds and the supplementary documents under the main sentence of [§127(1)] of the Regulation shall be stipulated in [Annex 3].

§103-2. [Deleted on July 9, 2025]

§104. Application Documents for Supplementary Listing and Listing Change

(1) The application for supplementary listing of stocks of real estate investment funds and the supplementary documents under [§128] of the Regulation shall be stipulated in [Annex 5].

(2) The application for listing change of stocks of real estate investment funds and the supplementary documents under [§128] of the Regulation shall be stipulated in [Annex 6].

§105. Methods of Applying the Reason for Administrative Issue and Designation and Release Therefrom

(1) With respect to the reasons for failure to submit regular reports under [§129(1)1] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§40-2] shall apply *mutatis mutandis*. [March 31, 2017]

(2) With respect to the reasons for impaired capital under [§129(1)3] of the Regulation, the methods of applying the reasons for designating administrative issues concerning common stocks under [§41] of the Regulation shall apply *mutatis mutandis*.

(3) With respect to the reasons for sales amount not up to standards under [§129(1)4] of the Regulation, the applying methods noted in each of the following subparagraphs shall apply.

1. Shall apply starting from the first business year firstly after the initial listing date;
2. Shall be on the basis of one (1) year in the case where the business year is less than one (1) year; and
3. Shall not apply to the business year concerned in the case where the first business year after the change of the settlement of accounts period settlement is less than six (6) months.

(4) [Deleted on December 9, 2022]

(5) In the case of the designation of administrative issues due to the reasons for asset

composition requirements not up to standards under [§129(1)9] of the Regulation, if the KOSPI-listed corporation of the stocks of real estate investment trust submits the materials noted in each of the following subparagraphs which confirms resolution of the reason for designation as administrative issue concerned until the submission deadline of annual report, half-yearly report, and quarterly report, whether to be designated as administrative issue or not can be reviewed based on the proving materials concerned. In such cases, the time for review shall be on the submission date of the materials concerned.

1. Certificate of safekeeping of assets issued by assets custody agency; and
2. Any other documents the Exchange deems necessary for reviewing

(6) In order to confirm the status of composition of assets under [§129(1)11] of the Regulation, each real estate investment fund shall submit [Annex: Form No. 36] to the Exchange by the submission deadline of annual reports. [December 28, 2018]

(7) The timing of designating administrative issues and releasing therefrom noted in [§129(3)] of the Regulation shall be stipulated in [Annex 7]. (Amended on March 31, 2017)

[§106. Methods of Applying the Reasons for Delisting, etc.](#)

(1) With respect to the reasons for failure to submit regular reports under [§130(1)1] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§48(1)] shall apply *mutatis mutandis*. [March 31, 2017]

(2) With respect to the reasons for impaired capital under [§130(1)3] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§48(3)] of the Regulation shall apply *mutatis mutandis*. (Amended on March 31, 2017; December 9, 2022)

(3) [December 9, 2022]

(4) [December 9, 2022]

(5) In the case of the designation of administrative issue due to the reasons for the asset composition requirements not up to standards under [§130(1)10] of the Regulation, if the KOSPI-listed corporation of the stocks of real estate investment trust submits the materials noted in each of the following subparagraphs which proves dissolution of the reason for delisting concerned until the submission deadline of annual report, half-yearly report, and quarterly report, whether to fall under the reasons for delisting or not can be reviewed based on the materials concerned. In such cases, the time for review shall be on the submission date of the proving materials concerned.

1. Certificate of safekeeping of assets issued by assets custody agency; and

2. Any other documents the Exchange deems necessary for reviewing

(6) In cases where the KOSPI-listed real estate investment trust company falling under the reasons for audit opinion not up to standards under [§129(1)2(a)] of the Regulation or the reasons for impaired capital under [§129(1)3] of the Regulation in the previous business year of the latest business year does not submit the annual report of the latest business year, the relevant reasons shall be deemed to have continued in the latest business year.

(7) The reason of sales amount not up to the standard stipulated in [§130(2)2] of the Regulation shall be reviewed based on annual report. In this case, the application methods in each of the following subparagraphs shall be followed: [December 9, 2022]

1. In cases where one (1) business year is less than one (1) year, it shall be based on one (1) year; and
2. In cases where the first business year after a change of fiscal year is less than six (6) months, it shall not apply to that business year.

§107. Reporting Obligations

“An event or a cause that is stipulated in the Enforcement Rules” in [§132(1)] of the Regulation shall refer to the case where the resolution or decision falling under any of the following subparagraphs has been made or the matters falling under any of the following subparagraphs have occurred. (Amended on March 27, 2015)

1. The closing date of the register of shareholders or the record date;
2. The relocation of the head office. In such cases, a certified copy of register, etc. shall be attached;
3. The interim dividends pursuant to Article 165-12 of the Act;
4. Borrowing of capital pursuant to Article 29 of the Real Estate Investment Company Act; and
5. In addition, the important matters relating to the rights, benefits or handling of the securities. In such cases, the latter part of subparagraph 15 of [§86] shall apply *mutatis mutandis* to the important matters concerning benefits, Provided that a “profit distributed pursuant to Article 242 of the Act” shall be deemed as “a dividend pursuant to Article 28 of the Real Estate Investment Company Act.”

Section 4-2. Different Class of Stocks of Real Estate Investment Funds

[December 28, 2018]

§107-2. Application Documents, etc. for Initial Listing

(1) The documents to be submitted with respect to the mandatory holding obligation of the applicant for initial listing of different class of stocks of real estate investment trusts and the submission timing thereof under [§132-2] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

(2) The application for initial listing of the applicant for initial listing of stocks of real estate investment trusts and the supplementary documents under [§132-2] of the Regulation shall be set forth in [Annex 3].

[December 28, 2018]

Section 5. Stocks of Ship Investment Companies

§108. Application Documents for Initial Listing

(1) The application for initial listing of stocks of ship investment companies and the supplementary documents under [§133(1)] of the Regulation shall be stipulated in [Annex 3].

(2) The documents to be submitted with respect to the mandatory holding of stocks of ship investment companies under the latter part of [§133(2)] of the Regulation shall be stipulated in [Annex 2]. (Amended on September 10, 2019)

§109. Application Documents for Supplementary Listing and Listing Change

(1) The application for supplementary listing of stocks of shipping investment companies and the supplementary documents under [§134] of the Regulation shall be stipulated in [Annex 5].

(2) The application for listing change of stocks of ship investment companies and the supplementary documents under [§134] of the Regulation shall be stipulated in [Annex 6].

§109-2. Methods of Applying the Reasons for Failure to submit Regular Reports

With respect to the reasons for failure to submit regular reports under [§135(1)1] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§40-2] shall apply *mutatis mutandis*. [March 31, 2017]

§110. Designation as Administrative Issue and Release Therefrom

The timing for designating administrative issues and releasing therefrom under

[§135(3)] of the Regulation shall be stipulated in [Annex 7].

§110-2. Methods of Applying the Reasons for Delisting, etc.

With respect to the reasons for failure to submit regular reports under [§136(1)1] of the Regulation, the methods of applying the reasons for delisting of common stocks under [§48(1)] shall apply *mutatis mutandis*. [March 31, 2017]

§111. Reporting Obligations

The “cases that are stipulated in the Enforcement Rules” in [§137(1)] of the Regulation shall refer to the case where the resolution or decision falling under any of the following subparagraphs has been made or the matters falling under any of the following subparagraphs have occurred. (Amended on March 27, 2015)

1. The closing date of register of shareholders or the record date;
2. The relocation of the head office. In such cases, a certified copy of register, etc. shall be attached; and
3. In addition, other important matters relating to the rights, benefits or handling of the securities. In such cases, the latter part of [§86(15)] shall apply *mutatis mutandis* to the important matters regarding the benefits, Provided that a “profit distributed pursuant to Article 242 of the Act” shall be deemed as the “a profit distributed pursuant to Article 41 of the Ship Investment Company Act”.

CHAPTER V. DERIVATIVE LINKED SECURITIES, ETC.

Section 1. Equity Linked Warrants (ELWs)

§112. Application Forms, etc. for Listing Eligibility Review

(1) The application for listing eligibility review of equity linked warrants and the supplementary documents under [§139(1)] of the Regulation shall be stipulated in [Annex 1]. Provided that, in cases where the documents which the applicant for listing eligibility review has already filed with the Exchange in relation to the listing of ELWs contain no changes, the submission of the relevant supplementary documents may be omitted.

(2) “Documents stipulated in the Enforcement Rules” in [§139(7)] of the Regulation shall refer to any of the following items: (Amended on September 2, 2014; December 9, 2022)

- (a) Prospectus (including the preliminary prospectus and simplified prospectus), in

case where the report on public offering or sale has been submitted. In such cases, any correction of details in the prospectus shall be included;

(b) The report of the matters specified in Article 36(2)1 of the Enforcement Decree of the Act which may have a huge impact on business status including financial scandal or non-performing claim, etc.;

(c) The semiannual financial statement or the quarterly financial statement in case of passing 45 days after the semiannual or quarterly terms of the business year concerned and auditor's review report thereon;

(d) [Deleted on September 2, 2014]

(e) [Deleted on September 2, 2014]

§113. Application Documents for Initial Listing

The application for initial listing of ELWs and the supplementary documents noted in [§140(1)] of the Regulation shall be stipulated in [Annex 3].

§114. Underlying Assets

(1) "Stocks stipulated in the Enforcement Rules" in [§140(2)3(a)] of the Regulation shall refer to the stocks of which average daily trading value is no less than KRW ten (10) billion, which are made public on a quarterly basis according to the method separately determined by the Exchange.

(2) "Stocks stipulated in the Enforcement Rules" in [§140(2)3(b)] of the Regulation shall refer to the issues that are published on a monthly basis according to the methods specially set by the Exchange. (Amended on December 16, 2015)

(3) "Stock price indices stipulated in the Enforcement Rules" in the forepart of [§140(2)3(c)] of the Regulation shall refer to any of the following stock price indices: (Amended on December 16, 2015; February 8, 2017)

1. KOSPI 200;

2. KOSDAQ 150;

3. Nikkei 225 (referring to Nikkei Stock Average index of 225 leading stocks listed on the Tokyo Stock Exchange, a price weighted index calculated by Nikkei Newspaper); and

4. Hang Seng Index (referring to a market capitalization weighted stock price index of stocks listed on the Hong Kong Exchanges and Clearing, Ltd. that is calculated by the Hang Seng Bank in Hong Kong).

§115. Agreement for Liquidity Provision

(1) “Matters stipulated in the Enforcement Rules” in the proviso to [§140(2)7] of the Regulation shall refer to the matters specified in all of the following subparagraphs:

1. The matters pursuant to [§20-4] and [§20-5] of the Business Regulation; and
2. The matters concerning the establishment of the right of pledge where the applicant for initial listing of ELWs is the pledge right holder, in case where the liquidity providing member acquires ELWs from the applicant for initial listing or purchases ELWs in the KOSPI Market.

(2) In cases where the liquidity providing member has received the lowest grade for two (2) consecutive times according to the result of the assessment carried out pursuant to [§20-6] of the Business Regulation, the applicant for initial listing shall not entered into a new agreement for liquidity provision with the member concerned before one (1) month has passed since such occurrence.

§116. Application Documents for Supplementary Listing

The application for supplementary listing of ELWs and the supplementary documents under [§141(1)] of the Regulation shall be stipulated in [Annex 5]. Provided that, in cases where, as the documents that the applicant of supplementary listing has already submitted to the Exchange in relation to the listing of ELWs, of which the details have not changed, the submission of such documents may be omitted.

§117. Application Documents for Listing Change

The application for listing change of ELWs and the supplementary documents under [§142(1)] of the Regulation shall be stipulated in [Annex 6].

§118. Holding the Entire Quantity of the ELWs

“Matters stipulated in the Enforcement Rules” in [§143(1)5] of the Regulation shall refer to the case of identifying when the report of liquidity provision and acquisition (or disposal) of ELWs have been submitted in accordance with [§119(1)4&6].

§119. Reporting Obligations, etc.

(1) “Events that are stipulated in the Enforcement Rules” in [§145(1)] of the Regulation shall refer to any of the following subparagraphs: (Amended on September 2, 2014; February 23, 2015; January 31, 2018; January 25, 2019; April 29, 2019)

1. Case where the rights of an ELW are exercised. In such cases, the corporation that listed the ELW shall submit a written report on exercise of the rights of the ELW that is prepared based on the last day of each month;

2. Case where there is a change in the issuing conditions of an ELW such as the exercise price (referring to the price or value of the underlying asset that are pre-determined in the transaction established by the exercise of the rights of the ELW; the same hereinafter), the conversion ratio (referring to the number of underlying assets equivalent to one ELW; the same hereinafter), etc.;
3. Case where the matters, which fall under the delisting criteria of ELWs (excluding the matters falling under the delisting criteria for underlying assets, etc. pursuant to [§143(1)2] of the Regulation), have occurred. In such cases, if being delisted under the condition of knock-out decided in advance in the securities registration statement of ELWs, etc., a written report on early termination of ELWs in [Annex: Form No. 23] and a settlement report on early termination of ELWs in [Annex: Form No. 24] shall be submitted;
4. Case where the ELWs has been acquired or disposed (excluding the case where the company that has listed ELWs acquired or disposed them for the purpose of liquidity provision). In such cases, a written report on liquidity provision and acquisition (or disposal) of ELWs in [Annex: Form No. 25] shall be submitted;
5. Case where the agreement for liquidity provision has been entered into, changed or terminated; or the company that has listed ELWs has decided to provide the liquidity;
6. Case where the liquidity has been provided by the liquidity provider. In such cases, a written report on liquidity provision and acquisition (or disposal) of ELWs in [Annex: Form No. 25] shall be submitted;
7. [Deleted on September 2, 2014]
8. Case where the KOSPI-stock-listed corporation concerned made a disclosure about the change of rights of the stocks that are the underlying asset of ELWs;
9. Case where the computer system of liquidity provider has failed or recovered from the failure;
10. In the case of an ELW based on the stock price index of recognized overseas securities markets, in the event that the calculation of the index concerned is temporarily suspended or resumed;
11. Case where the net capital ratio has been submitted to the Financial Services Commission pursuant to Article 33(1) of the Act. In such cases, a written report on net capital ratio under [Annex: Form No. 26] shall be submitted;
12. Case where the liquidity providing member has changed the volatility by 10 percent point or more over that immediately before during the trading session; and

13. Additionally, cases where the Exchange deems necessary for public interests and investor protection.

(2) The reporting deadline with respect to paragraph (1) shall be stipulated as follows pursuant to [§145(1)] of the Regulation: (Amended on January 25, 2019)

1. For the matters to be reported under subparagraphs 4 and 6 of paragraph (1): The date of occurrence

2. For other matters to be reported: Without delay.

(3) “As stipulated in the Enforcement Rules” in [§145(3)] of the Regulation shall refer to the criteria set forth in [Annex 9].

§120. Compliance Obligations regarding the Agreement for Liquidity Provision

(1) Pursuant to [§145(5)] of the Regulation, any corporation that has listed ELWs shall submit the liquidity providing quotations for the relevant issue immediately in cases where the liquidity providing member, who concluded the agreement for liquidity provision with, became unable to meet the requirements noted in [§20-2(2)3(a)] of the Business Regulation, and within one (1) month of such incidence in case where it falls under the replacement criteria pursuant to [§20-6(1)] of the Business Regulation after taking delivery of ELWs held by the concerned liquidity providing member.

(2) In cases where the company that has listed ELWs concludes the new agreement of liquidity provision pursuant to [§145(5)] of the Regulation, the regulation related to the agreement of liquidity provision specified in the criteria for initial listing noted in [§115] shall apply *mutatis mutandis*.

Section 2. Equity Linked Securities

§121. [Deleted on September 2, 2014]

§122. [Deleted on September 2, 2014]

§123. [Deleted on September 2, 2014]

Section 2-2. Exchange Traded Notes (ETNs)

[September 2, 2014]

§123-2. Application Documents, etc. for Listing Eligibility Review

(1) The application for listing eligibility review of ETN and the supplementary documents under [§149-2(1)] of the Regulation shall be stipulated in [Annex 1].

(2) Pursuant to [§149-2(5)] of the Regulation, an applicant for initial listing shall submit the documents specified in each of the items of [§112(2)] to the Exchange after the date of application for listing eligibility review by the day before the listing date. Provided that, if there is a guarantor, [§112(2)2&3] shall also apply to the guarantor. (Amended on December 9, 2022)

[September 2, 2014]

§123-3. Application Documents, etc. of Initial Listing

(1) The application for initial listing of ETNs and the supplementary documents under [§149-3(1)] of the Regulation shall be stipulated in [Annex 3]. Provided that, in cases where, as a document that the applicant of initial listing has already submitted to the Exchange in relation to the listing of ETNs, of which the details have not changed, the submission of such document may be omitted.

(2) “Higher than the ratings stipulated in the Enforcement Rules” in [§149-3(2)1(c)] of the Regulation shall refer to the credit ratings that are higher than those stipulated in [§92(1)].

(3) In the case of initial listing of ETNs (hereinafter referred to as “single-stock ETNs”) under [§149-3(2)2(c)] of the Regulation, the requirements for the underlying asset shall be in accordance with Article 4-52, Paragraph 1 of the Financial Investment Business Regulations. (Amended on April 27, 2026)

[September 2, 2014]

§123-4. Agreement for Liquidity Provision

(1) “Matters stipulated in the Enforcement Rules” in the proviso to [§149-3(2)8] of the Regulation shall refer to all of the following subparagraphs;

1. Matters pursuant to [§20-4] and [§20-5] of the Business Regulation; and
2. In cases where the member of liquidity provision acquires ETNs from applicant for initial listing or purchases in the KOSPI Market, the establishment of a pledge right for which the applicant for the initial listing becomes the pledge right holder on the ETN concerned.

(2) In cases where the assessment result pursuant to [§20-6] of the Business Regulation of the initial listing applicant or the liquidity providing member who has entered into a liquidity provision agreement falls under any of the following subparagraphs, the initial listing applicant may not submit a new liquidity provision plan nor enter into a new liquidity provision agreement for the period specified in the corresponding subparagraph. (Amended on July 23, 2020)

1. Case where receiving the second lowest grade: One (1) month;
2. Case where receiving the lowest grade once: Two (2) months;
3. Case where receiving the lowest grade twice in a row: Three (3) months; and the lowest grade for two (2) consecutive times
4. Case where receiving the lowest grade three times in a row: Six (6) months.

[September 2, 2014]

§123-5. Application Documents for Supplementary Listing

The application for supplementary listing of ETNs and the supplementary documents under [§149-4(1)] of the Regulation shall be stipulated in [Annex 5]. Provided that, in cases where, as a document that the applicant for supplementary listing has already submitted to the Exchange in relation to the listing of ETNs, of which the details have not changed, the submission of such document may be omitted.

[September 2, 2014]

§123-6. Application for Listing Change

The application for listing change of ETNs and the supplementary documents under [§149-5(1)] of the Regulation shall be stipulated in [Annex 6].

[September 2, 2014]

§123-7. Designation of Administrative Issue

(1) [December 16, 2015]

(2) The criteria of release from designation as administrative issue pursuant to [§149-6(3)] of the Regulation shall refer to the case where the matters concerned are dissolved as of the end of the semiannual period where the date of designation of administrative issue belongs.

(3) The timing for designation of and release from administrative issues under [§149-6(3)] of the Regulation shall be stipulated in [Annex 7].

[September 2, 2014]

§123-8. Delisting

“A certain level specified in the Enforcement Rules” in [§149-7, 3(c)] shall refer to the

minimum redemption value noted in subparagraph 2(a)(i)⑥② of [Annex 2-5].

[July 23, 2020]

§123-9. Reporting Obligations

“Cases that are stipulated in the Enforcement Rules” in [§149-9(1)4] of the Regulation shall mean any of the following subparagraphs: (Amended on February 23, 2015; December 16, 2015; February 8, 2017; January 31, 2018; January 25, 2019; July 23, 2020)

1. Case where a company that has listed ETNs falls under any of the following items. In such cases, if there is a guarantor, the guarantor shall be included.

(a) Case where there has been any change in the grades under [§149-3(2)1(c)] of the Regulation;

(b) Case where it has submitted the net capital ratio to the Financial Services Commission pursuant to Article 33(1) of the Act or has reported it to the Governor of the Financial Supervisory Service pursuant to Paragraphs (4) and (5) of Article 3-26 of the Regulations on Financial Investment Business (a written report on net capital ratio prepared in accordance with [Annex: Form No. 26] shall be submitted). In such cases, the financial ratios of foreign financial companies, etc. recognized by the Exchange under [§149-3(2)1(d)] of the Regulation (referred to as the “financial ratios of foreign financial companies, etc.” hereinafter in this Article) shall be reported based on the end of each quarter, whereas, if the financial ratios of foreign financial companies, etc. fall below the criteria set forth in the latter part of subparagraph 1(d) of [§149-7] of the Regulation, it shall be reported on the basis of the end of each month; or

(c) Case where the net capital ratios or the financial ratios of foreign financial companies, etc. fall below the ratio criteria set forth in subparagraph 1(d) of [§149-7] of the Regulation and the case where the relevant cause is resolved.

2. Case where the reason for delisting of ETNs has occurred. In such cases, when a ETN under item (c) of [§149-7,3] of the Regulation (hereinafter referred to as the “loss-cut ETN”) is delisted as the predetermined conditions for early redemption were fulfilled, a written report on early redemption of ETNs in accordance with [Annex: Form No. 25-3] and a written report on settlement of early redemption of ETNs in accordance with [Annex: Form No. 25-4] shall be submitted.

2-2. Case where the conditions for early redemption of a loss-cut ETN with such conditions were not fulfilled on the assessment date (referring to the day on which the assessment on whether a predetermined condition for early redemption was fulfilled is made. Provided that this shall not apply to the case where the assessment is made on a daily basis; the same hereinafter). In such cases, a written report on non-fulfillment of conditions for early redemption of ETNs in accordance with

[Annex: Form No. 25-5] shall be submitted.

2-3. Case where the last trading day, etc. of an ETN were changed. In such cases, the corporation that has listed the ETN shall make the changes in the last trading day, etc. in accordance with the [Annex 9-2].

3. Case where the reason falling under any of the following items regarding liquidity provision has occurred:

(a) Case of concluding, changing, or terminating the liquidity provision, or case where the company that has listed ETNs agrees to provide liquidity;

(b) Where the computer system of a liquidity providing member has failed or recovered from the failure or case where the error is dissolved;

(c) Where a liquidity providing member acquires or disposes ETNs of the issue with which the agreement of liquidity provision has been made at the time other than the regular session (including the case of acquisition and disposal through regular session auction-based block trade, regular session block trading, regular-session basket trading). In such cases, it shall be reported to the Exchange by 18:30 p.m. on the day; or

(d) Where there is difference between the quantity of ETNs held by a liquidity providing member that the Exchange has calculated and the actual number of the ETNs held. In such cases, a written report on correction of quantity of acquisition (disposal) by liquidity providers of ETNs under [Annex: Form No. 25-2] shall be submitted.

4. [Deleted on January 25, 2019]

5. [Deleted on December 16, 2015]

6. Case where there has been a halt or a significant error in the calculation of the price or index that ETN tracks or in the public announcement, or where the halt or error has been resolved

6-2. Case where an ETN listed corporation or its affiliated company is an entity that calculates the price of index that the ETN tracks, and the concerned listed corporation changes the internal control standards related to the price or index calculation

7. Case where there is a replacement of a constituent issue that has a composition weight more than 5 percent in the index that the ETN tracks

8. Case where the disparate ratio that was calculated in accordance with the formula in [§20-4(3)] of the KOSPI Market Business Regulation based on the indicative value per security calculated in real time at the closing of regular sessions is not lower than the ratio specified in each of the following items:

(a) For an issue constituting an index with domestic underlying assets only: 1%;
and

(b) For other issues: 2%.

9. Case where the general administration company has been changed

10. Any other case where the Exchange deems it necessary for realization of public interests and investor protection.

[September 2, 2014]

§123-10. Compliance Obligations Regarding Agreement for Liquidity Provision

(1) Pursuant to [§149-9(4)] of the Regulation, a ETN-listed corporation shall submit the liquidity providing quotations for the issue concerned immediately in case where the liquidity providing member, who concluded the agreement for liquidity provision with, became unable to meet the requirements noted in [§20-2(2)2(a)] of the KOSPI Market Business Regulation, and within one (1) month of such incidence in cases where it falls under the replacement criteria noted in [§20-6(1)] of the KOSPI Market Business Regulation after taking delivery of ELWs held by the concerned liquidity providing member.

(2) In cases where an ETN-listed corporation newly concludes an agreement for liquidity provision pursuant to [§149-9(4)] of the Regulation, the matters concerning the agreement for liquidity provision noted in [§123-4] of the Regulation shall apply *mutatis mutandis*.

[September 2, 2014]

Section 3. Subscription Warrants and Subscription Right Certificates

§124. Application Documents for Initial Listing

The application for initial listing of subscription warrants or subscription right certificates and the supplementary documents under [§150(1)] of the Regulation shall be stipulated in [Annex 3].

§125. Application Documents for Listing Change

The application for listing change of subscription warrants or subscription right certificates and the supplementary documents under [§151] of the Regulation shall be stipulated in [Annex 6].

CHAPTER VI. LISTING MANAGEMENT

§126. Suspension of Trading and Resumption Thereof

(1) “Change of the largest shareholder stipulated in the Enforcement Rules” in the proviso to [§153(1)9(b)] of the Regulation shall refer to the case where the management right of the common stocks or foreign stocks is changed pursuant to [§27].

(2) “Cases stipulated in the Enforcement Rules” in [§153(1)16] of the Regulation shall refer the case under each of the following subparagraphs: [June 8, 2016] (Amended on April 29, 2019; April 14, 2020; March 8, 2021; December 9, 2022)

1. Case where the number of circulating stocks (referring to the number of stocks calculated by subtracting the floating stocks held by the largest shareholder, etc. from the number of floating stocks under [§18(7)] of the Regulation; the same hereinafter) falls under any of the followings in a listing change under [§46] of the Regulation due to such reasons as the reduction of paid-in capital, the reverse stock split, etc.:

(a) When it is less than 1/100 of the total number of stocks issued by the corporation concerned; and

(b) When it is less than one hundred thousand (100,000) shares.

1-2. Case where the underlying stock of an ELW undergoes a listing change pursuant to [§46] of the Regulation due to such reasons as the reduction of paid-in capital, and the base price is set at the price that is determined in accordance with [§37(1)] of the Business Regulation.

2. Case where the stock-listed corporation, upon being granted a period for improvement pursuant to [§19(3) and (7)1] through submitting an improvement plan including improvement plans pursuant to [§19(1)1(a)], has received a qualified audit opinion due to the limitation on the scope of audit following a change of audit opinion for the relevant business year.

3. Other cases that the Exchange deems necessary for the public interests and the protection of investors.

(3) “Date stipulated in the Enforcement Rules” in [§153(2)10] of the Regulation shall refer to the date classified in each of the following subparagraphs: (Amended on April 29, 2019)

1. In the case of falling under paragraph (2)1, the date falling under any of the following items:

(a) For the cases of falling under item (a) of paragraph (2)1, when the number of

circulating stocks has become 3/100 or more of the total number of common stocks;

(b) For the cases of falling under item (b) of paragraph (2)1, when the number of circulating stocks has become three hundred thousand (300,000) shares or more; and

(c) For the cases of falling under items (a) and (b) of paragraph (2)1, when the number of circulating stocks has become 3/100 or more of the total number of common stocks and three hundred thousand (300,000) shares or more.

1-2. In the case of falling under paragraph (2)1-2, the date of listing change of the underlying stock.

2. In the case of falling under paragraph (2)2, the date on which the audit opinion of the relevant business year's audit report was confirmed as unqualified or qualified(excluding the qualified opinion due to the limitation on the scope of audit), or the date on which the audit opinion of the following business year's audit report was confirmed.

3. In the case of falling under paragraph (2)3, the date when the cause for the trading suspension is deemed to have been resolved.

(4) The Exchange may provide information on trading suspension to a multilateral trading company when necessary for investor protection and market management. (Amended on February 27, 2025)

§127. Criteria and Period of Public Announcement on Backdoor Listing

“A manner that is stipulated in the Enforcement Rules” in [§156] of the Regulation shall refer to the indication of “backdoor listing” next to the stock price list made available on such devices as the securities information terminals until the legal submission deadline of annual report of the business year next to the business year which includes the date specified in each subparagraph of [§31(2)].

CHAPTER VII. SUPPLEMENTARY PROVISIONS

§128. Listing Fees and Annual Dues

Pursuant to [§158(2)] of the Regulation, the rate, calculation and payment method, exemption range, and any other matters related to listing fees and annual dues shall be determined in [Annex 10].

§129. Disposal, etc. of Stocks, etc. under Mandatory Holding

(1) “As stipulated in the Enforcement Rules” in the former part of [§159] of the Regulation shall refer to each of the following subparagraphs: (Amended on June 25, 2014; September 10, 2019; December 18, 2020; May 13, 2021; December 9, 2022; July 26, 2023)

1. In the case of any of the following items, where the withdrawal of securities certificates is necessary:
 - (a) To receive new shares according to merger, spin-off, merger after spin-off, stock split, reverse stock splits, etc.;
 - (b) To exercise the rights of convertible bonds, bonds with warrants, etc.; and
 - (c) To redeem convertible bonds, bonds with warrants, etc.
2. [Deleted on September 10, 2019]
3. [Deleted on September 10, 2019]
4. Case of establishing the pledge right against the financial institutions falling under subparagraphs 3 through 18 of [§21(3)] and subparagraphs 20 and 21 of the same paragraph for the purposes falling under any of the following items:
 - (a) To obtain the loan required for the operation of a corporation (excluding the special purpose acquisition company) that has issued the relevant stocks, etc.; and
 - (b) To obtain the loan required for the payment for subscription to participate in capital increase with consideration (excluding capital increase through public offering or third-party allotment) of the corporation that has issued the relevant stocks, etc.
5. Case of changing or terminating the pledge right established pursuant to subparagraph 4;
- 5-2. Case where the KOSPI-listed corporation of which the largest shareholder is a private equity fund (including a foreign company equivalent thereto) attempts to sell

the stocks, etc. held by the private equity fund to change the largest shareholder. Provided that it shall be limited to the case of mandatory holding of the stocks, etc. of the KOSPI-listed corporation concerned held by the largest shareholder, etc. after the change for 6 months after the date of change of the largest shareholder, and withdrawal of the stocks, etc. under mandatory holding may be limited in cases where the Exchange deems it inappropriate for public interests and investor protection.

6. Where, as a case where the listing applicant was established via a spin-off, the Exchange deems that a shareholder of the parent company has acquired the stocks, etc. for the protection of shareholders of the parent company of the listing applicant (refers to the parent company pursuant to the Article 342-2(1) of the Commercial Act; hereinafter the same in this item). [December 9, 2022]

7. Where the Exchange recognizes it as a case of changing the corporate structure according to the needs of the corporate management.

8. In addition, cases where the Exchange deems the disposal, etc. of the stocks, etc. is inevitable for fulfilment of statutory obligations, etc.

(2) The “case stipulated in the Enforcement Rules” in the latter part of [§159] of the Regulation shall refer to each of the following subparagraphs: [December 9, 2022]

1. Case of paragraph (1)6; and

2. Other cases where the exemption of mandatory holding is deemed necessary by the Exchange.

§130. Par Value of Listed stocks

The par value per share pursuant to [§162] of the Regulation shall be the same as each of the following subparagraphs. Provided that this provision shall not apply to the case of foreign common stocks;

1. Case of issuing stocks, the par value of which per share is KRW 5,000 or less: KRW 100, KRW 200, KRW 500, KRW 1,000, and KRW 2,500, and KRW 5,000; and

2. Case of issuing stocks, the par value of which per share is more than KRW 5,000: the value equivalent to a multiple of KRW 10,000.

(Wholly amended on June 25, 2014)

§131. Application Documents for Listing Change Related to Merger, etc.

The application for listing change pursuant to [§163(2), excluding each subparagraph]

of the Regulation shall refer to [Annex: Form No. 33], and the attached documents shall correspond with each of the following subparagraphs. (Amended on June 25, 2014; September 2, 2014; September 10, 2019)

1. A certificate of issuance and registration of ELWs, ETNs or debt securities;
2. A certified copy of corporate registration;
3. Documents related to the merger, etc. noted in each of the following items:
 - (a) In the case of a merger, a copy of the merger agreement;
 - (b) In the case of a spin-off, a copy of the minutes of the general meeting of shareholders or the meeting of the board of directors where the decision on the spin-off was made; and
 - (c) In the case of transfer of assets or liabilities, a copy of an agreement relating to such transfer; and
4. Other documents that the Exchange deems necessary for listing eligibility review.

§132. Criteria for Industry Sector Classification

(1) The Exchange may classify the industry sectors of KOSPI-stock-listed corporations in order to make public the market price information, etc. pursuant to [§166] of the Regulation. In such cases, on the basis of the Korea Standard Industry Classification published by the Commissioner of the Statistics Korea pursuant to the Statistics Act (hereinafter referred to as the “Korea Standard Industry Classification”), the sectors of KOSPI-listed corporations shall be classified into the sector, division and group, and the industry codes shall be assigned, according to the industry sector classification and code assignment in [Annex: Form No. 11].

(2) The sector classification noted in paragraph (1) shall be made by the methods specified in each of the following subparagraphs: (Amended on December 28, 2018)

1. In cases where a KOSPI-stock-listed corporation is engaged in two (2) or more businesses, it shall be classified under the business with the largest sales amount, and if it is difficult to apply the sales amount, the classification shall be made by taking into account the number of employees, facilities, etc.;
2. In cases where the sector classification is difficult because of the ambiguity of business, the company concerned shall be classified into other category in a similar industry; and
3. In cases where, regardless of the Korea Standard Industry Classification regarding manufacturing or wholesale and retail sectors, the Exchange deems that a classification into the wholesale and retail sector is inappropriate, the company

concerned may be classified into the manufacturing industry of the products concerned.

4. In the case of a holding company, the classification shall be made in accordance with the Korea Standard Industry Classification, and if the portion of the sales of a specific industry sector is 50 percent or more on the consolidated financial statements, it shall be classified as the sector of such industry. In such cases, the holding company may submit documents such as the management plans concerning the industry classification, and the Exchange may make the sector classification by comprehensively considering the realization of public interests and protection of investors, etc.

(3) The sector change shall be reclassified only in the case that the KOSPI-stock-listed corporation concerned falls under any of the followings. Provided that this provision shall not apply to the case where, in view of the business record, business outlook, consolidated financial statements, etc. of the KOSPI-stock-listed corporation concerned, the Exchange deems the reclassification into another sector unnecessary, and the sub-classification within the same industry sector may not be changed: (Amended on July 31, 2015)

1. Cases where the reclassification of the sector is necessary as a result of the revision of the Korea Standard Industry Classification;
2. Cases where the main business of company has been changed due to a merger, spin-off, and a merger after spin-off, acquisition or transfer of business, and so on;
3. Cases where there have been consecutive changes in the rankings of sales amount of the main products during the most recent two (2) business years, and it is difficult to expect further expansion of the business under the existing sector classification;
4. Cases where the sector has been changed according to the laws and the decision at the general meeting of shareholders;
5. Cases where it has been converted into a holding company or has ceased to be the holding company status; and
6. In addition, the cases where reclassification of sector is deemed necessary.

(4) The timing of sector reclassification under paragraph (3) shall be as noted in each of the following subparagraphs:

1. In the case of subparagraphs 1, 4 and 6 of paragraphs (3): When the fact concerned has been confirmed;
2. In the case of subparagraphs 2 and 5 of paragraphs (3): When the document proving the fact concerned has been submitted; and

3. In the case of subparagraph 3 of paragraph (3): The first trading day of the fifth month counting from the month after the month when the book of the KOSPI-stock-listed corporation concerned is closed.

(5) A KOSPI-stock-listed corporation shall submit to the Exchange the materials necessary for reviewing the reclassification of sector by the deadline for submission of annual report.

(6) Notwithstanding paragraphs (4) and (5), the Exchange may change the time of sector reclassification and the deadline for submission of materials for reviewing by taking into consideration the deadline for submission of annual report under the laws of its home country by the company that has listed foreign stocks, etc.

§133. [Deleted on December 16, 2015]

§134. Public Opinion Gathering

Public opinion gathering pursuant to [§166-2] of the Regulation shall be governed by the provisions of [§5] of the Internal Regulations Management Regulation and [§6] of the Regulations Management Regulation.

[May 7, 2020]

ADDENDA

(January 24, 2005)

§1. Effective Date

This Enforcement Rules shall become effective on the incorporation date of the Exchange.

§2. Abolishment of Previous Enforcement Rules

From the effective date of this Enforcement Rules, the Enforcement Rules of Listing Regulation of the Korea Stock Exchange shall be abolished.

§3. Examples for Application of the Criteria for Designation as an Administrative Issue and the Delisting Criteria

In cases of designating as administrative issue or delisting of shares because of the activities committed before the effective date of this Enforcement Rules, the former Enforcement Rules of Listing Regulation of the Korea Stock Exchange shall apply.

§4. Interim Measures on Application for Initial Listing, etc.

Application for initial listing, etc., which was undertaken pursuant to the Enforcement Rules of Listing Regulation of the Korea Stock Exchange before the effective date of this Enforcement Rules, shall be deemed to have been made in accordance with this Enforcement Rules.

ADDENDUM

(July 22, 2005)

This Enforcement Rules shall become effective on July 25, 2005.

ADDENDUM

(September 14, 2005)

This Enforcement Rules shall become effective on October 4, 2005.

ADDENDUM

(October 28, 2005)

This Enforcement Rules shall become effective on October 31, 2005. Provided that [Annex: Form No. 24] shall become effective on December 1, 2005.

ADDENDUM
(December 28, 2005)

This Enforcement Rules shall become effective on December 29, 2005. Provided that the amended provisions of [§50(5)13] shall become effective on January 2, 2006.

ADDENDUM
(April 18, 2006)

This Enforcement Rules shall become effective on April 19, 2006.

ADDENDUM
(September 29, 2006)

This Enforcement Rules shall become effective on October 2, 2006.

ADDENDUM
(November 14, 2006)

This Enforcement Rules shall become effective on November 15, 2006.

ADDENDA
(November 29, 2006)

§1. Effective Date

This Enforcement Rules shall become effective on November 30, 2006.

§2. Exceptions in Application

The amended provisions of [§26(3)] shall apply beginning with the KOSPI-listed corporation of which the board made the decision relating to the overseas issuance of securities after this Enforcement Rules has become effective.

ADDENDUM
(December 22, 2006)

This Enforcement Rules shall become effective on December 26, 2006.

ADDENDUM
(April 27, 2007)

This Enforcement Rules shall become effective on April 30, 2007.

ADDENDUM
(October 24, 2007)

This Enforcement Rules shall become effective on October 25, 2007.

ADDENDUM
(December 26, 2007)

This Enforcement Rules shall become effective on January 1, 2008.

ADDENDA
(December 27, 2007)

§1. Effective Date

This Enforcement Rules shall become effective on January 2, 2008. Provided that the amended provisions of [§27(2) and §35-2(3) (including [Annex 3]: the same hereinafter) shall become effective on February 4, 2008, and the amended provisions of [§24-2] shall become effective on May 6, 2008.

§2. Effective Date of the Stock Market Listing Regulation

“The date stipulated in the Enforcement Rules” noted in the proviso to Addendum of the KOSPI Market Listing Regulation (amended on December 21, 2007) shall refer to the date specified in each of the following cases:

1. In case of [§41-2(1)2] of Stock Market Listing Regulation: May 6, 2008
2. In case of [§47-2] of Stock Market Listing Regulation: February 4, 2008

§3. Application of the provisions on change of the issuance conditions of ELWs

Even though the issuer of ELWs has noted down the matters about the change of issuance conditions in the prospectuses, etc. before the enforcement date of the amended provisions of [§35-2(3)] pursuant to the proviso to paragraph (1) of this Addenda (dated on December 27, 2007), the amended provisions of [§35-2(3)] shall apply. Provided that this provision shall not apply to the matters not specified in the amended provisions of [§35-2(3)].

ADDENDA
(January 18, 2008)

§1. Effective Date

This Enforcement Rules shall become effective on January 18, 2008.

§2. Application of provisions concerning application for initial listing

The amended provisions of [§4 and §5] and the revised [Annex: Form No. 1] shall apply starting with the company that submits the application for listing eligibility review after this Enforcement Rules has been put into effect.

ADDENDUM
(February 1, 2008)

This Enforcement Rules shall become effective on February 1, 2008.

ADDENDUM
(February 20, 2008)

This Enforcement Rules shall become effective on February 25, 2008.

ADDENDUM
(March 7, 2008)

This Enforcement Rules shall become effective on March 17, 2008. Provided that the amended [Annex 1] shall be effective on March 24, 2008.

ADDENDUM
(April 14, 2008)

This Enforcement Rules shall become effective on April 14, 2008.

ADDENDUM
(April 28, 2008)

This Enforcement Rules shall become effective on April 29, 2008. Provided that the amended provisions of [§35-2(1)] and [Annex 3] shall become effective on May 6, 2008.

ADDENDA
(September 26, 2008)

§1. Effective Date

This Enforcement Rules shall become effective on October 1, 2008. Provided that the amended provisions of [§40, §42, §45-2, §46-2 through §47 and §50(5)5] shall become effective on February 4, 2009.

§2. Interim Measure for Listing Fees

Notwithstanding the amended provisions of [§50(5)], in case where the number of the listed DRs of foreign stocks as of the effective date of this Enforcement Rules is less than the number of DRs of foreign stocks at the time of initial listing (including the number of supplementary listed DRs of foreign stocks as a result of stock dividends after initial listing: the same hereinafter), the fees for supplementary listing subsequent to the conversion of foreign stocks into DRs shall be exempted until the time when the number of listed DRs of foreign stocks reaches the number of DRs of foreign stocks at the time of initial listing.

ADDENDA
(October 24, 2008)

§1. Effective Date

This Enforcement Rules shall become effective on February 4, 2009.

§2. Validity Period

The amended provision of [§47] shall have validity until April 30, 2011. Provided that in case of the company that files official objection because of falling under the delisting criteria specified in [§47(1)1-2] before the expiry date of the validity of amended provisions of [§47], the concerned amended provision shall apply until the time when such procedures is concluded.

§3. Application to the Company Falling Under the Delisting Criteria Due to the Loss Related the Exchange Rate Fluctuation before the Effective Date of This Enforcement Rules

In case of the company falling under the delisting criteria specified in [§80/6] of the Regulation due to the exchange rate fluctuation before the effective date of this Enforcement Rules, such company may file an official objection in accordance with [§47] of the former Regulation until the effective date of this Enforcement Rules.

ADDENDUM
(February 3, 2009)

This Enforcement Rules shall become effective on February 4, 2009.

ADDENDUM
(April 14, 2009)

This Enforcement Rules shall become effective on April 15, 2009.

ADDENDA
(April 16, 2009)

§1. Effective Date

This Enforcement Rules shall become effective on April 20, 2009.

§2. Application to Listed ELWs

The amended provisions of [§24-3] shall also apply to the ELWs that are listed as of the effective date of this Enforcement Rules. In such cases, the documents to be submitted in accordance with [§24-3(4)] shall be submitted within one (1) month of the effective date of this Enforcement Rules.

ADDENDUM
(July 16, 2009)

This Enforcement Rules shall become effective on July 17, 2009.

ADDENDUM
(August 27, 2009)

This Enforcement Rules shall become effective on August 27, 2009.

ADDENDA
(December 4, 2009)

§1. Effective Date

This Enforcement Rules shall become effective on December 7, 2009.

§2. Application of Provisions Concerning Paper Company

The amended provisions of [§5 and §24] shall apply starting with the company that submits the application for listing eligibility review after the effective date of this Enforcement Rules.

§3. Application of Provisions Concerning the Qualifications of Auditor of Listed Foreign Company

(1) The amended provisions of [§2-7] shall apply starting with the company that submits the application for listing eligibility review after the effective date of this Enforcement Rules. (Amended on December 26, 2011)

(2) Notwithstanding paragraph (1), the corporation that has listed foreign stocks and DRs of foreign stocks as of the effective date of this Enforcement Rules, the amended provisions of [§2-7] shall apply from the business year starting after the January 1, 2011. (Amended on December 26, 2011)

ADDENDUM (December 21, 2009)

This Enforcement Rules shall become effective on December 21, 2009.

ADDENDUM (January 14, 2010)

This Enforcement Rules shall become effective on January 14, 2010.

ADDENDUM (April 23, 2010)

This Enforcement Rules shall become effective on April 26, 2010.

ADDENDUM (August 13, 2010)

This Enforcement Rules shall become effective on August 26, 2010.

ADDENDA (December 30, 2010)

§1. Effective Date

This Enforcement Rules shall become effective on January 1, 2011. Provided that the amended provisions of [§45-2, §46, §46-5, §46-6 and §47] shall be put into effect on April 1, 2011.

§2. Exceptions to Exemption of Listing Fees, etc.

The amended provisions of [§50(5)14] shall apply starting with the listing fees and annual dues for the year 2010 of the KOSPI-stock-listed corporations selected as the model IR company 2010.

ADDENDA
(February 14, 2011)

§1. Effective Date

This Enforcement Rules shall become effective on February 15, 2011.

§2. Validity Period

The amended provisions of [§46(1)2(b)] shall be valid until December 31, 2011. Provided that in the case of a KOSPI-stock-listed corporation for which the submission deadline of annual report of the first business year that started after January 1, 2010, has not yet arrived, this provision shall apply until the submission deadline and in case of mutual savings bank pursuant to the Mutual Savings Banks Act, this provision shall apply until the business year immediately before the business year starting after January 1, 2016. (Amended on April 20, 2012)

ADDENDA
(May 30, 2011)

§1. Effective Date

This Enforcement Rules shall become effective on May 30, 2011. Provided that the amended provisions of [§4-3(6), §8(3) and §50(2)2 & 3] shall be put into effect on the day when three (3) months has passed after the effective date of this Enforcement Rules.

§2. Exception to Application for De-listing

The amended provisions of [§44-2] shall apply starting with the case where the application for de-listing is submitted after the effective date of this Enforcement Rules.

§3. Exception to Listing Deferment

The amended provisions of [§51-2] shall apply starting with the listing application

under process as of the effective date of this Enforcement Rules.

ADDENDA

(July 7, 2011)

§1. Effective Date

This Enforcement Rules shall become effective on July 8, 2011.

§2. Interim Measures for Application for Listing Eligibility Review of Stocks of Real Estate Investment Trust

Notwithstanding the amended provisions of [§4 through §4-3 and §11], the provisions of former version of this Enforcement Rules shall apply to the real estate investment trust that has completed the public offering or distribution as of the effective date of this Enforcement Rules.

ADDENDA

(November 18, 2011)

§1. Effective Date

This Enforcement Rules shall become effective on November 21, 2011.

§2. Exception in Determination of Number of Safeguard Deposit Stocks and Change of Criteria for Determination of Period for Listing Eligibility Review

The amended provisions of [§4, §5 and §5-2] shall apply starting with the first company that applies for listing eligibility review after the effective date of this Enforcement Rules.

ADDENDA

(December 26, 2011)

§1. Effective Date

This Enforcement Rules shall become effective on March 1, 2012. Provided that the amended provisions of [§50(5)] shall be put into effect on January 1, 2012. .

§2. Exception in Postponement of Review Period When the Listing Sponsor of foreign stock, etc. falling under early delisting criteria Applies for Initial Listing

The amended provisions of [§5-2] shall apply starting with the first foreign stock (including the stocks issued by the holding company noted in [§2(25)3] of the

Regulation) or DRs of foreign stocks that apply for listing eligibility review after the effective date of this Enforcement Rules.

§3. Exception in Qualitative Delisting Review Related to Disposal of Equity of Principal Subsidiary of Foreign Holding Company, etc.

The amended provisions of [§46-5/4d] shall apply starting with the case that has been confirmed through the disclosure, etc. after the effective date of this Enforcement Rules.

ADDENDA (April 20, 2012)

§1. Effective Date

This Enforcement Rules shall become effective on April 23, 2012. Provided that the amended provisions of [§2-6, §27-2, §30, §41-2, §42(2)10, §44-2, §44-3, §51-3 and §51-4] shall be put into effect on July 23, 2012.

§2. Exception in Designation of Other Type of Stocks as Administrative Issue

(1) Decision on designation of other type of stocks as administrative issue pursuant to [§51-4(1)2] of this Enforcement Rules shall be based on the annual report of the first business year that begins after the effective date (referring to effective date noted in [§3] of Addendum of the Regulation) of [§103-3(1)2] of the Regulation (amended on April 18, 2012).

(2) When designating other type of stocks as administrative issue pursuant to [§51-4(1)3 & 4] of this Enforcement Rules, the criteria for concerned designation and calculation of designation period shall be reckoned from the effective date (referring to effective date noted in [§3] of Addendum of the Regulation) of [§103-3(1)3 through 5] of the Regulation (amended on April 18, 2012).

ADDENDA (July 20, 2012)

§1. Effective Date

This Enforcement Rules shall become effective on July 23, 2012. Provided that the amended provisions related to the listing fees noted in subparagraph 1 of [Annex 2] (excluding the amended provisions related to other type of stocks) shall be put into effect on August 6, 2012, and the amended provisions related to the annual dues noted in subparagraph 2 of [Annex 2] shall be put into effect on January 1, 2013.

§2. Exceptions in Applying Listing Fees and Annual Dues

(1) The amended provisions related to the listing fees noted in subparagraph 1 of [Annex 2] shall apply starting with the case where the payment time of listing fees noted in subparagraph 3 of [Annex 2] has arrived after the effective date pursuant to paragraph (1) of this Addendum and Note 3 of subparagraph 1(b) of [Annex 2] shall apply from January 1, 2012.

(2) In calculating the 2012 annual dues for stocks (including the other type of stocks) and foreign stocks (including DRs of foreign stocks and other types of foreign stocks) that are levied in 2013, the former versions of this Enforcement Rules shall apply thereto.

ADDENDA
(June 18, 2013)

§1. Effective Date

This Enforcement Rules shall become effective on July 1, 2013.

§2. Examples for Application of Listing Fee of Equity Linked Warrants

The amended provision of subparagraph 1(d) of [Annex 10] shall apply starting with application of initial listing (including supplementary listing) of ELWs since the effective date of this Enforcement Rules.

ADDENDA
(September 13, 2013)

§1. Effective Date

This Enforcement Rules shall become effective on September 16, 2013.

§2. Examples of Application of Target for Deliberation by the Corporate Review Committee

The amended provision of [§50-2] shall apply starting with the determination by Corporate Review Committee regarding deliberation of common-stock-listed corporation concerned in the case where the effective date of this Enforcement Rules belongs to the period pursuant to [§49(1)] of the KOSPI Market Listing Regulation.

ADDENDUM
(November 19, 2013)

This Enforcement Rules shall become effective on December 2, 2013.

ADDENDUM
(January 28, 2014)

This Enforcement Rules shall become effective on February 3, 2014.

ADDENDA
(June 25, 2014)

§1. Effective Date

This Enforcement Rules shall become effective on June 30, 2014.

§2. Example of Application of Notification Period of the Results of Listing Eligibility Review

The amended provision of [§16(1)2] regarding notification period of the results from listing eligibility review shall apply starting with the company applying for listing eligibility review since the effective date of this Enforcement Rules.

§3. Example of Application Regarding Application of an Official Objection for Delisting

The amended provision of [§19] regarding application of official objection to delisting shall apply starting with the KOSPI-listed corporation for which the reason concerned for delisting has occurred since the effective date of this Enforcement Rules.

ADENDUM
(September 2, 2014)

This Enforcement Rules shall become effective on September 15, 2014.

ADDENDUM
(October 2, 2014)

This Enforcement Rules shall become effective on October 6, 2014.

ADDENDUM
(December 24, 2014)

This Enforcement Rules shall become effective on January 1, 2015.

ADDENDUM
(February 23, 2015)

This Enforcement Rules shall become effective on January 1, 2016, Provided that, in the case of the financial investment companies that report an advanced adoption of net operating capital ratio to the Governor of the Financial Supervisory Service, it shall become effective on February 26, 2015.

ADDENDUM
(March 27, 2015)

This Enforcement Rules shall become effective on March 30, 2015. Provided that the amended provisions of [§86/15], [§107/5], [§111/3], and [Annex 1] shall become effective on April 1, 2015.

ADDENDA
(July 31, 2015)

§1. Effective Date

This Enforcement Rules shall become effective on July 31, 2015.

§2. Example of Application of Listing Eligibility Review, etc.

(1) The amended provision of [§16(1)] and amended provision of [Annex 1] related to application documents for the listing eligibility review shall apply to corporations applying for the listing eligibility review after the effective date of this Enforcement Rules.

(2) Regarding the amended provision of [Annex 10], the regulation before the amendment shall apply to corporations that applied for the listing eligibility review before the effective date of this Enforcement Rules.

§3. Example of Application of Objections Related to Delisting

The amended provision of [§16(1)] shall apply to a corporation to which a reason falling under delisting criteria occurs after the effective date of this Enforcement Rules.

§4. Example of Application of Designation to and Release from Administrative Issues

(1) The amended provision of [§41] and [Annex 7] related shall apply to a corporation to which a reason falling under the designation to and release from administrative issues occurs after the effective date of this Enforcement Rules.

(2) The amended provision of [§416(1)] shall apply to a corporation that resumes the trading, while maintaining its status as administrative issue, after the effective date of this Enforcement Rules.

§5. Example of Application of Corporate Review Committee

The amended provisions of [§50-2] and [§51] shall apply from the time when the corporation concerned is determined to be subject to the deliberation of the Corporate Review Committee in case where the effective date of this Enforcement Rules falls into the time period noted in [§49(1)] of the KOSPI Market Listing Regulation.

§6. Example of Application of Documents Confirming Backdoor Listing

The amended provisions of [Annex 6] through [Annex 12] shall apply to the documents to be filed after the effective date of this Enforcement Rules.

§7. Example of Application of Application for Listing Change

The amended provision of [Annex 33] shall apply to a corporation which will apply for the listing change after effective date of this Enforcement Rules.

ADDENDA (November 4, 2015)

§1. Effective Date

This Enforcement Rules shall become effective on November 5, 2015. Provided that the amended provisions of [§74-2] and [§79(1)4]] shall become effective on the day determined separately by the Exchange by taking into consideration the time required to develop computer system, etc.

§2. Effective Date of KOSPI Market Listing Regulation

The “date stipulated by the Enforcement Rules” in the proviso to [§1] of the Addenda of the KOSPI Market Listing Regulation (amended on November 4, 2015) shall be the date noted in the proviso to [§1] of this Addenda.

§3. Abolition of Other Internal Regulations

The “Guidelines for Listing Review of KOSPI Market” shall be abolished.

§4. Amendment of Other Internal Regulations

The “Guidelines for Listing Review of Securitized Products Market” shall partially be amended as follows:

“§165” in Article 1 shall be construed as “§4(3) and §133 of the Enforcement Rules of the same Regulation”.

ADDENDA (December 2, 2015)

§1. Effective Date

This Enforcement Rules shall become effective on December 3, 2015. Provided that the amended provisions of items (c)(ii) and j under subparagraph 4 of [Annex 10] shall become effective on January 1, 2016.

§2. Application of Provisions concerning Paper Company, etc.

The amended provisions of [§3], [§21], [Annex 2-2] and [Annex: Form 2] shall apply starting with the corporation applying for the listing eligibility review after the effective date of this Enforcement Rules.

§3. Application of Provisions concerning Annual Dues

The amended provisions of item (f) under subparagraph 4 of [Annex 10] shall apply starting with the regular payments of annual dues for the year 2015 which is imposed in the year 2016.

ADDENDA (December 16, 2015)

§1. Effective Date

This Enforcement Rules shall become effective on December 3, 2015. Provided that the amended provisions of [§114] shall become effective on February 1, 2016.

§2. Abolition of Other Internal Regulations

The “Guidelines for Listing Review of Securitized Products Market” shall be abolished.

ADDENDUM

(December 30, 2015)

This Enforcement Rules shall become effective on December 31, 2015.

ADDENDUM

(Regulation No. 1295 / February 29, 2016)

This Enforcement Rules shall become effective on March 2, 2016.

ADDENDUM

(Regulation No. 1307 / April 4, 2016)

This Enforcement Rules shall become effective on April 4, 2016.

ADDENDUM

(Regulation No. 1315 / April 22, 2016)

This Enforcement Rules shall become effective on April 25, 2016.

ADDENDUM

(Regulation No. 1332 / June 8, 2016)

This Enforcement Rules shall become effective on June 13, 2016.

ADDENDUM

(Regulation No. 1345 / June 27, 2016)

This Enforcement Rules shall become effective on July 11, 2016.

ADDENDA

(Regulation No. 1359 / September 6, 2016)

§1. Effective Date

This Enforcement Rules shall become effective on October 4, 2016. Provided that the amended provisions of items (c)(ii) and j under subparagraph 4 of [Annex 10] shall become effective on January 1, 2016.

§2. Case of Application of Provisions concerning Listing Fees

The amended provisions of [Annex 10/1(a)] on listing review fees and initial listing fees shall apply starting with the corporation applying for the listing eligibility review after the effective date of this Enforcement Rules, and those on fees for relisting, supplementary listing and listing change shall apply starting with the corporation applying for listing after the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 1369 / October 10, 2016)

This Enforcement Rules shall become effective on October 10, 2016.

ADDENDUM

(Regulation No. 1388 / December 27, 2016)

This Enforcement Rules shall become effective on January 2, 2017.

ADDENDUM

(Regulation No. 1411 / February 8, 2017)

This Enforcement Rules shall become effective on February 9, 2017.

ADDENDUM

(Regulation No. 1439 / March 31, 2017)

This Enforcement Rules shall become effective on March 31, 2017.

ADDENDUM

(Regulation No. 1448 / April 28, 2017)

This Enforcement Rules shall become effective on May 2, 2017.

ADDENDA

(Regulation No. 1450 / May 2, 2017)

§1. Effective Date

This Enforcement Rules shall become effective on May 8, 2017

§2. Effective Date of the KOSPI Market Listing Regulation

The “date set by the Enforcement Rules” in the ADDENDUM of the KOSPI Market Listing Regulation (Regulation No. 1449, amended on May 2, 2017) shall refer to May 8, 2017.

ADDENDUM

(Regulation No. 1466 / June 26, 2017)

This Enforcement Rules shall become effective on July 1, 2017.

ADDENDUM

(Regulation No. 1496 / October 27, 2017)

This Enforcement Rules shall become effective on January 1, 2018.

ADDENDUM

(Regulation No. 1505 / December 20, 2017)

This Enforcement Rules shall become effective on January 1, 2018.

ADDENDUM

(Regulation No. 1516 / January 31, 2018)

This Enforcement Rules shall become effective on February 1, 2018.

ADDENDUM

(Regulation No. 1542 / March 15, 2018)

This Enforcement Rules shall become effective on March 16, 2018.

ADDENDA

(Regulation No. 1546 / March 22, 2018)

§1. Effective Date

This Enforcement Rules shall become effective on March 23, 2018.

§2. Case of Application of Provisions concerning Methods of Listing Review

The amended provisions of [§4-3(1)12] on the methods of listing review shall apply starting with the corporation, the results of listing eligibility review of which is

confirmed after the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 1551 / April 6, 2018)

This Enforcement Rules shall become effective on April 9, 2018.

ADDENDUM

(Regulation No. 1574 / July 17, 2018)

This Enforcement Rules shall become effective on July 30, 2018.

ADDENDUM

(Regulation No. 1621 / December 28, 2018)

This Enforcement Rules shall become effective on January 1, 2019.

ADDENDUM

(Regulation No. 1634 / January 25, 2019)

This Enforcement Rules shall become effective on January 28, 2019. Provided that the amended provisions of [§95(1)5], subparagraphs 8 through 11 of [§96(3)] and subparagraph 8 of [§123-8] shall become effective on July 1, 2020, considering the time required to develop the computer programs, etc.

ADDENDA

(Regulation No. 1647 / March 20, 2019)

§1. Effective Date

This Enforcement Rules shall become effective on March 21, 2019.

§2. Case of Application of Provisions concerning Filing of Official Objection for Cause of Audit Opinion for Delisting

The amended provisions of [§19] and [§48] shall apply starting with the corporation that files an official objection pursuant to [§25(2)] of the Regulation after the effective date of this Enforcement Rules as the cause for delisting of the auditor's opinion not up to standards under [§48(1)2] of the Regulation has occurred.

ADDENDUM

(Regulation No. 1652 / April 1, 2019)

This Enforcement Rules shall become effective on April 2, 2019.

ADDENDUM

(Regulation No. 1678 / April 26, 2019)

This Enforcement Rules shall become effective on April 29, 2019.

ADDENDUM

(Regulation No. 1680 / April 29, 2019)

This Enforcement Rules shall become effective on May 2, 2019.

ADDENDA

(Regulation No. 1693 / June 28, 2019)

§1. Effective Date

This Enforcement Rules shall become effective on July 1, 2019.

§2. Case of Application of Provisions concerning Application Documents for Re-listing

The amended provisions of subparagraph 2 of [Annex 4] shall also apply to the applicant for a re-listing after spin-off which is under review at the time of the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 1729 / September 10, 2019)

This Enforcement Rules shall become effective on September 16, 2019.

ADDENDUM

(Regulation No. 1784 / March 11, 2020)

This Enforcement Rules shall become effective on March 12, 2020.

ADDENDUM

(Regulation No. 1796 / April 9, 2020)

This Enforcement Rules shall become effective on April 9, 2020.

ADDENDA
(Regulation No. 1797 / April 14, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on April 16, 2020.

§2. Case of Application of Provisions concerning Suspension of Trading and Resumption Thereof

The amended provisions of [§126(2)2] and [§126(3)2] shall apply starting with the corporation submitting the improvement plan including improvement plans pursuant to [§19(1)1(a)] after the effective date of this Enforcement Rules.

ADDENDUM
(Regulation No. 1818 / May 7, 2020)

This Enforcement Rules shall become effective on May 8, 2020.

ADDENDA
(Regulation No. 1836 / June 10, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on June 15, 2020.

§2. Validity Period

The amended provisions of [Annex 10/ 4(a)(vii)] is valid until June 14, 2023.

§3. Case of Application

The amended provisions of [Annex 10/ 4(a)(vii)] shall apply to debt securities(including the beneficiary certificates noted in [§111] of the Regulation) that have submitted registration application and completed initial listing pursuant to the Guidelines for Operation of ESG Bond Information Platform during the validity period noted in [§2] of this Addenda.

ADDENDUM
(Regulation No. 1841 / June 17, 2020)

This Enforcement Rules shall become effective on July 1, 2020.

ADDENDA
(Regulation No. 1855 / July 23, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on July 27, 2020. Provided that, the amended provisions of [Annex 6] and [Annex 10: Form No. 33] shall become effective on September 7, 2020, and the amended provisions of [§123-4] shall become effective on October 5, 2020.

§2. Case of Application of Provisions concerning Listing Requirements of ETFs and ETNs

(1) The amended provisions of [Annex 1], [Annex 2-3], [Annex 2-5], and [Annex 3] shall apply to ETFs or ETNs that submit listing eligibility review applications after the effective date of this Enforcement Rules.

(2) The amended provisions of [Annex 2-3/2(b)(i)Ⓒ③] and of [Annex 2-5/ 2(b)(i)Ⓒ③] shall apply starting with significant errors in calculation or public announcement of underlying index of ETFs or ETNs.

(3) The amended provisions of [Annex 2-3/2(c)(i)Ⓑ] and of [Annex 2-5/ 2(c)(iii)Ⓒ] shall apply to cases that occurred after the effective date of this Enforcement Rules

§3. Case of Application of Provisions concerning Submission of Liquidity Provision Plan and Restrictions on Entering Liquidity Provision Agreements for ETNs

The amended provisions of [§123-4] shall apply starting with the liquidity providing member assessment results for the month in which the effective date pursuant to [§1] of this Addenda falls.

§4. Interim Measures Concerning Restrictions on Entering Liquidity Provision Agreements for ETNs)

Notwithstanding the amended provisions of [§123-4], in case of assessment results after the effective date of this Enforcement Rules and before September 30, 2020, concerning the restriction of entering liquidity provision agreements for ETNs, previous Regulation shall be applied.

ADDENDA
(Regulation No. 1858 / July 27, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on October 1, 2020.

§2. Special Cases Concerning Designation as Administrative Issue and De-listing of Different Class of Stock

(1) Notwithstanding the amended provisions of [Annex 7], in case of different class of stock that are listed as of the effective date of the Regulation, the listed market capitalization pursuant to the amended provisions of [Annex 7] during October 1, 2020, to September 30, 2022, shall be the listed market capitalization noted in the following table:

Applicable Period	Listed Market Capitalization
Oct. 1, 2020 ~ Sep. 30, 2021	KRW 500 million
Oct. 1, 2021 ~ Sep. 30, 2022	KRW 1 billion

(2) The number of days requirement for market capitalization pursuant to the previous provisions of [Annex 7] shall be deemed the number of days pursuant to the amended provisions.

ADDENDA

(Regulation No. 1866 / August 25, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on September 1, 2020.

§2. Case of Application

The amended provisions of [Annex 2-2/ 2(a)] shall apply starting with the company that submits the application for listing eligibility review after this Enforcement Rules has been put into effect.

ADDENDA

(Regulation No. 1897 / December 18, 2020)

§1. Effective Date

This Enforcement Rules shall become effective on January 4, 2021.

§2. Case of Application of Provision concerning Procedure for Listing Maintenance Review

The amended provisions of [§51(5) and (6)] shall apply starting with the listed corporation whose improvement period has ended after the effective date of this Enforcement Rules.

§3. Case of Application of Provision concerning Listing Fees

The amended provision of [Annex 10/ 1(a) Note 3] shall apply starting with the corporation that submits the application for supplementary listing after the effective date of this Enforcement Rules.

§4. Case of Application of Provision concerning Application Documents for Listing Eligibility Review of ETNs

The amended provision of [Annex 1/ 1(g) Note 3] shall apply starting with the ETN that submits the application for listing eligibility review after the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 1909 / February 10, 2021)

This Enforcement Rules shall become effective on February 15, 2021.

ADDENDA

(Regulation No. 1913 / March 8, 2021)

§1. Effective Date

This Enforcement Rules shall become effective on March 9, 2021.

§2. Case of Application of Provision concerning Judgement Criteria for Listing Maintenance Review

The amended provision of the proviso to [§50(1)4(d)] shall also apply to the company that listed its shares by satisfying the business performance requirement under [§29(1)4(d)] of the previous KOSPI Market Listing Regulation before the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 1960 / May 13, 2021)

§1. Effective Date

This Enforcement Rules shall become effective on May 17, 2021.

§2. Case of Application of Provision concerning Methods for Listing Examination

The amended provisions of [§4-3(1)6] regarding the professional advice from experts, [Annex 1] regarding the application documents for the preliminary listing review, and [Annex 2-2] regarding qualitative review criteria shall apply starting with the

corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

§3. Case of Application of Provision concerning Documents for Listing Application

The amended provision of [Annex 3] regarding the application documents for initial listing and [Annex 4] regarding the application documents for re-listing shall apply starting with the corporation that applies for the application for initial listing or re-listing after the effective date of this Enforcement Rules.

§4. Case of Application of Provision concerning Methods for Applying Causes of Delisting

In cases where a common-stock-listed corporation to which the causes for the capital impairment under [§48(1)3] of the Regulation occurred before the effective date of this Enforcement Rules falls under the amended provisions of each subparagraph of [§48(3)] of the Regulation, whether the corporation is subject to delisting criteria is determined based on the resolution of the capital impairment made by the date specified in each subparagraph after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 1975 / July 22, 2021)

§1. Effective Date

This Enforcement Rules shall become effective on July 26, 2021.

§2. Case of Application of Provision concerning Listed Foreign Holding Company Controlling Foreign Companies

The amended provisions of [§4] shall also apply to a foreign holding company controlling foreign companies listed before the effective date of this Enforcement Rules.

§3. Case of Application of Provision concerning Documents for Listing Application

The amended provision of [Annex 1] regarding the application documents for preliminary listing review and [Annex 4] regarding the application documents for re-listing shall apply starting with the corporation that applies for the application for preliminary listing review or re-listing after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2022 / February 14, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on February 15, 2022.

§2. Effective Date of the KOSPI Market Listing Regulation

The date stipulated in the Enforcement Rules in the proviso to [§1] of the addenda (Regulation No. 1976 / August 25, 2021) refers to the effective date under [§1] of the addenda.

ADDENDA

(Regulation No. 2026 / March 17, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on March 18, 2022.

§2. Case of Application of Provision concerning Mandatory Holding

(1) The amended provisions of [§21(1) and (2)], [§31], [§34], [§52], and [§63] shall apply from the corporation that applies for the listing eligibility review after this Regulation becomes effective.

(2) The amended provision of [§51(8)] shall apply from the corporation subject to the deliberation of the Corporate Review Committee after this Regulation becomes effective.

ADDENDA

(Regulation No. 2030 / March 31, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on April 11, 2022.

§2. Case of Application of Provision concerning Application Methods of Reasons for Delisting

The amended provision of [§78(4)] shall apply from the corporation that falls under [§92(1)1(g)] of the Regulation after this Enforcement Rule becomes effective.

ADDENDUM

(Regulation No. 2039 / May 27, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on May 30, 2022.

ADDENDA

(Regulation No. 2051 / June 30, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on July 1, 2022.

§2. Interim Measure concerning Evaluations on Operational Abilities of Listing Applicants

Notwithstanding the amended provision of [Annex 2-3], when calculating the LP evaluation for the past one (1) year, the quarterly LP evaluation grade of a member who was exempted from the replacement of LP prior to the effective date of the Enforcement Rules shall be conducted in accordance with the previous Regulation.

ADDENDUM

(Regulation No. 2060 August 4, 2022)

This Enforcement Rules shall become effective on August 5, 2022.

ADDENDUM

(Regulation No. 2066 / August 30, 2022)

This Enforcement Rules shall become effective on August 31, 2022.

ADDENDA

(Regulation No. 2067 / September 26, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on September 28, 2022.

§2. Case of Application of Provision concerning Preliminary Listing Review

The amended provisions of [Annex 2-2] shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 2071 / October 13, 2022)

This Enforcement Rules shall become effective on October 20, 2022.

ADDENDA
(Regulation No. 2090 / December 9, 2022)

§1. Effective Date

This Enforcement Rules shall become effective on December 12, 2022.

§2. Case of Application concerning Preliminary Listing Review

The amended provisions of [§4-3(1)11] shall apply from the corporation that applies for the initial listing after the effective date of this Enforcement Rules.

§3. Case of Application concerning Disposal, etc. of Mandatory Holding of Stocks

The amended provisions of [§129] shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

§4. Case of Application concerning Qualitative Listing Review

The amended provisions of [Annex 2-2] shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

§5. Case of Application concerning Designation as and Release from Administrative Issue

The amended provisions of [Annex 7] shall apply from the listed corporation that has the relevant reason for release of the designation as an administration issue occurred after the effective date of this Enforcement Rules.

ADDENDUM
(Regulation No. 2106 / February 6, 2023)

This Enforcement Rules shall become effective on February 13, 2023.

ADDENDA
(Regulation No. 2125 / May 8, 2023)

§1. Effective Date

This Enforcement Rules shall become effective on May 11, 2023.

§2. Validity Period

The amended provisions of [Annex 10/ 4(a)(vii)] is valid until June 14, 2025.

§3. Case of Application

The amended provisions of [Annex 10/ 4(a)(vii)] shall apply to debt securities (including the beneficiary certificates noted in [§111] of the Regulation) that have submitted registration application and completed the listing pursuant to [§5] of the Guidelines for Operation of ESG Bond Information Platform during the validity period noted in [§2] of this Addenda.

ADDENDA

(Regulation No. 2145 / July 26, 2023)

§1. Effective Date

This Enforcement Rules shall become effective on July 31, 2023.

§2. Case of Application of Provision concerning Application Documents for Preliminary Listing Review

The amended provisions of [Annex 1] shall apply from the corporation that applies for the preliminary listing review after the effective date of these Enforcement Rules.

ADDENDUM

(Regulation No. 2182 / October 17, 2023)

This Enforcement Rules shall become effective on December 11, 2023.

ADDENDUM

(Regulation No. 2195 / December 7, 2023)

This Enforcement Rules shall become effective on February 1, 2024.

ADDENDUM

(Regulation No. 2207 / January 31, 2024)

This Enforcement Rules shall become effective on December 11, 2023.

ADDENDA
(Regulation No. 2214 / March 11, 2024)

§1. Effective Date

This Enforcement Rules shall become effective on April 1, 2024.

§2. Case of Application concerning Application Documents for Initial Listing of Debt Securities

The amended provisions of Annex 3 shall apply from debt securities to be listed after the effective date of this Enforcement Rules.

ADDENDA
(Regulation No. 2223 / April 3, 2024)

§1. Effective Date

This Enforcement Rules shall become effective on April 8, 2024. Provided that the amended provisions of Annex 11 shall become effective on July 1, 2024.

§2. Case of Application concerning Review of Relisting after Spin-off

The amended provisions of Annex 2-2 shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

ADDENDUM
(Regulation No. 2235 / June 14, 2024)

This Enforcement Rules shall become effective on June 17, 2024.

ADDENDA
(Regulation No. 2273 / November 29, 2024)

§1. Effective Date

This Enforcement Rules shall become effective on December 1, 2024.

§2. Case of Application

The amended provisions of Annex 2-2 shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2298 / February 27, 2025)

§1. Effective Date

This Enforcement Rules shall become effective on March 4, 2025.

§2. Case of Application concerning Improvement Period, etc.

1. The amended provisions of [§19(5)] shall apply from corporations that file objections after the effective date of this Enforcement Rules.

2. The amended provisions of [§50(1)5e] shall apply from corporations with auditor's opinion falling under [§48(1)2] of the Regulation for the first time after the effective date of this Enforcement Rules.

3. The amended provisions in proviso to [§51(6)] shall apply from corporations that have been confirmed by the Exchange to fall under any of the subparagraphs of [§48(2)] of the Regulation after the effective date of this Enforcement Rules.

§3. Special Case of Application concerning Listing Maintenance Review Procedure

Notwithstanding the amended provisions of [§51(9)], for corporations whose objection procedures under [§25] of the Regulation or listing maintenance review procedures under [§49] of the Regulation have been suspended due to occurrence of reasons for delisting under each subparagraph of [§48(1)] of the Regulation as of the effective date of the Regulation, the suspended procedures shall not be resumed until the formality conditions for delisting are resolved.

ADDENDUM

(Regulation No. 2330 / May 14, 2025)

This Enforcement Rules shall become effective on May 19, 2025.

ADDENDA

(Regulation No. 2339 / July 3, 2025)

§ 1. Effective Date

This Enforcement Rules shall become effective on July 3, 2025.

§ 2. Case of Application

The amended provisions of subparagraph 2(e) of Annex 2-2 shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

ADDENDA

(Regulation No. 2344 / July 9, 2025)

§ 1. Effective Date

This Enforcement Rules shall become effective on July 10, 2025. Provided that the amended provisions of Annex Form No. 6 shall become effective on September 3, 2025, the amended provisions of subparagraph 1(a)(ix) of Annex 7 shall become effective on January 1, 2026, and the amended provisions of [§45(3)], [§48(11)], [§50(1)4(d)(iii)] and subparagraph 1(a)(vii) of Annex 7 shall become effective on January 1, 2027,

§ 2. Interim Measures concerning Rehabilitating Corporation with Auditor's Opinion Not Up to Standards

Notwithstanding the amended provisions of [§19(6)], subparagraphs 3 and 4 of [§7], [§8] and [§48(2)2], the previous regulation shall apply to a corporation that falls under auditor's opinion not up to standards noted in [§48(1)2] of the Regulation for the first time before the effective date of this Enforcement Rules and has failed to resolve the auditors' opinion not up to standards as of the effective date of this Enforcement Rules.

§3. Case of Application concerning Abolishment of Exemption of Mandatory Holding for Public Offering

The amended provisions of [§21(2)2(a)] shall apply from the corporation that applies for the preliminary listing review after the effective date of this Enforcement Rules.

ADDENDUM

(Regulation No. 2373 / November 11, 2025)

This Enforcement Rules shall become effective on November 11, 2025.

ADDENDUM

(Regulation No. 2386 / December 29, 2025)

This Enforcement Rules shall become effective on December 31, 2025.

ADDENDA

(Regulation No. 2436 / April 27, 2026)

§ 1. Effective Date

This Enforcement Rules shall become effective on April 28, 2026.

§ 2. Amendment of Other Regulations

In [§40(4)], “of subscription warrants and ELWs” shall be replaced with “of subscription warrants, ELWs, single-stock ETF securities under [§113(2)4(c)(v)] of the KOSPI Market Listing Regulation and single-stock ETNs under [§149-3(2)2(c)] of the same Regulation”.

In [§41-2(1)2(a)], “of indices composed only of debt securities and indices that are deemed similar thereto by the Exchange” shall be replaced with “of indices (including indices that are deemed similar thereto by the Exchange) and the prices of securities under Article 4-52, Paragraph (1) of the Financial Investment Business Regulations and derivative products that use the relevant securities as underlying assets”.

ADDENDA

(Regulation No. 2438 / April 29, 2026)

§ 1. Effective Date

This Enforcement Rules shall become effective on May 1, 2026.

§ 2. Case of Application concerning Improvement of Listing Eligibility Review Procedure

The amended provisions of [§19(3)] shall apply from the common stock-listed corporation for which the Exchange confirms the occurrence of causes for delisting under [§48] of the Regulations after the effective date of these Enforcement Rules.

ADDENDUM

(Regulation No. 2439 / April 30, 2026)

This Enforcement Rules shall become effective on May 6, 2026.

[Annex 1] Application documents for preliminary listing review

(Amended on June 25, 2014; September 2, 2014; October 2, 2014; March 27, 2015; July 31, 2015; April 22, 2016; December 27, 2016; February 8, 2017; December 28, 2018; March 20, 2019; September 10, 2019; July 23, 2020; December 18, 2020; May 13, 2021; July 22, 2021; February 14, 2022; December 9, 2022; July 26, 2023; July 9, 2025)

Application Documents for Preliminary Listing Review

(Pertaining to [§20], [§30], [§33], [§52], [§57], [§63], [§69], [§91], [§97], [§100], [§112] and [§123-2] of the Enforcement Rules)

1. Initial Listing

(a) Common stocks

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning the applicant for initial listing:
 - Ⓐ The individual or consolidated financial statements for the latest three business years and the auditor's audit report thereon; and
 - Ⓑ The individual or consolidated semiannual financial statement for the business year when the application for listing eligibility review was made (hereinafter referred to as the "application business year") and the auditor's review report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-year of the application business year ended.
- (iii) [Deleted on September 10, 2019]
- (iv) A certified copy of registration of incorporation
- (v) Articles of incorporation
- (vi) The register of stockholders and the register of holders under the Electronic Securities Act (hereinafter referred to as "register of holders") as at the end of the latest business year (if the register of stockholders was closed after the end of latest business year, it shall be as at the time of such closing; the same hereinafter).
- (vii) A copy of the transfer agency service contract entered into with a transfer agent.
- (viii) A written confirmation on paper company pursuant to [Annex: Form 16]
- (ix) In case of a holding company, following documents shall additionally be submitted:
 - Ⓐ The financial documents noted in (2) above concerning subsidiaries;
 - Ⓑ For a holding company that is subject to the provisions of [§31(2)] of the Regulation, the business plans and a statement on estimated revenue and expenditure of the holding company concerned and its subsidiaries for three business years to come;
 - Ⓒ A certified copy of registration of incorporation of subsidiaries; and
 - Ⓓ A copy of the report submitted to the Fair Trade Commission (if the report has not been made yet, any document verifying the fact on the conversion to a holding company) or a copy of a letter of approval from the Financial Services Commission.
- (x) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings:
 - ① Those for the latest business year shall be prepared in accordance with the Korean International Financial Reporting Standards.

㉔ When applying for listing eligibility review prior to the general shareholders meeting or the board of directors meeting for the approval of closing of financial statements of the latest business year, the “latest three business years” shall be construed as the “three business years immediately preceding the latest business year”.

㉕ The consolidated financial statement or the consolidated semiannual financial statement and the auditor’s audit or review opinion thereon shall be submitted only by the company owning a subsidiary (if the company is not a holding company, it shall be limited to the business year for which the Korean International Financial Reporting Standards were applied).

㉖ In cases where three business years have not elapsed since the incorporation, it shall be the individual and the consolidated financial statements for the business years elapsed and the auditor’s audit report thereon, and the individual and the consolidated semiannual financial statement for the business year of application and the auditor’s review report thereon, and, in cases where one business year has not elapsed since incorporation, it shall be the individual and the consolidated financial statements for the months elapsed and the auditor’s audit report thereon.

㉗ For the corporations subject to the provisions of [§29(5)] of the Regulation, it shall include the individual and consolidated financial statements and the auditor’s review reports thereon of the business areas that have been transferred due to the reasons noted in each subparagraph of [§25](hereinafter referred to as “merger, etc.”) during the period from the business year which includes the date on which three years elapse retroactively from the application date for listing eligibility review to the date of incorporation. Provided that, when the Exchange deems it unnecessary because they are not related to the review criteria, from among the individual and consolidated financial statements, the statement of cash flows, the statement of changes in shareholders’ equity and the notes thereto may not be submitted.

㉘ In cases where it has conducted a merger, a spin-off or a merger after spin-off (including a spin-off or a merger after spin-off through carving-out), transfer or acquisition of the whole or a substantial part of the business (hereinafter referred to as the “activities to change corporate structure”) prior to the application for listing eligibility review, and the closing of accounts for the business year has not been finalized, the individual or consolidated financial statement for the quarter or the half-year to which the date of such activities to change corporate structure belongs and the auditor’s audit report thereon shall be submitted.

㉙ The financial statements for the latest three business years and the auditor’s audit or review reports thereon shall be prepared in accordance with the Act on External Audit or other statutes of Korea. Provided that, in cases where the Exchange deems it inevitable for such reasons as that the listing applicant was not subject to the application of the Act on External Audit or financial statements of the listing applicant have to be prepared again according to the Korean International Financial Reporting Standards, the audit report shall be prepared in accordance with the following method:

㉙-1 In the case where the applicant is not subject to the Act on External Audit: A confirmation letter, etc. stating that the auditor prepared the audit report in accordance with the Act of External Audit shall be submitted along with the audit report or a designated auditor shall prepare audit reports of the relevant business years. Provided that, in the case where an auditor is designated in the year in which the listing application is filed, the designated auditor shall prepare the audit report for the latest business year;

㉙-2 In the case where a corporation which was subject to the application of the Act of External Audit in the latest business year and an auditor is designated to in the year in which the listing application is filed rewrite the financial statements for the latest business year in accordance with the Korean International Financial Reporting Standards: The auditor who prepared the audit report on the financial statements subject to the restatement or the designated auditor shall rewrite the audit report for the latest business year; and

㉙-3 In other cases where the Exchange deems it inevitable: The audit report shall be prepared in accordance with the method separately stipulated by the Exchange.

2. In the case of not subject to external audit pursuant to Article 4(2) of the Act on External Audit, the audit report and the review report from among the documents mentioned in (ii).

3. When an auditor has been designated for initial listing of stocks pursuant to Article 11(1)12

of the Act on External Audit and Article 14(6)1 of the Enforcement Decree of the same Act, the documents noted in (ii) shall be submitted in the following manner:

① The audit report for the latest business year (in case where the designation of auditor was made in the application business year, it shall be the auditor's audit report on the latest individual or consolidated quarterly or semiannual financial statement.) shall be the audit report of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc. of the Financial Services Commission.

② In case where the auditor was designated in the application business year, "the individual or consolidated semiannual financial statement for the application business year and the auditor's review report thereon" shall be construed as "the latest individual or consolidated quarterly financial statement or the individual or consolidated semiannual financial statement for the application business year and the audit report thereon of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting", and such documents shall be submitted after the concerned quarter or the half-year ended. Provided that, if 45 days have not passed since the end of the latest quarter or half-year, the audit report of the designated auditor for the quarterly or semi-annual financial statements immediately before the latest quarter or half-year may be submitted.

4. If it is before the stocks are issued, the documents noted in (iii) may be replaced by the certificate of entry into the depository account issued by KSD, and when the stocks are publicly offered or sold after the application for listing eligibility review was made, those documents may be submitted at the time of application for initial listing.

4-2. For the document noted in (iv) above, in case where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.

5. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vii) may be submitted at the time of the application for initial listing, and for the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of those documents may be omitted.

6. Holding companies shall apply with the followings:

① For a holding company for which one business year has not yet passed since its incorporation or conversion, "the individual or the consolidated financial statement for the months elapsed and the auditor's audit report thereon" in Note 1-④ above shall be construed as "the individual or the consolidated statement of financial position as at the time of incorporation or conversion and the auditor's review report thereon";

② The consolidated financial statements note in (ii) shall be those prepared by encompassing all of the subsidiaries as the subjects for consolidation;

③ In case where one business year has not passed yet since the incorporation or conversion, the register of stockholders and the register of beneficial shareholders noted in (vi) shall be those as at the time of incorporation or conversion; and

④ For the holding companies stipulated in [§31(2)] of the Regulation, the documents noted in (iii), (iv), (v), and (ix) ㉠&㉡ may be submitted at the time of application for initial listing.

7. For a corporation that has been listed on the KOSDAQ market for 5 or more years, only the documents noted in (i), (vi) and (x) can be submitted.

(a-2) Common stocks of holding companies controlling foreign companies

(i) An application for listing eligibility review stipulated separately by the Exchange.

(ii) Financial documents concerning the applicant for initial listing:

㉠

The individual or consolidated financial statements for the latest three business years and the auditor's audit report thereon; and

㉡

- The individual or consolidated semiannual financial statement for the application business year and the auditor's review report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-year of the application business year ended.
- (iii) A written report on operation of internal accounting management system pursuant to [Annex: Form 17]
 - (iv) Attorney-at-law's opinion statement certifying that the descriptions of the application for listing and the supplements thereto are true
 - (v) A copy of auditor's confirmation letter (to be prepared in the form set by the Exchange)
 - (vi) [Deleted on September 10, 2019]
 - (vii) A certified copy of registration of incorporation
 - (viii) Articles of incorporation
 - (ix) The register of stockholders and the register of holders as at the end of the latest business year
 - (x) A copy of the transfer agency service contract
 - (xi) A written confirmation on paper company pursuant to [Annex: Form 16]
 - (xii) Following documents concerning subsidiaries:
 - Ⓐ Documents noted in (2) through (5) above; and
 - Ⓑ Documents on registry or registration of incorporation
 - (xiii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.
 - ① Those for the latest business year shall be prepared in accordance with the Korean International Financial Reporting Standards. Provided that, in the case of subsidiaries, they may be prepared in accordance with International Accounting Standards or US GAAP stipulated in [§11 (2)] of the Regulation.
 - ② When applying for listing eligibility review prior to the general shareholders meeting or board of directors meeting for the approval of closing of financial statements of the latest business year, the "latest three business years" shall be construed as the "three business years immediately preceding the latest business year".
 - ③ In cases where three business years have not elapsed yet since incorporation, it shall be the individual or the consolidated financial statements for the business years elapsed and the audit or's audit report thereon, and the individual and the consolidated semiannual financial statement for the application business year and the auditor's review report thereon, and, in case where one business year has not elapsed yet since incorporation, it shall be the individual or the consolidated statement of financial position at the time of the incorporation or the conversion and the auditor's review report thereon.
 - ④ For the corporations subject to the provisions of [§29(5)] of the Regulation, it shall include the individual and consolidated financial statements and the auditor's review reports thereon of the business areas that have been transferred due to the merger, etc. during the period from the business year which includes the date on which three years elapse retroactively from the application date for listing eligibility review to the date of incorporation. Provided that, when the Exchange deems it unnecessary because they are not related to the review criteria, from among the individual and consolidated financial statements, the statement of cash flows, the statement of changes in shareowners' equity and the notes thereto may not be submitted.
 - ⑤ In cases where it has conducted the activities to change corporate structure prior to the application for listing eligibility review, and the closing of accounts for the business year has not been finalized, the individual or consolidated financial statement for the quarter or the half-year to which the date of such activities to change corporate structure belongs and the auditor's audit report thereon shall be submitted.
 - ⑥ The financial statements for the latest three business years and the auditor's audit or review

reports thereon shall be prepared in accordance with the Act on External Audit. Provided that, in cases where the Exchange deems it inevitable for such reasons as that the listing applicant was not subject to the application of the Act on External Audit or financial statements of the listing applicant have to be prepared again according to the Korea International Financial Reporting Standards, the audit report shall be prepared in accordance with the following method:

㉔ In the case where the applicant is not subject to the Act on External Audit: A confirmation letter, etc. stating that the auditor prepared the audit report in accordance with the Act of External Audit shall be submitted along with the audit report or a designated auditor shall prepare audit reports of the relevant business years. Provided that, in the case where an auditor is designated in the year in which the listing application is filed, the designated auditor shall prepare the audit report for the latest business year;

㉕ In the case where a corporation which was subject to the application of the Act of External Audit in the latest business year and an auditor is designated to in the year in which the listing application is filed rewrite the financial statements for the latest business year in accordance with the Korea International Financial Reporting Standards: The auditor who prepared the audit report on the financial statements subject to the restatement or the designated auditor shall rewrite the audit report for the latest business year; and

㉖ In other cases where the Exchange deems it inevitable: The audit report shall be prepared in accordance with the method separately stipulated by the Exchange.

2. When an auditor has been designated for initial listing of stocks pursuant to Article 11(1)12 of the Act on External Audit and Article 14(6)1 of the Enforcement Decree of the same Act, the documents noted in (ii) shall be submitted in the following manner:

① The audit report for the latest business year (in case where the designation of auditor was made in the application business year, it shall be the auditor's audit report on the latest individual or consolidated quarterly or semiannual financial statement.) shall be the audit report of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc. of the Financial Services Commission.

② In cases where the auditor was designated in the application business year, "the individual or consolidated semiannual financial statement for the application business year and the auditor's review report thereon" shall be construed as "the latest individual or consolidated quarterly financial statement or the individual or consolidated semiannual financial statement for the application business year and the audit report thereon of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting", and such documents shall be submitted after the concerned quarter or the half-year ended. Provided that, if 45 days have not passed since the end of the latest quarter or half-year, the audit report of the designated auditor for the quarterly or semi-annual financial statements immediately before the latest quarter or half-year may be submitted.

3. [Deleted on September 10, 2019]

4. For the document noted in (vii), in cases where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.

5. For the documents noted in (ix), when one business year has not passed yet since the incorporation or conversion, they shall be the register of stockholders and the register of holders at the time of incorporation or conversion.

6. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (x) may be submitted at the time of the application for initial listing.

7. From among the documents noted in (xii)㉔, the financial documents shall be those of the subsidiary that is controlled directly by the listing applicant and, in addition, the subsidiary that the Exchange deems necessary. Provided that, in cases where the financial details in the audit report of the subsidiary do not have substantial effects on listing review or where such documents are exempted from preparation pursuant to the relevant laws and regulations or accounting standards of the local country and the Exchange deems it necessary to exempt such documents from submission, the submission of such documents may be omitted.

8. From among the documents noted in (xii)①, the written reports on operation of internal accounting management system shall be those of the major subsidiaries and, in addition, the subsidiaries that the Exchange deems necessary and the provisions on the matters to be entered noted in [§71(6)] of the Enforcement Rules and the provisions on exceptional application noted in [§71(7)] of the Enforcement Rules shall apply *mutatis mutandis*.

9. From among the documents noted in (xii)②, the attorney-at-law's opinion statements shall be those of the major subsidiaries and, in addition, the subsidiaries that the Exchange deems necessary.

10. From among the documents noted in (xii)③, the auditor's confirmation letter shall be submitted when the details of audit report mentioned in the Note 7 are reflected in the listing review, in the following matter:

① The foreign companies incorporated in the countries which, from among the countries where the recognized overseas securities markets are located, are recognized by the Exchange, shall be exempted from submission; and

② The auditor shall refer to the auditor on the financial statements of the latest business year.

Provided that, when the Exchange deems it inevitable, a member of the accounting firms that meet the requirements in [§11(2)1(b) & 2(b)] of the Enforcement Rules may be such auditor.

(b) Foreign stocks, etc.

(i) An application for listing eligibility review stipulated separately by the Exchange.

(ii) Financial documents concerning the applicant for initial listing:

①

The consolidated financial statements for the latest three business years and the auditor's audit report thereon; and

②

The consolidated semiannual financial statement for the application business year and the auditor's review report thereon. Provided that this provision applies only to the case where 45 or more days have elapsed since the half-year of the application business year ended.

(iii) A written report on operation of the internal accounting management system pursuant to [Annex: Form 17]

(iv) Articles of incorporation that reflect the matters required to be entered in articles of incorporation pursuant to [Annex 8]

(v) A copy of minutes of the board of directors on the issuance of the foreign stocks, etc. and a copy of minutes of the general meeting of shareholders or the board of directors where the resolution on the listing on the Exchange was made

(vi) Documents on registry or registration of incorporation of the applicant for initial listing of the foreign stocks, etc.

(vii) In case of being listed on overseas securities markets, a written confirmation on such fact and a written confirmation on the trading situation for the latest one year in the overseas exchange where listed.

(viii) [Deleted on September 10, 2019]

(ix) A copy of the contract on the appointment of listing agent

(x) Attorney-at-law's opinion statement certifying that the descriptions of the application for listing and the supplements thereto are true

(xi) [Deleted on September 10, 2019]

(xii) If the register of stockholders and the register of holders as at the end of the latest business year are available, such documents.

(xiii) A copy of the agency service contract entered with a stock service agent concerning the methods, etc. of exercising the rights of holders

(xiv) A copy of auditor's confirmation letter (to be prepared in the form set by the Exchange)

(xv) A written confirmation on paper company pursuant to [Annex: Form 16]

- (xvi) Foreign holding companies shall additionally submit following documents:
- Ⓐ Documents noted in (2) above concerning subsidiaries; and
 - Ⓑ Documents on registry or registration of incorporation of subsidiaries
- (xvii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.
 - ① In cases where three business years have not elapsed yet since incorporation, it shall be the consolidated financial statements for the business years elapsed and the auditor's audit report thereon, and the consolidated semiannual financial statement for the application business year and the auditor's review report thereon, and, in case where one business year has not elapsed yet since incorporation, it shall be the consolidated financial statement for the months elapsed and the auditor's audit report thereon.
 - ② When applying for listing eligibility review prior to the general shareholders meeting or board meeting for the approval of closing of financial statements of the latest business year, the "latest three business years" shall be construed as the "three business years immediately preceding the latest business year".
 - ③ For the documents noted in (ii) Ⓐ, in cases where the Exchange deems it necessary by considering the place of incorporation, accounting environment and listing records in the recognized overseas securities market of the company concerned and where the application for listing eligibility review is made after 45 days or more have passed since the end of the semiannual period of the application business year, the "auditor's review report" shall be construed as the "auditor's audit report".
 - ④ For the corporations subject to the provisions of [§29(5)] of the Regulation, it shall include consolidated financial statements and the auditor's review report thereon of the business areas that have been transferred due to merger, etc. during the period from the business year to which the date that is three years retroactively from the application date for listing eligibility review belongs to the date of incorporation. Provided that, when the Exchange deems unnecessary because they are not related to the review criteria, among the consolidated financial statements, the statement of cash flows, the statement of changes in shareowners' equity and the notes may not be submitted.
 - ⑤ The provisions of item (a)(ii) on common stocks shall apply mutatis mutandis when preparing financial statements in accordance with the Korean International Financial Reporting Standards.
 - ⑥ In cases where it has conducted the activities to change corporate structure prior to the application for listing eligibility review, and the closing of accounts for the business year has not been finalized, the consolidated financial statement for the quarter or the half-year to which the date of such activities to change corporate structure belongs and the auditor's audit report thereon shall be submitted.
2. For the documents noted in (iii), the provisions on the matters to be entered noted in [§71(6)] of the Enforcement Rules and the provisions on exceptional application noted in [§71(7)] of the Enforcement Rules shall apply mutatis mutandis.
3. For the documents noted in (vi), in cases where the submission of such documents is prohibited by the laws and regulations of home country, they may be replaced with a written statement confirming such fact.
4. [Deleted on September 10, 2019]
5. The auditor's confirmation letter noted in (xiv) shall be submitted in the following matter:
 - ① The foreign companies incorporated in the countries which, from among the countries where the recognized overseas securities markets are located, are recognized by the Exchange, shall be exempted from submission; and
 - ② The auditor shall refer to the auditor on the financial statements of the latest business year. Provided that, when the Exchange deems it inevitable, a member of the accounting firms that meet the requirements in [§11(2)1(b)&2(b)] of the Enforcement Rules may be such auditor.
6. Foreign holding companies shall apply with the followings:
 - ① For a foreign holding company for which one business year has not yet passed since its inc

orporation or conversion, “the consolidated financial statement for the months elapsed and the auditor’s audit report thereon” in Note 1① shall be construed as “the consolidated statement of financial position as at the time of incorporation or conversion and the auditor’s review report thereon”;

② The documents in (ii) shall include those concerning the major subsidiaries of the foreign holding company;

③ In cases where one business year has not passed yet since the incorporation or conversion, the documents noted in (xii) may be substituted with the register of stockholders and the register of holders as at the time of incorporation or conversion; and

④ Financial documents among documents noted in (xvi)① shall be documents concerning subsidiaries directly controlled by the corporation applying for listing eligibility review and other subsidiaries deemed necessary by the Exchange.

⑤ For the documents noted in (xvi)②, in cases where the submission of such documents is prohibited by the laws and regulations of home country, they may be replaced with a written statement confirming such fact.

(c) Different classes of stocks and foreign different classes of stocks

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) [Deleted on September 10, 2019]
- (iii) A certified copy of registration of incorporation
- (iv) Articles of incorporation
- (v) A copy of minutes of the general meeting of shareholders or the board of directors where the resolution on issuance of stocks was made
- (vi) The register of stockholders and the register of holders as at the end of the latest business year
- (vii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. [Deleted on September 10, 2019]

2. In the case of domestic corporations, when the Exchange can obtain the document noted in (i) directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of such document may be omitted.

(d) Stocks of special purpose acquisition companies (SPACs)

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning the applicant for initial listing:
 - ① The individual financial statements as of the date of registration of incorporation and the document verifying the changes in the financial details up until the date of application for listing eligibility review; and
 - ② The auditor’s audit report on the individual financial statements noted in “a” above.
- (iii) A deposit or trust agreement entered into with a depository institution, etc. to deposit or entrust the capital raised by issuing the stocks of the SPAC (excluding the stocks issued before the initial offering)
- (iv) An agreement entered into among the stockholders, etc. as of the date of application for listing eligibility review
- (v) [Deleted on September 10, 2019]
- (vi) A certified copy of registration of incorporation
- (vii) Articles of incorporation
- (viii) The register of stockholders and the register of holders as at the end of the latest business year
- (ix) A copy of the transfer agency service contract

- (x) A copy of the underwriting agreement for the debt securities held by the stockholders, etc. as of the date of application for listing eligibility review
- (xi) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.
 - ① The financial statements shall be prepared in accordance with the Korean International Financial Reporting Standards.
 - ② When a quarter or a semiannual period has ended after the registration date of incorporation, it shall be the individual quarterly or semiannual financial statement for the application business year, and if the period for settlement of accounts has ended, it shall be the individual financial statement for the business year elapsed and the individual semiannual financial statement for the application business year (limited to the case where 45 or more days have elapsed since the semiannual period ended.)
 - ③ The “auditor” shall refer to the one prescribed in the Regulation on External Audit and Accounting
2. The matters mentioned in each subparagraph of [§64(2)] of the Enforcement Rules shall have been stated in the agreement noted in (iv).
3. The “stockholders, etc.” in (iv) and (x) shall refer to the persons who own the stocks, etc. of the SPAC concerned.
4. If it is before the stocks are issued, the documents noted in (v) may be replaced with the certificate of entry into the depository account issued by KSD, and when the stocks are publicly offered or sold after the application for listing eligibility was made, those documents may be submitted at the time of application for initial listing.
- 4-2. In case where the Exchange can obtain the document noted in (vi) directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, submission of the document may be omitted.
5. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (ix) may be submitted at the time of the application for initial listing, and for the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of those documents may be omitted.

(e) Securities of ETFs and foreign securities of ETFs

- (i) An application for preliminary listing review stipulated separately by the Exchange.
- (ii) Prospectus
- (iii) A copy of the contract for the use of tracking index
- (iv) A copy of the contract entered into with authorized participants (including liquidity provision contract)
- (v) In the case where there is an OTC derivatives contract, a copy of the relevant OTC derivatives contract
- (vi) In the case of beneficiary certificates:
 - ① A copy of trust contract; and
 - ② A document describing the operation plan for the trust property of investment trust.
- (vii) In the case of stocks of ETFs (including foreign stocks of ETFs):
 - ① Articles of incorporation;
 - ② Documents verifying the transfer agency; and
 - ③ A copy of corporate registration.
- (viii) A copy of the agency service contract entered with the general office management company
- (ix) Other documents that the Exchange deems necessary for the preliminary listing review.

Notes: For documents from (ii) to (viii), if the Exchange permits, documents with final contents may be additionally submitted up to the time of application for initial listing.

(f) Stocks of real estate investment trusts

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning the applicant for initial listing:
 - Ⓐ The individual and consolidated financial statements for the latest three business years and the auditor's audit reports thereon; and
 - Ⓑ The individual and consolidated semiannual financial statements for the application business year and the auditor's review reports thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-year of the application business year ended.
- (iii) [Deleted on September 10, 2019]
- (iv) A certified copy of registration of incorporation
- (v) Articles of incorporation
- (vi) The register of stockholders and the register of holders as at the end of the latest business year
- (vii) A copy of the transfer agency service contract
- (viii) Documents verifying the payment of stock price
- (ix) A copy of the authorization for business issued by the Minister of Land, Infrastructure and Transport
- (x) A copy of the authorization for incorporation of asset management company issued by the Minister of Land, Infrastructure and Transport, and a copy of the contract on business entrustment entered into with an asset management company
- (xi) A copy of the asset custody contract entered into with an asset custody institution prescribed in the Real Estate Investment Company Act, and a certificate of asset custody
- (xii) A copy of the contract on business entrustment entered into with an institution entrusted with general affairs, etc., a seal management company, etc. prescribed in the Real Estate Investment Company Act
- (xiii) In cases where investment reports for the latest business year and the quarter were prepared pursuant to the Real Estate Investment Company Act, such documents
- (xiv) A written business plan in which the types and methods of businesses of the real estate investment company are stated (for a real estate investment trust conducting real estate development projects, it shall be the business plan prescribed in Article 26(3) of the Real Estate Investment Company Act.), and a report of appraisal thereon prepared by outside experts such as real estate investment advisory companies, certified public accountants, certified public appraisers, etc.
- (xv) Documents stating the matters on the internal control standards and operation thereof prescribed in the Real Estate Investment Company Act
- (xvi) An acquisition plan relating to the real estate for investment [referring to those stated in the application for listing eligibility review and the documents noted in (xiii) and (xiv)]
- (xvii) An assessment report prepared by the listing sponsor or the managing underwriter on the business risks and the internal control of the real estate investment trust concerned
- (xviii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.
 - ① Those for the latest business year shall be prepared in accordance with the Korean International Financial Reporting Standards.
 - ② In cases where three business years have not elapsed yet since incorporation, it shall be the

individual and consolidated financial statements for the business years elapsed and the auditor's audit report thereon and the individual semiannual financial statement for the application business year and the auditor's review report thereon, and, in cases where one business year has not elapsed yet since incorporation, it shall be the individual and consolidated financial statements for the months elapsed and the auditor's audit report thereon.

③ When applying for listing eligibility review prior to the general shareholders meeting or the board of directors meeting for the approval of closing of financial statements of the latest business year, it shall be the "three business years immediately preceding the latest business year".

④ With regard to the preparation of the financial statements for the latest three business years and the auditor's audit or review report thereon, the requirements in Note 1 ② of item (a).

2. When an auditor has been designated for initial listing of stocks pursuant to Article 11(1)12 of the Act on External Audit and Article 14(6)1 of the Enforcement Decree of the same Act, the documents noted in (ii) shall be submitted in the following manner:

① The audit report for the latest business year (in cases where the designation of auditor was made in the application business year, it shall be the auditor's audit reports on the latest individual and consolidated quarterly or semiannual financial statements.) shall be the audit report of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc. of the Financial Services Commission.

② In cases where the auditor was designated in the application business year, "the individual semiannual financial statements for the business year of application and the auditor's review report thereon" shall be construed as "the latest individual and consolidated quarterly financial statements or the individual and consolidated semiannual financial statements and the audit reports thereon of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting of the Financial Services Commission", and such documents shall be submitted after the concerned quarter or the half-year ended. Provided that, if 45 days have not passed since the end of the latest quarter or half-year, the audit report of the designated auditor for the quarterly or semi-annual financial statements immediately before the latest quarter or half-year may be submitted.

3. [Deleted on September 10, 2019]

3-2. For the document noted in (iv), in cases where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.

4. For the documents noted in (vi), when one business year has not passed yet since the incorporation or conversion, they shall be the register of stockholders and the register of holders as at the date of application for listing eligibility review.

5. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vii) may be submitted at the time of the application for initial listing, and for the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of those documents may be omitted.

(g) Equity-linked warrants (ELWs)

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) A copy of authorization on investment trading business for securities and OTC derivatives
- (iii) [Deleted on September 2, 2014]
- (iv) [Deleted on September 2, 2014]
- (v) [Deleted on September 2, 2014]
- (vi) In cases where a universal registration statement was filed with the Financial Services Commission pursuant to Article 119(2) of the Act, such universal shelf registration statement and the corrective registration statement.
- (vii) A copy of minutes of the board of directors meeting concerning the issuance of ELWs and a copy of the document concerning the decision thereon

- (viii) A copy of the agreement on the use of stock price indices entered into with the Exchange or an index provider. Provided that this shall be limited to the ELWs which are based on stock prices.
- (ix) Agreement for liquidity provision. Provided that this shall not apply to the case where liquidity is provided directly by the issuer.
- (x) Other documents that the Exchange deems necessary for the listing review.

Note: The “index provider” in (viii) shall refer to an institution who engages in the business of index calculation.

(h) Exchange-traded notes (ETNs)

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) A copy of authorization for investment trading business for securities and OTC derivatives
- (iii) Financial documents concerning the applicant for initial listing:
 - Ⓐ The financial statements for the latest three business years and the auditor’s audit report thereon; and
 - Ⓑ The financial statement for the latest quarter or half-year of the application business year and the auditor’s review report thereon.
- (iv) In cases where a universal registration statement was filed with the Financial Services Commission pursuant to Article 119(2) of the Act, such universal shelf registration statement and the corrective registration statement.
- (v) A copy of credit rating received from multiple number of credit rating agencies within the latest one year
- (vi) A copy of minutes of the board of directors meeting concerning the issuance of ELWs and a copy of the document concerning the decision thereon
- (vii) A copy of the agreement on the use of stock price indices.
- (viii) Agreement for liquidity provision. Provided that this shall not apply to the case where liquidity is provided directly by the issuer.
- (ix) Where there is a guarantor, a guarantee agreement and a document that shows whether or not the requirements under subparagraphs 1(b) through 1(e) of [§149-3(2)] of the Regulation.
- (x) A copy of the contract on business entrustment entered into with an administration company
- (xi) In the case of loss-cut ETNs, a copy of the agreement for calculating the assessment value entered into with multiple bond rating agencies
- (xii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Deleted on July 23, 2020.

2. The documents, from among those subject to submission, that can be verified through the disclosure system of the Exchange or FSS may not be submitted.

2. Backdoor Listing

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning the target company for backdoor listing:
 - Ⓐ The individual or consolidated financial statements for the latest three business years and the auditor’s audit report thereon; and
 - Ⓑ The individual or consolidated semiannual financial statement for the application business year and the auditor’s review report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-

- year of the application business year ended.
- (iii) A certified copy of registration of incorporation of the target company for backdoor listing
 - (iv) Articles of incorporation of the target company for backdoor listing
 - (v) The register of stockholders and the register of holders of the target company for backdoor listing as at the end of the latest business year
 - (vi) Assessment opinion of an external assessment institution prescribed in Article 176-5(7) of Enforcement Decree of the Act concerning the appropriateness of the merger value, the value of acquisition of business or asset, the ratio of all-inclusive swap of stocks
 - (vii) The report on investigation of an inspector or outcomes of appraisal of a certified appraiser concerning an investment in kind prescribed in Article 422 of the Commercial Act
 - (viii) A written confirmation of the principal transaction bank on the fact of occurrence of bankruptcy of the target company for backdoor listing
 - (ix) Following documents confirmed by the auditor of the applicant for backdoor listing or the target company for backdoor listing:
 - Ⓐ The estimated statement of financial position immediately after the transactions specified in each subparagraph of [§32] of the Regulation are completed;
 - Ⓑ The statement of financial position and the income statement of the stock-listed corporation for the latest two business years that are prepared by supposing that the transaction concerned was completed on the first day of the business year to which the date that is two years retroactively from the date when the transaction for the merger or the acquisition of material business was completed belongs; and
 - Ⓒ The consolidated statement of financial position and the consolidated income statement of the stock-listed corporation for the latest two business years that are prepared by supposing that the transaction concerned was completed on the first day of the business year to which the date that is two years retroactively from the date when the transaction for the all-inclusive swap of stocks, the acquisition of material asset or the investment in kind was completed belongs.
 - (x) A written confirmation on paper company pursuant to [Annex: Form 16]
 - (xi) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.
 - ① Those for the latest business year shall be prepared pursuant to the Korean International Financial Reporting Standards.
 - ② When applying for listing eligibility review prior to the general shareholders meeting or board of directors meeting for the approval of closing of financial statements of the latest business year, the “latest three business years” shall be construed as the “three business years immediately preceding the latest business year”.
 - ③ The consolidated financial statement or the consolidated semiannual financial statement and the auditor’s audit or review opinion thereon shall be submitted only for the business year when the company owning a subsidiary has adopted the Korean International Financial Reporting Standards.
 - ④ In cases where three business years have not elapsed yet since incorporation, it shall be the individual or the consolidated financial statements for the business years elapsed and the auditor’s audit report thereon, and the individual and the consolidated semiannual financial statements for the application business year and the auditor’s review report thereon, and, in case where one business year has not elapsed yet since incorporation, it shall be the individual or the consolidated financial statement for the months elapsed and the auditor’s audit report thereon.
 - ⑤ For the target companies for backdoor listing subject to the provisions of [§29(5)] of the Regulation, it shall include the individual and consolidated financial statements and the auditor’s review reports thereon of the business areas that have been transferred due to merger, etc. during the period from the business year which includes the date on which three years elapse retroactively from the application date for listing eligibility review to the date of incorporation. Pr

provided that, when the Exchange deems it unnecessary because they are not related to the review criteria, from among the individual and the consolidated financial statements, the statement of cash flows, the statement of changes in shareholders' equity and the notes thereto may not be submitted.

⑥ In the case of acquisition of material business, the individual financial statements of the business areas transferred or to be transferred for the latest three business years and the auditor's review report thereon shall be included, whereas the consolidated financial statements or the consolidated semiannual financial statements and the auditor's audit report or the auditor's review report thereon shall not be submitted.

⑦ In the case of a merger after spin-off stipulated in [§28(4)1] of the Enforcement Rules, the individual financial statements of the business areas to be transferred as a result of the merger after spin-off for the latest three business years and the auditor's review report thereon shall be included.

⑧ In the case of foreign companies, etc., the scope of documents to be submitted may be adjusted in consideration of the laws and regulations of the home country.

⑨ In cases where it has conducted the activities to change corporate structure prior to the application for listing eligibility review, and the closing of accounts for the business year has not been finalized, the individual or consolidated financial statement for the quarter or the half-year to which the date of such activities to change corporate structure belongs and the auditor's audit report thereon shall be submitted.

⑩ With regard to the preparation of the financial statements for the latest three business years and the auditor's audit or review report thereon, the requirements in Note 1⑦ of subparagraph h 1(a).

2. In cases where the target company for backdoor listing is not a joint stock corporation incorporated pursuant to the Commercial Act or it is a foreign company, etc., the accounting standards stipulated in [§11(2)] of the Regulation and the qualifications of auditor stipulated in [§15(1)] of the Regulation shall apply *mutatis mutandis*, and if the documents noted in (vii) cannot be submitted pursuant to the laws and regulations of the home country, they may be substituted by those similar thereto.

2-2. When an auditor has been designated for initial listing of stocks pursuant to Article 11(1)12 of the Act on External Audit and Article 14(6)1 of the Enforcement Decree of the same Act, the documents noted in (ii) shall be submitted in the following manner:

① The audit report for the latest business year (in case where the designation of auditor was made in the application business year, it shall be the auditor's audit report on the latest individual or consolidated quarterly or semiannual financial statement.) shall be the audit report of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc.

② In cases where the auditor was designated in the application business year, "the individual or consolidated semiannual financial statement for the application business year and the auditor's review report thereon" shall be construed as "the latest individual or consolidated quarterly financial statement or the individual or consolidated semiannual financial statement for the application business year and the audit report thereon of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting", and such documents shall be submitted after the concerned quarter or the half-year ended. Provided that, if 45 days have not passed since the end of the latest quarter or half-year, the audit report of the designated auditor for the quarterly or semi-annual financial statements immediately before the latest quarter or half-year may be submitted.

3. For the document noted in (iii), in cases where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.

3. Re-listing

(a) General re-listing: The documents concerning application for listing eligibility

y review of common stocks under subparagraph 1(a)

(b) Merger after spin-off

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning a merger after spin-off:
 - Ⓐ The documents prescribed in each subparagraph of Article 530-7(1) of the Commercial Act
 - Ⓑ Following financial documents concerning the business areas to be transferred as a result of a spin-off or a merger after spin-off:
 - ① The individual statements of financial position or individual income statements for the latest three business years and the auditor's review report thereon
 - ② The individual statement of financial position or the individual income statement for the semiannual period of the application business year and the auditor's review report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the semiannual period of the application business year ended.
 - ③ In cases where the applicant for re-listing has a subsidiary and the Korean International Financial Reporting Standards were applied during the period of the latest three business years, the consolidated financial statement and the consolidated income statement for the business year when the Korean International Financial Reporting Standards were applied and the auditor's review reports thereon.
- (iii) A copy of minutes of the board of directors meeting where the resolution on spin-off was made
- (iv) A certified copy of registration of incorporation of the company before the spin-off
- (v) For a holding company, the individual financial statements of the subsidiary for the latest three business years and the auditor's audit report thereon. Provided that, when three business years have not passed yet after the subsidiary was incorporated, it shall include the individual financial statements and the auditor's review report thereon of the business areas that have been transferred due to merger, etc. during the period from the business year to which the date that is three years retroactively from the application date for listing eligibility review belongs to the date of incorporation.
- (vi) In cases where the corporation to be spined-off is a holding company controlling foreign company, the following documents shall be additionally submitted:
 - Ⓐ A statement from a lawyer certifying that the contents of the listing application and attached documents are true
 - Ⓑ A copy of the auditor's confirmation letter (written in a format separately prepared by the Exchange)
 - Ⓒ A written confirmation on paper company in [Annex: Form No. 16]
 - Ⓓ Following documents regarding subsidiaries:
 - ① Documents from 2) to 5) of item 1(a-2); and
 - ② Registration or registration documents on incorporation.
 - (vii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. The "documents prescribed in each subparagraph of Article 530-7(1) of the Commercial Act" refer to the following documents:

- ① A spin-off plan or an agreement for the merger after spin-off ;
- ② A balance sheet concerning the segment to be spun off (in cases of a merger after spin-off, the balance sheet of the other party to merger after spin-off); and

- ③ A document specifying the grounds for the allotment of shares to be issued to the shareholders of the company to be spun off.
2. Financial documents noted in (ii) shall be prepared in accordance with followings.
- ① Those for the latest business year shall be prepared pursuant to the Korean International Financial Reporting Standards.
- ② When applying for listing eligibility review prior to the general shareholders meeting or board of directors meeting for the approval of closing of financial statements of the latest business year, the “latest three business years” shall be construed as the “three business years immediately preceding the latest business year”.
- ③ In cases where a common-stock-listed corporation merges with an unlisted corporation and there is the resolution of the board of directors meeting on a spin-off or a merger after spin-off within three years from the date of merger registration concerned, if the main business of a company incorporated as a result of the spin-off or the merger after spin-off belongs to the businesses of the unlisted corporation at the time of merger (excluding the case where the common-stock-listed corporation has applied for and underwent the eligibility review for backdoor listing at the time of merger), the “auditor’s review report” noted in (ii) shall be construed as the “auditor’s audit report”, and the statements of financial position for the latest three business years of the business areas to be transferred as a result of the spin-off or the merger after spin-off shall be included.
3. For the document noted in (iii), in cases where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.
4. Documents noted in (vi)① shall be prepared in accordance with followings.
- ① Regarding the financial documents of subsidiaries, the standards in Notes 1. And 7. of item 1(a)(ii) shall apply mutatis mutandis.
- ② Regarding the written report on operation of internal accounting management system, opinion statement of attorney-at-law, and confirmation letter of auditor, the standards in Notes 8 through 10 of item 1(a-2) shall be apply mutatis mutandis.

4. Listing after Merger

- (i) An application for listing eligibility review stipulated separately by the Exchange.
- (ii) Financial documents concerning the unlisted corporation that is the counterparty in a merger (hereinafter referred to as the “merger target company”):
- (a) The individual or consolidated financial statements for the latest three business years and the auditor’s audit report thereon; and
- (b) The individual or consolidated semiannual financial statement for the application business year and the auditor’s review report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-year of the application business year ended.
- (iii) A certified copy of registration of incorporation of the merger target company
- (iv) Articles of incorporation of the merger target company
- (v) The register of stockholders and the register of holders of the merger target company as at the end of the latest business year
- (vi) Assessment opinion of an external assessment institution prescribed in Article 176-5(7) of Enforcement Decree of the Act concerning appropriateness of the merger value and grounds of calculation, the adequacy of merger ratio, etc.
- (vii) A written confirmation on whether or not falling under the company that has special interests, specified in each subparagraph of [§68(2)] of the Enforcement Rules

- (viii) A written confirmation on paper company pursuant to [Annex: Form 16]
- (ix) A copy of the debt securities acquisition contract held by shareholders, etc. on the date of application of listing eligibility review for the special purpose acquisition company as of the date of application for listing eligibility review for the listing after merger
- (x) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with followings.

① Those for the latest business year shall be prepared pursuant to the Korean International Financial Reporting Standards.

② When applying for listing eligibility review prior to the general shareholders meeting or board of directors meeting for the approval of closing of financial statements of the latest business year, the “latest three business years” shall be construed as the “three business years immediately preceding the latest business year”.

③ The consolidated financial statement or the consolidated semiannual financial statement and the auditor’s audit or review opinion thereon shall be submitted only for the business year when the company owning a subsidiary has adopted the Korean International Financial Reporting Standards.

④ In cases where three business years have not elapsed yet since incorporation, it shall be the individual or the consolidated financial statements for the business years elapsed and the auditor’s audit report thereon, and the individual and the consolidated semiannual financial statement for the application business year and the auditor’s review report thereon, and, in case where one business year has not elapsed yet since incorporation, it shall be the individual or the consolidated financial statement for the months elapsed and the auditor’s audit report thereon.

⑤ For the merger target company subject to the provisions of [§29(5)] of the Regulation, it shall include the individual and consolidated financial statements and the auditor’s review reports thereon of the business areas that have been transferred due to merger, etc. during the period from the business year which includes the date on which three years elapse retroactively from the application date for listing eligibility review to the date of incorporation. Provided that, when the Exchange deems it unnecessary because they are not related to the review criteria, from among the individual and consolidated financial statements, the statement of cash flows, the statement of changes in shareowners’ equity and the notes thereto may not be submitted.

⑥ In cases where it has conducted the activities to change corporate structure prior to the application for listing eligibility review, and the closing of accounts for the business year has not been finalized, the individual or consolidated financial statement for the quarter or the half-year to which the date of such activities to change corporate structure belongs and the auditor’s audit report thereon shall be submitted.

1-2. When an auditor has been designated for initial listing of stocks pursuant to Article 11(1)12 of the Act on External Audit and Article 14(6)1 of the Enforcement Decree of the same Act, the documents noted in (ii) shall be submitted in the following manner:

① The audit report for the latest business year (in cases where the designation of auditor was made in the application business year, it shall be the auditor’s audit report on the latest individual or consolidated quarterly or semiannual financial statement.) shall be the audit report of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc.

② In cases where the auditor was designated in the application business year, “the individual or consolidated semiannual financial statement for the application business year and the auditor’s review report thereon” shall be construed as “the latest individual or consolidated quarterly financial statement or the individual or consolidated semiannual financial statement for the application business year and the audit report thereon of the auditor who was designated by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting”, and such documents shall be submitted after the concerned quarter or the half-year ended. Provided that, if 45 days have not passed since the end of the latest quarter or half-year, the audit report of the designated auditor for the quarterly or semi-annual financial statements immediately before the latest quarter or half-year may be submitted.

2. For the document noted in (iii), in cases where the Exchange can obtain it directly from the online registry of the Supreme Court of Korea or there is no need to obtain it, the submission of the document may be omitted.
3. The documents under (ix) shall be submitted only in the case of the application for listing eligibility review for the listing after merger pursuant to [§2(1)1(d)(ii)] of the Regulation.

[Annex 2] Documents to be submitted for mandatory holding and submission timing

(Amended on April 22, 2016; December 28, 2018; September 10, 2019; March 17, 2022)

Documents to be Submitted for Mandatory Holding and Submission Timing

(Pertaining to

[§21], [§31], [§34], [§38], [§51], [§52], [§54], [§57], [§59], [§63], [§65], [§70], [§83], [§100], [§107-2] and [§108] of the Enforcement Rules)

1. Each listing applicant shall submit the documents under each of the following items with respect to mandatory holding:
 - (a) A written affirmation on mandatory holding; and
 - (b) Documents certifying mandatory holding, which was issued by KSD with respect to item (a).
2. The document under item (a) of subparagraph 1 shall be submitted on the date of application for listing eligibility review (in cases where the listing eligibility review is not conducted, on the date of initial listing); and the documents under item (b) of the same Subparagraph shall be submitted by the date of initial listing. Provided that, in the case of mandatory holding pursuant to [§51], the documents related to the mandatory holding shall be submitted by the day before the trading suspension is lifted.

Notes:

1. The following matters shall be stated in the ‘written affirmation on mandatory holding’:
 - ① Statement assuring that the relevant stocks, etc. will be mandatorily held until the end of the period of mandatory holding set by the KOSPI Market Listing Regulation and will not be subject to disposal, etc. unless the Exchange deems it necessary. In such cases, “stocks, etc.” shall include the details on the status of stock options (the number of stocks to be acquired through exercises of stock options).
 - ② In cases where there have been any transfer between accounts, new electronic registration, or modification and deletion of new electronic registration, etc. for the stocks, etc. occurred during the mandatory holding period, the statement on the methods of disclosing such fact; and where the mandatorily holding becomes impossible for such reasons as offering the stocks, etc. as collateral, the statement on the methods of handling such matter.
 - ③ In cases where the stocks, etc. owned by him/her have been subject to disposal, etc. during the mandatory holding period, the statement assuring that no objection will be raised to the disclosure made about such fact by the managing underwriter, listing sponsor, etc.
2. Persons subject to mandatory holding shall keep the stocks, etc. owned by him/her under mandatory holding in the KSD.
3. In cases where the Exchange deems necessary, the “written affirmation on mandatory holding” and “documents certifying mandatory holding” may be replaced by documents similar thereto.
4. In cases where the mandatory holding becomes impossible for such reasons as issuance of exchangeable bonds, etc., a written affirmation on mandatory holding and documents certifying mandatory holding for the exchangeable bonds, etc. shall be submitted. In such cases, the matters on the mandatory holding of the stocks that are returned during the remaining period of mandatory holding shall be included in the written affirmation on mandatory holding.
5. The Exchange may adjust the time of submission in cases where the Exchange deems it necessary.

[\[Annex 2-2\] Guidelines for qualitative listing review](#)

[November 4, 2015] (Amended on December 2, 2015; December 16, 2015; February 29, 2016; December 28, 2018; March 20, 2019; June 28, 2019; September 10, 2019, August 25, 2020; March 8, 2021; May 13, 2021; September 26, 2022; December 9, 2022; April 3, 2024; November 29, 2024; July 3, 2025)

Guidelines for Qualitative Listing Review

1. Purpose

The purpose of this Guidelines is to stipulate the detailed matters on the listing review necessary for the application of the qualitative criteria to the listing of stocks on the KOSPI market, pursuant to the provisions of [§4(3)] of the Regulation and [§4-2(1)2] of the Enforcement Rules of the same regulation.

2. Common Criteria

(a) The corporate sustainability shall be recognized in terms of business, financial conditions, environments surrounding business management, etc.

(i) Business Sustainability

㉠ Business stability

① It shall be recognized that the likelihood of a sharp deterioration in business activities [if the amount of sales decreases by thirty (30) percent or more at annual rate compared to the average of the latest three (3) business years or if operating income or income before corporate tax from continuing operations or net income (in the case of a corporation with a subsidiary, it shall be the amount excluding non-controlling interests) decreases fifty (50) percent or more at annual rate compared to the average of the latest three (3) business years, it shall be regarded as a “sharp deterioration in business activities”; the same hereinafter in this sub-item] is not high, considering the amount, trend and contents of sales or profits, and it shall be anticipated that the financial requirements including business performance under [§29(1)4(a)] of the Regulation will be satisfied, based on the business year to which the date of application for listing eligibility review belongs. In such cases, seasonality and temporality of sales and profits, industrial growth cycle, advent of substitute industry, and etc. shall be taken into account.

② In the case of a listing applicant whose market share of the main products or services, or the outstanding amount of orders decreases, it shall be recognized that such situation is not highly likely to result in a “sharp deterioration

on in the business activities”.

③ In the case of a listing applicant whose account receivables and inventories increased by twenty (20) percent or more compared to those at the end of the latest business year, it shall be recognized that the likelihood of a sharp deterioration in the business activities is not high, considering the cause of such increase, the possibilities of collecting the receivables and selling the inventories, turnover ratios, etc.

④ In the case of a listing applicant who entered into a new business, etc., it shall be recognized that the likelihood of a significant deterioration in the financial stability of the applicant is not high, considering the nature of such business, the size of investment and the time period to create profits, etc.

⑤ When applying the requirements on sales and market capitalization pursuant to [§29(1)4(b), (d) or (e)] of the Regulation, in cases where the Exchange deems that it is difficult to apply the requirements in ① through ④ in light of sales or the size of profits, the relevant requirement may not be applied.

⑥ Deleted

⑥ Independence of business activities

① In view of economy of scale, characteristics of the industry, the applicant's position within the industry, etc., it shall be recognized that the applicant is conducting business activities such as procurement, production, sales, etc. independently. Provided that this provision may not apply in cases where the requirements under ② and ③ are met.

② In the case of a listing applicant whose main business activity is dependent on other corporation (including individual businesses, cooperatives, etc.; the same hereinafter), the sustainability of the transaction with the other corporation concerned shall be recognized, in view of the degree of dependence and the time period, terms, profitability and inevitability, etc. of such transaction.

③ In the case of a listing applicant whose transaction with other corporation upon which the applicant's main business activity is dependent sharply reduces or is likely to reduce, the business sustainability shall be recognized by securing substitute clients and other means.

⑦ Customer base

① In the case of a listing applicant seventy (70) percent or more of which sales of

main products or services are concentrated on a specific other corporation and for which it is not viable to secure substitute customers, it shall be recognized that the likelihood of discontinuation of transaction is not high, in view of customer base, cost structure, financial condition, collection period of receivables, etc.

② In the case of a listing applicant whose main customer goes bankrupt or is likely to go bankrupt due to capital impairment, losses, excessive borrowing, etc., it shall be recognized that the likelihood of a sharp deterioration in the business activities of the applicant due to the increase in account receivables or inventories, etc. is not high.

③ When applying [§29(1)4(d) or (e)] of the Regulation, in cases where the Exchange deems that it is difficult to apply the requirements in (1) and (2) in light of sales or the size of profits, the relevant requirement may be no applied.

④ Growth of sales

① When applying [§29(1)4(b)] of the Regulation, the improvement of business performance shall be reasonably recognized in light of the cause, size, trend and market share of losses incurred during the recent business year.

② When applying [§29(1)4(b), (d) or (e)] of the Regulation, the suitability of the business plan shall be recognized. In such cases, the business plan shall be considered reasonable based on long-term goals, internal and external environmental analyses, growth strategies, industry outlook, technology and business competitiveness of the applicant.

③ When applying [§29(1)4(b), (d) or (e)] of the Regulation, the rationality of the utilization plan for funds raised by the public offering shall be recognized. In such cases, the connection between the utilization plan for funds raised by the public offering and the improvement in management performance shall also be recognized.

④ When applying [§29(1)4(b), (d) or (e)] of the Regulation, the possibility of improvement in management performance shall be recognized in light of expected cash flow or expected profit or loss for at least three (3) business years from the business year in which the listing date belongs and the following business year. In such cases, the possibility of achieving the requirements is determined based on estimated cash flows and profits/losses, and specific grounds shall be provided for the estimated cash flows and profits/losses.

(ii) Financial Stability

① Financial structure

① It shall be recognized that the likelihood of default is not high, considering the debt-to-equity ratios, size and maturities of debt, liquidity situation, etc. Provided that, in cases where the debt-to-equity ratio at the end of the latest business year, the latest quarter or half-year amounts to three hundred (300) percent, it shall be estimated that the default is highly likely to occur (Provided that, when the listing applicant proves that the likelihood of default is not high, based on the characteristics of industry, the cash flow, the debt reduction plan, etc., such case shall be excluded).

② In view of the size, trend and etc. of the cash flows from operating activities, it shall be recognized that the likelihood of a sharp decrease in liquidity is not high. Provided that, in the case of falling under [§29(1)4(d) or (e)] of the Regulation, this requirement shall apply, including the cash flows from financing and investing activities.

③ In cases where a listing applicant suffers from capital impairment, but the impairment is less than fifty (50) percent of its capital stock, it shall be recognized that the capital structure of the applicant will be improved by such ways as capital increase (including public offerings), creation of profits, etc., considering the degree and trend of the capital impairment. Provided that, when applying [§29(1)4(b), (d) or (e)] of the Regulation, even if the capital impairment is equal to or more than fifty (50) percent of the listing applicant's capital stock, the possibility of improving the capital structure is determined based on the capital expansion plan separately prepared by the applicant, and specific grounds shall be provided for the capital expansion plan.

⑥ Contingent liabilities

In cases where the contingent liabilities are realized, it shall be recognized that the likelihood of a significant deterioration in the financial stability of the applicant due to such an event is not high.

(iii) Law Suites and Legal Disputes

In the case of a listing applicant against which a lawsuit or legal dispute has been filed with regard to such matters as patent, management right, etc., it shall be recognized that such facts will not have any significant impact on the corporate management. In such cases, the possibility of winning the lawsuit and the likelihood of realization of risks, etc. shall be considered, and when the expected amount of loss from the lawsuit or legal dispute is higher than ten (10) percent of the equity capital, it shall be estimated to “have a significant impact on the corporate management”.

(iv) Rationality of Calculation Method of Market Capitalization

The rationality of listing sponsor's method of calculating estimated market capitalization which is based on the business status, industry outlook, stock market situations and the relative evaluation against a target company for comparison, etc. shall be acknowledged.

(b) The transparency of business management shall be recognized in terms of corporate governance structure, internal control system, disclosure system, transaction with specially related persons and etc.

(i) Corporate Governance

① Independence of business management

① It shall be recognized that the major decisions on corporate management are made independently from the largest shareholder, etc., considering the composition of the board of directors as of the date of application for listing eligibility review. Provided that, in cases where the improvements or supplementations have been made pursuant to the provisions of [§4-3(1)9] of the Enforcement Rules, it shall also be deemed that this requirement is satisfied. The same shall apply in this Item and item (c).

② In the case of a listing applicant of which main management organization for management activities significantly depends on its controlling company, etc., it shall be recognized that there are reasonable reasons for that.

③ In the case of a listing applicant of which the largest shareholder, etc. have damaged or is deemed to be highly likely to damage the economic value, etc. of the applicant for the interests of its own or a third party, it shall be recognized that the applicant has secured the independence of management from the largest shareholder, etc. through such effective prevention systems as the regulation on internal trading, as of the date of application for listing eligibility review.

② Composition of management

① In cases where an executive of the listing applicant concurrently holds office as an executive of other corporations, it shall be recognized that the Articles 397, 397-2 and 398 of the Commercial Act are complied with. In such cases, if the applicant is a financial institution, it shall be recognized that the financial institution-related regulations including Article 34 of the Act, etc. are also complied with.

② When appointing outside directors, it shall be recognized that the requirements on qualifications, etc. of outside directors prescribed in Articles 382 and 542-8 of the Commercial Act are met. In such cases, if the applicant is a financial institution, it shall be recognized that the financial institution-related Acts and regulations including Article 17 of the Financial Companies Corporate Governance Act are also complied with.

㉓ Independence of auditors

① When appointing standing or non-standing auditors, it shall be recognized that the requirements on qualifications, etc. of auditors under Articles 411 and 542-10 of the Commercial Act are met. In such cases, if the applicant is a financial institution, it shall be recognized that the financial institution-related Acts and regulations including Article 19 of the Financial Companies Corporate Governance Act are also complied with.

② In the case of a listing applicant who is obligated to establish an audit committee, it shall be recognized that the requirements on composition, qualifications of member auditors, etc. prescribed in Articles 542-11 and 542-12 of the Commercial Act are met. Provided that, if the applicant voluntarily establishes the audit committee, it shall be governed by the provisions of Article 415-2 of the Commercial Act.

(ii) Internal Control System

㉑ It shall be recognized that the regulations for internal control such as regulation on operation of board of directors and accounting regulation, etc., are well established and implemented to be compatible with the “Standard BOD Regulation for Listed Companies”, “Standard Example of Regulation on Internal Accounting Management of Listing Companies”, “Standard Example of Regulation on Accounting Practice of Listed Companies”, and etc. of the Korea Listed Companies Association. In such cases, the decision shall be made by taking into consideration the listing applicant’s actual situation.

㉒ In cases where the interested parties including the largest shareholder, etc. have had trading relation with the listing applicant, it shall be recognized that the relevant regulations including authorization of the trade with the interested parties, etc. prescribed in Article 542 of the Commercial Act are complied with.

㉓ In the case of a holding company, it shall be recognized that the systems for managing its subsidiaries such as appointing of executives, business performance reporting system, signing of management contracts, etc., are adequately established and operated to exercise practical controlling power over the subsidiaries.

(iii) Disclosure System

① Transparency of accounting management

① It shall be recognized that the applicant has adequate human resources to produce trustworthy accounting information, and establishes and operates accounting regulations and accounting systems, etc. compatible with the “Standard Example of Regulation on Internal Accounting Management of Listing Companies”, “Standard Example of Regulation on Accounting Practice of Listed Companies”, and etc. of the Korea Listed Companies Association. In such cases, the decision shall be made by taking into consideration the listing applicant’s actual situation.

② Based on the result of the accounting inspection of financial reports of the latest three (3) business years, any unusual matters that provide grounds to doubt the trustworthy of accounting practice, or gross misconducts including having been filed of criminal complaints to the prosecution, informed to the investigative agency, imposed of restrictions on securities issuance or measures equivalent to penalty surcharges by the Securities and Futures Commission, and having been informed of suspicion of tax evasion to the prosecution as a result of tax investigations, shall not have been found.

② Capacity to make adequate disclosures

① It shall be recognized that the human resources, etc., necessary to adequately perform the disclosure obligations with which KOSPI-listed corporations are required to comply pursuant to the provisions of related regulations including Articles 119, 159 and 161 of the Commercial Act and [§7] through [§11] of the KOSPI Market Disclosure Regulation, etc., are well organized to the level stipulated in the provisions of [§88] of the KOSPI Market Disclosure Regulation.

② The disclosure-related internal control systems to prevent the act of using material, nonpublic information, etc. shall be put in place to the level of the “Standard Regulation on Management of Disclosure Information of Listed Companies”, etc. of the Korea Listed Companies Association.

(iv) Trading with Specially Related Persons

① Adequacy of trades

In the case of a listing applicant that has trades with specially related persons (including the largest shareholder; hereinafter the same shall apply in this Item), it shall be recognized that the validity of trades concerned and the adequacy of the

conditions of the trades, based on the conditions, etc. of the similar trades between independent trading parties who are not specially related. Provided that, if there are no similar trades between independent parties, the judgment shall be made based on the costs, etc. of the products or services concerned.

⑥ Adequacy of disclosure

The main details of the trades of the specially related persons shall be faithfully stated in the application for listing eligibility review and the audit reports.

(v) ESG management system

The listing applicant shall be establishing or operating an ESG management system, including environmental protection, social responsibility and corporate governance, for the sustainable growth of the company and society, or is planning to do so. In this case, the listing applicant must recognize major ESG-related risks and opportunities prior to the listing date, prepare countermeasures for them, and have a decision-making body, organization, and manpower to establish and operate an ESG management system.

(c) The stability of business management shall be recognized in terms of the relationship among stakeholders, the details and period of changes in share ownership structure, etc.

(i) Stability of business management

It shall be recognized that the stability of business management is not significantly undermined considering the change of the largest shareholder, etc., dispute over the management rights and the status of issuance of equity-related bonds, etc. In such cases, in cases where the largest shareholder, etc. is changed during the period to which the requirement on management performance is applied, it shall be recognized that the past management performance and the internal control system, etc. will be maintained in the future considering the changes in the management performance and the internal control system of the applicant such as continuation of the transaction with the main customers after the change and the transaction with the specially related persons, etc. Provided that, if the period is not long enough to confirm the effect of the change of the largest shareholder, etc., such matters as whether the largest shareholder, etc. has the experience of operating a similar enterprise and the performance thereof, and future operation plans may be taken into consideration. In addition, the same shall apply to the cases where a change in the largest shareholder, etc. is expected after listing (limited to the case where the largest shareholder is specified after the change, such as the conversion of equity-related bonds).

(ii) Adequacy of changes in stakes

In cases where there has occurred a transfer or an acquisition of stake of the largest shareholder, etc. or a capital increase with consideration during the period from one (1) year before the date of application for listing eligibility review to the listing date, the adequacy of the change in stake shall be recognized in terms of the prices, etc. In cases where there has occurred any change in the stake of the largest shareholder, etc. after the application date, it shall be recognized that the management right of the largest shareholder, etc. is maintained and the following requirements shall be met:

① It shall be judged based on the trade prices established at the K-OTC market pursuant to the “K-OTC Market Regulations” of the Korea Financial Investment Association, the appraisal prices of the independent specialized assessing agencies, etc.

② The stocks acquired after the application date shall be mandatorily held pursuant to [§27] of the Regulation, and shall be subject to restrictions on the participation in the public offerings (sales) for listing, except for the case of exercise of rights or fulfillment of obligations set forth in the Acts and subordinate statutes.

(d) In terms of legal nature and operating mechanisms, it shall be recognized as a joint stock corporation incorporated pursuant to the Commercial Act.

It shall be recognized that the listing applicant has the legal nature and the operating mechanisms as a joint stock corporation, to the level prescribed in the Commercial Act.

(e) In addition, it shall be recognized not to undermine the realization of public interests and the protection of investors.

(i) It shall be recognized that the realization of public interests and the protection of investors are not to be undermined because the business sector of the listing applicant is not in violation of good morals and other social orders and is believed to secure sufficient liquidity for trading after being listed. In such cases, it shall be estimated to be “in violation of good morals and other social orders”, when the main businesses of the applicant are sex trafficking, prostitution, or illegal gambling businesses, etc.

(ii) [Deleted on December 9, 2022]

(iii) In the case where a listing applicant is a corporation established through the spin-off (including transfer of business, contribution in kind, etc.; the same hereinafter) pursuant to Article 530-12 of the Commercial Act from a corporation listed on the KOSPI or KOSDAQ market and applies for a preliminary listing review within 5 years

from its incorporation, it shall be recognized that the parent corporation (referring to the parent company under Article 342-2(1) of the Commercial Act) of the listing applicant has made its best efforts to protect shareholders, such as collection of shareholders' opinions and communication with shareholders, etc. Provided that, this requirement apply if the parent company is changed or the core business sector of the listing applicant is changed after the spin-off.

(iv) In the case where a re-listing applicant applies for re-listing after spin-off, it shall be recognized that its efforts to protect shareholders of the newly-established corporation or surviving corporation, such as gathering shareholder opinions, communication with shareholders, dividend policy, retirement of stocks, etc. have been faithfully implemented and the continuity of the corporation shall be recognized for the surviving corporation after the spin-off.

3. Special Provisions

(a) Foreign Corporations

(i) It shall be confirmed by the opinion letters of law firms, etc. that the applicant for listing has no record of significant violations of the laws and regulations, etc. of the place of incorporation and the listing on the Exchange is not in conflict with the laws and regulations, etc. of the place of incorporation.

(ii) In case where the applicant for listing is an offshore holding company (referring to a corporation, as a holding company of which main business is to control the business activities of a foreign company which is a subsidiary, that was incorporated pursuant to the laws and regulations of a place of which jurisdiction is different from that of the place of incorporation of the foreign company concerned; the same shall apply hereinafter), it shall be confirmed by the opinion letters of law firms, etc. that there have not been any significant violations of the laws and regulations governing investments and foreign currencies, etc. with regard to the trades, etc. with the foreign company concerned which performs the actual businesses.

(iii) In case where the applicant for listing is an offshore holding company that was established for the purpose of raising funds necessary for the businesses that are performed by a foreign company which is a subsidiary, it shall be confirmed by the opinion letters of law firms, etc. that the fund raised through the public offering is faithfully managed by being immediately invested in the foreign company concerned.

(iv) It shall be recognized that the applicant for listing is equipped with the manpower, etc. who is capable of making the disclosure in Korean language to a certain level that is fully understandable to domestic investors, through such ways as appointing the disclosure officer and the disclosure staff pursuant to[§13(3)4] of the Regulation

and [§26] of the KOSPI Market Disclosure Regulation.

(b) Real Estate Investment Funds

(i) It shall be recognized that a stable payout of dividends will be possible, considering the fact that income has been generated or is anticipated to be generated from the businesses of investment in real estate and management of invested assets.

(ii) In case where three (3) years have not yet elapsed since obtaining the authorization for business from the Minister of Land, Infrastructure and Transport, among the common criteria, those under subparagraph 2(a)(i)Ⓐ①] shall not apply.

(iii) Among the common criteria, those under subparagraph 2(a)(i)Ⓐ⑤] shall not apply.

(iv) In applying the criteria under subparagraph 2(a)(i)Ⓑ] of the common criteria, the business activities performed by the asset management companies under Article 22-3 of the Real Estate Investment Company Act shall be recognized as an independent business activities.

(v) Among the common criteria, those under subparagraph 2(b)(ii)Ⓒ] shall not apply.

(c) Special Cases applied to Holding Companies (pertaining to [§31(2)] of the Regulation)

(i) Among the common criteria, those under [2(a)(i)] shall not apply thereto.

[\[Annex 2-3\] Guidelines for listing review of ETF securities](#)

[December 16, 2015] (Amended on June 27, 2016; April 28, 2017; May 2, 2017; October 27, 2017; July 17, 2018; January 25, 2019; May 27, 2022; June 30, 2022; August 5, 2022; June 30, 2022; August 4, 2022; August 30, 2022; October 17, 2023; January 31, 2024; April 28, 2026)

Guidelines for Listing Review of ETF Securities

1. Purpose

The purpose of this Guidelines is to stipulate the detailed matters on the listing review necessary for the application of the review criteria to the listing of securities of Exchange Traded Funds (ETFs), pursuant to the provisions of [§4-2(2)1] of the Enforcement Rules.

2. Guidelines for application of review criteria

(a) The product structure, etc. shall be lawful in accordance with relevant laws and regulations

(i) Compliance with relevant laws and regulations

① The trust contract, articles of incorporation, authorized participant contract, agreement for liquidity provision, agreement on use of index, etc. of the ETFs shall be recognized to have legal requisites to the level set by the Act and the Regulations on Financial Investment Business

② The primary purpose shall be to manage linked to the return of an index that is publicly disclosed in the securities market by such means as diversified investment.

(ii) Restrictions on issuance and trading

It shall be recognized that, in order to guarantee cashability for investors, there are no specific restrictions pertaining to the free redemption in the primary market of ETF securities or to the trading in the Exchange market.

(b) In light of the price of underlying assets, the attributes of the index and the efficient management of underlying assets, etc., the ETFs shall be deemed to be sustainable.

(i) Underlying index (For active ETFs, it refers to the “benchmark index” ; the same hereinafter)

① Objectivity of index calculation standards

② It shall be recognized that the index was rationally designed in terms of such facts

that the investment strategy of underlying index is continuously executable to the ETF securities and the calculation standards and the name of index conform to the investment strategy.

② It shall be recognized that the standards and data used for index calculation such as selection and change of constituents are quantitative and widely accepted in domestic and overseas securities markets and the financial investment business. Provided that, if the selection and change of constituents are conducted inevitably using non-quantitative (qualitative) standards, based on the consultation of outside institutions, it shall be recognized that the use of such standards was inevitable and it does not cause any problems for the protection of investors.

⑥ Transparency of index calculation standards

The calculation standards shall clearly be included in the index prospectus so that the investors can fully understand the details of the underlying index for their informed investment, and the index prospectus shall be published on the websites of the index provider and the issuer so as to make it publicly available.

⑦ Appropriateness of index calculation and disclosure

① It shall be recognized that the underlying index is calculated and announced stably.

② It shall be recognized that the applicant for initial listing has an appropriate management system in relation to the calculation and public announcement of the underlying index

③ The underlying index shall not be an index of the index calculation entity that has five or more significant errors in its calculation or public announcement of the underlying index for ETFs or ETNs during the recent one (1) year (in the case where one year has not passed from the date of the first public announcement of the underlying index, it shall be from the date of the first public announcement to the date before the application for listing review).

⑧ Establishment of internal control standards

In the case of an underlying index provider (including an applicant for initial listing or its interested party), , it shall be recognized that there are internal control standards (business organization, separation of reporting and decision-making systems, prohibition of information exchange, etc.) to prevent a conflict of interest between the work of calculating the underlying index and other business activities.

⑨ Change of calculation standards of underlying indices

Concerning the exceptional change of index calculation standards noted in [§116(1)2(a)(ii)] of the Regulation, following requirements shall be satisfied with

respect to maintaining the major assets for investment and the continuity of investment strategies. Provided that, when the Exchange deems that the change of index calculation standards was inevitable and it does not cause any problems for the protection of investors, requirements in ② below may not apply.

① There shall be no change in the major assets for investment prescribed in [§4-69(2)] of the Regulations on Financial Investment Business (referring to the case where the type of collective investment scheme is changed);

② The basic strategies of the index such as the methods of selecting and weighting constituents shall not be changed and following detailed criteria shall be satisfied:

Detailed criteria
• The primary selection method and strategy shall be maintained⁽¹⁾ • There shall be no changes in the classification of underlying assets under the product classification system or in the types of investment strategies such as sector changes⁽²⁾ • There shall be no change in the primary method for weighting⁽³⁾

Notes:

1. For instance, changes in assessment cycle of momentum, rebalancing cycle, exclusion criteria, etc. are allowed whereas the change in foreign exchange strategy of index is not allowed.

2. For example, it is not allowed to change 3-year bonds into short-term bonds, high-dividends strategy into low-volatility strategy, momentum strategy into intrinsic value strategy, large-cap stocks into mid-cap stocks, or to change division/merger of sectors.

3. For instance, the change of the float-adjusted market-cap- weighted into simple market-cap-weighted, the change of weights among subordinate factors (sales, dividends, cash flow, etc.) in the intrinsic value-weighted method are allowed, but the change of market-cap-weighted method into equally-weighted method is not allowed.

⑥ Soundness of constituent assets of the underlying indices

① In light of the characteristics of the constituent assets of the underlying index, it shall not fall under any cases where the formation of reliable price is difficult due to abnormal fluctuation in prices, or where it is significantly limited for the ordinary investors to find the price information of the assets.

② It shall be recognized that the assets constituting the underlying index do not violate good morals and other social order and thus do not undermine the realization of public interests and protection of investors.

(ii) Methods of management

① Rationality of asset composition

① In the case of intending to manage a part of assets included separately from the underlying assets constituting the index, it shall be recognized that the identity of the ETFs concerned is maintained and the tracking errors and disparate ratios are not excessive compared to the similar ETF securities domestic and overseas.

② Among the ETFs that aim to manage linked to the indices composed of the stocks traded in foreign exchange markets, those which are deemed not to cause any problems for the protection of investors and meet all of the following requirements may set the methods of asset composition differently.

❶ There shall be no indices calculated using the prices of stock index futures of which underlying asset is the index that the ETF tracks.

❷ The correlation coefficient between the daily change rate of the index which the ETFs track and the daily change rate of the prices of the stock index futures of which underlying asset is the index concerned for the last five years shall be 97/100 or higher. In such cases, provisions in the main sentence of [§95(1)] of the Enforcement Rules shall apply with respect to the calculation method of correlation coefficient.

❸ The average of the numbers (in the case of negative numbers, it shall be in absolute value) obtained by dividing the difference between the price of stock index futures of which underlying asset is the index that the ETF tracks and the index concerned by the index concerned shall be less than 3/100. In such cases, the average value shall be for the latest one year from the application date for listing review.

③ In cases where the securities of ETFs, pursuant to Article 80(1)6(b) of the Enforcement Decree of the Act, invest in other ETF securities up to 100/100 of the total assets of the ETF, the ETF securities for investment shall satisfy the review criteria for initial listing (excluding the criteria concerning liquidity providing member) specified in [§113] of the Regulation (in case of foreign ETF securities, it shall refer to [§119] of the Regulation).

④ In the case of a leveraged ETF of which underlying index is a cash index, the assessed risks contingent to trading derivatives prescribed in Article 81(1)1(e) of the Act shall be equal to or less than 100/100 of the value calculated by subtracting total liabilities from total assets of the ETF. Provided that, if the criteria prescribed in the proviso to Article 80(6) of the Enforcement Decree of the Act is satisfied, it may exceed 100/100 on the business day immediately preceding the payment date of the payments prescribed in Subparagraph 3 of Article 247 of the Enforcement Decree of the Act.

⑤ Liquidity of incorporated assets

It shall be recognized that the liquidity of the assets for operation is sufficient enough

not to cause too much impact on the market when they are bought or sold.

③ Stability of incorporated assets

① In the case of raw materials, etc. that need to be kept in custody, it shall be recognized that the management plans are duly prepared and implemented to secure the stability of transaction in terms of quality of the assets, storage conditions, assessment institutions, etc.

② In cases where the transaction of borrowing and lending is allowed in the standardized contract of ETFs, it shall be recognized that the management plans are properly prepared concerning the size and portion of borrowing and lending with counterparty, period of borrowing and lending, counterparty risk, etc.

(c) With regards to the operation of ETFs, the transparency of the internal control system and disclosure system, etc. of the applicant for initial listing shall be recognized.

(i) Operational ability

① There shall not be any disciplinary measures received severer than partial suspension of business during the latest one year and there shall not be any disciplinary measures received severer than issuance of warning to institution during the latest six months.

② The score of evaluation conducted in accordance with the followings shall be 20 or higher.

Indicators	Details	Score
Experience in operating an index fund with similar underlying assets (up to 15 points)	Currently operating for more than one year	15
	Currently operating for less than one year	10
	No experience	5
Evaluation result of LP for ETF applied for listing review (up to 35 points)	The average score of the latest one year is 3.5 or more	35
	The average score of the latest one year is 3.0 or more	15
	The average score of the latest one year is less than 3.0	5
Deduction	PDF error in the latest one year (Deduction limit for each incident is 10 points)	-1
	Reporting on confirmed suspensions of calculation and public announcement of underlying index or failures to make report on significant errors in the latest one year (Deduction limit for each incident is 10 points)	-2

	When adding an LP that received an F grade in the latest one year (only if the most recently notified LP evaluation result is the F grade before entering the LP agreement)	-3
	Failure to make report on major matters such as a change in the underlying index calculation or a change in the internal control standards (limited to the cases where the applicant of initial listing or his/her interested party is involved in the calculation of the underlying index) during the latest one year	-3

(References)

1. Reference date for evaluation: End of the month immediately preceding the month which includes the date of application for listing review.
2. The LP evaluation result is determined by calculating the average score after assigning 4 points for A, 3 points for B, 2 points for C and 0 points for F.
3. In cases where the replacement of LP is exempted in accordance with [§31-10(2)] of the Enforcement Rules of the KOSPI Market Business Regulation, there shall be no deduction.

㉔ It shall be recognized that the accounting process and systems necessary for the creation and verification of asset composition (PDF) and net asset value (NAV) are prepared.

㉕ There shall be human resources and organization exclusively dedicated to reporting (disclosure) business and ETF operating manual in place.

(ii) Conflicts of interest

㉖ In the case of intending to do a transaction of borrowing and lending of the assets held by the ETFs with an interested party prescribed in Article 84 of the Enforcement Decree of the Act, it shall be recognized that a check system including procedures for price comparison is properly prepared and operated.

㉗ When liquidity provision is conducted by a single provider, such liquidity provider shall not fall under any interested parties.

㉘ In cases where an interested party of the listing applicant is the transactional counterparty of a synthetic ETF, it shall be recognized that the business is performed independently and there is no likelihood of conflicts of interest.

㉙ In the case of synthetic ETFs, it shall be recognized that the asset pricing institution is independent from the listing applicant and transactional counterparty for the valuation of OTC derivatives and the fair calculation of risk exposures.

(iii) Liquidity providers

㉚ A liquidity provider shall possess professional human resources and computer system for liquidity provision.

⑥ The hedging tools and methods of a liquidity provider shall be deemed not to exceed the quotation spread ratios and disparate ratios stipulated in [§20-4] of the KOSPI Market Business Regulation.

(iv) Synthetic ETFs trading agreement for OTC derivatives products

① In cases where a trading agreement on OTC derivatives products of the listing applicant is prepared in accordance with the recommendations of the KOFIA, it shall be recognized that such agreement complies with the standards stipulated in the agreement set by ISDA noted in [§92(2)2(c)].

② In order to deal with the cases where it is difficult to maintain the trading agreement on OTC derivatives products with a transactional counterparty, it shall be recognized that it has contingency plans in place, such as substitution of transactional counterparty, cash clearing, etc.

③ In cases where collateral was provided, it shall be recognized that the collateral is duly assessed in terms of sovereign ratings, credit rating of issuer, maturity, degree of dispersion, correlation, etc. and is composed of assets with ample liquidity.

④ In order to maintain the soundness of collateral, it shall be strictly prohibited from lending the collateral by the trading agreement on OTC derivatives products.

⑤ Regardless of the legal nature of collateral rights, it shall be clearly stated in the trading agreement on OTC derivatives products that the collateral rights can fully be exercised without permission from the transactional counterparty in case where there are any causes occurred to terminate the transaction, such as bankruptcy of the counterparty.

⑥ It shall be recognized that registration and exercise of collateral rights and mark-to-market of collateral assets are efficiently conducted by an electronic collateral management system that is applied with the standards of Credit Support Annex of ISDA.

(d) In addition, it shall be recognized that the sound development of the KOSPI market will not be hampered.

(i) [Deleted on July 23, 2020]Listing principles of active ETF securities

① [Deleted on July 23, 2020]

② [Deleted on July 23, 2020]

③ [Deleted on July 23, 2020]

(ii) Listing principles of leveraged and inverse (hereinafter referred to as the “derivative-type”) ETF securities

① The multiples of derivative-type ETF securities (including negative integer multiples, and multipliers that are not integer multiples shall be rounded to two decimal places) shall not exceed 2 times.

② In cases falling under single-stock ETF securities under [§113(2)4(c)(v)] of the Regulations, long-side ETF securities or products recognized as similar thereto may not be listed.

③ When intending to list derivative-type ETF securities, only the products with long-side ETF securities or ETNs shall be eligible for listing. Provided that this provision shall not apply to the case where it is listed simultaneously with a long-side product or where the relevant derivative-type ETF securities falls under a single-stock ETF security under [§113(2)4(c)(v)] of the Regulations.

④ The listing applicant intending to list leveraged ETF securities shall have one year or more of experience in managing ETFs and leverage-related funds, and short-side (inversely) leveraged products shall be listed after or at the same time with the listing of long-side leveraged products.

(iii) Principles for protection of new products

① In cases where a listing applicant applies for protection of a product and the Exchange recognizes that the ETF security is a unique product, the Exchange may designate the relevant product as a new product.

② [Deleted]

③ [Deleted]

④ A person (excluding a listing applicant for a new product) who intends to newly list an ETF security similar to an ETF security [including an ETN security designated as a new product pursuant to subparagraph 2(d)(ii) of Annex 2-5] that is already designated as a new product may file an application for an initial listing of the ETF security after six (6) months from the date of initial listing of the new product.

⑤ Other matters necessary for protecting new products shall be separately determined by the Exchange.

(iv) Naming principles

① The name of issue of an ETF security shall have considerable similarity with the

underlying index (Provided that this provision shall not apply to active ETF securities) and shall include the brand name, subjects of investment, investment strategy (including magnifications for derivative-types) and product characteristics (synthetic, currency hedged, etc.).

⑥ For active ETF securities, and the derivative-type ETF securities and single-stock ETF securities which have high investment risks, , only the terms “active”, “leveraged”, “inverse”, and “single-stock” shall be used to enhance product distinctiveness and investor protection.

⑦ In the case of an ETF security that tracks the same index with the ETF securities or ETNs that are already listed, in order to prevent investors’ confusion, an identical naming system shall be maintained.

⑧ In the case where an expiration date is stipulated in the collective investment agreement, details of the expiration date (year and month) shall be indicated in the name of the relevant ETF security.

[Annex 2-4] Guidelines for listing review of ELWs

[December 16, 2015] (Amended on June 27, 2016; April 6, 2018; April 29, 2019)

Guidelines for Listing Review of ELWs

1. Purpose

The purpose of this Guidelines is to stipulate the detailed matters on the listing review necessary for the application of the review criteria to the listing of Equity Linked Warrants (ELWs), pursuant to the provisions of [§4-2(2)2] of the Enforcement Rules.

2. Guidelines for application of review criteria

(a) In light of criteria on underlying assets and issuance, etc., the product suitability shall be recognized.

(i) Suitability of criteria on underlying assets

① In cases where the underlying asset is a constituent stock of KOSPI 200, the underlying asset shall meet all of the following requirements and at the same time be ranked top 50 in terms of average daily trading value:

① Pursuant to [§140(2)3(a)] of the Regulation and [§114(1)] of the Enforcement Rules the Regulation, it shall be ranked top 100 in terms of market capitalization among the constituent stocks of KOSPI 200 and its average daily trading value shall be KRW 10 billion or more. In such cases, the market capitalization shall be calculated based on the last day of the latest quarter, and the average daily trading value shall be calculated based on the latest quarter.

② The audit opinion expressed for the latest business year shall be “unqualified”, and, in cases where it is not a constituent stock of KOSPI 100 among the constituent stocks of KOSPI 200, there shall be operating income generated for at least two business years among the latest three business years. Provided that, in the case of falling under the re-listing or listing change subsequent to a spin-off or merger, etc., or the initial listing, etc. subsequent to the conversion into a holding company, it may apply based on the audit opinion, financial condition, and etc. of the former corporation or subsidiary.

③ It shall not be undergoing or scheduled to undergo trading suspension (ex

cluding the case of proceeding with the procedure for the listing change before delivery of stocks under [Annex 6] in accordance with the decision on stock-split, etc.) or delisting process, etc. due to such reasons as spin-off, merger and etc.

⑥ In cases where the underlying asset is a constituent stock of KOSDAQ 150, the underlying asset shall meet all of the following requirements and at the same time be ranked top 5 in terms of market capitalization as of the end of the nearest month:

① Pursuant to [§140(2)3(b)] of the Regulation and [§114(2)] of the Enforcement Rules the Regulation, it shall be ranked top 50 in terms of the average daily trading value of the nearest month among the constituent stocks of KOSDAQ 150.

② The audit opinion expressed for the latest business year shall be “unqualified”, it shall not have a record of net loss for the latest two consecutive business years. Provided that, in the case of falling under the re-listing or listing change subsequent to a spin-off or merger, etc., or the initial listing, etc. subsequent to the conversion into a holding company, it may apply based on the audit opinion, financial condition, and etc. of the former corporation or subsidiary.

③ It shall not be undergoing or scheduled to undergo trading suspension (excluding the case of proceeding with the procedure for the listing change before delivery of stocks under [Annex 6] in accordance with the decision on stock-split, etc.), delisting process, etc. due to such reasons as spin-off, merger and etc.

⑦ In cases where the underlying asset is a stock that falls under any of following cases, it shall be recognized that there is no concern about the increased volatility in a short-term period.

① Case where the stock has been designated or noticed to be designated as an investment alert issue or investment risk issue pursuant to [§5-3] of the Market Oversight Regulation; and

② Case where the price or trading volume of the stock changes or is expected to change abruptly in connection with rumors or news, etc.

(ii) Suitability of criteria on issuance

① Among the ELWs the listing of which was applied for, those with same un

derlying assets shall meet all of the following requirements:

- ① When the exercise prices are the same, the issue value of those with longer maturities shall be higher than that of those with shorter maturities; and
 - ② When maturities are the same, the lower the exercise prices, the higher the issue value for the call ELWs and the higher the exercise prices, the higher the issue value for put ELWs.
- ⑥ In addition, intervals of exercise prices, conversion ratios, parity, applicable volatility, terms to maturity, the last trading day, method of settlement or exercise, appraisal prices at maturity, etc. shall satisfy following standardization requirements concerning issuance of ELWs.

① Standardization requirements concerning issuance of index ELWs

Items	KOSPI 200 ELWs	KOSDAQ 150 ELWs
Base issuing prices	Closing price of a certain date within two weeks prior to the application date for eligibility review	
Intervals of exercise prices	2.5 points	10.0 points
Conversion ratios	100	10
Parity	90% or higher	
Applicable volatility	Within 2 times the historical volatility ^(*)	
Terms to maturity	From three months up to one year	
The last trading day	The last trading day of stock index options each month in the derivatives market	
Reported spreads	15%	
Settlement/Exercise methods	Cash settlement / European style	
Appraisal prices at maturity	Closing index value of the last trading day	

**For the historical volatilities, 60-day volatilities provided through the information terminals of KOSCOM shall apply.*

② Standardization requirements concerning issuance of equity ELWs

Items	Equity ELWs
Base issuing prices	Closing price of the last trading day of the week preceding the last trading day of equity options in the derivatives market immediately preceding the application date for eligibility review
Intervals of exercise prices	Eleven intervals at 2% point of parity based on the base issuing price each month (90%, 92%, 94%, 96%, 98%, 100%, 102%, 104%, 106%, 108%, 110% or higher)
Conversion ratios	One for each base issuing price band ⁽¹⁾
Parity	90% or higher

Applicable volatility	Within 2 times the historical volatility ⁽²⁾
Terms to maturity	From three months up to one year
The last trading day	The last trading day of equity options each month in the derivatives market
Reported spreads	15%
Settlement/Exercise methods	Cash settlement / European style
Appraisal prices at maturity	Average of closing values for the last 5 trading days

Notes:

1. Conversion ratios by base issuing price band

Base price bands (KRW)	Conversion ratios	Base price bands (KRW)	Conversion ratios
≤ 10,000	0.1	>100,000 and ≤200,000	0.005
>10,000 and ≤20,000	0.05	>200,000 and ≤500,000	0.002
>20,000 and ≤50,000	0.02	>500,000	0.001
>50,000 and ≤100,000	0.01		

2. For the historical volatilities, 60-day volatilities provided through the information terminals of KOSCOM shall apply.

㉟ It shall be recognized that the listing plan of ELWs is adequately prepared in view of the table below.

T	T+1	T+2	(...)	D-3	D-2	D-1	D
Application for eligibility review	Eligibility review	Notification of result of eligibility review	...	Application for listing	Listing review	Notification of result of listing review	Listing

㉞ In cases where the listed corporation of a stock that is the underlying asset makes a disclosure of the matters falling under the guidelines for changing of issuing conditions of a ELW under [Annex 9], or where the stock that is the underlying asset is designated as the administrative issue pursuant to this Regulation or “KOSDAQ Market Listing Regulation” and accordingly it is necessary for market management and investors protection, the issuance of the ELWs underlying the concerned stock may be restricted.

(b) With regards to the business conduct such as issuance and listing of ELWs, liquidity provision and reporting etc., the eligibility of the listing applicant shall be recognized.

(i) Eligibility of issuance and listing

- ① In cases where the listing applicant was imposed of restrictions on issuance of securities pursuant to Article 138 of the Enforcement Decree of the Act, the period for such disciplinary measure shall have passed.
- ② In cases where an incident that may influence the financial conditions of the listing applicant has occurred, it shall not be expected that the listing applicant will become to fail to meet the listing requirements due to such incident.

(ii) Qualifications of liquidity providers

When a liquidity provider intends to newly enter into an agreement for liquidity provision, the prohibition period for each cause specified below shall have passed.

- ① In cases where the liquidity provider has received the lowest grades for two consecutive times pursuant to [§20-2(2)3(c)] of the KOSPI Market Business Regulation, as a result of the assessment of liquidity providers carried out pursuant to [§20-6] of the KOSPI Market Business Regulation: One month from the date when the assessment result was notified.
- ② In cases where the liquidity provider has received the lowest grades for three consecutive times pursuant to [§20-2(2)3(d)] of the KOSPI Market Business Regulation as a result of the assessment of liquidity providers carried out pursuant to [§20-6] of the KOSPI Market Business Regulation, or where the liquidity provider has been subject to disciplinary measures that are heavier than criminal sanctions, business suspension or trading suspension by violating relevant laws and regulations on securities market and Exchange's business related regulations in the course of performing the duty of liquidity provision: One year from the date when the assessment result was notified.
- ③ In cases where the liquidity provider has submitted a comport letter pursuant to [§31-3(3)3] of the Enforcement Rules of the KOSPI Market Business Regulation: Three years from the date when the comport letter was submitted.

(iii) Ability to provide liquidity

- ① A liquidity provider shall notify the person responsible for the tasks of liquidity provision stipulated in [§31-3(1)] of the Enforcement Rules of the KOSPI Market Business Regulation and go through the computer system tests with the Exchange.
- ② A liquidity provider shall have a detailed guideline established for the calculation

of implied volatility and theoretical price pursuant to [§31-6(6)] of the Enforcement Rules of the KOSPI Market Business Regulation.

㉟ When an incident that may influence the financial conditions of a liquidity provider has occurred, it shall not be expected that the liquidity provider will become to fail to meet the eligibility requirements stipulated in [§20-2(2)] of the KOSPI Market Business Regulation because of the incident.

(iv) Appropriateness of protection of conflicts of interest

In cases of managing financial investment instruments other than ELWs concurrently in a same department of a liquidity provider, it shall be recognized that there are internal control guidelines established and operated for the control of conflicts of interest prescribed in Article 44 of the Act and for the cut-off of exchanges of information prescribed in Article 45 of the Act.

(v) Eligibility of affaires concerning report (disclosure)

With regard to the reporting or disclosure tasks before and after the listing of ELWs, a listing applicant shall designate a person responsible for and another in charge of reporting pursuant to [§145(4)] of the Regulation.

[Annex 2-5] Guidelines for Listing Review of ETNs

[December 16, 2015] (Amended on June 27, 2016; February 8, 2017; April 28, 2017; January 25, 2019; July 23, 2020; May 27, 2022; August 5, 2022; October 20, 2022; October 17, 2023; December 7, 2023; January 31, 2024; April 28, 2026)

Guidelines for Listing Review of ETNs

1. Purpose

The purpose of this Guidelines is to stipulate the detailed matters on the listing review necessary for the application of the review criteria to the listing of Exchange Traded Notes (ETNs), pursuant to the provisions of [§4-2(2)3] of the Enforcement Rules.

2. Guidelines for application of review criteria

(a) In light of criteria on underlying assets and issuance, etc., the product suitability shall be recognized.

(i) Suitability of products

Following requirements on standardization concerning ETN products shall be satisfied. In such cases, the product standardization requirements shall apply based on the date immediately preceding the application date for listing eligibility review but the requirements shall remain met until the initial listing is approved.

① Standardization requirements concerning underlying indices

Items	Standardization requirements
Underlying indices (limited to newly calculated indices)	• Distribution requirements - In case of an equity-debt mixed index, the respective index distribution requirement shall be met. - Weights: When it is highly likely to exceed 30% (50% in the case of three or more constituents with foreign securities only), the CAP ratio of 25% or less (45% or less in case of three or more constituents with foreign securities only) shall apply and there shall be an ongoing modification system for adjustment of weights within an index. * When the likelihood of exceeding 30% (50% in case of three or more constituents with foreign securities only) is significantly low based on weighing methods, weights in the past, etc., such case shall be excluded. - Number of constituents: If an index is composed of equity securities related derivative products only or mixed with equity securities, the number of constituents shall be at least five issues (three issues in case of an index composed of foreign equity

	securities only) based on the number of equity securities composing the underlying assets of the derivative products. - Issuer: For the constituents with a same issuer, the number of constituents shall be one and the weight shall apply on an aggregate basis. - Liquidity: In case where the underlying index is composed of equity securities, the average daily trading value for three months shall be KRW 100 million or more. Provided that, in cases where all of the underlying indices include less than 10 issues of equity securities, the average daily trading value for three months shall be KRW one billion or more. In case of debt securities, the outstanding amount shall be KRW 50 billion or more. • Single stock requirements - When ETN securities are linked to the price fluctuations of a security issue, the distribution requirement shall not apply, and Article 4-52, Paragraph 1 of the Financial Investment Business Regulations shall apply mutatis mutandis with respect to the underlying assets and operation methods.
Exposure to Forex risks (limited to ETNs exposed to Forex risks)	Real-time foreign exchange rates shall be factored in the underlying index and daily indicative values. In such cases, the information on such foreign exchange rates shall be duly obtained from Seoul Money Brokerage Services, etc.
Provision of investment information	• Information provided: Underlying index (real-time(*), closing prices) and real-time indicative values * Applicable only when the trading hours overlap with the Exchange. • Provision methods: Distribution to securities companies through information vendors. Provided that, when it is difficult to redistribute the information on underlying index, the information may be provided through ETN website of the listing applicant.

⑥ Standardization requirements concerning issuance

① Common requirements

Items	Standardization requirements
Redemption before maturity	• Unit: Integer multiples of the minimum quantity for redemption before maturity which is set at KRW 1 billion or more. * There shall be principles on exclusion from application of the units for redemption before maturity for the case where it is actually impossible to sell off in the Exchange market due to such reasons as trading suspension, natural disaster, etc. * A daily limit on application for redemption before maturity may be set. • Application cycle: Maximum five business days • Fees: Maximum 5%
Redemption value (before/at maturity)	• Redemption before maturity: The closing indicative value calculated on the exchange trading day following the date of

	application for redemption before maturity (In cases where the underlying assets are traded at multiple exchanges, trading days of all of the exchanges concerned after the application date for redemption before maturity shall be applicable. The same applied to the redemption at maturity) •Redemption at maturity: The indicative value on the last trading day *When the prices of multiple securities of underlying assets sharply fluctuate on the valuation date, falling under the causes of market disturbance in accordance with the ISDA standards, it may be changed.
Early liquidation	An applicant for initial listing shall describe the cause for early liquidation in the prospectus, and the cause for early liquidation shall fall under any of the following cases. Provided that, the cause for early liquidation may not apply in cases where the Exchange deems that there is no problem with investor protection: -In cases where the intraday indicative value per security at the end of the regular trading session (the intraday indicative value at the end of trading session) falls 80% or more compared to the previous trading session; -The intraday indicative value at the end of trading session is KRW 1,000 or less; or -Other cases where it is deemed necessary for investor protection. -Redemption Value: Indicative value (based on closing price) of the day after the occurrence date (T+1 day). Provided that it can be set differently in cases where differently set according to the prospectus or in occurrence of market disturbance. -Liquidation value payment date : within 5 business days from redemption value decision date.
Settlement of redemption amount	•Cash settlement.
Principal value per ETN	•KRW 10,000 or more. However, KRW 10,000 for loss-cut ETNs
Reporting spreads of liquidity providing quotations	•For domestic-type, within 1% (domestic bond types: 0.5%) and for overseas-types, within 2% •For domestic-overseas mixed types: within the median value taking into account the average weight within the index for the latest one year.
Provision of investment information	Information provided: Current price, costs, issuing date, maturity date, liquidity provider, taxation type •Provision method: via ETN website of listing applicant

② Additional requirements for loss-cut ETNs

Items	Standardization requirements
Underlying indices	•The number of underlying indices shall be one (1)
Minimum redemption value	•KRW 7,000 or more (based on the price that does

	not include the fees set in the securities registration statement)
Revenue structure	•There shall be no conditions under which new options take effect and the revenue structure changes as the price of underlying asset reaches a certain level •If there are conditions under which the revenue is paid in proportion to the price of underlying asset until the price of underlying asset reaches a certain level, but the predetermined rate of return is paid when the price of underlying asset exceeds that level, the redemption shall be made immediately upon fulfillment of such conditions.
Connection rate with underlying index	•Within $\pm 200\%$
Indicative value	•The average of values calculated by multiple bond rating agencies shall be used
Early redemption	•The decision on early redemption shall be made based on the closing value of index
Provision of investment information	•Information provided: maximum/minimum redemption value, with/without early redemption conditions, early redemption cycle, product description (including images on revenue structure) •Provision method: via ETN website of listing applicant

© Standardization requirements concerning profit distribution

Items	Standardization requirements
Profit distribution	•For the method of factoring in indicative values - Record date for distribution: for domestic and overseas equity-types, the last business day of January, April, July and October and for others, interest incurring period (bond-types) or the last business day of December. - Report of profit distribution: by no later than three business days from the base date for profit distribution. - Payment period: by the tenth business day from the business day following the base date for profit distribution. •For the method of not factoring in indicative values (applicable to domestic equity-type ETNs only) - Base date for profit distribution: Base date for dividends payment per month of settlement of accounts of a listed corporation. *The base date for distribution shall be stated in investment prospectus (ex. December 30) - Report of profit distribution: by no later than three business days from the last business days of January, April, July and October. - Profit distribution period: by the tenth business day from the business day following the last business days of January, April, July and October. •Reinvestment (using total return index): no profit distribution (the base date for profit distribution is not set) •When it is difficult to apply the methods described above in the light of the

	characteristics of the constituents of the underlying index, such case shall be deemed exceptional.
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(ii) Issuance ceiling for individual listing applicant

When the amount derived by subtracting the total issuance value of ETNs issued by the listing applicant from the issuance ceiling stipulated in [§149-3(2)5] of the Regulation is less than KRW 100 billion, the initial listing shall be restricted. In such cases, the expected increment in the issuance ceiling resulting from the redemption at maturity of the ETNs already issued for the next six months and the amount of equity capital expected to increase due to capital increase, etc. (to be judged based on corporate disclosure) shall be included in the equity capital for the calculation of issuance ceilings.

(b) In light of the price of underlying assets and the attributes of the index, etc., the ETNs shall be deemed to be sustainable.

(i) Underlying index

(a) Objectivity of index calculation methodology

① It shall be recognized that the index was rationally designed in terms of such facts that the investment strategy of underlying index is continuously executable until the maturities of ETNs and the calculation methodology and the name of index conform to the investment strategy.

② It shall be recognized that the methodology and data used for index calculation such as selection and change of constituents are quantitative and widely accepted in domestic and overseas securities markets and the financial investment industry. Provided that, if the selection and change of constituents are conducted inevitably using non-quantitative (qualitative) standards, it shall be recognized that the use of such standards was inevitable and it does not cause any problems for the protection of investors.

(b) Transparency of index calculation methodology

The calculation methodology shall clearly be included in the index prospectus so that the investors can fully understand the details of the underlying index for their informed investment, and the index prospectus shall be published on the websites of the index provider and the issuer so as to make it publicly available.

(c) Appropriateness of index calculation and disclosure

- ① It shall be recognized that the underlying index is calculated and announced stably.
- ② It shall be recognized that the applicant for initial listing has an appropriate management system in relation to the calculation and public announcement of the underlying index.
- ③ The underlying index shall not be an index of the index calculation entity that has five or more significant error in its calculation or public announcement of the underlying index for ETFs or ETNs during the recent one (1) year (in the case where one (1) year has not passed from the date of the first public announcement of the underlying index, it shall be from the date of the first public announcement to the date before the application for listing review).

④ Establishment of internal control standards

In the case of an underlying index provider (including an applicant for initial listing or its affiliated company), it shall be recognized that there are internal control standards (business organization, separation of reporting and decision-making system, prohibition of information exchange, etc.) to prevent a conflict of interest between the work of calculating the underlying index and other business activities.

⑤ Change of calculation methodology of underlying indices

Concerning the exceptional change of index calculation methodology noted in [§149-7(2)2(b)(ii)] of the Regulation, following requirements shall be satisfied with respect to maintaining the major index constituents and the continuity of investment strategies. Provided that, when the Exchange deems that the change of index calculation methodology was inevitable and it does not cause any problems for the protection of investors, requirements in ② may not apply.

- ① There shall be no changes in the major index constituents including the changes in classifications of financial investment products or securities, etc.
- ② The basic strategies of the index such as the methods of selecting and weighting constituents shall not be changed and following detailed criteria shall be satisfied:

Detailed criteria
• The primary selection method and strategy shall be maintained⁽¹⁾ • There shall be no changes in the classification of underlying assets under the ETN classification system set by the Exchange or in the types of investment strategies such as sector changes⁽²⁾ • There shall be no change in the primary method for weighting⁽³⁾

Notes:

1. For instance, changes in assessment cycle of momentum strategy, index rebalancing cycle, exclusion criteria, etc. are allowed whereas the change in currency hedged/unhedged strategy of index is not allowed.

2. For example, it is not allowed to change 3-year bonds into short-term bonds, high-dividends strategy into low-volatility strategy, momentum strategy into intrinsic value strategy, large-cap stocks into mid-cap stocks, or to change division/merger of sectors.

3. For instance, the change of the float-adjusted market-cap-weighted into simple market-cap-weighted, the change of weights among subordinate factors (sales, dividends, cash flow, etc.) in the intrinsic value-weighted method are allowed, but the change of market-cap-weighted method into equally-weighted method is not allowed.

(ii) Soundness of underlying assets

Ⓐ In light of the characteristics of the constituent assets of the underlying index, it shall not fall under any cases where the formation of reliable price is difficult due to abnormal fluctuation in prices, or where it is significantly limited for the ordinary investors to find price information on the assets.

Ⓑ It shall be recognized that the assets constituting the underlying index do not violate good morals and other social order and thus do not undermine realization of public interests and protection of investors.

c. With regards to the business conduct such as issuance and listing of ETNs, liquidity provision and report thereof, etc., the eligibility of the listing applicant shall be recognized.

(i) Eligibility of issuance and listing

Ⓐ In cases where the listing applicant was imposed of restrictions on issuance of securities pursuant to Article 138 of the Enforcement Decree of the Act, the period for such disciplinary measure shall have ended.

Ⓑ In cases where an event that may influence the financial conditions of the listing applicant has occurred, it shall not be expected that the listing applicant will fail to meet the listing requirements due to such event.

(ii) Eligibility of businesses of issuance and liquidity provision

Ⓐ Internal management system

There shall be a management system in place which is necessary to carry out ETN-related businesses – having two or more of professionals exclusively in charge of product development, liquidity provision, support for issuance, reporting (disclosure), etc. and preparing business manual for each area of businesses and so forth.

⑥ Operational guidelines for hedge trading

There shall be operational guidelines that properly contain the followings with respect to hedge trading for the issuance of ETNs and liquidity provision.

- ① An account exclusively for liquidity provision of ETNs, which is separate from ordinary accounts or liquidity provision accounts for other products, shall be used.
- ② The assets for hedging of ETNs shall be managed separately from other assets.
- ③ The mismatch between the constituent assets of indices of ETNs and the hedging assets shall be minimized.
- ④ The use of issuance price of ETNs shall be limited to the operation of hedging assets.
- ⑤ In the case of redemption before or at maturity, unfair trading such as price manipulation, front running, etc. shall be prevented.
- ⑥ When conducting hedge trading, the impact on the market where the assets concerned are traded shall be minimized.
- ⑦ A restriction shall be placed on inclusion of assets with non-investment grade and assets or securities of an insolvent affiliated company, and on provision of hedging assets as collateral.
- ⑧ When using a third party liquidity provider or hedge management company, it shall be confirmed that such company has an operational guideline for hedge trading which contains the details specified in ① through ⑦ or equivalent thereto.

⑦ Ability to provide liquidity

① It shall be recognized that a liquidity provider meets following requirements for the provision of sufficient and stable liquidity, and the precise report on the details of such liquidity provisions.

- A system shall be in place so as to submit liquidity providing quotations without omitting any indications thereon through liquidity provision accounts.
- A liquidity provider shall designate a person in charge of and another responsible for liquidity provision duties such as reporting of purchase or disposition of securities through liquidity provisions, separate from the persons responsible for

and in charge of reporting duties stipulated in [§149-9(3)] of the Regulation and report such fact to the Exchange.

② It shall be recognized that a plan for liquidity provision is appropriately established, which includes effective tools and methods, etc. to reduce quotation spread ratios and disparate ratios.

③ A liquidity provider shall not come or be anticipated to fail to meet the eligibility requirements stipulated in [§20-2(2)] of the KOSPI Market Business Regulation because of an incident that may influence the financial conditions of the liquidity provider.

④ Appropriateness of protection of conflicts of interest

In cases of managing financial investment instruments other than ETNs concurrently in a same department of a liquidity provider, it shall be recognized that there are internal control guidelines established and operated for the control of conflicts of interest prescribed in Article 44 of the Act and for the cut-off of exchanges of information prescribed in Article 45 of the Act.

(iii) Eligibility of reporting (disclosure)

① Report (disclosure) of investment risks

It shall be recognized that, based on the reporting (disclosure) plans submitted by the listing applicant, the investment risks of the ETN concerned will be reported or disclosed classified into price fluctuation risks, issuer risks, listing related risks, risks related to redemption before maturity and others, so that investors can easily understand the risks associated with their investment.

② Infrastructure for report (disclosure)

In order to help investors have an easy access to product information, details of underlying index, values of underlying index (real-time and closing), investment prospectus and other information on the ETNs issued by a listing applicant, the listing applicant shall have a system for information provision established in the form of independent menu in its Internet website or a separate website for ETNs.

Compliance with reporting obligations

The confirmed violations of reporting obligations by the applicants for initial listing shall be assessed in accordance with the following table, and the total penalty shall not exceed ten points over the past one year.

Violation of reporting obligations	Penalty
Reporting on suspensions of calculation and public announcement of underlying index or failure to make report on significant errors (Penalty for each incident)	2
Failure to make report on significant matters such as a change in the underlying index calculation or a change in the internal control standards (limited to the cases where the applicant of initial listing or his/her affiliated company is involved in the calculation of the underlying index) (Penalty for each incident)	3

(d) In addition, it shall be deemed that the sound development of the KOSPI market will not be hampered.

(i) Listing principle of leveraged and inverse (hereinafter referred to as the “derivative-type”) ETN securities

- ① The multiples of derivative-type ETN securities (including negative multiples, and multipliers that are not integer multiples shall be rounded to two decimal places) shall be not exceed 2 times. Provided that, in the case where the underlying asset falls under [§149-3(2)2(b)(i)], it shall not exceed 3 times.
- ② In cases falling under single-stock ETN securities, long-side ETN securities or products recognized as similar thereto may not be listed.
- ③ When intending to list derivative-type ETNs, only the non-leveraged ETNs and the products with ETFs are eligible for listing. Provided that this provision shall not apply to the case where it is listed simultaneously with a long-side product or where the relevant derivative-type ETN securities falls under a single-stock ETN securities.
- ④ Inversely leveraged products shall be listed after or at the same time with the listing of non-leveraged products.
- ⑤ In the case where the Exchange deems appropriate considering the characteristics

of underlying asset indices, it may not apply ⑥ and ⑦.

(ii) Principles for protection of new products

① In cases where a listing applicant applies for protection of a product and the Exchange recognizes that the ETN security is a unique product, the Exchange may designate the relevant product as a new product.

② [Deleted]

③ [Deleted]

④ A person (excluding a listing applicant for a new product) who intends to newly list an ETN security similar to an ETN security [including an ETN security designated as a new product pursuant to subparagraph 2(d)(iii) of Annex 2-3] that is already designated as a new product may file an application for an initial listing of the ETN security after six (6) months from the date of initial listing of the new product.

⑤ Other matters necessary for protecting new products shall be separately determined by the Exchange.

(iii) Naming principles

① The name of issue of an ETN shall have considerable similarity with the underlying index and shall include the brand name, subjects of investment, investment strategy (including magnifications for derivative-types) and product characteristics (synthetic, currency hedged, etc.).

② For the derivative-type ETN securities and single-stock ETN securities which have high investment risks, only the terms “leveraged”, “inverse”, and “single-stock” shall be used to enhance product distinctiveness and investor protection.

③ In the case of an ETN that tracks the same index with the ETNs or ETF securities that are already listed, in order to prevent investors’ confusion, an identical naming system shall be maintained.

[Annex 3] Application documents for initial listing

(Amended on June 25, 2014; September 2, 2014; November 4, 2015; December 28, 2018; June 28, 2019; September 10, 2019; May 13, 2021; December 9, 2022; March 11, 2024; April 30, 2026)

Application Documents for Initial Listing

(Pertaining to [§22], [§52], [§57], [§63], [§73], [§80], [§83], [§87], [§91], [§91-2], [§97], [§103], [§107-2], [§108], [§113], [§123-3] and [§124] of the Enforcement Rules)

1. Common stocks, different classes of stocks, foreign different classes of stocks, stocks of SPACs

Documents to be submitted	Submission timing
(i) An application for initial listing stipulated separately by the Exchange	When applying for initial listing
(ii) Certificate of issuance and registration	When applying for initial listing
(iii) Documents verifying payment of the stock subscription	Without delay after completion of payments
(iv) A certified copy of the registration of incorporation	Within 7 days after the registration of changes
(v) A copy of the post-issuance report	Without delay after completion of public offering or sale
(vi) Status of stock distribution under [Annex: Form 5]	By the day preceding the listing date
(vii) A copy of the transfer agency service contract entered into with a transfer agent	When applying for initial listing
(viii) For the stocks of a SPAC, the following additional documents: ① A written confirmation issued by the depository institution, etc. on the money deposited or entrusted; and ② A written confirmation on the total amount of issuance of the stocks, etc. owned by the financial investment business entities prescribed in Article 6(4)14(c) of the Enforcement Decree of the Act.	Without delay after completion of payments
(ix) Other documents that the Exchange deems necessary for the listing review.	Without delay

Notes:

1. [Deleted on September 10, 2019]
2. With respect to the documents noted in (iii), those relating to the stocks or DRs issued abroad by a corporation that is applied with the requirement on simultaneous public offerings in Korea and abroad stipulated in [§29(1)3(a)(iv)] of the Regulation shall be submitted by the day preceding the listing date.

3. When the stocks are not publicly offered or sold after the application for listing eligibility review was made, the documents noted in (iii) and (v) may be omitted.

4. With respect to (iv), in cases where a listing applicant applies for the registration of a change with the court due to an issuance of stocks, a copy of the application to prove such fact shall be submitted without delay.

5. In cases where an agreement on over-allotment option was entered into with the managing underwriter, the document noted in (v) may be submitted when it was confirmed that the new stocks will not be issued because the deadline for exercise of the over-allotment option has arrived or when applying for the listing of new stocks issued by the exercise of the over-allotment option.

6. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vi) may be substituted by the allotment specification of the new stocks.

7. For the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of the documents noted in (vii) may be omitted.

8. When the Exchange deems it necessary, the time of submission may be adjusted.

2. Foreign stocks, etc.

Documents to be submitted	Submission timing
(i) An application for initial listing stipulated separately by the Exchange	When applying for initial listing
(ii) Certificate of issuance and registration	Without delay after completion of issuance and registration
(iii) Documents verifying the payment of stock subscription	Without delay after completion of payments
(iv) Documents on registry or registration of issuance of new stocks	Within 10 days after the registry or registration of changes
(v) A copy of the post-issuance report	Without delay after completion of offering or
(vi) Status of stock distribution under [Annex: Form 5]	By the day preceding

	the listing date
(vii) A copy of the transfer agency service contract entered into with a transfer agent	When applying for initial listing
(viii) Other documents that the Exchange deems necessary for the listing review	Without delay

Notes:

1. With respect to the documents noted in (iii), those relating to the stocks or DRs issued abroad by a corporation that is applied with the requirement on simultaneous public offerings in Korea and abroad stipulated in [§29(1)3a(iv)] of the Regulation shall be submitted by the day preceding the listing date.
2. When the stocks are not publicly offered or sold after the application for listing eligibility review was made, the documents noted in (iii) and (v) may be omitted.
3. For the documents noted in (iv), in cases where the submission of such documents is prohibited by the laws and regulations of home country, they may be replaced with a written statement confirming such fact.
4. In cases where an agreement on over-allotment option was entered into with the managing underwriter, the document noted in (v) may be submitted when it was confirmed that the new stocks will not be issued because the deadline for exercise of the over-allotment option has arrived or when applying for the listing of new stocks issued by the exercise of the over-allotment option.
5. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vi) may be substituted by the allotment specification of the new stocks.
6. When the Exchange deems it necessary, the time of submission may be adjusted.

3. Debt securities

- | |
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| <ul style="list-style-type: none"> (i) An application for initial listing under [Annex: Form 27] (ii) Certificate of issuance and registration (iii) In case of an indirect issuing, copies of the trust certificate, the underwriting contract or sales contract, and the entrustment contract for public offering (iv) Financial statements for the latest three business years (v) Semiannual financial statement for the application business year. Provided that this provision applies only to the case where 45 or more days have elapsed since the half-year of the application business year ended. (vi) Auditor's audit report on the financial statements for the latest business year (vii) Documents verifying payment of price of debt securities (viii) Other documents that the Exchange deems necessary for the listing review. |
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Notes:

1. For government debt securities, monetary stabilization bonds, and municipal government debt securities and agency debt securities distributed throughout a month, submission of the documents noted in (ii) may be omitted.
2. With respect to the documents noted in (iv), in cases where the application is made prior to the general meeting of shareholders or the board of directors meeting for the approval of closing of financial statements of the latest business year, the "latest three business years" shall be construed as the "three business years immediately preceding the latest business year".
3. In cases where three business years have not elapsed yet since incorporation, the documents noted in (iv) shall be the financial statements for the business years elapsed and the semiannual financial statement for the application business year, and, in cases where one business year has not elapsed yet since incorporation, they shall be the financial statement for the months elapsed.

4. The corporations subject to the provisions of [§29(5)] of the Regulation shall submit the financial statements of the business areas that have been transferred due to the merger, etc. during the period from the business year to which the date that is three years retroactively from the application date belongs to the date of incorporation.
5. In cases where one business year has not elapsed yet since incorporation, the document noted in (vi) shall be the auditor's audit report on the financial statement for the months elapsed.
6. When falling under the following cases, submission of the specified documents may be omitted:
 - ① For the government debt securities, municipal government debt securities [excluding the municipal government debt securities referred to in Article 13 of the Enforcement Decree of the Local Finance Act (hereinafter referred to as "publicly offered municipal government bonds")] and the monetary stabilization securities, the documents noted in (iii) through (vii);
 - ② For the publicly offered municipal government bonds, agency debt securities and the debt securities the registration statement of which is exempted from submission by not falling under any of the subparagraphs of Article 120(1) of the Enforcement Decree of the Act, the documents noted in (iv) through (vii). Provided that, it shall be deemed that the documents noted in (iii) have been submitted, if the application documents for prior examination (the processing status shall be marked as 'prior examination completed') have been submitted by the electronic registry; and
 - ③ For the secured corporate bonds and the unsecured corporate bonds issued by a corporation who submits annual reports pursuant to Article 159 of the Act, the documents noted in (iv) through (vi).
7. When the applicant for initial listing has submitted an effective registration statement (in case where a universal shelf registration statement was submitted to and accepted by the FSC pursuant to Article 119(2) of the Act, it shall be the "supplements to universal shelf registration statement") or a copy of the application for registration referred to in Article 6(5) of the Act on Issuance of Covered Bonds (including the amended application for registration referred to in Article 6(6) of the same Act), the documents noted in (iii) through (vi) shall be deemed to have been submitted.
8. The applicant for initial listing of debt securities or the managing underwriter acting as an agent for the application for initial listing shall submit the application documents to the Exchange by the day before the scheduled listing date of the relevant debt securities. Provided that if the Exchange deems it necessary, the submission period may be adjusted.

4. Foreign debt securities

- (i) An application for initial listing under [Annex: Form 28]
- (ii) Articles of incorporation or a copy of the document equivalent thereto
- (iii) In case of an indirect issuing, copies of the trust certificate, the underwriting contract or sales contract, and the entrustment contract for public offering
- (iv) A copy of the appointment contract of listing agent stipulated in [§14] of the Regulation
- (v) Financial statements for the latest three business years and the auditor's audit report thereon, or the documents similar thereto
- (vi) A copy of the credit assessment report
- (vii) Other documents that the Exchange deems necessary for the listing review.

Notes:

1. The document noted in (vi) shall refer to the credit assessment report specified in [§2-11(2)1 (e) or 2(c)] of Regulations on Issuance, Public Disclosure, etc. of Securities.
2. When the applicant for initial listing has submitted an effective registration statement, the documents noted in (ii) through (vi) shall be deemed to have been submitted.

5. Stocks of investment companies

- (i) An application for initial listing stipulated separately by the Exchange
- (ii) Articles of incorporation
- (iii) Certificate of issuance and registration
- (iv) Documents verifying the payment of stock subscription
- (v) Documents certifying the registration with the Financial Services Commission
- (vi) Investment prospectus
- (vii) A certified copy of the registration of incorporation
- (viii) Status of stock distribution under[Annex: Form 5] or register of stockholders
- (ix) Documents confirming the transfer agent of stockholders
- (x) Other documents that the Exchange deems necessary for the listing review.

Note: [Deleted on September 10, 2019]

6. Beneficiary certificates

- (i) An application for initial listing stipulated separately by the Exchange
- (ii) Certificate of issuance and registration
- (iii) For the beneficiary certificates issued by a collective investment business entity, the following documents:
 - Ⓐ Documents certifying the registration with the Financial Services Commission;
 - Ⓑ A copy of the trust agreement;
 - Ⓒ Documents describing the plan for management of investment trust property; and
 - Ⓓ Documents confirming the facts on conclusion, amendment, etc. of the trust deed.
- (iv) [Deleted on November 4, 2015]
- (v) For the beneficiary certificates issued by the Korea Housing Finance Corporation, the following documents pursuant to the Korea Housing Finance Corporation Act:
 - Ⓐ A copy of the mortgage-backed bonds securitization plan to be submitted to the FSC;
 - Ⓑ A copy of the contract on entrustment of bonds management; and
 - Ⓒ The trust agreement of residential mortgage-backed securities.
- (vi) For the beneficiary certificates issued by a trust business entity, the following documents pursuant to the Asset-Backed Securitization Act:
 - Ⓐ A copy of the asset-backed securitization plan to be submitted to the FSC;
 - Ⓑ A copy of the contract on entrustment of asset management; and
 - Ⓒ The trust agreement of asset-backed securities
- (vii) For the beneficiary certificates issued by the Korea Credit Guarantee Fund, the following documents pursuant to the Korea Credit Guarantee Fund Act:
 - Ⓐ A copy of the asset-backed securitization plan to be submitted to the FSC;
 - Ⓑ The trust agreement of asset-backed securities
- (viii) Other documents that the Exchange deems necessary for the listing review

7. Securities of ETFs and securities of foreign ETFs

- (i) An application for initial listing stipulated separately by the Exchange
- (ii) Documents certifying the registration with the Financial Services Commission
- (iii) Investment prospectus
- (iv) A copy of the agreement on use of the index for tracking
- (v) A copy of the agreement entered into with an authorized participant (including an agreement for liquidity provision)
- (vi) A copy of the trading agreement on OTC derivatives products, if any.
- (vii) Certificate of issuance and registration
- (viii) [Deleted on September 10, 2019]
- (ix) Documents verifying payment of the stock subscription or the payments, etc. referred to in Article 248(3) of the Law
- (x) For ETF beneficiary certificates (including foreign ETF beneficiary certificates), the following documents:
 - Ⓐ A copy of the trust deed; and
 - Ⓑ Documents describing the plan for management of investment trust property
- (xi) For securities of ETFs (including securities of foreign ETFs), the following documents:
 - Ⓐ Articles of incorporation;
 - Ⓑ Documents confirming the transfer agent of stocks
 - Ⓒ A certified copy of the registration of incorporation
- (xii) A copy of the business entrustment contract entered into with a general administration company
- (xiii) Other documents that the Exchange deems necessary for the listing review.

Note: The documents noted in (vii) and (ix) may be submitted by the day preceding the listing date.

8. Stocks of real estate investment trusts

Documents to be submitted	Submission timing
(i) An application for initial listing stipulated separately by the Exchange	When applying for initial listing
(ii) Financial documents of initial listing applicants: a. Individual and consolidated financial statements for the latest 3 business years and auditor's audit reports thereon; b. Individual and consolidated semi-annual financial statement for the business year of application and auditor's audit report thereon. Provided that the documents shall be submitted only when 45 or more days have elapsed since the half-year of the application business year ended	When applying for initial listing

(iii) Certificate of issuance and registration	With out del ay aft er co mp leti on of iss ua nce an d reg istr ati on
(iv) Documents verifying the payment of stock subscription	With out dela y after com pleti on of pay men ts
(v) A certified copy of the registration of incorporation	With in 7 days after the regi strat ion of chan ges
(vi) A copy of the post-issuance report	With out dela y after com pleti

	on of publ ic offe ring or sale
(vii) Status of stock distribution under [Annex: Form 5]	By the day prec edin g the listi ng date
(viii) A copy of the transfer agency service contract	Whe n ap ply ing for init ial list ing
(ix) Any documents verifying acquisition of the real estate intended for business which is described in the application for listing eligibility review	Whe n ap ply ing for init ial list ing
(x) An investor's guide under Article 17 of the Real Estate Investment Company Act (limited to the one delivered within 2 years before the date of listing application)	With out del ay aft er co mp leti on of pa

	ym ent
(xi) The statement of financial position as of the date of application for initial listing and the auditor's review report thereon	Whe n ap ply ing for init ial list ing
(xii) Articles of incorporation	Whe n ap ply ing for init ial list ing
(xiii) Any documents certifying the authorization by or registration with the competent departments	Whe n ap ply ing for init ial list ing
(xiv) A copy of authorization for incorporation of asset management company and a copy of business entrustment contract signed with an asset management company	Whe n ap ply ing for init ial list ing
(xv) A copy of the asset custody contract signed with an asset custody institution under the Real Estate Investment Company Act and the certificate of asset custody	Whe n ap ply ing for init ial

	list ing
(xvi) A copy of the business entrustment contract signed with an institution entrusted with general clerical services, a seal management company, etc. under the Real Estate Investment Company Act	When ap ply ing for init ial list ing
(xvii) When the investment reports for the latest business year and quarter were prepared pursuant to the Real Estate Investment Company Act, such investment reports	When ap ply ing for init ial list ing
(xviii) A written business plan describing the types and methods of businesses of a real estate investment trust (for a real estate investment fund conducting a real estate development project, it shall be the written business plan under [§26(3)] of the Real Estate Investment Company) and the appraisal report thereon prepared by external experts such as real estate investment advisory companies, appraisers, etc.	When ap ply ing for init ial list ing
(xix) Any document stating the matters concerning the internal control standards and operation thereof under the Real Estate Investment Company Act	When ap ply ing for init ial list ing
(xx) A plan to acquire the investable real estate [referring to those stated in the application for listing eligibility review and (13) and (14)]	When ap ply ing for init ial

	list ing
(xxi) An appraisal report on the business-related risks and the internal control of the relevant real estate investment fund prepared by the listing sponsor or managing underwriter	When ap ply ing for init ial list ing
(xxii) Other documents that the Exchange deems necessary for the listing review.	With out dela y

Notes:

1. Financial documents noted in (ii) shall be prepared in accordance with the followings:

① Those for the latest business year shall be prepared in accordance with the Korean International Financial Reporting Standards.

② In cases where three business years have not elapsed yet since incorporation, it shall be the individual and consolidated financial statements for the business years elapsed and the auditor's audit report thereon and the individual semi-annual financial statement for the application business year and the auditor's review report thereon, and, in cases where one business year has not elapsed yet since incorporation, it shall be the individual and consolidated financial statements for the months elapsed and the auditor's audit report thereon.

③ When applying for initial listing prior to the general shareholders meeting or the board of directors meeting for the approval of closing of financial statements of the latest business year, the "latest 3 business years" shall be construed as the "3 business years immediately preceding the latest business year".

④ With regard to the preparation of the financial statements for the latest three business years and the auditor's audit or review report thereon, the requirements in Note 1② of subparagraph h 1(a) of [Annex 1] shall apply mutatis mutandis.

2. [Deleted on September 10, 2019]

3. When the stocks are not publicly offered or sold after the application for listing eligibility review was made, the documents noted in (iv) and (vi) may be omitted.

4. With respect to (v), in cases where a listing applicant applies for the registration of a change with the court due to an issuance of stocks, a copy of the application to prove such fact shall be submitted without delay.

5. In cases where an agreement on over-allotment option was entered into with the managing underwriter, the document noted in (vi) may be submitted when it was confirmed that the new stocks will not be issued because the deadline for exercise of the over-allotment option has arrived or when applying for the listing of new stocks issued by the exercise of the over-allotment option.

6. When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vii) may be substituted by the allotment specification of the new stocks.

7. When the Exchange deems it necessary, the time of submission may be adjusted.

8. If there is no change made to the documents submitted at the time of applying for listing eligibility review, submission of such documents may be bypassed.

9. For a non-development entrusted management real estate investment fund, the documents in (i) through (vi) shall be submitted when applying for initial listing.

9. Stocks of ship investment companies

- (i) An application for initial listing stipulated separately by the Exchange
- (ii) Articles of incorporation
- (iii) Certificate of issuance and registration
- (iv) Documents issued by an asset holding company to prove holding of assets
- (v) A copy of the post-issuance report
- (vi) A copy of the authorization of ship investment business
- (vii) A copy of the charter party agreement
- (viii) A copy of the business trust agreement entered into with a ship management company
- (ix) Investment prospectus prescribed in the Ship Investment Company Act
- (x) A certified copy of the registration of incorporation
- (xi) Status of stock distribution pursuant to [Annex: Form 5] or register of stockholders
- (xii) Documents confirming the transfer agent of stockholders
- (xiii) Other documents that the Exchange deems necessary for the listing review.

Note: [Deleted on September 10, 2019]

10. Equity-linked Warrants (ELWs)

- (i) An application for initial listing stipulated separately by the Exchange
- (ii) Certificate of issuance and registration
- (iii) [Deleted on September 10, 2019]
- (iv) Documents verifying payment of ELWs
- (v) In cases where an ELW is pledged, the following documents:
 - Ⓐ Documents verifying the agreement on establishing the right of pledge;
 - Ⓑ A balance certificate of the pledged ELW; and
 - Ⓒ Documents verifying the approval of the head office of a liquidity providing member for contracts of derivatives
- (vi) Other documents that the Exchange deems necessary for the listing review.

11. Exchange-traded Notes (ETNs)

- (i) An application for initial listing separately set by the Exchange
- (ii) Certificate of issuance and registration
- (iii) [Deleted on September 10, 2019]
- (iv) Documents verifying payment of ETNs
- (v) In cases where an ETN is pledged, the following documents:
 - Ⓐ Documents verifying the agreement on establishing the right of pledge;
 - Ⓑ A balance certificate of the pledged ETN; and
 - Ⓒ Documents verifying the approval of the head office of a liquidity providing member for contracts of derivatives
- (vi) Other documents that the Exchange deems necessary for the listing review.

12. Subscription warrants

- (i) An application for initial listing under [Annex: Form 29]
- (ii) [Deleted on September 10, 2019]
- (iii) A certified copy of the registration of incorporation
- (iv) Other documents that the Exchange deems necessary for the listing review.

13. Subscription right certificates

- | |
|---|
| <ul style="list-style-type: none">(i) An application for initial listing under [Annex: Form 30](ii) Articles of incorporation(iii) A copy of minutes of the board of directors where the resolution on issuance of new stocks was made(iv) The form of a subscription right certificate(v) [Deleted on September 10, 2019](vi) Other documents that the Exchange deems necessary for listing review. |
|---|

[Annex 3-2] Application documents for listing after merger

Application Documents for Listing after Merger

(Pertaining to [§70-2] of the Enforcement Rules)

1. An application for listing after merger stipulated separately by the Exchange
2. Certificate of issuance and registration
3. A certified copy of the registration of incorporation
4. A copy of the transfer agency service contract entered into with a transfer agent
5. Status of stock distribution under [Annex: Form No. 5]
6. Schedule for issuance of new stocks
7. Minutes of general meetings of shareholders
8. Other documents that the Exchange deems necessary for the listing review.

[\[Annex 4\] Application documents for re-listing](#)

(Amended on December 28, 2018; June 28, 2019; September 10, 2019; May 13, 2021; July 22, 2021; July 26, 2023)

Application Documents for Re-listing

(Pertaining to [§35] and [§75] of the Enforcement Rules)

1. General re-listing

Documents to be submitted	Submission timing
(i) An application for re-listing separately set by the Exchange	When applying for re-listing
(ii) Certificate of issuance and registration	Without delay after completion of issuance and registration
(iii) Documents verifying payment of the stock subscription	Without delay after completion of payments
(iv) A certified copy of the registration of incorporation	Within 7 days after the registration of changes
(v) A copy of the post-issuance report	Without delay after completion of public offering or sale
(vi) Status of stock distribution under [Annex: Form 5]	By the day preceding the re-listing date
(vii) A copy of the transfer agency service contract entered into with a transfer agent	When applying for re-listing

(viii) Other documents that the Exchange deems necessary for the listing review.	Without delay
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Notes:

1. *[Deleted on September 10, 2019]*
2. *When the stocks are not publicly offered or sold after the application for listing eligibility review was made, the documents noted in (iii) and (v) may be omitted.*
3. *With respect to (iv), in cases where a listing applicant applies for the registration of a change with the court due to an issuance of stocks, a copy of the application to prove such fact shall be submitted without delay.*
4. *When the stocks are publicly offered or sold after the application for listing eligibility review was made, the documents noted in (vi) may be substituted by the allotment specification of the new stocks.*
5. *For the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of the documents noted in (vii) may be omitted.*
6. *When the Exchange deems it necessary, the time of submission may be adjusted.*

2. Re-listing after spin-off

Documents to be submitted	Submission timing
(i) An application for re-listing separately set by the Exchange	When applying for re-listing
(ii) <i>[Deleted on December 28, 2018]</i>	
(iii) <i>[Deleted on June 28, 2019]</i>	
(iv) Certificate of issuance and registration	Without delay after completion of issuance and registration
(v) A certified copy of the registration of incorporation	When applying for re-listing
(vi) Articles of incorporation	When applying for re-listing
(vii) The register of shareholders and the register of holders as at the end of the latest business year	When applying for re-listing
(viii) A copy of the transfer agency service contract	When applying for re-listing
(ix) In the case of a holding company controlling foreign companies, a written report on the operation of the internal accounting management system in [Annex: Form No. 17]	When applying for re-listing
(x) Other documents that the Exchange deems necessary for the listing review.	Without delay

Notes:

1. *[Deleted on December 28, 2018]*

2. *[Deleted on June 28, 2019].*
3. *[Deleted on September 10, 2019]*
4. *In cases where the register of shareholders was closed after the end of the latest business year, the documents noted in (vii) shall be based at the time of closing.*
5. *For the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of the documents noted in (viii) may be omitted.*
6. *In cases where a common-stock-listed corporation merges with an unlisted corporation and there is the resolution of the board of directors meeting on a spin-off or a merger after spin-off within three years from the date of merger registration concerned, if the main business of the company incorporated as a result of the spin-off or the merger after spin-off belongs to the businesses of the unlisted corporation at the time of merger (excluding the case where the common-stock-listed corporation has applied for and underwent the eligibility review for backdoor listing at the time of merger), the "register of shareholders" and the "register of holders" in (vii) shall be construed as the "status of stock distribution". In such cases, when the stocks are publicly offered or sold after the application for listing eligibility review was made, the status of stock distribution may be substituted by the allotment specification of the new stocks.*
7. *The documents in (ix) shall include the matters under each subparagraphs of [§71(6)] of the Enforcement Rules and state the operation status of the internal accounting management system from the date of incorporation of the holding company controlling foreign company to the time of the application for re-listing.*
8. *When the Exchange deems it necessary, the time of submission may be adjusted.*

3. Re-listing after merger

Documents to be submitted	Submission timing
(i) An application for re-listing separately set by the Exchange	When applying for re-listing
(ii) Certificate of issuance and registration	Without delay after completion of issuance and registration
(iii) A certified copy of the registration of incorporation	When applying for re-listing
(iv) Articles of incorporation	When applying for re-listing
(v) The register of shareholders and the register of holders as at the end of the latest business year	When applying for re-listing
(vi) A copy of the transfer agency service contract	When applying for re-listing
(vii) Other documents that the Exchange deems necessary for the listing review.	Without delay

Notes:

1. *[Deleted on September 10, 2019]*
2. *In cases where the register of shareholders was closed after the end of the latest business year, the documents noted in (v) shall be based at the time of closing.*
3. *For the financial institutions established pursuant to the Banking Act, the special corporations incorporated directly in accordance with the special laws and the government-invested institutions (including the holding company invested by an institution wholly owned by the government), the submission of the documents noted in (vi) may be omitted.*
4. *When the Exchange deems it necessary, the time of submission may be adjusted.*

4. Re-listing of debt securities

Documents to be submitted	Submission timing
(i) An application for re-listing under [Annex: Form 31]	When applying for re-listing
(ii) Financial statements for the latest business year and the auditor's audit report thereon	
(iii) Documents certifying that the cause for delisting was resolved	
(iv) Other documents that the Exchange deems necessary for the listing review.	

[Annex 5] Application documents for supplementary listing

(Amended on September 2, 2014; March 27, 2015; March 15, 2018; September 10, 2019)

Application Documents for Supplementary Listing

(Pertaining to

[§37], [§54], [§59], [§65], [§76], [§81], [§84], [§88], [§93], [§98], [§104], [§109], [§116] and [§123-5] of the Enforcement Rules)

1. For common stocks, foreign stocks, etc., different classes of stocks, foreign different classes of stocks, stocks of SPACs, stocks of investment companies, stocks of real estate investment trusts and stocks of ship investment companies;

- (i) An application for supplementary listing under [Annex: Form 32]
- (ii) Time schedule for issuance of new stocks
- (iii) A certified copy of corporate registration
- (iv) Documents verifying payment of stock subscription
- (v) Certificate of issuance and registration
- (vi) For foreign DRs, a copy of the depository agreement
- (vii) For stocks of SPACs, the following additional documents:
 - Ⓐ A written confirmation issued by depository institutions, etc. on the money deposited or entrusted
 - Ⓑ A written confirmation on the total amount of issuance of the stocks, etc. owned by the financial investment business entities
- (viii) Other documents that the Exchange deems necessary for listing review.

Notes:

1. The application documents for supplementary listing shall be submitted to the Exchange no later than five (5) days (shall be based on business day) prior to the scheduled listing date.
2. With regard to the document noted in (ii), if there happens any change in the material facts including the time schedule after the application for supplementary listing was submitted, such fact shall immediately be reported to the Exchange.
3. For foreign stocks, etc. (including foreign different classes of stocks), the document noted in (iii) shall be a document concerning the register or registration for issuance of new stocks. Provided that, if the submission of such document is prohibited by the statutes of home country, the document may be substituted by a written statement confirming such fact.
4. When applying for supplementary listing of new stocks issued by the exercise of an over-allotment option, only the post-issuance report and other documents that the Exchange deems necessary for listing review shall be submitted.
5. When securities were issued abroad for the persons other than the residents (excluding the investment traders, etc. who acquire the relevant securities in accordance with a underwriting agreement on issuance of the securities) prescribed in the Foreign Exchange Transactions Act, and applying for listing of the new stocks that were issued by exercise of the conversion rights, subscription rights, etc. attached to the relevant securities within one year from the issuance, or, in cases where the relevant securities are DRs, and the new stocks that were issued based on the relevant DRs are applied for listing, the following documents shall additionally be submitted:
 - ① The registration statement or, in case of being exempted from submission of registration statement, a document confirming such fact; and
 - ② A document verifying mandatory holding that the new stocks which are issued by the exercise of conversion rights, subscription rights, etc. attached to the relevant securities within one (1) year after the issuance of such securities or, in cases where the relevant securities are DRs, the new stocks which are issued based on the relevant DRs, will be mandatorily held at the

KSD, so as not to withdraw or sell those stocks unless the Exchange deems it necessary.

6. In cases where the Exchange deems it necessary, the timing of submission may be adjusted.

2. For debt securities and foreign debt securities;

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|---|
| (i) An application for supplementary listing under [Annex: Form 32]
(ii) Certificate of issuance and registration
(iii) Other documents that the Exchange deems necessary for listing review. |
|---|

Notes: For government debt securities, municipal government debt securities, monetary stabilization bonds and agency debt securities distributed throughout a month, submission of the documents noted in (ii) may be omitted.

3. For beneficiary certificates;

- | |
|--|
| (i) An application for supplementary listing under [Annex: Form 32]
(ii) Certificate of issuance and registration
(iii) Documents confirming that the trust principal has increased.
(iv) Other documents that the Exchange deems necessary for listing review. |
|--|

4. For securities of ETFs and securities of foreign ETFs;

- | |
|--|
| (i) An application for supplementary listing / listing change of ETF securities under [Annex: Form 34]
(ii) Certificate of issuance and registration
(iii) A certificate of entry into the depository account
(iv) Documents confirming that the capital stock or the trust principal has increased.
(v) Other documents that the Exchange deems necessary for listing review. |
|--|

5. For equity-linked Warrants (ELWs);

- | |
|--|
| (i) An application for supplementary listing (applying <i>mutatis mutandis</i> the application for initial listing)
(ii) A copy of authorization on investment trading business for securities and OTC derivatives
(iii) In cases where a universal registration statement was filed with the FSC pursuant to Article 119(2) of the Act on the universal shelf registration statement and the corrective registration statement.
(iv) Agreement for liquidity provision. Provided that this shall not apply to the case where liquidity is provided by the issuer.
(v) Certificate of issuance and registration
(vi) Documents verifying payment of ELWs
(vii) In cases where an ELW is pledged, the following documents:
(a) Documents verifying the agreement on establishing the right of pledge;
(b) A balance certificate of the pledged ELW; and
(c) Documents verifying the approval of the head office of a liquidity providing member for contracts of derivatives
(viii) Other documents that the Exchange deems necessary for listing review. |
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Note: The issue name and issue code assigned shall be identical with those of the issue already listed.

6. For exchange-traded Notes (ETNs);

- | |
|--|
| <ul style="list-style-type: none">(i) An application for supplementary listing (applying <i>mutatis mutandis</i> the application for initial listing)(ii) Financial statements for the latest business year and the auditor's audit report thereon(iii) The latest semiannual financial statements (including quarterly financial statements) of the application business(iv) Among the documents falling under those noted in (ii), (iv) and (viii) of the application documents for listing e(v) Other documents that the Exchange deems necessary for listing review. |
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[Annex 6] Application documents for listing change

(Amended on September 2, 2014; March 27, 2015; March 15, 2018; January 25, 2019; April 29, 2019; September 10, 2019; October 13, 2022)

Application Documents for Listing Change

(Pertaining to

[§40], [§55], [§60], [§66], [§77], [§81], [§85], [§89], [§93], [§98], [§104], [§109], [§117], [§123-6] and [§125] of the Enforcement Rules)

1. For common stocks, foreign stocks, etc., different classes of stocks, foreign different classes of stocks, stocks of SPACs, stocks of investment companies, stocks of real estate investment trusts and stocks of ship investment companies;

- (i) An application for listing change under [Annex: Form 33]
- (ii) Time schedule for issuance of new stocks
- (iii) A certified copy of corporate registration or application documents for issuance of certified copy of corporate registration
- (iv) Certificate of issuance and registration
- (v) Other documents that the Exchange deems necessary for listing review.

Notes:

1. The application documents for supplementary listing shall be submitted to the Exchange no later than five (5) days (shall be based on business day) prior to the scheduled listing date.
2. With regard to the document noted in (i), if there happens any change in the material facts including the timetable after the application for supplementary listing was submitted, such fact shall immediately be reported to the Exchange.
3. For foreign stocks, etc. (including foreign different classes of stocks), the document noted in (iii) shall be a document concerning the register or registration for issuance of new stocks. Provided that, if the submission of such document is prohibited by the statutes of home country, the document may be substituted by a written statement confirming such fact.
4. In cases where the Exchange deems it necessary, the timing of submission may be adjusted.

2. For debt securities and foreign debt securities;

- (i) An application for listing change under [Annex: Form 33]
- (ii) Certificate of issuance and registration
- (iii) In case of change of issue, a copy of minutes of the general meeting of shareholders or the board of directors meeting where the resolution thereon was made.
- (iv) A certified copy of the registration of incorporation
- (v) Other documents that the Exchange deems necessary for listing review.

Notes: For government debt securities, municipal government debt securities, monetary stabilization bonds and agency debt securities distributed throughout a month, submission of the documents noted in (ii) may be omitted.

3. For beneficiary certificates;

- (i) An application for listing change under [Annex: Form 33]
- (ii) Certificate of issuance and registration
- (iii) Documents confirming that the trust principal has decreased.
- (iv) Other documents that the Exchange deems necessary for listing review.

4. For securities of ETFs and securities of foreign ETFs;

- | |
|---|
| (i) An application for supplementary listing / listing change pursuant to [Annex: Form 34]
(ii) Specifications of receipt or delivery
(iii) Certificate of issuance and registration
(iv) Documents confirming that the capital stock or the trust principal has decreased.
(v) Other documents that the Exchange deems necessary for listing review. |
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Notes: In the case of listing change for the causes other than establishment or redemption of ETF securities, the application for listing change of beneficiary certificates and stocks shall apply mutatis mutandis.

5. For equity-linked Warrants (ELWs);

- | |
|---|
| (i) An application for listing change under [Annex: Form 33]
(ii) Certificate of issuance and registration
(iii) In the case of change of issue, a copy of minutes of the general meeting of shareholders where the resolution thereon was made or a certified copy of the registration of incorporation
(iv) In case of change of quantity, a document certifying exercise of the rights of ELWs
(v) Other documents that the Exchange deems necessary for listing review. |
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Notes: The listing change subsequent to the change of issue name of the underlying stock or the title change of underlying index may be exempted for the submission of the documents.

6. For exchange-traded Notes (ETNs);

- | |
|--|
| (i) An application for listing change under [Annex: Form 33] or an application for listing change subsequent to red
(ii) Certificate of issuance and registration
(iii) [Deleted on September 10, 2019]
(iv) Documents verifying the change in the quantity or the split/reverse split of ETNs
(v) Other documents that the Exchange deems necessary for listing review. |
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Notes: 1. In the case of name change of an ETN, Application for listing change in [Annex: Form No. 33] shall be applied.

7. For subscription warrants and subscription right certificates;

- | |
|---|
| (i) An application for listing change under [Annex: Form 33]
(ii) [Deleted on September 10, 2019]
(iii) In case of change of issue, a copy of minutes of the general meeting of shareholders or the board of directors meeting where the resolution thereon was made.
(iv) Other documents that the Exchange deems necessary for listing review. |
|---|

[Annex 7] Timing of designation as and release from administrative issues

(Amended on June 25, 2014; September 2, 2014; July 31, 2015; December 16, 2015; October 10, 2016; April 1, 2019; June 28, 2019; March 11, 2020; July 27, 2020; February 10, 2021; July 9, 2025)

Timing of Designation as and Release from Administrative Issues

(Pertaining to [§46], [§56], [§61], [§67], [§94], [§105], [§110] and [§123-7] of the Enforcement Rules)

1. Stock certificates

(a) Common stocks, foreign stocks, etc., stocks of SPACs

Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
(i) Failure to submit regular reports ([§47(1)1] of the Regulation)	On the day immediately following the deadline for submission of regular reports	When it was confirmed that the cause for designation as AI was resolved as the regular reports were submitted. In such cases, it is deemed the cause for designation as AI was resolved when falling under any of following cases: (i) When semiannual or annual report was submitted after failing to submit quarterly report of the business year concerned; (ii) When the annual report was submitted after failing to submit the half-yearly report; and (iii) When the annual report for the concerned business year was submitted within 10 days after failing to submit annual report.	On the day immediately following the date of submission of the regular reports.
(ii) Auditor’s opinion not up to standards ([§47(1)2] of the Regulation)	On the day immediately following the date of submission of audit or review reports	When it was confirmed that cause for designation as AI was resolved according to audit reports.	On the day immediately following the date when the regular audit report was submitted.
(iii) Impairment of capital stock ([§47(1)3] of the Regulation)	On the day immediately following the date of submission of audit reports.	When equity capital exceeds 50% of capital stock on audit report. In such cases, it shall exclude the case of qualified audit opinion due to limitation on the scope of audit.	On the day immediately following the date when the regular audit report was submitted.

Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
(iv) Stock distribution not up to standards ([§47(1)4] and [§71(2)1] of the Regulation)	On the day immediately following the statutory date of submission of annual reports.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.
(v) Trading volume not up to standard	On the first trading day of next semiannual period.	When it was confirmed that the cause for designation as AI was resolved. In such cases, if an agreement for liquidity provision (li	On the first trading day of next semiannual period. Pr

ds ([§47(1)5] of the Regulation)		mitted to the agreement with 6 months or longer of contract period) has been entered into, it shall be deemed that the cause was resolved.	provided that, if an agreement for liquidity provision has been entered in to during the period being designated as AI, on the day immediately following the date when such fact was reported.
(vi) Corporate governance not up to standards ([§47(1)6] of the Regulation)	- For the case of [§47(1)6a&c]: On the day following the statutory deadline of submission of annual reports, Provided that, if a general shareholders' meeting is held after the statutory deadline of submission of annual reports, it shall be the day following the general shareholders' meeting (in case the result of the general shareholders' meeting is notified to the Exchange after the general shareholders' meeting, it shall be the notification date of the result) - For the case of [§47(1)6b&d]: On the day following the date of general meeting of shareholders, Provided that if the result of the shareholders' meeting was notified to the Exchange, on the day following the notification date.	When it was confirmed that the cause for designation as AI was resolved.	On the day following the date of general meeting of shareholders. Provided that, if the result of the shareholders' meeting was notified to the Exchange, on the day following the notification date.
(vii) Sales amount not up to standards ([§47(1)7] of the Regulation)	On the day immediately following the date of submission of audit reports.	Any of the following cases: (i) When it was confirmed that the cause for designation as AI was resolved according to audit reports. Provided that it shall exclude the case of qualified audit opinion due to limitation on the scope of audit or (ii) When the average listed market capitalization of common stocks for the latest fiscal year is KRW 100 billion or more.	The day after the confirmation date of the following reasons for release: (i) On the day immediately following the date when the regular audit report was submitted; or (ii) Market capitalization: Date of confirmation of average market capitalization of common stock for the latest fiscal year.

(viii) [Deleted on December 9, 2022]	.		
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Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
(ix) Market value not up to standards ([§47(1)9] of the Regulation)	On the day immediately following the date when the concerned cause occurred.	When both of the followings are met: (i) Case where market value is at or above the standard specified in [§47(1)9] of the Regulation for at least ten (10) trading days; and (ii) Case where the number of trading days when the market value is at or above the standard specified in [§47(1)9] of the Regulation is at least thirty (30) trading days.	On the day immediately following the date when the cause for release has occurred.
(x) Application for bankruptcy ([§47(1)10] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When there was a court decision to dismiss the application for bankruptcy.	On the day immediately following the date when the cause for release was confirmed.
(xi) Application for commencement of rehabilitation procedure ([§47(1)11] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When there was a court decision to terminate the rehabilitation procedure (including causes equivalent thereto)	On the day immediately following the date when the cause for release was confirmed.
(xii) Noncompliance with disclosure obligations ([§47(1)12] of the Regulation)	On the day when demerit points were imposed as a result of designation as unfaithful disclosure company, pursuant to [§35] of the KOSPI Market Disclosure Regulation.	When 1 year has elapsed since the date of designation as AI. Provided that, in case where 15 demerit points or more were accumulated due to imposition of additional demerit points due to designation as an unfaithful disclosure company while recently being designated as AI, 1 year shall elapse from such date.	On the day immediately following the date when the cause for release has occurred.
(xiii) Occurrence of cause for delisting ([§47(1)13] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was recognized that the cause of delisting in each subparagraph (excluding subparagraphs 10 and 12) of [§48(1)] of the Regulation	On the day immediately following the date when the cause for release was confirmed.
(xiv) In case of foreign stocks, etc., change of accounting standards, or violation of the methods of appointing, substituting or dismissing the auditor, or non-compliance with obligation to report such fact. ([§57(2)] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved through annual reports, reporting forms, etc.	On the day immediately following the date when the cause for release was confirmed.
(xv) Failure to meet qualifications of officers by SPAC ([§71(2)2] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.
(xvi) Noncompliance with obligation to deposit or entrust funds raised by SPAC ([§71(2)3] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.

(xvii) Failure to observe restrictions on financial activities by SPAC ([§71(2)4] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.
(xviii) Failure to apply for listing eligibility review by SPAC ([§71(2)5] of the Regulation)	On the day immediately following the deadline for submission of application for listing eligibility review or the deadline for report.	When the application for listing eligibility review was made.	On the day immediately following the date when the cause for release was confirmed.
(xix) Issuing amount of stocks, etc. held by financial investment company is less than 5% of total issuing amount of stocks of SPAC ([§71(2)6] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.
(xx) For public interest and protection of investors ([§47(1)14] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.
-	-	When a SPAC-listed corporation that was designated as AI for the causes specified (1) through (20) has merged with another corporation.	On the day immediately following the date when the cause for release was confirmed.

Notes:

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For (ii), (iii) and (vii), when the correction to the regular audit reports was filed, the “date of submission of regular audit reports” shall be deemed to be the “date of filing of corrections”.

2. In the case where an issue is designated as an administrative issue due to the reason under (i), (ii), (vii), (xi) and (xii), subject to the listing maintenance review due to such reason, and as the results of the review, determined to continue its listing, the issue can be released from the designation as an administrative issue on the day following the day on which the decision to maintain the listing is made.

3. Provisions in (i) through (xiii) and (xx) shall apply to foreign stocks, etc.

4. Provisions in (i) through (iii), (vi), (ix) through (xiii) and (xx) shall apply to stocks of SPAC.

(b) Different classes of stocks

Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
(i) Issuer’s qualification not up to standards ([§64(1)1] of the Regulation)	On the day when the common stock was designated as AI.	When it was confirmed that the cause for designation of common stocks as AI was resolved	On the day when the common stock was released from the designation as AI.
(ii) Number of general shareholders not up to	On the day immediately following the statutory d	When it was confirmed that the cause for designation as AI was resolved	On the day immediately following the date when the cause for release was confirmed.

o standards ([§64(1)2] of the Regulation)	deadline of submission of annual reports.		
(iii) Number of listed stocks not up to standards ([§64(1)3] of the Regulation)	On the first trading day of next semiannual period.	When it was confirmed that the cause for designation as AI was resolved	On the day immediately following the date when the cause for release was confirmed..
(iv) Trading volume not up to standards ([§64(1)4] of the Regulation)	On the first trading day of next semiannual period.	When it was confirmed that the cause for designation as AI was resolved. In such cases, if an agreement for liquidity provision (limited to the agreement with 6 months or longer of contract period) has been entered into, it shall be deemed that the cause was resolved.	On the first trading day of next semiannual period. Provided that, if an agreement for liquidity provision has been entered into during the period being designated as AI, on the day immediately following the date when such fact was reported.
(v) Market value not up to standards ([§64(1)5] of the Regulation)	On the day immediately following the date when the concerned fact was confirmed.	When both of the followings are met: (i) Case where market value has been more than KRW two (2) billion for more than 10 trading days in a row; and (ii) Case where the number of trading days when the market value was more than KRW two (2) billion is 30 or more	On the day immediately following the date when the cause for release has occurred.

Note: [Deleted on March 11, 2020]

2. Collective investment securities

(a) Stocks of real estate investment funds

Designation as administrative issue ("AI")		Release from designation as administrative issue ("AI")	
Causes for designation	Time of designation	Causes for release	Time of release
(i) In the case of subparagraphs 1 through 8 and 13 of [§129(1)] of the Regulation, the provisions on timing of designation as and release from administrative issues under items (a)(i) through (a)(iii), (a)(vii) through (a)(xiii) and (a)(xx) of subparagraph 1 shall apply <i>mutatis mutandis</i> .			
(ii) Asset composition requirement not up to standards ([§129(1)9] of the Regulation)	On the day immediately following the date of submission of regular reports.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the regular reports were submitted.
(iii) Dividend requirement not up to standards ([§129(1)10] of the Regulation)	On the day immediately following the date of submission of annual reports.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the annual reports were submitted.
(iv) Business performance not up to standards ([§129(1)11] of the Regulation)	On the day immediately following the date of confirmation of such fact.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the cause for release was confirmed.

Note: [Deleted on March 11, 2020]

(b) Stocks of ship investment companies

Designation as administrative issue ("AI")		Release from designation as administrative issue ("AI")	
Causes for designation	Time of designation	Causes for release	Time of release
(i) In the case of subparagraphs 1 through 3, 5, and 6 of [§135(1)] of the Regulation, the provisions on timing of designation as and release from administrative issues under items (a)(i), (a)(ii), (a)(xii), (a)(xiii), and (xx) of subparagraph 1 shall apply <i>mutatis mutandis</i> .			

(ii) Dividend requirement not up to standards ([§129(1)10] of the Regulation)	On the day immediately following the date of submission of annual reports.	When it was confirmed that the cause for designation as AI was resolved.	On the day immediately following the date when the annual reports were submitted.
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Note: [Deleted on March 11, 2020]

(c) Stocks of ETFs and foreign ETFs

Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
Principal amount of trust and total net assets not up to standards ([§115(1)] of the Regulation)	On the first trading day of next semi annual period.	When it was confirmed that the cause for designation as AI was resolved.	On the first trading day of next semi annual period.

3. Exchange Traded Notes

Designation as administrative issue (“AI”)		Release from designation as administrative issue (“AI”)	
Causes for designation	Time of designation	Causes for release	Time of release
Issuing principal and amount of indicative value not up to standards ([§149-6(1)1] of the Regulation)	On the first trading day of next semi annual period.	When it was confirmed that the cause for designation as AI was resolved.	On the first trading day of next semi annual period.

[Annex 8] Matters required to be entered in articles of incorporation

(Amended on March 20, 2019; February 14, 2022)

Matters Required to be Entered in Articles of Incorporation

(Pertaining to [§64] and [Annex 1] of the Enforcement Rules)

1. For foreign stocks, etc.

(a) General meeting of stockholders

(i) Timing of Convocation

①The general meeting of stockholders of this Company shall be composed of the ordinary general meeting of stockholders and the extraordinary general meeting of stockholders

②A ordinary general meeting of stockholders shall be convened within three (3) months after the end of every business year, and an extraordinary general meeting of stockholders shall be convened when there is a resolution of the board of directors, a request for convocation by shareholders who hold at least 3/100 of the total number of outstanding stocks or a request for convocation by auditor or audit committee, or a court order.

(ii) Convocation procedure (notice and announcement)

When convening a general meeting of shareholders, the date, time, place and purpose of the meeting shall be notified to the shareholders at least two (2) weeks prior to the date set for such general meeting in writing or in an electronic document.

(iii) Matters subject to special resolution

①The matters falling under any of the followings shall be determined by a special resolution at the general meeting of shareholders.

②Amendment of the articles of incorporation of the company, merger, spin-off, stock split, retirement of shares out of profits, dissolution, capital reduction, transfer of the entire or an important part of business, taking over of the entire business of another corporation; and

③A merger, spin-off, dissolution, liquidation or change of corporate structure of a subsidiary, transfer and acquisition of the entire or an important part of business, capital increase with consideration through the third-party allotment, and disposal of stocks of a subsidiary.

⑥Special resolution at a general meeting of shareholders shall be adopted by the affirmative votes of at least two thirds (2/3) of voting rights of the stockholders present at the meeting and at least one third (1/3) of the total issued and outstanding stocks. Provided that, for a foreign holding company that falls under any of following cases (including the case of amending the articles of incorporation in accordance with it), a special resolution shall be adopted by the affirmative votes of at least three thirds (3/4) of the number of voting rights of the stockholders present at the meeting and at least two thirds (2/3) of the total number of issued and outstanding stocks:

①Case where the foreign holding company sells off the entire or part of the shares of a subsidiary which exceeds the half (50/100) of its sales or net income based on the consolidated financial statements as of the end of the latest business year and consequently the subsidiary loses its position as a subsidiary of the foreign holding company; and

②Case where it is likely to undermine the substantiality of the foreign holding company, the listed corporation, as a result of transfer of the entire or an important part of business, capital increase with consideration through the third-party allotment, etc.

(iv) Place of the meeting

A general meeting of shareholders shall be held at the place of the principal office or of the stock exchange on which the corporation is listed.

(v) General meeting of stockholders of different classes of stocks

①In cases where the company has issued certain classes of stocks and the stockholders of a certain class of stocks are damaged by the provisions specific to each class of stocks, the amendment of articles of incorporation, stock swap, stock transfer, merger, spin-off, merger after spin-off, etc., a resolution adopted by a general meeting of stockholders of such specific class of stocks is required for effecting such events in addition to the resolution at the general meeting of stockholders.

②A resolution of a general meeting of stockholders of different classes of stocks shall be adopted by the affirmative votes of at least two thirds (2/3) of the voting rights of the stockholders present at the meeting and of one third (1/3) of the total number of issued and outstanding stocks of such class.

③Provisions relating to the general meeting of stockholders shall apply *mutatis mutandis* to the general meeting of stockholders of different classes of stocks except for the special classes of stocks including non-voting different class of stocks.

(b) Directors

(i) Number of directors and appointment of outside directors

①The number of directors of this Company shall be more than three (3) but less than ○, and the number of outside directors shall be more than one forth (1/4) of the total number of directors (for a corporation of which total amount of assets is KRW 2 trillion or more as of the end of the latest business year, the number of outside directors shall be more than three (3) and the majority of the total number of directors).

②In cases where an outside director candidate recommendation committee is established, the committee shall recommend candidates for outside directors from among the persons satisfying the qualifications specified in the relevant laws of home country.

③The details for recommendation and examination of qualifications of candidates for outside directors shall be determined by the outside director candidate recommendation committee.

For a corporation that has been listed on recognized overseas securities markets for more than 3 years as stipulated in [§77(3)] of the Regulation

①The number of outside directors of this Company shall be more than one (1) but less than ○. In such cases, the provisions of Paragraph 3 under Article 542-8 of the Commercial Act of Republic of Korea shall apply with respect to the supplement of outside directors to meet the quorum.

②With regard to the qualifications, compositions, operation, etc. of outside directors, the following standards of home country or of the market on which the corporation was listed for the first time shall apply:

- ①.....
- ②.....

(ii) Remuneration for directors

The amount of remuneration and severance pay of directors shall be determined by a resolution at the general meeting of stockholders unless such amount is specified in these articles of incorporation.

(iii) Minutes of board of directors and inspection rights of stockholders

①Minutes shall be prepared with regard to the proceedings of a board of directors' meeting.

②The agenda items, summary of the proceedings and outcomes thereof, and opponents and grounds for their opposition shall be entered in the minutes, and

directors and auditors present at the meeting shall write their names and affix their seals or signatures thereon.

© Stockholders may request either to inspect or copy the minutes of the board of directors' meeting during business hours.

④ The company may reject shareholders' requests for inspecting or copying the minutes of the board of directors' meeting with an explanation of grounds therefor.

(iv) Release from directors' liability to company

Liability of a director, which occurs by the director's illegal acts related to his/her position, for damage against the corporation may be absolved by the consent of all stockholders.

(c) Auditors or audit committee

[In case of appointing an auditor]

(i) Number of auditors and appointment

① The number of auditors of this Company shall be more than one (1) but less than 〇, at least one of which shall hold a full-time position.

② Auditors shall be appointed at the general meeting of shareholders, and the resolutions for appointing auditors shall be adopted separately from those for appointing directors.

③ A resolution to appoint an auditor shall be adopted by the affirmative votes of majority of voting rights of the stockholders present at the meeting and of at least one forth (1/4) of the total number of issued and outstanding stocks.

(ii) Term of office

The term of office of an auditor shall expire upon the closing of an ordinary general meeting of stockholders convened in respect of the last period for the settlement of accounts within three (3) years after his/her inauguration.

(iii) Appointment of an auditor to fill up a vacancy

If there is a vacancy in auditor position, the position shall be filled through appointment at a general meeting of shareholders. Provided that, in cases where the number of auditors in office satisfies the requirement on the number of auditors specified in the articles of incorporation and the vacancy does not hinder the performance of duties of auditor(s), the vacancy may be left unfilled.

(iv) Duties of auditors

- Ⓐ Auditors shall audit accounting and business of this Company.
- Ⓑ Auditors may attend and state their opinions at the board of directors' meeting.
- Ⓒ Auditors may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matters of the meeting and the grounds for the convocation.
- Ⓓ When necessary for carrying out his/her duties, the auditor may request a subsidiary for a report on its business. In such cases, if the subsidiary fails to immediately make the business reporting or it is necessary to verify the details of the reporting, the auditor may inspect the business affairs and the status of property of the subsidiary.

(v) Audit record

Auditors shall prepare records of audit. A summary of auditing process and the outcomes thereof shall be stated in the audit record and the auditors who have carried out such audit shall write their names and affix their seals or signatures thereon.

(vi) Remuneration and severance pay of auditors

The remuneration and severance pay of auditors shall be determined by the resolution at a general meeting of stockholders unless such amount is specified in these articles of incorporation. In such cases, the resolutions for determining the amount of remuneration and severance pay of auditors shall be adopted separately from those for determining the remuneration and severance pay of directors.

[In case of establishing an audit committee]

(A corporation of which total amount of assets is KRW 2 trillion or more as of the end of the latest business year is required to establish an audit committee.)

(i) Composition of an audit committee

- Ⓐ This Company shall establish an audit committee in lieu of auditors.
- Ⓑ The audit committee shall consist of at least three (3) directors and the ratio of outside directors shall exceed two thirds (2/3) of the total number of members.
- Ⓒ The audit committee shall, from among its members, elect a member to represent the committee, by its own resolution. In such cases, the chairperson shall be an

outside director.

(ii) Duties of the Audit Committee

- ㊶The audit committee shall audit the accounting and business of this Company.
- ㊷The audit Committee may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matters of the meeting and the grounds for the convocation.
- ㊸ When necessary for carrying out its duties, the audit committee may request a subsidiary for a report on its business. In such cases, if the subsidiary fails to immediately make the report or it is necessary to verify the contents of the report, the audit committee may inspect the business affairs and the status of property of the subsidiary.
- ㊹The appointment of external auditor shall be approved by the audit committee.
- ㊺The audit committee shall handle other matters delegated by the board of directors than those stated in ㊶ through ㊹.

(iii) Audit record

The audit committee shall prepare a record of audit. The summary of audit process and the outcomes thereof shall be stated in the audit record and auditors who have carried out such audit shall write their names and affix their seals or signatures thereon.

Appointment of auditors of a corporation that has been listed on recognized overseas securities markets for more than 3 years as stipulated in [§77(3)] of the Regulation

- ㊶The number of auditors of this Company shall be more than one (1) but less than ○, at least one of which shall hold a full-time position.
- ㊷Duties of auditors
 - ①Auditors shall audit accounting and business of this Company.
 - ②Auditors may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matters of the meeting and the grounds for the convocation.
 - ③When necessary for carrying out his/her duties, the auditors may request a subsidiary for a report on its business. In such cases, if the subsidiary fails to immediately make the report or it is necessary to verify the contents of the report, the auditor may inspect the business affairs and the status of property of the subsidiary.
- ㊸With respect to the qualifications, compositions, operation, etc. of auditors, the following standards of home country or of the market on which the corporation was listed for the first time shall apply:
 - ①.....
 - ②.....

Establishment of audit committee of a corporation that has been listed on recognized overseas securities markets for more than 3 years as stipulated in [§77(3)] of the Regulation

① Composition of the audit committee

- ① This Company shall establish an audit committee in lieu of auditors.
- ② The audit committee shall consist of at least three (3) directors.
- ③ The majority of the committee members shall be outside directors.
- ④ The representative of the audit committee shall be an outside director.
- ⑤ The audit committee shall comprise experts in accounting and finance.
- ⑥ The provisions of Paragraph 3 under Article 542-8 of the Commercial Act of Republic of Korea shall apply with respect to the supplement of outside directors to meet the quorum.

② Duties of the Audit Committee

- ① The audit committee shall audit the accounting and business of this Company.
- ② The audit Committee may request the board of directors to convene an extraordinary general meeting of stockholders by presenting a written statement specifying the subject matters of the meeting and the grounds for the convocation.
- ③ When necessary for carrying out its duties, the audit committee may request a subsidiary for a report on business. In such cases, if the subsidiary fails to immediately make the report or it is necessary to verify the contents of the report, the audit committee may inspect the business affairs and the status of property of the subsidiary.
- ④ With respect to the qualifications, compositions, operation, etc. of auditors, the following standards of home country or of the market on which the corporation was listed for the first time shall apply:
 - ①
 - ②

(d) Subscription rights

① Each shareholder of this Company shall be entitled to the allotment of new shares in proportion to the number of shares which he/she holds.

② Notwithstanding the preemptive subscription rights of stockholders, the company may make an allotment of new stocks to other persons than stockholders by a special resolution of the general meeting of shareholders or a resolution of the board of directors in each of the following cases:

- ①
- ②

③ In cases where stockholders give up or forfeits his or her preemptive rights or where fractional stocks are created in allotting new stocks, the method of handling such matters shall be decided by a resolution of the board of directors.

(e) Stockholders' rights to inspect books of account

① Any shareholder who holds shares representing at least three percent (3/100) of the

total outstanding shares may demand, in writing stating the grounds therefor, the inspection or copying of the books of account and related documents.

⑥The company shall not reject the demand of shareholders unless it proves that such demand is improper.

(f) Approval of financial statements

The company shall submit the financial statements under following standards to the ordinary general meeting of shareholders to request for an approval.

①The financial statements shall be audited by the auditor; and

②The Financial statements shall be prepared according to the accounting standards (referring to the changed accounting standards in case where the Exchange approved the change of the accounting standards pursuant to the Regulation) adopted for the listing of stocks or depositary receipts on the Exchange

(g) Exceptions in applying the matters to be entered in the articles of incorporation

In cases where the Exchange deems necessary for the protection of investors in view of the provisions of the Commercial Act, etc. of the country where the foreign corporation was incorporated, the foreign corporation concerned shall state the ‘matters required to be entered in the articles of incorporation’ above in its articles of incorporation. Provided that, in the case of falling under any of followings, such statement may be omitted in whole or in part:

①In cases where the matters to be entered in the articles of incorporation are inconsistent with those in relevant laws and regulations of the home country; and

②In cases where the matters to be entered in the articles of incorporation are subject to the regulation by the recognized overseas securities market on which the foreign corporation is listed.

2. For Special Purpose Acquisition Companies

(a) Business objective

The sole business objective of this Company shall be to merger with another company (hereinafter referred to as “the merger target company”) after listing its stocks on the KOSPI market of the Korea Exchange (hereinafter referred to as “the Exchange”) established pursuant to Article 373 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Act”).

(b) Stocks

(i) Duty on deposit (or entrust) of funds

At least 90/100 of funds raised by issuing stocks (excluding the stocks issued before the initial public offering) shall be deposited (or entrusted) with the securities finance companies (or trust companies) specified in [§1-4-2(2)] of the Regulations on Financial Investment Business of the Financial Services Commission by the next business day of the deadline for payment for the stocks.

(ii) Restrictions on withdrawal of and prohibition on security provision with deposited funds

This Company shall not withdraw the funds or provide security with the funds deposited (or entrusted) at the securities finance companies (or trust companies) (including interests or dividends; the same hereinafter) before the completion of registration of the merger with the merger target company. Provided that, when it is inevitable for the operation of this Company and falling under any of the followings, the funds deposited (or entrusted) may be withdrawn:

㉠Case of withdrawing within the amount necessary for purchasing stocks to exercise the appraisal rights pursuant to Article 165-5 of the Act; and

㉡Case of paying the funds to stockholders, subsequent to dissolution of this Company.

(iii) Capital increase by third-party allotment

In cases where, after listing its stocks on the KOSPI market of Korea Exchange, this Company issues new stocks to be allocated to the persons other than the existing stockholders, it shall obtain in advance the resolution of the shareholders' general meeting pursuant to Article 434 of the Commercial Act.

(c) Prohibition on borrowing and issuance of debt securities

(i) Prohibition on borrowing

This Company is prohibited from borrowing funds from others, guaranteeing debt or providing security for others.

(ii) Prohibition on issuance of debt securities

This Company shall not issue debt securities. Provided that it can issue convertible bonds or bonds with warrant stated in Article 513 or 516-2 of the Commercial Act before the initial offering of stocks conducted to list the stocks on the KOSPI market of Korea Exchange.

(d) Mergers

(i) Merger target company

(1) The merge value of the merger target company calculated in accordance with each of subparagraphs under Paragraph (1) of Article 176-5 of the Enforcement Decree of the Act or the total assets of the company targeted for merger based on the statement of financial position as of the end of the latest business year shall be 80/100 or more of the funds deposited (or entrusted). In such cases, if there are a multiple number of merger target companies, it shall be based on the respective aggregate amount of the merger values and the total assets of individual companies targeted for merger.

(2) No negotiation shall be on the process for determining the merger target company or no company shall be potentially determined as the merger target company before the initial offering of stocks is conducted.

(ii) Restrictions on merger

Ⓐ This Company shall not merge in the manner of consolidation of corporations prescribed in Article 542 of the Commercial Act, and when merging with an unlisted corporation under Article 9(15)4 of the Act, the merger shall not be conducted in the manner that this Company becomes the non-surviving company, except for the listing after merger under [§2(1)1(d)(ii)] of the Regulation, as a result of the merger.

Ⓑ This Company shall not merger with the companies falling under any of followings:

① A person (hereinafter referred to as “stockholders, etc. before IPO”) who has purchased the securities (including those related to non-voting stocks; hereinafter referred to as “stocks, etc.”) under each item of Subparagraph 1 of Article 139 of the Enforcement Decree of the Act, before the initial offering of stocks of this Company.

② When the shareholder, etc. before IPO of this Company or a person who falls under any of the followings is the largest shareholder under Subparagraph 6 of Article 2 of the Financial Companies Corporate Governance Act of a company, holds 5/100 or more of the total issued and outstanding stocks of the company, such company:

① As the executive officers and employees of an investment trader of equity securities under Article 6(4)14(c) of the Enforcement Decree of the Act, who belong to the stockholders, etc. before IPO of this Company, the person who has performed or are performing tasks related to the establishment, operation, etc. of this Company and his/her spouses and lineal ascendants and descendants;

② Executive officers of a corporation who belong to the stockholders, etc. before

IPO of this Company, and their spouses and lineal ascendants and descendants;

③ Individuals who belong to the stockholders, etc. before IPO of this Company, their spouses and lineal ascendants and descendants; and

④ Executives and employees of this Company, and their spouses and lineal ascendants and descendants.

③ The largest shareholder under Subparagraph 6 of Article 2 of the Financial Companies Corporate Governance Act and the affiliated company under the Monopoly Regulation and Fair Trade Act of the stockholders, etc. before IPO of this Company, and

④ Companies of which executives and employees hold or have held within the latest two (2) years concurrent positions with this Company or the stockholders, etc. before IPO.

③ When calculating the number of holding stocks noted in ②, the number of stocks that may be issued through the exercise of the rights of stocks falling under any of items under Subparagraph 1 of Article 139 of the Enforcement Decree of the Act shall be included, and when calculating the number of stocks of the stockholders, etc. before IPO, the number of stocks held by the affiliated companies of the concerned stockholders shall be included.

(e) Executives

(i) Qualifications of executives

No person who falls under any of the subparagraphs of Article 5(1) of the Financial Companies Corporate Governance Act shall become an executive of this Company, and any executive who falls hereunder after taking his/her position shall lose his/her position.

(ii) Number of directors

The number of outside directors of this Company shall be one forth (1/4) of the total number of directors.

(iii) Duty of executives and employees

Executives and employees of this Company shall not reveal or offer any information that can help specify or assume the company targeted for merger before a merger.

(f) Dissolution and return of deposited (or entrusted) funds

(i) Dissolution of this Company

When falling under any of following cases, this Company shall be dissolved.

- ① Case where this Company fails to list its stocks on the securities market within 90 days from the deadline for payment for the stocks issued through the IPO.
- ② Case where this Company fails to complete the registration of merger with the merger target company within 36 months after the deadline for payment for the stocks issued by the IPO.
- ③ Case where the stocks of this Company were delisted pursuant to the listing regulations prescribed in Article 390 of the Act before the registration of merger with the merger target company is completed.

(ii) Return of the funds deposited (or entrusted)

In cases where this Company is dissolved by falling under the causes for dissolution noted in A above, the funds (including interests or dividends) deposited (or entrusted) at the securities finance companies (or trust companies) shall be paid back to the stockholders according to their holding ratios. Provided that, in cases where the stockholders, etc. before IPO have given up their rights to request for a return of funds relating to the stocks, etc. purchased before the IPO of stocks of this Company, the repayment shall be made according to the holding ratios of the stocks excluding those purchased prior to the IPO.

[Annex 9] Guidelines for changing of issuing conditions of ELWs

(Amended on January 31, 2018; April 29, 2019; July 22, 2021)

Guidelines for Changing of Issuing Conditions of ELWs

(Pertaining to [§119] of the Enforcement Rules)

1. The change of issuing conditions of ELWs pursuant to [§119(3)] of the Enforcement Rules shall be made in accordance with each of the followings.

(a) In cases where a stock that is the underlying asset of an ELW undergoes ex-dividends or ex-rights mentioned in [§30(1)4] of the Enforcement Rules of KOSPI Market Business Regulation (hereinafter referred to as the “Enforcement Rules of Business Regulation”):

The exercise price, the base price for early termination (referring to the price or value of an underlying asset which becomes the base for early termination of the ELW according to the conditions predetermined in the registration statement, etc. of the ELW; the same hereinafter), and the conversion ratio shall be changed.

(b) In cases where a stock that is the underlying asset of an ELW undergoes a stock-split or a reverse stock-split mentioned in [§30(1)6] of the Enforcement Rules of Business Regulation or a reduction of paid-in capital referred to in [§30(1)7] of the same Enforcement Rules:

The exercise price, the base price for early termination and the conversion ratio shall be changed. In such cases, for an issue of which date of appraisal at maturity [referring to the date for which the appraisal price at maturity (referring to the price or value which becomes the base for settlement of the trade concluded by the exercise of rights of the ELW; the same hereinafter) is calculated; the same hereinafter] falls on a day when the trading of the issue is suspended due to stock-split, reverse stock-split or reduction of paid-in capital, the date of appraisal at maturity shall be changed.

(c) In cases where a stock that is the underlying asset of an ELW is relisted or delisted due to a merger between stock-listed corporations mentioned in [§30(1)3] and [§30(2)] of the Enforcement Rules of Business Regulation:

The last trading day of the ELW shall be changed to the trading day immediately preceding the day when the trading of the stock is suspended.

(d) In cases where an ELW is delisted by falling under the delisting criteria specified in [§143] of the Regulation:

The last trading day of the ELW shall be changed to the trading day immediately preceding the delisting date.

(e) In cases where a stock that is the underlying asset of an ELW conducts a listing change due to the spin-off of a stock-listed corporation noted in [§30(1)3] and [§30(2)] of the Enforcement Rules of Business Regulation:

When the corporation surviving the spin-off and the corporation incorporated through the spin-off complete a listing change and are relisted on the KOSPI market on a same day, the

underlying assets of the ELW shall be changed to the baskets of the corporation surviving the spin-off and the corporation incorporated through the spin-off, and in other cases, the last trading day of the ELW shall be changed to the trading day immediately preceding the day when the trading of the stock is suspended.

(f) In cases other than those noted in a through e above, when the date of appraisal at maturity falls on a market holiday or a day of trade suspension:

The date of appraisal at maturity of the ELW shall be changed.

(g) In addition, in cases where it is deemed necessary to change the issuing conditions of an ELW:

The issuing conditions shall be changed in accordance with the methods that are set by the Exchange whenever necessary or predetermined by the listed corporation within the extent of the provisions of the relevant regulations of the Exchange.

2. The change of the exercise price, base price for early termination and conversion ratio mentioned in subparagraphs 1a and 1b shall be made in accordance with each of the followings. In such cases, in cases falling under [§126(2)1-2] of the Enforcement Rules, the “base price of the stocks” shall be the “base price of the stocks on the day after the listing change”, and the “preceding day” shall be the “day before the listing change”:

(a) For the exercise price, the prices calculated by the following formula. In such cases, the numbers in the first decimal place shall be rounded off to the nearest one.

The exercise price before the change $\times$ (The base price of the stock pursuant to [§30]) of the Enforcement Rules of Business Regulation / The closing price of the stock on the preceding day)

(b) For the base price for early termination, the prices calculated by the following formula. In such cases, the numbers in the first decimal place shall be rounded off to the nearest one.

The base price for early termination before the change $\times$ (The base price of the stock concerned pursuant to [§30]) of the Enforcement Rules of Business Regulation / The closing price of the stock on the preceding day)

(c) For the conversion ratio, the ratios calculated by the following formula. In such cases, the numbers in the fifth decimal place shall be rounded off.

The conversion ratio before the change $\times$ (The closing price of the stock on the preceding day / The base price of the stock pursuant to [§30]) of the Enforcement Rules of Business Regulation)

3. The change of the date of appraisal at maturity mentioned in subparagraphs 1(b) and 1(f) shall be made in accordance with each of the followings. In such cases, the last trading day shall be changed to the last day of the period of appraisal at maturity (the last 5 trading days) changed, the maturity date (referring to the expiry date of the period for exercise of rights; the same hereinafter) shall be changed to the day which is the third day from the last trading day changed (market holidays shall not be counted in the number of days), and the payment date

shall be changed to the day which is the fifth day from the last trading day changed (market holidays shall not be counted in the number of days).

(a) For an ELW of which date of appraisal at maturity is determined to be a market holiday or a date of trade suspension before 15 days retroactive from the first day of the period of appraisal at maturity,

The date of appraisal at maturity that falls on a market holiday or a trading suspension date shall be moved up to a preceding trading day in a sequential order. Provided that, in cases where it is deemed to be difficult to move up the date of appraisal at maturity falling under the market holiday or trading suspension date to a preceding trading day as the market holiday or the trading suspension continues, the date of appraisal at maturity shall be moved back to a subsequent trading day.

(b) For an ELW of which date of appraisal at maturity is determined to be a market holiday or a trade suspension date after 15 days retroactive from the first day of the period of appraisal at maturity,

The date of appraisal at maturity that falls on a market holiday or a trade suspension date shall be deferred to the following trading days in a sequential order.

4. When changing the last trading day pursuant to subparagraphs 1(c), 1(d) and 1(e), the date of appraisal at maturity shall be advanced to preceding dates in a sequential order. In such cases, the maturity date and the payment date shall be changed by applying the provisions in the latter part of the main body of subparagraph 3.

5. When changing an underlying asset to a basket pursuant to subparagraph 1(e), the price calculated by the following formula shall be the price of the underlying asset:

[The stock price of the corporation surviving the spin-off $\times$ The split ratio of net assets (referring to the split ratio of net assets stipulated in subparagraph 2(b) of [Annex 1] of the Enforcement Rules of Business Regulation; the same hereinafter) of the corporation surviving the spin-off] + [The stock price of the corporation incorporated through the spin-off $\times$ The split ratio of net assets of the corporation incorporated through the spin-off]

(Provided that, in cases where the par value per share of the surviving corporation or the corporation newly incorporated through the spin-off differs from the par value per share of the corporation before the spin-off, an adjustment is made in consideration of the change ratio of the par value, etc.)

6. In advancing the last trading day pursuant to subparagraphs 3(a) and 4, if the amount of payment calculated based on the appraisal price at maturity is smaller than the theoretical price of the last trading day calculated by the issuer or the liquidity provider, the amount equivalent to such theoretical price may become the payment at maturity.

7. For the cases falling under subparagraph 1(a) and 1(b), if the date of appraisal at maturity (excluding the first day of the period of appraisal at maturity) comprise the dates of action for ex-rights, etc. of the stock, in calculating the appraisal price at maturity, the prices calculated by the following formula shall apply for each of the dates of appraisal at maturity before such action dates:

The closing price of the stock before the action date $\times$ (The base price of the stock pursuant to [§30]) of the Enforcement Rules of Business Regulation / The closing price of the stock on the day immediately preceding the action date)

8. The provisions of subparagraphs 1 through 7 shall apply *mutatis mutandis* to the case where a stock that is the underlying asset of a ELW is listed on the KOSDAQ market.

Change of the Last Trading Day, etc. of ETNs

(Pertaining to [§123-9/2-3] of the Enforcement Rules)

1. In cases where an ETN is delisted as it falls under the criteria for delisting stipulated in [§149-7] of the Regulation, the last trading day and the maturity date of the concerned ETN shall be changed as follows:
 - (a) The last trading day shall be changed into the trading day immediately preceding the delisting date; and
 - (b) The maturity date shall be changed into the day two trading days have elapsed from the last trading day changed according to item (a).
2. In cases where the last trading day or the maturity date of an ETN falls on a market holiday or trade suspension date, the last trading day or the maturity date concerned shall be changed in accordance with each of the followings. In such cases, if the last trading day is changed, the maturity date shall be the day two trading days have elapsed from the new last trading day.
 - (a) If the last trading day or the maturity date of an ETN is confirmed to fall on a market holiday or a trade suspension date before the 15th day retroactively from the last trading day or the assessment date of early redemption: It shall be the trading day immediately preceding the last trading day concerned or the assessment date of early redemption concerned; and
 - (b) If the last trading day or the maturity date of an ETN is confirmed to fall on a market holiday or a trade suspension date after the 15th day retroactively from the last trading day or the assessment date of early redemption: It shall be the trading day immediately following the last trading day concerned or the assessment date of early redemption concerned.

[Annex 10] Listing fees and annual dues

(Amended on June 25, 2014; September 2, 2014; July 31, 2015; December 2, 2015; September 6, 2016; February 8, 2017; October 27, 2017; December 28, 2018; January 25, 2019; April 29, 2019; June 10, 2020; July 23, 2020; February 14, 2022; May 8, 2023; March 11, 2024; May 14, 2025; December 29, 2025)

Listing Fees and Annual Dues

(Pertaining to [§128] of the Enforcement Rules)

1. Listing fees

(a) Common stocks, foreign stocks, different classes of stocks (including different classes of foreign stocks; the same hereinafter) and SPACs

Fees			
Listing review		Equity capital (in KRW billion)	Fees for listing review
		≤100	KRW 5 million
		>100 and ≤500	KRW 10 million
		>500 and ≤1,000	KRW 15 million
		>1,000	KRW 20 million
(However, it shall be KRW 2,500,000 for different classes of stocks and SPACs)			
Initial listing	The amounts calculated by multiplying the amounts to be listed by following fee rates. (The maximum amount shall be KRW 250 million.)		
	Amount to be listed (in KRW billion)	Fee rates	
	≤50	KRW 1 million	
	>50 and ≤100	KRW 5 million + KRW 75,000 per KRW 1 billion for the amount to be listed in excess of KRW 50 billion	
	>100 and ≤200	KRW 8.75 million + KRW 60,000 per KRW 1 billion for the amount to be listed in excess of KRW 100 billion	
	>200 and ≤500	KRW 14.75 million + KRW 45,000 per KRW 1 billion for the amount to be listed in excess of KRW 200 billion	
	>500 and ≤2,000	KRW 28.25 million + KRW 35,000 per KRW 1 billion for the amount to be listed in excess of KRW 500 billion	
	>2,000 and ≤5,000	KRW 80.75 million + KRW 25,000 per KRW 1 billion for the amount to be listed in excess of KRW 2 trillion	
	>5,000 and ≤10,000	KRW 155.75 million + KRW 15,000 per KRW 1 billion for the amount to be listed in excess of KRW 5 trillion	
	>10,000	KRW 230.75 million + KRW 5,000 per KRW 1 billion for the amount to be listed in excess of KRW 10 trillion	
•Re-listing •Supplementary listing (including the listing after merger under [§2(1)1(d)(i)] of the Regulation) •Listing after merger (limited to [§2(1)1(d)(ii)] of the Regulation)	The amounts calculated by multiplying the amounts to be listed by following fee rates. (The maximum amount shall be KRW 80 million.)		
	Amount to list (in KRW billion)	Fee rates	
	≤3	KRW 500,000 per KRW 1 billion (However, fixed rate of KRW 250,000 for the amount to be listed of KRW 100 million or less and KRW 500,000 for the listing amount over KRW 100 million but less than or equal to KRW 1 billion)	
	>3 and ≤20	KRW 1.5 million + KRW 210,000 per KRW 1 billion for the amount to be listed in excess of KRW 3 billion	
	>20 and ≤50	KRW 5.07 million + KRW 180,000 per KRW 1 billion for the amount to be listed in excess of KRW 20 billion	
	>50 and ≤100	KRW 10.47 million + KRW 150,000 per KRW 1 billion for the amount to be listed in excess of KRW 50 billion	
	>100 and ≤200	KRW 17.97 million + KRW 120,000 per KRW 1 billion for the amount to be listed in excess of KRW 100 billion	
	>200 and ≤500	KRW 29.97 million + KRW 80,000 per KRW 1 billion for the amount to be listed in excess of KRW 20 billion	
>500	KRW 53.97 million + KRW 30,000 per KRW 1 billion for		

		the amount to be listed in excess of KRW 500 billion
Listing change	KRW 2,000,000 per case	

Notes:

1. The fees for listing review are imposed only for the listing eligibility review.
- 1-2. With regard to the calculation of fees for listing review, the equity capital of a company with subsidiaries shall be based on the amount obtained by excluding non-controlling interests from the total shareholders' equity recorded in the consolidated financial statement.
2. The amounts to be listed in calculating listing fees shall be based on each of followings:

	Fee Calculation
Initial listing	Base market capitalization
Supplementary listing (including the listing after merger under [§2(1)(d)(i)] of the Regulation)	Market capitalization of the stocks to be listed, which is the amount determined by multiplying the number of stocks to be listed by the closing price of the day immediately preceding the date of application for listing. Provided that in the case of a supplementary listing made at the same time as the listing change after spin-off, the appraisal price under [Annex 1] of the Enforcement Rules of KOSPI Market Business Regulation shall be used instead of the closing price.
Re-listing	Re-listing amount which is the amount calculated by multiplying the number of stocks to be re-listed by the appraisal price. * The appraisal price shall refer to the appraisal price under [Annex 1] of the Enforcement Rules of KOSPI Market Business Regulation.
Listing after merger (limited to [§2(1)(d)(ii)] of the Regulation)	The amount obtained by converting the number of stocks of the applicant for listing after merger before the merger to the number of stocks of the SPAC based on the merger ratio and multiplying by the closing price on the last trading day of the SPAC

3. The fees for supplementary listing shall be determined per issuing date, but the fees for supplementary listing of new stocks issued as a result of exercise of subscription rights, conversion rights and stock options shall be determined per application date of the supplementary listing.
4. The fees for supplementary listing shall apply to the case of change of the class of stocks resulting from exercise of conversion rights.
5. In the case of a supplementary listing of the stocks issued by the exercise of over-allotment options, the supplementary listing fees shall be the amount calculated by subtracting the initial listing fees already paid from the initial listing fees determined for the aggregate number of stocks already listed and the additional stocks.
6. In cases where a KOSPI-listed corporation lists different classes of stocks together with common stocks (including foreign stocks, etc.) at the same time, the listing review fees for the different classes of stocks shall be KRW 1,000,000 and other listing fees shall be imposed on the aggregate listing amount of common stocks and different classes of stocks as one single case.
7. In cases where a KOSPI-listed corporation lists multiple issues of different classes of stocks at the same time, the listing fees and listing review fees shall be imposed on the aggregate amount to be listed by handling those issues as one single case.
8. When determining the listing fees per KRW 1 billion of listing amount, the amount less than KRW 1 billion shall be rounded off.
9. In cases where an applicant submits several applications for listing change on a same day, the fees for listing change shall be determined by handling those applications as one single case.
10. In the case of a listing after merger of a SPAC, the equity capital shall be based on the equity capital of the merger target company when listing fees are calculated.

(b) Collective investment securities (excluding beneficiary certificates) and ETNs

	Fees
Listing review	• KRW 5 million for the stocks of real estate investment funds and securities of ETFs • KRW 2 million for ETNs. Provided that KRW 400,000 for loss-cut ETNs.
•Initial listing •Supplementary listing	1/3 of the fees determined in accordance with item (a)
Listing change	KRW 300,000 per case

Notes:

1. For ETF beneficiary certificates (including foreign ETF beneficiary certificates; the same hereinafter) or ETNs, the “amount to be listed” shall construed as the “trust principal” or the “issuing principal”, respectively.
2. The listing fees of securities of ETFs (including securities of foreign ETFs; the same hereinafter) shall be calculated per issue.
3. In cases where an applicant submits several applications for listing change on a same day, the fees for listing change shall be determined by handling those applications as one single case.
4. The listing review fees of ETNs shall be imposed when the listing eligibility review is applied for.
5. In cases where a real estate investment fund lists different classes of stocks together with common stocks at the same time, the listing review fees for the different classes of stocks shall be KRW 1,000,000 and other listing fees shall be imposed on the aggregate listing amount of common stocks and different classes of stocks as one single case.
6. In cases where a real estate investment fund lists multiple issues of different classes of stocks at the same time, the listing fees and listing review fees shall be imposed on the aggregate amount to be listed by handling those issues as one single case.

(c) Debt securities (including foreign debt securities; the same hereinafter), beneficiary certificates and subscription warrants

Beneficiary certificates and subscription warrants		
	Fees	
Initial listing	The amount calculated by applying following fee rates to the amount to be listed of each issue based on par value (for the subscription warrants, total par value of the stocks to which the warrants are entitled.) * The fees for beneficiary certificates shall be 1/3 of the amounts calculated, with the minimum amount of KRW 100,000.	
	Amount to be listed (in KRW billion)	Fee rates
	<1	KRW 100,000
	≥1 and <2	KRW 150,000
	≥2 and <5	KRW 300,000
	≥5 and <10	KRW 700,000
	≥10 and <15	KRW 1,000,000
	≥15 and <25	KRW 1,200,000
	≥25 and <50	KRW 1,300,000
	≥50 and <100	KRW 1,400,000
	≥100 and <200	KRW 1,500,000
	≥200 and <500	KRW 1,600,000
	≥500	KRW 1,700,000
•Re-listing •Supplementary listing	KRW 300,000 per case (for beneficiary certificates, KRW 100,000)	
Listing change	KRW 300,000 per case	

Notes:

1. In the cases that falls under any of the followings, the amounts to list in calculating the initial listing

fees of debt securities shall be determined by handling the amounts issued on a same day as one single issue, based on the date of listing application:

- a. Case of an application for shelf-listing pursuant to [§87(1)] of the Regulation;
 - b. Among the cases that are not the applications for shelf-listing, the case of debt securities that are issued on a same day to be distributed throughout the month.
 - c. The mortgage-backed securities and student loan-backed securities which are issued by Korea Housing Finance Corporation established under the “Korea Housing Finance Corporation Act”, according to the mortgage securitization plans.
2. The listing of debt securities issued as a result of exercise of the subscription rights of bonds with non-detachable warrants shall be deemed as a listing change.
 3. The listing change as a result of exercise of the rights of subscription warrants shall be exempted from listing fees.
 4. In cases where an applicant submits several applications for listing change on a same day, the fees for listing change shall be determined by handling those applications as one single case.
 5. In cases where the stocks to which a bond with warrant is entitled have no par value, the “total par value” shall be construed as the “amount obtained by multiplying the number of stocks with no par value concerned by the capital stock per share”.

(d) Equity-linked warrants (ELWs)

	Fees	
•Initial listing •Supplementary listing	The amount calculated by applying following fee rates to the amount to list of each issue based on total issuing amount.	
	Amount to be listed (in KRW billion)	Fee rates
	≥1 and <2	KRW 200,000
	≥2 and <5	KRW 310,000 + KRW 90,000 per KRW 1 billion for the amount in excess of KRW 2 billion
	≥5 and <10	KRW 580,000 + KRW 80,000 per KRW 1 billion for the amount in excess of KRW 5 billion
	≥10 and <50	KRW 980,000 + KRW 70,000 per KRW 1 billion for the amount in excess of KRW 10 billion
	≥50 and <100	KRW 3,780,000 + KRW 30,000 per KRW 1 billion for the amount in excess of KRW 50 billion
	≥100	KRW 5,280,000 + KRW 10,000 per KRW 1 billion for the amount in excess of KRW 100 billion
Listing change	KRW 100,000 per case	

Notes:

1. The listing change subsequent to the exercise of rights, the change of issue name of the underlying stock or the title change of underlying index shall be exempted from listing fees.
2. In case where an applicant submits several applications for listing change on a same day, the fees for listing change shall be determined by handling those applications as one single case.

2. Annual Dues

(a) Common stocks, foreign stocks, etc., different classes of stocks and SPACs

Annual Dues
1. Annual dues paid regularly: The amounts of annual dues are calculated by applying the fee rates shown below, on the basis of average market capitalization of the latest year. Provided that the maximum amount shall be KRW 50 million.
2. Annual dues paid irregularly: The amounts of annual dues are calculated by prorating the annual dues, calculated by applying the fee rates shown below to the average market capitalization for the year concerned up to the day when the decision on de-listing was made,

by the number of days of the period from the first day of the year to which the de-listing date belongs to the day before the de-listing date. Provided that the maximum amount shall be KRW 50 million.

Average market capitalization (in KRW billion)	Fee Rates
≤20	KRW 1.2 million
>20 and ≤50	KRW 1.2 million + KRW 8,000 per KRW 1 billion of average market capitalization in excess of KRW 20 billion
>50 and ≤100	KRW 1.44 million + KRW 7,000 per KRW 1 billion of average market capitalization in excess of KRW 50 billion
>100 and ≤200	KRW 1.79 million + KRW 6,000 per KRW 1 billion of average market capitalization in excess of KRW 100 billion
>200 and ≤500	KRW 2.39 million + KRW 5,000 per KRW 1 billion of average market capitalization in excess of KRW 200 billion
>500 and ≤2,000	KRW 3.89 million + KRW 3,000 per KRW 1 billion of average market capitalization in excess of KRW 500 billion
>2,000 and ≤5,000	KRW 8.39 million + KRW 1,200 per KRW 1 billion of average market capitalization in excess of KRW 2,000 billion
>5,000	KRW 11.99 million + KRW 800 per KRW 1 billion of average market capitalization in excess of KRW 5,000 billion

Notes:

1. When calculating the annual dues paid regularly for initial listing or re-listing, the amounts shall be determined by prorating the amounts calculated according to the Table above by the number of days from the initial listing date or re-listing date to the last day of the concerned year.
2. In the case of initial listing or re-listing, the average market capitalization shall be calculated based on the concerned number of days.
3. The average market capitalization shall be calculated based on the aggregate the market capitalization of common stocks and different classes of stocks issued by the concerned listed corporation.
4. When determining the fees per KRW 1 billion, the number less than KRW 1 billion shall be rounded off.
5. The average market capitalization shall be the simple arithmetic average of the listed market values. In such cases, if the trading is suspended, the market capitalization of the day immediately preceding the trading suspension date shall apply as the daily market capitalization for the period of trading suspension.

(b) Collective investment securities (excluding beneficiary certificates) and ETNs

Annual dues of collective investment securities and ETNs shall be 1/3 of the fees determined in accordance with item (a)

Notes:

1. For ETF beneficiary certificates, the “average market capitalization” shall be construed as the “average trust principal”.
2. For ETNs, the “average market capitalization” shall be construed as the “average issuing principal”.

(c) Debt securities

Annual dues (including those for re-listing) of debt securities shall be KRW 100,000 per one (1) year of the remaining years to redemption for each issue based on listing date or re-listing date. Provided that, for the application for shelf-listing pursuant to [§87(1)] of the Regulation and, among the cases that are not the applications for non-shelf-listing, for the case of debt securities issued on a same day and distributed throughout the month, the annual dues shall be calculated based on the issuing date, and those issued on a same day shall be regarded as one issue by the method of interest payments and the term to redemption.

(d) Beneficiary certificates and subscription warrants

Annual Dues	
The annual dues are calculated by applying following fee rates based on the number of issues listed as of the end of the latest year.	
	Fee rates
For basic one (1) issue	KRW 300,000
For an issuer listed multiple issues	KRW 100,000 per one (1) additional issue

(e) Equity-linked warrants (ELWs)

Annual dues of ELWs shall be KRW 100,000 per issue. Provided that, for an issue of which listed period in the immediately preceding year is shorter than one (1) year, it shall be the amount obtained by prorating the concerned listing period by the number of months (the period less than one month shall be discarded).

Notes: The “listed period in the immediately preceding year” shall mean the period from the date of initial listing to the last day of the immediately preceding year for the issues listed in the immediately preceding year, and from the first day of the immediately preceding year to the last day of the immediately preceding year for the issues listed before the immediately preceding year. Provided that, in the case where the relevant issue was delisted in the immediately preceding, “the last day of the immediately preceding year” shall be construed as “the day preceding the delisting date”.

3. Timing (Deadline) for Payment of Listing Fees and Annual Dues

(a) Listing fees

	Payment Timing
Fees for listing eligibility review	At the time of applying for listing eligibility review
Listing fees for shelf-listing applications pursuant to [§45(1)] or [§87(1)] of the Regulation	At the time of notifying results of issuance or submitting related documents pursuant to [§45(2)] or [§87(2)] of the Regulation
Listing fees for other cases	At the time of applying for listing

Notes:

1. For ETNs, the fees for listing review can be paid by the date when the documents on listing review determined by the Exchange pursuant to [§91(2)] of the Enforcement Rules and the listing fees can be paid by the next day of the day when the amount to list or the trust principal is finalized.
2. The payment of re-listing fees for common stocks can be made by the listing date.

(b) Annual dues

	Payment Deadlines
Regular payments	Annual dues of the latest year for the stocks listed as at the end of the latest year shall be paid by the end of January of each year.
Irregular payments	Annual dues shall be paid before being delisted.

Notes:

1. The issuers of beneficiary certificates may make prepayments of total amount of annual dues for the term to redemption at the time of applying for listing.
2. The issuers of debt securities shall prepay the total amount of annual dues for the term to redemption at the time of applying for listing (for the debt securities for which the shelf-listing was applied pursuant to §87(1) of the Regulation, it shall refer to the time of notification on the results of issuance pursuant to §87(2) of the Regulation.) In such cases, for the debt securities of which term to redemption is shorter than one (1) year, it shall be calculated by prorating the amount by the number of months (the period less than one month shall be discarded) and when the term to redemption is longer than five (5) years, it shall be regarded as five (5) years.
3. Annual dues of ELWs shall be paid by the deadlines for regular payments.
4. The irregular payment of annual dues of an ETN that is delisted pursuant to subparagraph 3(b) through (d) of §149-7 of the Regulation shall be made within five (5) business days from the date of notification of bill of payment.

4. Exemption of Listing Fees and Annual Dues

The Exchange may exempt the listing fees and annual dues that fall under any of the following. In this case, (a)(vii) shall apply only to listed debt securities (including beneficiary certificates noted in §111 of the Regulation) for which registration has been decided pursuant to §6 of the Guidelines for Operation of ESG Bond Information Platform by December 31, 2025 [the deadline shall be December 31, 2026 in the case of Korean green bonds (referring to green bonds as defined in §2(2) of the Guidelines for Operation of ESG Bond Information Platform and in compliance with the Korean Green Bond Guidelines as defined in §4(2)1 of the same Guidelines):

(a) Listing fees and annual dues of debt securities falling under any of the following:

- (i) Listing fees and annual dues for government debt securities, municipal government debt securities and monetary stabilization securities;
- (ii) Annual dues for debt securities of which term from the listing date to maturity is less than one (1) year;
- (iii) Annual dues for debt securities that were listed as a result of exercise of subscription rights of bonds with non-detachable warrants;
- (iv) Listing change fees for debt securities stipulated in §46(3), §163(1) and §163(3) of the Regulation;
- (v) In case where a corporation listed on the KOSDAQ market or the KONEX market submits an application for listing change of debt securities together with an application for supplementary listing or listing change of the stocks listed on the relevant market, the listing change fees for the debt securities concerned;

(vi) [Deleted on March 11, 2024]

(vii) In case where a corporation listed debt securities (including the beneficiary certificates noted in [§111] of the Regulation) completes the registration in accordance with the Guidelines for Operation of ESG Bond Information Platform, listing fees and annual dues for the debt securities concerned.

(b) Following supplementary listing fees or listing change fees

(i) Listing change fees for ELWs, ETNs or subscription warrants under [§46(3)], [§163(1)] and [§163(3)] of the Regulation;

(ii) For the securities of ETFs, the fees for supplementary listing due to additional establishment and new issuance, and the fees for listing change due to redemption and change of trust principal; and

(iii) For ETNs, the fees for listing change due to the reduction in quantity of securities (excluding reverse splits) under [§149-5] of the Regulation.

(c) Annual dues falling under any of the followings as of the imposition date.

(i) In cases where a stock-listed corporation falls under the following reasons for delisting stipulated in the Regulation, annual dues for the stocks (including foreign DRs; the same hereinafter in this Subparagraph) and the subscription warrants issued by the corporation concerned:

Ⓐ Reasons for capital impairment;

Ⓑ Reasons for dissolution (limited to the dissolution due to the bankruptcy as prescribed in Subparagraph 5 of Article 227 of the Commercial Act and the order or judgment of a court as prescribed in Subparagraph 6 of the same Article of the Commercial Act.);

Ⓒ Reasons for final default or suspension of transactions with banks;

Ⓓ Reasons for listing maintenance review concerning rehabilitation procedure; and

Ⓔ Reasons for listing maintenance review concerning suspension of main business.

(ii) [Deleted on December 2, 2015]

(d) In cases where a corporation is delisted during the period for regular payments or within three (3) months after the payment period ended (including the case where the causes for delisting have occurred, while excluding the case of being delisted after the improvement period was granted), the amount of annual dues for the period from the first day of the year to which such delisting date belongs to the previous day of the delisting date.

(e) Supplementary listing fees, listing change fees and annual dues for the stocks and subscription warrants issued by a corporation who is under the rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act (in case of foreign stocks, etc.-listed corporations, it refers to the relevant laws of home countries).

(f) [Deleted on December 2, 2015]

(g) In cases where the stocks of KOSDAQ-listed corporations are newly listed, the initial listing fees for such stocks

(h) Listing fees and annual dues for subscription rights certificates

(i) Supplementary listing fees and listing change fees of a KOSDAQ-listed corporation that was selected as an outstanding disclosure corporation pursuant to the KOSPI Market Disclosure Regulation. Provided that it shall be limited within one year after the date of selection of outstanding disclosure corporation.

(j) In addition, the listing fees and annual dues that the Exchange deems it necessary to exempt for the purpose of market administration, etc.

5. Other Matters relating to Listing Fees and Annual Dues

(a) Notification of bill of payment and measures against non-payments

(i) With respect to the payment of annual dues, the Exchange shall notify the listed corporations of such fact by the day two (2) weeks before the due date for the regular payments and by the day one (1) week before the delisting date for the irregular payments. Provided that, in the case of an ETN that is delisted pursuant to subparagraph 3(b) through (d) of [§149-7] of the Regulation, the notification of irregular payment shall be made by the business day following the date of occurrence of the cause for delisting.

(ii) In cases where a listed corporation fails to make payment of the annual dues within three (3) months after the due date, the Exchange may file legal actions such as request for an order of payment against the concerned corporation. Provided that this provision shall not apply to the delisted corporations.

(b) Refund and additional payments

(i) In cases where the listing application of stocks of a corporation was rejected, the Exchange shall refund the listing fees and the total amount of annual dues that were prepaid for beneficiary certificates and debt securities to the corporation concerned. Provided that the fees for listing eligibility review shall not be refundable once the listing eligibility review process has commenced.

(ii) In cases where a debt security of which annual dues were prepaid is delisted during the term to redemption, the Exchange shall return the amount of annual dues obtained by subtracting the amount prorated by the number of months to the previous day of delisting date from the total amount prepaid. In such cases, the refund of

annual dues shall be made upon receiving the notification of the reasons for delisting and the request for refund of annual dues that the debt security-listed corporation makes in accordance with the listing agreement.

(iii) In cases where an issuer of debt securities who has paid annual dues extends the term to redemption, the annual dues for the period extended shall be imposed in the same manner as the case of application for initial listing.

(iv) In cases where the registration of the debt securities (including the beneficiary certificates noted in [§111] of the Regulation), which were exempted from listing fees and annual dues pursuant to subparagraph 4(a)(vii), is canceled in accordance with [§9] of the Guidelines for Operation of ESG Bonds Information Platform, the exempted listing fees and annual dues shall be paid. Provided that, this provision shall not apply to debt securities delisted pursuant to [§92(1)2] or [§97,3] of the Regulation, and thus the registration is canceled in accordance with [§9] of the same Guidelines.

(c) Basic exchange rates, etc.

(i) When determining the listing fees and annual dues for the securities issued by foreign corporations, the basic exchange rates that are determined and announced pursuant to the Foreign Exchange Transaction Regulations shall be used as follows:

- Ⓐ For listing fees, the basic exchange rate on the listing application date;
- Ⓑ For annual dues, the basic exchange rate at the end of the latest year. Provided that, for the cases of irregular payments, the basic exchange rate of the day when the decision to delist was made.

(ii) The amounts of listing fees and annual dues less than KRW 100 shall be discarded.

[Annex 11] Industry sector classification and code assignment

(Amended on June 26, 2017)

Industry Sector Classification and Code Assignment

(Pertaining to [§132] of the Enforcement Rules)

Sector		Subsector		Industry Group	
Name	Code	Name	Code	Name	Code
Agriculture, forestry and fishing industry	01	Agriculture	01	Growing of crops	01
				Livestock production	02
				Crop and livestock mixed farming	03
				Crop farming and livestock production related service	04
				Hunting and related services	05
		Forestry	02	Forestry	01
		Fisheries	03	Fishing	01
				Aquaculture and fisheries related services	02
Mining industry	02	Coal, crude oil and natural gas extraction	05	Coal mining	01
				Extraction of crude oil and natural gas	02
		Metal ores mining	06	Iron ores mining	01
				Nonferrous metal ores mining	02
		Nonmetal mining (excluding those used as fuel)	07	Gravels, sands and stones mining	01
				Other nonmetal mining	02
Mining support services	08	Mining support services	01		
Manufacturing industry	03	Food manufacturing	10	Butchery, meat and meat products processing and preserving	01
				Fisheries product processing, storage and handling	02
				Fruits and vegetable processing, storage and handling	03
				Animal and vegetable oil and dairy products manufacturing	04
				Grain processing, starch and starchy products manufacturing	05
				Rice cake, bread and confectionery manufacturing	06
				Lunch boxes and prepared food for meals manufacturing	07
				Other food manufacturing	08
				Animal feeds and processed food manufacturing	09
				Beverage manufacturing	11
		Non-alcoholic beverage and ice manufacturing	02		
		Tobacco manufacturing	12	Tobacco manufacturing	01
		Textile manufacturing (excluding ready-wear apparel)	13	Spinning and processing	01
				Textile weaving and woven goods manufacturing	02
				Knitted fabrics manufacturing	03
				Textile dyeing, arranging and finishing industries	04
		Ready-wear apparel, accessories& fur goods manufacturing	14	Other textile manufacturing	09
				Ready-wear apparel manufacturing	01
				Fur products manufacturing	02
				Knit wear manufacturing	03
		Leather, bag, handbag and footwear manufacturing	15	Cloth accessories manufacturing	04
				Leather, bags and other similar products manufacturing	01
				Footwear and footwear parts manufacturing	02
		Lumber and wood products manufacturing (excluding furniture)	16	Lumbering and wood processing	01
				Wood products manufacturing	02
				Cork and wood construction materials manufacturing	03

		Pulp, paper and paper products manufacturing	17	Pulp, paper & paperboard manufacturing	01
				Corrugated paperboard, cardboard box & paper container manufacturing	02
				Other paper products & cardboard products manufacturing	03
		Printing and reproduction of recorded media	18	Printing & printing related business	01
				Recorded media reproduction business	02
		Coke, briquette and refined petroleum manufacturing	19	Coke and briquette manufacturing	01
				Refined petroleum manufacturing	02
		Chemical and chemical products manufacturing (excluding pharmaceuticals)	20	Basic chemicals manufacturing	01
				Synthetic rubber and plastic substance manufacturing	02
				Fertilizers, pesticides, germicides and insecticides manufacturing	03
				Other chemicals manufacturing	04
				Man-made fibers manufacturing	05
		Manufacturing of pharmaceuticals, medical supplies and botanical products	21	Manufacturing of medical chemicals	01
				Medicaments manufacturing	02
				Manufacturing of medical supplies and related other medicaments	03
		Manufacturing of rubber and plastic products	22	Rubber products manufacturing	01
				Plastic products manufacturing	02
		Manufacturing of non-metallic mineral products	23	Glass and glass products manufacturing	01
				Refractory and non-refractory ceramic products manufacturing	02
				Manufacturing of cement, lime, plaster and other such products	03
				Other non-metallic mineral product manufacturing	09
		Basic metals manufacturing	24	Basic iron and steel industries	01
				Basic nonferrous metals industries	02
				Metal casting industries	03
		Manufacturing of fabricated metal products, except machinery and furniture	25	Structural metal products, tanks and steam generators manufacturing	01
				Weapons and ammunition manufacturing	02
				Other fabricated metal products manufacturing; metalworking services	09
		Electronics parts, computer, imaging, sounding and communication equipment manufacturing	26	Semiconductor manufacturing	01
				Electronics parts manufacturing	02
				Computer and computer periphery manufacturing	03
				Communication and broadcasting equipment manufacturing	04
				Imaging and sounding equipment manufacturing	05
				Magnetic & optical medium manufacturing	06
		Manufacturing of medical, precision and optical instruments, watches and clocks	27	Manufacturing of medical and dental instruments and supplies	01
				Manufacturing of measuring, testing, navigating and control equipment; except optical instruments	02
				Photographic equipment and optical instruments manufacturing	03
				[Deleted on April 3, 2024]	
		Electric equipment manufacturing	28	Electric motor, generator and electricity transformer, distributor & regulator manufacturing	01
				Primary battery & secondary battery manufacturing	02
				Insulated wire & cable manufacturing	03
				Light bulb & lighting equipment manufacturing	04
				Household appliances manufacturing	05
				Other electric equipment manufacturing	09

		Other machineries and equipment manufacturing	29	General purpose machinery manufacturing	01
				Special purpose machinery manufacturing	02
		Motor vehicles, trailers and semitrailers manufacturing	30	Motor vehicles and engines for motor vehicles manufacturing	01
				Motor vehicle bodies or trailers manufacturing	02
				Manufacturing of parts and accessories for motor vehicles (new products)	03
				Motor vehicle parts and accessories manufacturing (remanufacturing products)	04
		Other transportation equipment manufacturing	31	Ships & boats manufacturing	01
				Railroad equipment manufacturing	02
				Aircrafts, spaceships and their parts manufacturing	03
				Other transportation equipment manufacturing	09
		Furniture and other products manufacturing	32	Furniture manufacturing	01
		Other manufacturing	33	Precious metals & ornament manufacturing	01
				Musical instrument manufacturing	02
				Sporting goods manufacturing	03
				Dolls, toys and recreational apparatus manufacturing	04
				Other products manufacturing	09
		Maintenance and repair services of industrial machinery and equipment	34	Maintenance and repair services of industrial machinery and equipment	01
Electricity, gas, steam and air conditioning supply industry	04	Electricity, gas, steam and air conditioning supply industry	35	Electric power generation, transmission and distribution	01
				Manufacturing of gaseous fuel and gas piping and supply	02
				Steam, chilled or hot water and air conditioning supply	03
Water supply; sewage, waste management, materials recovery industry	05	Water supply	36	Water supply	01
		Sewage, wastewater, human and animal waste treatment services	37	Sewage, wastewater, human and animal waste treatment	01
		Wastes collection, transport, treatment and materials recovery	38	Waste collection and transport	01
				Waste treatment and disposal services	02
				Dismantling and sorting recoverable materials and materials recovery	03
		Environmental sanitation and reclamation	39	Environmental sanitation and reclamation	01
Construction industry	06	General construction	41	Building construction	01
				Civil engineering construction	02
		Specialized construction	42	Site preparation and construction of foundation works and structures	01
				Construction of installing building equipment	02
				Electrical and communication works	03
				Building completion and finishing	04
				Repair and maintenance work for construction works and supplementary facilities	05
				Construction machinery and equipment operation	06
Wholesale and Retail industry	07	Sale of motor vehicles and parts	45	Sale of motor vehicles	01
				Sale of motor vehicle parts and accessories	02
				Sale of motorcycles and related parts and accessories	03
		Wholesales and merchandise brokers	46	Merchandise brokers	01
				Wholesale of agricultural raw materials	02

				and live animal and plants	
				Wholesale of foods, beverages and tobaccos	03
				Wholesale of household goods	04
				Wholesale of machinery equipment and supplies	05
				Wholesale of construction materials, hardware and heating and air conditioning equipment	06
				Other specialized wholesale	07
				Non-specialized wholesale	08
		Retailers, except motor vehicles and motorcycles	47	General retails	01
				Retail of foods, beverages and tobaccos	02
				Retails of household electrical appliances and information & communication equipment	03
				Retails of textiles, apparel, footwear and leather goods	04
				Retails of other household goods	05
				Retails of cultural, recreational and leisure goods	06
				Fuel retailing	07
				Other goods specialized retailing	08
				Non-store retailing	09
				Transport via railways	01
Transportation & storage industry	08	Land transport and transport via pipelines	49	Passenger land transport, except railway transport	02
				Freight transport via road	03
				Courier and messenger activities	04
				Transport via pipelines	05
				Sea and coastal water transport	01
		Water transport	50	Inland water & in-harbor transport	02
		Air transport	51	Passenger air transport	01
				Freight air transport	02
		Warehousing and transport related services	52	Storage & warehousing services	01
				Other transport related services	09
Accommodation and food services industry	09	Accommodation	55	General accommodation and accommodation with cooking facilities	01
				Other accommodation	09
		Food and beverage services	56	Restaurants and mobile food services	01
				Drinking places and non-alcoholic beverage places	02
Information and communication industry	10	Publishing activities	58	Book, magazine and other printed material publishing business	01
				Software development and supply business	02
		Video & audio recording and distribution	59	Movie, video, broadcasting program production and distribution	01
				Audio material publication and disk recording	02
		Broadcasting and video/audio product service	60	Radio broadcasting	01
				Television broadcasting	02
				Video/audio product service	03
		Postal services and telecommunications	61	Postal services	01
				Telecommunications	02
		Computer programming, system integration and management	62	Computer programming, system integration and management	01
		Information services	63	Data processing, hosting, web portals and other related services	01
				Other information services	09
Financial and insurance industry	11	Financial services, except insurance and pension funding	64	Banks & savings institutions	01
				Trust and collective Investment businesses	02
				Other financial services	09
		Insurance	65	Insurance	01
				Reinsurance	02
				Mutual-aid business	03

		Services related to finance and insurance	66	Financial support related services	01
				Insurance & pension related services	02
Real estate industry	12	Real estate services	68	Real estate leasing and supply	01
				Real estate related services	02
Professional, scientific and technical service industry	13	Research and development	70	Natural science and technology R&D services	01
				R&D services on social science and humanities	02
		Professional services	71	Legal services	01
				Accounting and tax related services	02
				Advertising	03
				Market research and public opinion survey	04
				Head office and management consulting services	05
				Other professional services	06
		Architectural, engineering and other scientific & technical services	72	Architectural, engineering and related technical services	01
				Other scientific and technical services	09
		Other professional, scientific and technical services	73	Veterinary services	01
				Professional design services	02
				Photography & processing business	03
				Other professional, scientific and technical services	09
Business facilities management, business support and rental & leasing services industry	14	Business facilities management and landscaping services	74	Combined facilities support services	01
				Cleaning and pest control services of building and industrial facilities	02
				Landscape management and maintenance services	03
		Business support services	75	Employment agencies and supply of human resources	01
				Travel agent and other travel support services	02
				Security, guard and detective services	03
				Other business support services	09
		Rental and leasing services, except real estate	76	Renting of transport equipment	01
				Renting of personal and household goods	02
				Renting of industrial machinery and equipment	03
				Leasing of intangible property	04
Public administration, national defense and social security industry	15	Public administration, national defense and social security services	84	Legislative and general government administration	01
				Social and industrial policies administration	02
				Foreign affairs and national defense administration	03
				Judicial and public order administration	04
				Social security administration	05
				Social security insurance and pension service	06
Educational service industry	16	Educational services	85	Pre-primary and primary education	01
				Secondary education	02
				Higher education	03
				Special, foreign and alternative schools	04
				General educational institutions	05
				Other educational institutions	06
				Educational support services	07
Health and social welfare service industry	17	Health services	86	Hospitals	01
				Medical and dental clinics	02
				Public health centers	03
				Other health services	09
		Social welfare services	87	Residential welfare facilities	01
				Non-residential welfare facilities	02
Arts, sports and recreation related service industry	18	Creative, arts and recreation related services	90	Creative and arts related services	01
				Libraries, historical sites and similar recreation related services	02
		Sports and amusement	91	Sport services	01

		related services		Amusement parks and other recreation services	02
Membership organizations, repair and other personal services industry	19	Membership organizations	94	Industrial and professional membership organizations	01
				Labor unions	02
				Other membership organizations	09
		Maintenance and repair services for personal and household goods	95	Maintenance and repair services for computers and communication equipment	01
				Maintenance and repair services for motor vehicles and motorcycles	02
				Personal and household goods repair services	03
		Other personal services	96	Personal care services	01
				Other personal services	09
Household employment activities and unclassified production activities for self-consumption	20	Household employment activities	97	Household employment activities	01
		Unclassified production of goods and services for self-consumption	98	Goods-producing activities of households for self-consumption	01
				Service-producing activities of households for self-consumption	02
International and foreign organizations	21	International and foreign organizations	99	International and foreign organizations	01

[Annex: Form No. 1] Application for delisting of stocks

(Amended on September 2, 2014; September 10, 2019)

Application for Delisting of Stocks

To Chairperson of Korea Exchange,

Date of application: mm/dd/yyyy

Corporate name of applicant:

Name & Seal/Signature of Representative:

_____(Company name) does hereby apply for the delisting of following stocks, pursuant to [§7] of the KOSPI Market Listing Regulation and [§6] of the Enforcement Rules of the same Regulation.

1. Matters on the stocks of which delisting is applied for

Name of issue (ISIN)	()
Number of stocks issued (established)	
Number of stocks listed	
Capital stock / total amount issued / amount of trust principal (in KRW)	
Expiration date of trust / maturity date	
Holding status (issue or liquidity provider)	
Remarks	

Notes:

1. Shall be prepared based on the application date
2. The 'holding status' is applied only for ELWs and ETNs.
3. For ELWs and ETNs, the issuing date and the issuance amount shall be stated in "Remarks".

2. Reasons for delisting:

[Annex: Form No. 2] Listing agreement

(Amended on September 2, 2014; July 31, 2015; December 2, 2015)

Listing Agreement for Domestic Company

Article 1 (Purpose) The purpose of this Agreement is to stipulate the basic matters with which _____ (the “Company”) shall, upon listing its securities on the Korea Exchange (the “Exchange”), comply as a listed corporation, for the sake of formation of fair price, efficient trading of securities and protection of investors, etc.

Article 2 (Observance of laws and regulations) The Company shall observe faithfully following laws and regulations, which are currently enforced, may be established and amended from time to time in the future.

1. Financial Investment Services and Capital Markets Act, Enforcement Decree and Enforcement Rules of the same Act, and other governing laws and regulations;
2. KOSPI Market Listing Regulation and Enforcement Rules of the same Regulation;
3. KOSPI Market Disclosure Regulation and Enforcement Rules of the same Regulation;
4. KOSPI Market Business Regulation and Enforcement Rules of the same Regulation; and
5. Other matters concerning listed corporations such as standards, guidelines and policies set forth by the Exchange.

Article 3 (Cooperation with respect to inspection of abnormal transactions) In case where the Exchange deems necessary with respect to the inspection of abnormal transactions of listed stocks, it may request the Company, in writing or via wired and/or wireless communications, to submit copies of materials related to the process of creation of material corporate information (minutes of the board of directors, contracts etc.) including the time of generation of the information, the list of executives and employees, the personal information on major insiders and the list of shareholders, etc.

Article 4 (Establishment of a system exclusively for listing & disclosure) The Company shall establish an exclusive system for listing and disclosure including the disclosure officer and the disclosure staff in order to efficiently carry out the tasks of listing and disclosure, and whenever any of followings occurs, the Company shall immediately notify the Exchange of such fact so as not to cause any impediment to the performance of the tasks.

1. Change of disclosure officer or disclosure staff;

2. Change of address of the principal office or the office in charge of listing and disclosure;
3. Change of main contact information such as website address and telephone number;
4. Long-term absence of the disclosure officer or staff, and the matters on their substitutes;
and
5. Other matters of which the Exchange needs to be informed for the efficient execution of listing and disclosure tasks.

Article 5 (Establishment of communication network for receiving and sending official documents) The Company shall establish its own Internet website for provision of investment information and sending official documents to and receiving those documents from the Exchange and shall provide investors with up-to-date information on each of following matters at all times.

1. Matters to be disclosed periodically and timely;
2. Material matters on business, operation and production, etc.;
3. Matters on executives and employees;
4. Matters on convocation, agenda items and etc. of the general meeting of shareholders;
5. Matters related to investor relations; and
6. Other matters necessary for the protection of investors.

Article 6 (Establishing and operating listing & disclosure system) The Company shall establish the listing & disclosure system that is provided by the Exchange for the purpose of efficient performance of listing and disclosure tasks and shall upgrade and maintain the system up-to-date as needed.

Article 7 (Maintaining corporate continuity and ensuring management transparency) The Company shall not conduct such activities as excessive debt guarantee or financial support to its affiliates, etc. that may significantly impede maintaining the independence and the nature as a going-concern of the Company, and shall ensure the transparency of management through refurbishing of articles of incorporation and regulations, faithful performance of directors' duties, transparent accounting practices, fair auditing and disclosure, holding IR activities, prohibiting unfair inside transactions, protecting shareholders' rights and interests, and improving corporate governance, etc.

Article 7-2 (Fulfilling corporate social responsibilities) The Company, as a listed corporation, shall be aware of the importance of the harmonious development between the corporate community and the society, and fulfill its social responsibilities through environmental protection, transparent management, etc.

Article 8 (Measures)

(1) The Exchange may request the Company for necessary matters, in writing or wired and/or wireless communications, such as submission of related materials or reports and interviews with persons involved, in case where it deems necessary for the effective implementation of this agreement and in such cases, the Company shall reply immediately to the request as long as there are no special reasons acknowledged by the Exchange.

(2) In case where the Company fails to faithfully perform the matters noted in this agreement, the Exchange may take necessary measures including requests for rectification, submission of improvement reports, letter of commitment, education of the persons involved, etc.

Article 9 (Renewal of agreement) In case where, after having entered into this agreement, the Exchange deems it necessary to change the contents of the agreement, it shall notify the Company of the details of such change and if there is no objection filed by the Company within fifteen (15) days after the notification was made, it shall be deemed that the agreement is duly renewed.

Article 10 (Agreement on jurisdiction) It is agreed upon that all disputes that which may arise in relation to this agreement shall be finally settled by the court with the jurisdiction over KOSPI Market Division.

Article 11 (Mutual signature of the agreement) The Company and the Exchange, as the parties to the agreement, draw up this agreement for the purpose of clarifying where the responsibility lies and mutually write names and affix seals or signatures, and keep one copy each.

Date: mm/dd/yyyy

Name and Signature/Seal of Representative: _____

Name and Signature/Seal of KRX CEO: _____

Note: For the stocks of investment companies, beneficiary certificates, securities of ETFs, ELWs, ETNs, subscription warrants and subscription rights certificates, the provisions of Articles 4, 5 and 7 above shall not apply.

Listing Agreement for Foreign Company

Article 1 (Purpose) The purpose of this Agreement is to stipulate the basic matters with which _____ (the “Company”) shall, upon listing its securities on the Korea Exchange (the “Exchange”), comply as a listed corporation, for the sake of formation of fair price, efficient trading of securities and protection of investors, etc.

Article 2 (Observance of laws and regulations) The Company shall observe faithfully following laws and regulations, which are currently enforced, may be established and amended from time to time in the future.

1. Financial Investment Services and Capital Markets Act, Enforcement Decree and Enforcement Rules of the same Act, and other governing laws and regulations;
2. KOSPI Market Listing Regulation and Enforcement Rules of the same Regulation;
3. KOSPI Market Disclosure Regulation and Enforcement Rules of the same Regulation;
4. KOSPI Market Business Regulation and Enforcement Rules of the same Regulation; and
5. Other matters concerning listed corporations such as standards, guidelines and policies set forth by the Exchange.

Article 3 (Cooperation with respect to inspection of abnormal transactions) In case where the Exchange deems necessary with respect to the inspection of abnormal transactions of listed stocks, it may request the Company, in writing or via wired and/or wireless communications, to submit copies of materials related to the process of creation of material corporate information (minutes of the board of directors, contracts etc.) including the time of generation of the information, the list of executives and employees, the personal information on major insiders, and the list of shareholders, etc.

Article 4 (Establishment of a system exclusively for listing & disclosure) The Company shall establish an exclusive system for listing and disclosure including the disclosure officer and the disclosure agent in order to efficiently carrying out the tasks of listing and disclosure, and whenever any of followings occurs, the Company shall immediately notify the Exchange of such fact so as not to cause any impediment to the performance of the tasks.

1. Change of disclosure officer or disclosure agent;
2. Change of address of the principal office or the office in charge of listing and disclosure;
3. Change of main contact information such as website address and telephone number;
4. Long-term absence of the disclosure officer or disclosure agent, and the matters on their substitutes; and

5. Other matters of which the Exchange needs to be informed for the efficient execution of listing and disclosure tasks.

Article 5 (Establishment of communication network for receiving and sending official documents) The Company shall establish its own Internet website for provision of investment information and sending official documents to and receiving those documents from the Exchange and shall provide investors with up-to-date information on each of following matters at all times.

1. Matters to be disclosed periodically and timely;
2. Material matters on business, operation and production, etc.;
3. Matters on executives and employees;
4. Matters on convocation, agenda items and etc. of the general meeting of shareholders;
5. Matters related to investor relations; and
6. Other matters necessary for the protection of investors.

Article 6 (Establishing and operating listing & disclosure system) The Company shall establish the listing & disclosure system that is provided by the Exchange for the purpose of efficient performance of listing and disclosure tasks and shall upgrade and maintain the system up-to-date as needed.

Article 7 (Maintaining corporate continuity and ensuring management transparency)

(1) The Company shall not conduct such activities as debt guarantee or financial support among affiliated companies under its group that may significantly impede maintaining the independence and the nature as a going-concern of the Company, and shall ensure the transparency of management through refurbishing of articles of incorporation and regulations, faithful performance of directors' duties, transparent accounting practices, fair auditing and disclosure, holding IR activities, prohibiting unfair inside transactions, protecting shareholders' rights and interests, and improving corporate governance, etc.

(2) Even after having listed foreign stocks and foreign DRs, the Company shall maintain the accounting standards that were applied at the time of listing, and when intending to change the accounting standards, it shall obtain a prior approval from the Exchange.

Article 7-2 (Fulfilling corporate social responsibilities) The Company, as a listed corporation, shall be aware of the importance of the harmonious development between the corporate community and the society, and fulfill its social responsibilities through environmental protection, transparent management, etc.

Article 8 (Measures)

(1) The Exchange may request the Company for necessary matters, in writing or wired and/or wireless communications, such as submission of related materials or reports and interviews with persons involved, in case where it deems necessary for the effective implementation of this agreement and in such cases, the Company shall reply immediately to the request as long as there are no special reasons acknowledged by the Exchange.

(2) In case where the Company fails to faithfully perform the matters noted in this agreement, the Exchange may take necessary measures including request for rectification, submission of improvement reports, letter of commitment, education of the persons involved, etc. In cases where the Company has changed the accounting standards adopted at the time of listing without a prior approval, and it is deemed that the transparent accounting management of the Company is seriously affected by such change, the Exchange may delist the Company.

Article 9 (Change of listing agent and disclosure agent) In case where the listing agent or disclosure agent is changed after the conclusion of this agreement, the Company shall notify the Exchange of such fact.

Article 10 (Renewal of agreement) In case where, after having entered into this agreement, the Exchange deems it necessary to change the contents of the agreement, it shall notify the Company of the details of such change and if there is no objection filed by the Company within fifteen (15) days after the notification was made, it shall be deemed that the agreement is duly renewed.

Article 11 (Agreement on jurisdiction) It is agreed upon that all disputes that may arise in relation to this agreement shall be finally settled by the court with the jurisdiction over KOSPI Market Division.

Article 12 (Mutual signature of the agreement) The Company and the Exchange, as the parties to the agreement, draw up this agreement for the purpose of clarifying where the responsibility lies and mutually write names and affix seals or signatures, and keep one copy each.

Date: mm/dd/yyyy

Name and Signature/Seal of Representative: _____

Name and Signature/Seal of KRX CEO: _____

Note: For the securities of foreign ETFs, the provisions of Articles 4, 5, 7 and 9 above shall not apply.

[Annex: Form No. 2-2] Listing specification

[June 25, 2014]

Listing Specification

(Pertaining to [§13] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Pursuant to [§13] of the Enforcement Rules of KOSPI Market Listing Regulation, we hereby submit the listing specification as follows.

1. Corporate name:

2. Date (or Expected date) of listing: mm / dd / yyyy

3. Matters on the stocks to be listed

Issue	Par value per share	Number of stocks to be listed	Record date for dividends payment	Remarks

4. Name of issue and code

Name of issue	Abbreviated name in Korean	Abbreviated name in English	Symbol	ISIN	Shortened code

5. Overview of the company

Location of head office		(Contact info:)		
The largest shareholder, etc.		(Name & number of shareholders) (% of stake)		
Representative director		(Name)	Relation with the largest shareholder	
Date of incorporation		mm / dd / yy	Industry / Main products (Industry code)	
Whether listed on KOSDAQ (if yes, the listing date)				
Capital	Authorized	KRW mil.	Period for settlement of accounts	
	Paid-in	KRW mil.	Enterprise group	
	Amount per share	KRW mil.	No. of employees	

6. Base market capitalization

	Common stock	Different classes of stock	Total
--	--------------	----------------------------	-------

	S	S	
No. of shares to be listed per issue			
Base market capitalization (expected)	KRW mil.	KRW mil.	KRW mil.

7. Matters concerning the company

- (a) Overview of the company
 - (i) Purpose of the company
 - (ii) History of the company
 - (iii) Matters on capital
 - (iv) Matters on stocks
 - (v) Matters on dividends payment
- (b) Matters concerning management structure
 - (i) Organization chart
 - (ii) Matters on the chief executive officer
 - (iii) Matters on executives and employees
- (c) Details of business
 - (i) Current status and outlook of industry
 - (ii) Current status of the company
 - (iii) Matters on main products
 - (iv) Matters on acquisition
 - (v) Matters on production and production facilities
 - (vi) Matters on sale
 - (vii) Sales channels
 - (viii) Major contracts, etc. concerning managerial activities
 - (ix) R&D activities
 - (x) Overseas expansion
- (d) Matters on finance
 - (i) Summary of financial information
 - (ii) Financial statements
 - (iii) Summary of consolidated financial status
 - (iv) Consolidated financial statements
 - (v) Current status of external financing
 - (vi) Contingent liabilities
 - (vii) Material facts occurred after the settlement of accounts
- (e) Matters on accounting, etc.
 - (i) Auditor's audit opinion, etc.
 - (ii) The auditor and auditor's opinion, etc. on consolidated financial statements
 - (iii) Internal accounting management system
- (f) Corporate governance and details on transactions with interested parties
 - (i) Overview of corporate governance
 - (ii) Current status of affiliates
 - (iii) Current status of investment in other companies
 - (iv) Details of transactions with the largest shareholder, etc.
 - (v) Details of transactions with shareholders (excluding the largest shareholder, etc.), executives or employees, and the interested parties

Reference: In preparing this from, please refer to the exemplar set by the Exchange.

8. Other matters necessary for the protection of investors

Reference: Any material matters and risk factors that need to be considered in making investment decisions by investors with regard to the listing of the stocks concerned shall be stated here.

Upon making an application for listing of stocks, the undersigned persons hereby confirm that the listing specification as of (mm / dd / yyyy) as presented above.

Listing sponsor (or managing underwriter)

Address:

Corporate name:

Name and seal/signature of representative:

Listing applicant

Address:

Corporate name:

Name and seal/signature of representative:

[Annex: Form No. 3] Official objection to deferment of listing

Official Objection to Deferment of Listing

To Chairperson of Korea Exchange,

Pursuant to [§24] of the KOSPI Market Listing Regulation and [§18] of the Enforcement Rules of the same Regulation, the undersigned does hereby file an objection to the Exchange's decision to defer the listing of the undersigned's security as follows.

1. Purpose of objection

2. Reasons for objection

(a) Causes for the decision to defer the listing and the ground regulations

(b) Fact relations relating to the decision to defer the listing

(c) Reasons for objection or opinions on the lawsuit of effects of issuance of new stocks and future plans

3. Attendance at the Listing and Disclosure Committee

Attendance	Yes, we will attend		No, we will not attend
	()		()
Personal information on attendants	Name		Not applicable
	Relation with the filing company		
	Address and contact information		
	Others		

Note: In case of non-attendance, any change including additions to, corrections and deletions of the statements in subparagraphs 1 and 2 shall not be admitted.

Date of filing: mm/dd/yyyy

Corporate name of applicant:

Name & Seal/Signature of Representative:

[Annex: Form No. 4] Official objection to delisting

Official Objection to Delisting

To Chairperson of Korea Exchange,

Pursuant to [§25] of the KOSPI Market Listing Regulation and [§19] of the Enforcement Rules of the same Regulation, the undersigned does hereby file an objection to the Exchange's decision to delist the undersigned's security as follows.

1. Purpose of objection

2. Reasons for objection

(a) Causes for the delisting and the ground regulations

(b) Fact relations relating to the causes for the delisting

(c) Reasons for objection or an outline of the plans to resolve the causes for delisting, if any

3. Attendance at the Listing and Disclosure Committee

Attendance	Yes, we will attend		No, we will not attend
	()		()
Personal information on attendants	Name		Not applicable
	Relation with the filing company		
	Address and contact information		
	Others		

Note: In case of entering non-attendance to the Listing and Disclosure Committee, any change including additions to, corrections and deletions of the statements in subparagraphs 1 and 2 shall not be admitted.

Date of filing: mm/dd/yyyy

Corporate name of applicant:

Name & Seal/Signature of Representative:

[Annex: Form No. 5] Status of stock distribution

(Amended on April 4, 2016; March 20, 2019; September 10, 2019; February 14, 2022; March 17, 2022)

Status of Stock Distribution

(Relating to initial listing, re-listing and listing after merger)

To Chairperson of Korea Exchange,

P u r s u a n t t o [§26], [§58], [Annex 3], [Annex 3-2] and [Annex 4] of the Enforcement Rules of the KOSPI Market Listing Regulation, we hereby submit the status of stock distribution as follows.

1. Overview of stock issuance

	Common stocks	Different Classes of Stocks (DCS)				Total
		DCS1	DCS2		Sub-total	
Number of stocks						
Number of shareholders						
Status of listing						

Note: The “status of listing” shall be classified into “already listed”, “initially listed” or “unlisted”.

2. Status of distribution of common stocks

	Number of shareholders	Portions (%)	Number of shares	Portions (%)
Largest shareholder, etc.				
Major shareholders				
General shareholders				
Minority shareholders: Total				
(Corporations)				
(Others)				
Other shareholders: Total				
(Corporations)				
(Individuals)				
Total				

References:

- 1. The “largest shareholder, etc.” shall mean the large shareholder under Subparagraph 6(a) of Article 2 of the Financial Companies Corporate Governance Act and the affiliated persons under Article 3 of the Enforcement Decree of the same Act. In such cases, treasury stocks (including trust contracts) shall be included in the “largest shareholder, etc.”*
- 2. The “major shareholders” shall mean the major shareholders under Subparagraph 6(b) of Article 2 of the Financial Companies Corporate Governance Act (a shareholder who holds at least 10/100 of the total number of outstanding voting shares or exercises de facto control by appointing executive officers or in any other way), but the persons who fall under the largest shareholder, etc. shall be excluded.*
- 3. The “minority shareholders” shall mean the shareholders who hold less than 1/100 of the total number*

of common stocks issued and outstanding. Provided that a shareholder who falls under the largest shareholder, etc. shall not be construed as a minority shareholder and the holdings of the employee stock ownership associations shall be included in “minority shareholders”.

4. The “other shareholders” shall mean the shareholders who do not belong to the categories of the largest shareholder, etc., major shareholders or minority shareholders.

5. When listing the different classes of stocks separately, the time of confirmation shall be included in the status of stock distribution of the stocks already listed.

3. Status of stock holding of the largest shareholder, etc.

Shareholder number	Name of shareholder	Status of stock holdings								Principal and special relation	
		Common stocks	% of stake	DCS1	% of stake	DCS2	% of stake		Total		% of stake
								...			
Total											

4. Status of stock holding of major shareholders

Shareholder number	Name of shareholder	Status of stock holdings									Remarks
		Common stocks	% of stake	DCS1	% of stake	DCS2	% of stake	...	Total	% of stake	
Total											

5. Status of stock holding of minority shareholders

Shareholder number	Name of shareholder	Status of stock holdings									Remarks
		Common stocks	% of stake	DCS1	% of stake	DCS2	% of stake	...	Total	% of stake	
Total											

6. Status of stock holding of other shareholders

Shareholder number	Name of shareholder	Status of stock holdings									Remarks
		Common stocks	% of stake	DCS1	% of stake	DCS2	% of stake	...	Total	% of stake	
Total											

7. Matters on the stocks publicly offered or sold

Shareholder number	Name of shareholder	Status of stock holdings								Principal and special
		Common stocks	% of stake	DCS1	% of stake	DCS2	% of stake	...	Total	% of stake

										relation
Total										

8. Status of holding of different classes of stocks: DCS1 (DCS2, ...)

Shareholder number	Name of shareholder	Number of stocks	% of stake	Relation with the largest shareholder
	Others(xx persons)			
Total				

Notes:

1. The matters on different classes of stocks shall be stated per issue only when applying for the initial listing of different classes of stocks.
2. The table shall be prepared in descending order of the number of stocks held by each of the shareholders who hold 1/100 or more of the total number of a different class of stocks outstanding, and for the shareholders holding less than 1/100, the aggregate figures of each of number of shareholders, number of stocks, and the percentage of stake shall be entered in the "Others" column.

Upon making an application for listing of stocks, the undersigned persons hereby confirm that the status of stock distributions as of mm / dd / yyyy as presented above.

Listing sponsor (or managing underwriter)

Address:

Corporate name:

Name and seal/signature of representative:

Listing applicant

Address:

Corporate name:

Name and seal/signature of representative:

Status of Stock Distribution

(Relating to confirmation of stock distributions of listed corporations)

To Chairperson of Korea Exchange,

Pursuant to [§42] of the Enforcement Rules of the KOSPI Market Listing Regulation, we hereby submit the status of stock distribution as follows.

1. Overview of stocks listed

	Common stocks	Different Classes of Stocks (DCS)				Total
		DCS1	DCS2		Sub-total	
Number of stocks listed						
Number of shareholders						

2. Status of common stocks

(a) Total number of floating stocks

		Number of shareholders	Number of stocks	Portions	Remarks
Total number of common stocks (a)					
Number of non-floating stocks	State				
	*KDIC				
	Foreign investors				
	Under mandatory holding				
	Sub-total (b)				
Number of floating stocks (c=a-b)					

* KDIC: Korea Deposit Insurance Corporation

(b) Status of stock distribution

	Number of shareholders	Portions (%)	Number of shares	Portions (%)
Largest shareholder, etc.				
Major shareholders				
General shareholders				
Minority shareholders: Total				
(Corporations)				
(Others)				
Other shareholders: Total				
(Corporations)				
(Individuals)				
Total				

(c) Percentage of stake of general shareholders

Total number of common stocks (a)	Number of floating stocks (c)	Number of general shareholders	Number of stocks held by general shareholders (d)	% of stake of general shareholders (d/c)

(d) Status of the number of circulating stocks

Total number of common stocks (a)	Number of floating stocks (b)	Number of floating stocks held the largest shareholder, etc. (c)	Number of circulating stocks (d=b-c)	Portion of the circulating stocks (d/a)

References:

- The “number of floating stocks” shall refer to the number of stocks determined by subtracting the number of common stocks noted in each of followings from the total number of common stocks issued:
 - The number of stocks held by the State and the Korea Deposit Insurance Corporation (KDIC);
 - The number of stocks held by foreign investors in a foreign-invested company incorporated pursuant to the Foreign Investment Promotion Act. Provided that this provision shall apply only to a case where the Korean investors hold at least 51/100 of the total common stocks;
 - The number of stocks that are kept under mandatory holding by court rulings after having been issued in accordance with the procedures under the Debtor Rehabilitation and Bankruptcy Act or the Corporate Restructuring Promotion Act, or the number of stocks that are under mandatory holding by the measure of resale restriction pursuant to the Regulation on Securities Issuance and Disclosure. Provided that this provision shall apply only to a case where a document verifying mandatory holding, which was issued by the Korea Securities Depository (KSD) was submitted to the Exchange; and
 - The number of stocks that are under mandatory holding pursuant to the KOSPI Market Listing Regulation, for which a document verifying such mandatory holding issued by the KSD was submitted, or the number of stocks that are held by listing sponsors pursuant to [§13(3)] of the same Regulation.
- The “largest shareholder, etc.” shall mean the large shareholder under Subparagraph 6(a) of Article 2 of the Financial Companies Corporate Governance Act and the affiliated persons under Article 3 of the Enforcement Decree of the same Act. In such cases, treasury stocks (including trust contracts) shall be included in “largest shareholder, etc.”
- The “major shareholders” shall mean the major shareholders under Subparagraph 6(b) of Article 2 of the Financial Companies Corporate Governance Act (a shareholder who holds at least 10/100 of the total number of outstanding voting shares or exercises de facto control by appointing executive officers or in any other way), but the persons who fall under the largest shareholder, etc. shall be excluded
- The “minority shareholders” shall mean the shareholders who hold less than 1/100 of the total number of common stocks issued and outstanding. Provided that a shareholder who falls under the largest shareholder, etc. shall not be construed as a minority shareholder and the holdings of the employee stock ownership associations shall be included in “minority shareholders”.
- The “other shareholders” shall mean the shareholders who do not belong to the categories of the largest shareholder, etc., major shareholders or minority shareholders.
- The “number of circulating stocks” shall refer to the number of stocks calculated by subtracting those held by the largest shareholder, etc. from the number of floating stocks, and the treasury stocks (including trust contracts) shall be included in the “largest shareholder, etc.”

3. Status of the number of floating stocks (common stocks + preferred stocks)

(a) Status of the number of floating stocks

Total number of stocks issued (a)	Common stocks	preferred stocks	Remarks

	Number of shareholders	Number of stocks	Portions	Remarks
Total number of stocks issued(a)				
Number of non-floating stocks	State			
	KDIC			
	Foreign investors			
	Mandatory holding			
	Unlisted			
	Sub-total (b)			
Number of floating stocks (c=a-b)				

(b) Status of stock distribution

	Number of shareholders	Portions (%)	Number of shares	Portions (%)
Largest shareholder, etc.				
Major shareholders				
General shareholders				
Minority shareholders: Total				
(Corporations)				
(Others)				
Other shareholders: Total				
(Corporations)				
(Individuals)				
Total				

The undersigned hereby confirm that the status of stock distributions of _____
 as of mm / dd / yyyy as presented above.

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 6] Confirmation statement on merger with unlisted corporation

(Amended on October 1, 2014; July 31, 2015; June 28, 2019; July 9, 2025)

Confirmation Statement on Merger with Unlisted Corporation

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the merger with an unlisted corporation and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on whether there is a change in the management rights or not ⁽¹⁾⁽²⁾

2. Whether there is a change in management rights or not?	Yes/ No	❖ In case of “Yes” for “2-1” and “No” for one or both of “2-2” and “2-3”, it shall be “Yes”
2-1. Whether or not the sum of the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the material fact report on the merger (hereinafter referred to as “the Report”) and the number of new stocks to be received by the key investors as a result of the merger is more than the sum of the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report and the number of new stocks to be received by the largest shareholder, etc. as a result of the merger?	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report: -The largest shareholder, etc.: _____ -The shareholders with 5% or more of shares: _____ •The number of new stocks to be received by the key investors as a result of the merger: -The largest shareholder, etc.: _____ -The shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report: _____ •The number of new stocks to be received by the largest shareholder, etc. of the Corporation as a result of the merger: _____

2-2. (Only for the case of “Yes” for “2-1”) Whether there was a change in the largest shareholder of the common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽³⁾:
2-3. (Only for the case of “Yes” for “2-1”) Where or not the largest shareholder in “2-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report?	Yes or No	•Name of the largest shareholder of the Corporation:

Notes:

1. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).

2. In calculating the number of stocks (shall be based on the stocks with voting rights) in “2-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report, and the stocks (stocks presale contract etc.) and equity-linked bonds (based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

3. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation that is the target of the merger [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation targeted for the merger, and the like]

2.2 Matters on the effect of listing

Whether or not the common-stock-listed corporation is the company surviving the merger? If the unlisted corporation is a wholly-owned subsidiary of the common-stock-listed corporation, it shall be “No”	Yes / No
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3. Matters to determine whether the size of unlisted corporation or merger value is larger than the Corporation

(in KRW)

3-1. Whether or not the size of unlisted corporation is larger than the Corporation ⁽¹⁾	Yes / No		
	Total assets	Capital	Sales
The Corporation ⁽²⁾			
Unlisted corporation ⁽²⁾			
3-2. Whether the merger value of the unlisted corporation is greater than the Corporation ⁽³⁾	Yes / No		
Classification	Merger value		
The Corporation ⁽⁴⁾			
Unlisted corporation ⁽⁴⁾			

Notes:

1. In cases where at least two of total assets, capital and sales of the unlisted corporation are larger than the Corporation, it shall be “Yes”.

2. Figures shall be based on the latest business year (or at end of the latest business year) as at the submission date of the Report.

3. If the merger value of the unlisted company is greater than that of the Corporation, mark it as "Yes."

4. It is calculated by multiplying the merger price noted in the report on key facts by the total number of issued shares (referring to the total number of issued shares on the base date used to calculate the merger price or the total number of issued shares on the analysis reference date) in accordance with Article 5-13(2) of the Regulations on Issuance and Disclosure of Securities.

References:

1. Table 4 below shall be completed only in the cases where the answers to both of "2" and "2-2" above are "Yes" or at the least one of answers to "3-1" and "3-2" above is "Yes".

2. For the case of skipping table 4, the submission of documents noted in "5-4", "5-5" and "5-6" is exempted.

4. Matters on meeting merger requirements ⁽¹⁾

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	At least three years shall have elapsed since its incorporation and shall continue to operate.		
(2) Profitability ⁽²⁾	Shall meet any of the following requirements: (a) Income before tax from continuing operations: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income before tax from continuing operations) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified or qualified opinion on the latest two business years (excluding the qualified opinion due to the limitation on the scope of audit).		
(4) Resolution of causes of default	The causes of default shall have been resolved at least one year before the submission of the Report.		
(5) Lawsuits and other major disputes	There shall be no disputes such as lawsuits		
(6) Change of the largest shareholder	There shall be no change of the largest shareholder during the last one-year period from the submission date of the Report.		

Notes:

1. It shall be based on the day of submission of the Report.

2. The "profitability" shall apply based on the latest three business years.

5. List of documents to be attached

	Attachments	Attached or not (○/×)	Remarks
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5-1	Summary list of shareholders of the unlisted corporation (in case of key investors, it shall be stated separately per shareholder) ⁽¹⁾		
5-2	Details on holdings of stocks of the Corporation by the key investors of the unlisted corporation		
5-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
5-4	Audit report of the unlisted corporation		
5-5	Certified copy of corporate register of the unlisted corporation		
5-6	Written confirmation of the main creditor bank of the unlisted corporation ⁽³⁾		No record of bankruptcy or the bankruptcy shall have been resolved one year before
5-7	Any other documents that verify the contents of “1” through “4” above.		

Notes:

- 1. Two summaries shall be prepared base on each of the date one year before the submission date of the Report and the submission date of the Report.*
- 2. Three statements shall be prepared based on each of the date one year before the submission date of the Report, before the merger and after the merger, and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately(please refer to “note 2” to “2” above).*
- 3. To be submitted only when at the least one of answers to “3-1” and “3-2” is “Yes”.*

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 7] Confirmation statement on all-inclusive stock swap with unlisted corporation

(Amended on October 1, 2014; July 31, 2015; June 28, 2019)

Confirmation Statement on All-inclusive Stock Swap with Unlisted Corporation

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the all-inclusive stock swap with an unlisted corporation and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on whether there is a change in the management rights or not⁽¹⁾⁽²⁾

2. Whether there is a change in management rights or not?	Yes/ No	❖ In case of “Yes” for “2-1” and “No” for one or both of “2-2” and “2-3”, it shall be “Yes”
2-1. Whether or not the sum of the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the material fact report on the all-inclusive stock swap (hereinafter referred to as “the Report”) and the number of new stocks to be received by the key investors as a result of the stock swap is more than the sum of the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report and the number of new stocks to be received by the largest shareholder, etc. as a result of the stock swap?	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report: -The largest shareholder, etc.: _____ -The shareholders with 5% or more of shares: _____ •The number of new stocks to be received by the key investors as a result of the stock swap: -The largest shareholder, etc.: _____ -The shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report: _____ •The number of new stocks to be received by the largest shareholder, etc. of the Corporation as a result of the stock swap: _____

2-2. (Only for the case of “Yes” for “2-1”) Whether there was a change in the largest shareholder of the common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽³⁾:
2-3. (Only for the case of “Yes” for “2-1”) Where or not the largest shareholder in “2-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report?	Yes or No	• The name of the largest shareholder of the Corporation:

Notes:

1. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).

2. In calculating the number of stocks (shall be based on the stocks with voting rights) in “2-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report, and the stocks (stocks presale contract etc.) and equity-linked bonds (based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

3. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation that is the target of the stock swap [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation targeted for the stock swap, and the like]

References:

1. The tables below shall be completed only in the case where the answer to “2” above is “Yes”.

2. For the case of “No” to “2” above, the submission of documents noted in “4-4” and “4-5” under “4” below is exempted.

3. Matters on meeting of requirements on stock swap⁽¹⁾

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	At least three years shall have elapsed since its incorporation and shall continue to operate.		
(2) Profitability ⁽²⁾	Shall meet any of the following requirements: (a) Income before tax from continuing operations: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income before tax from continuing operations) for the latest year & positive cash flow from operating activities for the latest year.		

(3) Audit opinions	Unqualified opinion on the latest business year and unqualified or qualified opinion on the latest two business years (excluding the qualified opinion due to the limitation on the scope of audit).		
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Notes:

1. It shall be based on the day of submission of the Report.
2. The “profitability” shall apply based on the latest three business years.

4. List of documents to be attached

	Attachments	Attached or not (○/×)	Remarks
4-1	Summary list of shareholders of the unlisted corporation (in case of key investors, it shall be stated separately per shareholder) ⁽¹⁾		
4-2	Details on holdings of stocks of the Corporation by the key investors of the unlisted corporation		
4-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
4-4	Audit report of the unlisted corporation		
4-5	Certified copy of corporate register of the unlisted corporation		
4-6	Any other documents that verify the contents of “1” through “3” above.		

Notes:

1. It shall be prepared separately based on each of the date one year before the submission date of the Report and the submission date of the Report.
2. It shall be prepared separately based on each of the date one year before the submission date of the Report, before the stock swap and after the stock swap, and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 2” to “2” above).

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 8] Confirmation statement on business acquisition from unlisted corporation and capital increase by third-party allotment, etc.

(Amended on October 1, 2014; July 31, 2015)

Confirmation Statement on Business Acquisition from Unlisted Corporation and Capital Increase by Third-party Allotment, etc.

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the business acquisition from an unlisted corporation and the capital increase by third-party allotment, and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on business acquisition from unlisted corporations

Business part subject to acquisition		Submission date of the material fact report on business acquisition (hereinafter “the Report”)	
Whether or not the asset amount or sales amount of business area that is subject to acquisition at the end of the latest business year is 30/100 or more of the total asset amount or total sales amount of the unlisted corporation?	Yes or No	•Asset amount of business area subject to acquisition: _____ Total asset amount at the end of recent business year: _____ •Sales amount of business part that is subject to acquisition: _____ Total sales amount at the end of recent business year: _____	
The date of shareholders’ meeting		The base date of business acquisition	

3. Matters on issuance of stocks, etc. by third-party allotment

3-1. Whether or not the stocks, etc. ⁽¹⁾ have been issued ⁽²⁾ through the third-party allotment within one year before the submission date of the Report?		Yes/No
(If “3-1” is ‘Yes’) ❖ In case where the stocks, etc. were issued two or more times, it shall be stated per issuance.	3-1-1. List of parties to be allotted with the stocks, etc.	
	3-1-2. Whether or not the key investors ⁽³⁾ of the unlisted corporation are included in the parties to be allotted?	Yes/No
	* If ‘Yes’, the parties concerned and the relation ⁽⁴⁾	
	3-1-3. Types of the securities issued	
	3-1-4. Issuance date of the stocks, etc. ⁽⁵⁾	
3-2. Whether or not the stocks, etc. ⁽¹⁾ are planned to be issued ⁽²⁾ through the third-party allotment within six months after the submission date of the Report?		Yes/No
(If “3-2” is ‘Yes’) ❖ In case where the stocks, etc. are scheduled to be issued two or more times, it shall be stated per issuance.	3-2-1. List of parties to be allotted	
	3-2-2. Whether or not the key investors ⁽³⁾ of an unlisted corporation are included in the parties to be allotted?	Yes/No
	* If ‘Yes’, the parties concerned and the relation ⁽⁴⁾	
	3-2-3. Types of the securities to be issued	
	3-2-4. The date to issue the stocks, etc. ⁽⁵⁾	

Notes:

1. The “stocks, etc.” refers to the securities specified in items (a) through (g) of [§2(1)9] of the KOSPI Market Listing Regulation (including the different classes of stocks with voting rights). In such cases, the equity-linked bonds shall be limited to those related to the equity of the concerned listed corporation.
2. It shall be based on the day when the stocks, etc. were (or are to be) issued.
3. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).
4. It refers to the relation between the unlisted corporation and the parties to be allotted [please state “the key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]
5. It refers to the next day of stock payment date in case of stocks.

References:

1. The tables below shall be completed only in the cases where the answer(s) to one or both of “3-1-2” and “3-2-2” is (are) “Yes”.
2. In cases where the answers to both of “3-1” and “3-2” above are “No”, the submission of attachments is exempted.
3. In cases where the answers to both of “3-1-2” and “3-2-2” above are “No”, the submission of attachments of “6-2, 6-3, 6-4 and 6-5” in Table 6 below is exempted.
4. If the answer to “3-2-2” is “Yes”, when completing Table 5 and the attachments of “6-1, 6-2 and 6-3”, please include the number of stocks to be held until the scheduled issuance date with respect to calculation of the number of stocks and determination of the largest shareholder as of the scheduled date for the issuance of stocks, etc. through third-party allotment.

4. Matters on whether there is a change in the management rights or not⁽¹⁾

4. Whether or not the management rights have been changed? (Only for the case of “Yes” for one or both of “3-1-2” and “3-2-2”)	Yes/ No	❖ In case of “Yes” for “4-1” and “No” for one or both of “4-2” and “4-3”, it shall be “Yes”
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4-1. Whether or not falling under any one of the followings: a. Whether or not the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the Report is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report? b. In case where the Corporation issues or plans to issue the stocks, etc. to the key investors of the unlisted corporation through third-party allotment within six months after the submission date of the Report, whether or not the number of stocks of the Corporation held (or to be held) by the key investors as of the issuance (or scheduled issuance) date is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the issuance (or scheduled issuance) date.	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report (or the issuance date): -The number of stocks held by the largest shareholder, etc.: _____ -The number of stocks held by the shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report (or the issuance date): _____
4-2. (Only for the case of “Yes” for “4-1a”) Whether there has been a change in the largest shareholder of the concerned common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽²⁾:
4-3. (Only for the case of “Yes” for “4-1a”) Where or not the largest shareholder in “4-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report (or the issuance date)?	Yes or No	•Name of the largest shareholder of the Corporation:

Notes:

1. In calculating the number of stocks (based on the stocks with voting rights) in “4-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report or the issuance date of the stocks, etc. concerned; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report or the issuance date of the stocks, etc. concerned, and the stocks (stocks presale contract, etc.) and equity-linked bonds(based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report or the issuance date of the stocks, etc. concerned shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

2. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director”(including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the cases where the answer to “4(whether there is a change in the management rights or not)” above is “Yes”.
2. In cases where the answer to “4” above is “No”, the attachments of “6-4” and “6-5” are exempted.

5. Matters on meeting requirements⁽¹⁾ for business acquisition from unlisted corporation and capital increase by third-party allotment

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	The business part transferred by the acquisition shall have been in operation for at least three years.		
(2) Profitability ⁽²⁾	Shall meet any one of the following requirements: (a) Income: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified (excluding the qualified opinion due to the limitation on the scope of audit) on the latest two business years.		
(4) Liabilities	The total liabilities of the business part to be taken over as at the end of the latest business year shall not exceed the total assets.		

Notes:

1. It shall be based on the day of submission of the Report.

2. The “profitability” shall apply based on the operating income of the business part to be transferred by the acquisition for the latest three business years.

6. Documents to be attached

	Attachments	Attached or not (○/×)	Remarks
6-1	Summary list of shareholders of the unlisted corporation ⁽¹⁾ (in case of key investors, it shall be stated separately per shareholder)		
6-2	Details on holdings of the stocks of the Corporation by the key investors of the unlisted corporation		
6-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
6-4	Audit report of the unlisted corporation		
6-5	Certified copy of corporate register of the unlisted corporation		
6-6	Any other documents that verify the contents of “1” through “5” above.		

Notes:

1. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report and the issuance date of the stocks, etc. by third-party allotment

(limited to the case of capital increase by third-party allotment conducted within six months after the submission of the Report).

2. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report, before and after the issuance of stocks, etc. by third-party allotment (limited to the case of capital increase by third-party allotment conducted within six months after the submission of the Report), and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 1” to “4” above).

Reference: Pursuant to [§33(1)] of the KOSPI Market Listing Regulation and [§29(1)3] of the Enforcement Rules of the same Regulation, in the case where a written confirmation regarding the issuance of stocks, etc. by third party allotment after the submission date of the Report is submitted additionally, “3-2”, Table “4” above and the attachments of “6-1, 6-2 and 6-3” shall be completed based on the actual issuance instead of the issuance plan.

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 9] Confirmation statement on business acquisition from unlisted corporation and stock transfer, etc.

(Amended on October 1, 2014; July 31, 2015)

Confirmation Statement on Business Acquisition from Unlisted Corporation and Stock Transfer, etc.

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the business acquisition from an unlisted corporation and the stock transfer, etc., and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on the business acquisition from the unlisted corporation

Business part subject to acquisition		Submission date of the material fact report on business acquisition (hereinafter, “the Report”)	
Whether or not the asset amount or sales amount of business area that is subject to acquisition at the end of the latest business year is 30/100 or more of the total asset amount or total sales amount of the unlisted corporation?	Yes or No	•Asset amount of business area subject to acquisition: _____ Total asset amount at the end of recent business year: _____ •Sales amount of business part that is subject to acquisition: _____ Total sales amount at the end of recent business year: _____	
The date of shareholders’ meeting		The base date of business acquisition	

3. Matters on the stock transfer, etc.

3-1. Whether there has been any disclosure ⁽¹⁾ on the change in the largest shareholder made within one year before the submission date of the Report or not?		Yes/No
(If “3-1” is ‘Yes’) ❖ In case where such disclosures have been made more than twice, it shall be stated per disclosure.	3-1-1. Name of the changed & disclosed largest shareholder	
	3-1-2. Whether or not the changed & disclosed largest shareholder falls under the key investors ⁽²⁾ of the unlisted corporation?	Yes/No
	* If ‘Yes’, the relation with the unlisted corporation ⁽³⁾	
	3-1-3. Date of the stock transfer ⁽⁴⁾	
3-2. Whether or not the transfer ⁽⁵⁾ of stocks, etc. ⁽⁶⁾ was (or is planned to be) made within six months after the submission date of the Report?		Yes/No
(If “3-2” is ‘Yes’) ❖ In case where the transfers were (or are planned to be) made for more than twice, it shall be stated per transfer.	3-2-1. List of the parties ⁽⁷⁾ to whom the stocks, etc. were (or are to be) transferred	
	3-2-2. Whether or not the key investors of the unlisted corporation are included in such parties?	Yes/No
	* If ‘Yes’, the relation with the unlisted corporation ⁽⁸⁾	
	3-2-3. Types of the securities transferred (or to be transferred)	
	3-2-4. Date of (planned) transfer of the stocks, etc.	

Notes:

1. It refers to the “report” stipulated in [§7] of the KOSPI Market Disclosure Regulation.
2. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).
3. It refers to the relation between the unlisted corporation and the changed and disclosed largest shareholder [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]
4. It refers to the date when the report was made pursuant to [§7] of the KOSPI Market Disclosure Regulation
5. It refers to the case of transferring the stocks, etc. held by the largest shareholder, etc. or other shareholders of a stock-listed corporation to the key investors of an unlisted corporation through such methods as trading.
6. The “stocks, etc.” refers to the securities specified in items (a) through (g) of [§2(1)9] of the KOSPI Market Listing Regulation (including the different classes of stocks with voting rights). In such cases, the equity-linked bonds shall be limited to those related to the equity of the concerned listed corporation.
7. It refers to the persons who are to purchase the stocks, etc. held by the largest shareholder, etc.
8. It refers to the relation between the unlisted corporation and the parties to whom the stocks were (or are to be) transferred [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the cases where the answer(s) to one or both of “3-1-2” and “3-2-2” is (are) “Yes”.
2. In cases where the answers to both of “3-1” and “3-2” above are “No”, the submission of attachments is exempted.
3. In cases where the answers to both of “3-1-2” and “3-2-2” above are “No”, the submission of attachments of “6-2, 6-3, 6-4 and 6-5” in Table 6 below is exempted.
4. If the answer to “3-2-2” is “Yes”, when completing Table 4 and the attachments of “6-3, 6-4 and 6-5”, please include the number of stocks to be held until the date of scheduled stock transfer with respect to the calculation of number of stocks and the determination of the largest shareholder as of the date of scheduled stock transfer.

4. Matters on whether there is a change in the management rights or not ⁽¹⁾

4. Whether or not the management rights have been changed? (Only for the case of “Yes” for one or both of “3-1-2” and “3-2-2”)	Yes/ No	❖ In case of “Yes” for “4-1” and “No” for one or both of “4-2” and “4-3”, it shall be “Yes”
4-1. Whether or not falling under any one of the followings: a. Whether or not the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the Report is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report? b. In case where the key investors of the unlisted corporation purchase the stocks, etc. issued by the Corporation from the largest shareholder, etc. of the Corporation within six months after the submission date of the Report, whether or not the number of stocks held or to be held by the key investors of the unlisted corporation as of the date of such purchase is more than the number of stocks of the Corporation held or to be held by the largest shareholder, etc. of the Corporation as of the date of such purchase?	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report (or the issuance date): -The number of stocks held by the largest shareholder, etc.: _____ -The number of stocks held by the shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report (or the issuance date): _____
4-2. (Only for the case of “Yes” for “4-1a”) Whether there has been a change in the largest shareholder of the concerned common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽²⁾:
4-3. (Only for the case of “Yes” for “4-1a”) Where or not the largest shareholder in “4-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report (or the issuance date)?	Yes or No	•The name of the largest shareholder of the Corporation:

Notes:

1. In calculating the number of stocks (based on the stocks with voting rights) in “4-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report or the issuance date of the stocks, etc. concerned; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report or the issuance date of the stocks, etc. concerned, and the stocks (stocks presale contract, etc.) and equity-linked bonds (based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report or the issuance date of the stocks, etc. concerned shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

2. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the cases where the answer to “4(whether there is a change in the management rights or not)” above is “Yes”.
2. In cases where the answer to “4” above is “No”, the attachments of “6-4” and “6-5” are exempted.

5. Matters on meeting requirements⁽¹⁾ for business acquisition from unlisted corporation and transfer of stocks, etc.

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	The business part transferred by the acquisition shall have been in operation for at least three years.		
(2) Profitability ⁽²⁾	Shall meet any one of the following requirements: (a) Income: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified (excluding the qualified opinion due to the limitation on the scope of audit) on the latest two business years.		
(4) Liabilities	The total liabilities of the business part to be taken over as at the end of the latest business year shall not exceed the total assets.		

Notes:

1. It shall be based on the day of submission of the Report.
2. The “profitability” shall apply based on the operating income of the business part to be transferred by the acquisition for the latest three business years.

6. Documents to be attached

	Attachments	Attached or not (○/×)	Remarks
6-1	Summary list of shareholders of the unlisted corporation ⁽¹⁾ (in case of key investors, it shall be stated separately per shareholder)		
6-2	Details on holdings of the stocks of the Corporation by the key investors of the unlisted corporation		
6-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
6-4	Audit report of the unlisted corporation		
6-5	Certified copy of corporate register of the unlisted		

	corporation		
6-6	Any other documents that verify the contents of “1” through “5” above.		

Notes:

1. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report and the date of stock transfer (limited to the case of stock transfer conducted within six months after the submission of the Report).

2. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report, before and after the stock transfer (limited to the case of stock transfer conducted within six months after the submission of the Report), and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 1” to “4” above).

Reference: Pursuant to [§33(1)] of the KOSPI Market Listing Regulation and [§29(1)3] of the Enforcement Rules of the same Regulation, in the case where a written confirmation regarding the transfer of the stocks, etc. after the submission date of the Report is submitted additionally, “3-2”, Table “4” above and the attachments of “6-1, 6-2 and 6-3” shall be completed based on the actual issuance not the issuance plan.

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 10] Confirmation statement on acquisition of equity securities issued by unlisted corporation and capital increase by third-party allotment, etc.

(Amended on October 1, 2014; July 31, 2015; June 28, 2019)

Confirmation Statement on Acquisition of Equity Securities issued by Unlisted Corporation and Capital Increase by Third-party Allotment, etc.

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the acquisition of equity securities issued by an unlisted corporation and the capital increase by third-party allotment, etc., and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on the acquisition of equity securities issued by the unlisted corporation

2-1. List of transferors of equity securities and the number of transferred stocks per each transferor	
2-2. Whether there are any key investors ⁽¹⁾ of the unlisted corporation among the transferors of equity securities or not?	Yes/No
* If 'Yes', the name of the transferor and the relation ⁽²⁾	
2-3. Whether or not the holding ratio of the Corporation in the unlisted corporation after taking over the equity securities is 50% or higher or exceeds 30% becoming the largest investor?	Yes/No
* The holding ratio of the Corporation in the unlisted corporation after the acquisition	
2-4. The date when the material fact report on the acquisition of assets (hereinafter, “the Report”) was submitted	
2-5. The date when the equity securities are to be (or were) taken over	

1. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation

concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).

2. It refers to the relation between the transferor of the equity securities and the issuing corporation of the equity securities [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the issuing corporation, and the like]

References:

1. The following table shall be completed only in the cases where the answers to both of “2-2” and “2-3” above are “Yes”.

2. In cases where the answer(s) to one or both of “2-2” and “2-3” above is(are) “No”, only “6-1” of the documents in Table “6” shall be attached. Provided that, in cases where completing Table “3” below and the answers to both of “3-1” and “3-2” are “No”, the submission of “6-1” is exempted.

3. Matters on issuance of stocks, etc. by third-party allotment

3-1. Whether or not the stocks, etc. ⁽¹⁾ have been issued ⁽²⁾ within one year before the submission date of the Report?		Yes/No
(If “3-1” is ‘Yes’) ❖ In case where the stocks, etc. have been issued for more than twice, it shall be stated per issuance.	3-1-1. List of the parties to be allotted with the stocks, etc.	
	3-1-2. Whether or not the parties to be allotted include the key investors of the unlisted corporation?	Yes/No
	* If ‘Yes’, name of the party to be allotted and the relation ⁽³⁾	
	3-1-3. Types of the securities issued	
	3-1-4. The issuance date of the stocks, etc. ⁽⁴⁾	

3-2. Whether or not there is any plan ⁽²⁾ to issue the stocks ⁽¹⁾ , etc. by third-party allotment within six months after the submission date of the Report?		Yes/No
(If “3-2” is ‘Yes’) ❖ In case where the stocks, etc. are planned to be issued for more than twice, it shall be stated per issuance.	3-2-1. List of the parties ⁽⁷⁾ to whom the stocks, etc. are to be allotted	
	3-2-2. Whether or not the key investors of the unlisted corporation are included in the parties to be allotted with the stocks, etc.?	Yes/No
	* If ‘Yes’, name of the party to be allotted and the relation ⁽³⁾	
	3-2-3. Types of the securities to be issued	
	3-2-4. The date to issue the stocks, etc. ⁽⁴⁾	

Notes:

1. The “stocks, etc.” refers to the securities specified in items (a) through (g) of [§2(1)9] of the KOSPI Market Listing Regulation (including the different classes of stocks with voting rights). In such cases, the equity-linked bonds shall be limited to those related to the equity of the concerned listed corporation.

2. It shall be based on the day when the stocks, etc. were (or are to be) issued.

3. It refers to the relation between the unlisted corporation and the parties to be allotted [please state “the key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]

4. It refers to the next day of (planned) stock payment date in case of stocks.

References:

1. The tables below shall be completed only in the cases where the answer(s) to one or both of “3-1-2” and “3-2-2” is (are) “Yes”.

2. In cases where the answers to both of “3-1” and “3-2” above are “No”, the submission of attachments is exempted.

3. In cases where the answers to both of “3-1-2” and “3-2-2” above are “No”, the submission of

attachments of “6-2, 6-3, 6-4 and 6-5” in Table 6 below is exempted.

4. If the answer to “3-2-2” is “Yes”, when completing Table 4 and the attachments of “6-1, 6-2 and 6-3”, please include the number of stocks to be held until the date of scheduled stock issuance with respect to the calculation of number of stocks and the determination of the largest shareholder as of the date to issue the stocks, etc. by third-party allotment.

4. Matters on whether there is a change in the management rights or not⁽¹⁾

4. Whether or not the management rights have been changed? (Only for the case of “Yes” for one or both of “3-1-2” and “3-2-2”)	Yes/ No	❖ In case of “Yes” for “4-1” and “No” for one or both of “4-2” and “4-3”, it shall be “Yes”
4-1. Whether or not falling under any one of the followings: (a) Whether or not the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the Report is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report? (b) In cases where the Corporation issues or plans to issue the stocks, etc. to the key investors of the unlisted corporation through third-party allotment within six months after the submission date of the Report, whether or not the number of stocks of the Corporation held (or to be held) by the key investors as of the issuance (or scheduled issuance) date is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the issuance (or scheduled issuance) date.	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report (or the issuance date): -The number of stocks held by the largest shareholder, etc.: _____ -The number of stocks held by the shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report (or the issuance date): _____
4-2. (Only for the case of “Yes” for “4-1a”) Whether there has been a change in the largest shareholder of the concerned common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽²⁾:
4-3. (Only for the case of “Yes” for “4-1a”) Where or not the largest shareholder in “4-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report (or the issuance date)?	Yes or No	•Name of the largest shareholder of the Corporation:

Notes:

1. In calculating the number of stocks (based on the stocks with voting rights) in “4-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report or the issuance date of the stocks, etc. concerned; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report or the issuance date of the stocks, etc. concerned, and the stocks (stocks presale contract, etc.) and equity-linked bonds(based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report or the

issuance date of the stocks, etc. concerned shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

2. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director”(including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the cases where the answer to “4(whether there is a change in the management rights or not)” above is “Yes”.

2. In cases where the answer to “4” above is “No”, the attachments of “6-4” and “6-5” are exempted.

5. Matters on meeting requirements⁽¹⁾ for acquisition of stocks issued by unlisted corporation and capital increase by third-party allotment, etc.

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	At least three years shall have elapsed since its incorporation and shall continue to operate.		
(2) Profitability ⁽²⁾	Shall meet any one of the following requirements: (a) Income before tax from continuing operations: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income before tax from continuing operations) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified (excluding the qualified opinion due to the limitation on the scope of audit) on the latest two business years.		

Notes:

1. It shall be based on the day of submission of the Report.

2. The “profitability” shall apply based on the performance of the latest three business years.

6. Documents to be attached

	Attachments	Attached or not (○/×)	Remarks
6-1	Summary list of shareholders of the unlisted corporation ⁽¹⁾ (in case of key investors, it shall be stated separately per shareholder)		
6-2	Details on holdings of the stocks of the Corporation by the key investors of the unlisted corporation		
6-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
6-4	Audit report of the unlisted corporation		

6-5	Certified copy of corporate register of the unlisted corporation		
6-6	Any other documents that verify the contents of “1” through “5” above.		

Notes:

1. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report and the issuing date of the stocks, etc. by third-party allotment (limited to the case of capital increase by the third-party allotment conducted within six months after the submission of the Report).

2. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report, before and after the issuance of the stocks, etc. by third-party allotment (limited to the case of capital increase by the third-party allotment conducted within six months after the submission of the Report), and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 1” to “4” above).

Reference: Pursuant to [§33(1)] of the KOSPI Market Listing Regulation and [§29(1)3] of the Enforcement Rules of the same Regulation, in the case where a written confirmation regarding the issuance of stocks, etc. by third party allotment after the submission date of the Report is submitted additionally, “3-2”, Table “4” above and the attachments of “6-1, 6-2 and 6-3” shall be completed based on the actual issuance instead of the issuance plan.

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 11] Confirmation statement on acquisition of equity securities issued by unlisted corporation and stock transfer, etc.

(Amended on October 1, 2014; July 31, 2015; June 28, 2019)

**Confirmation Statement on Acquisition of Equity Securities issued by
Unlisted Corporation and Stock Transfer, etc.**

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the acquisition of equity securities issued by an unlisted corporation and the stock transfer, etc., and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on acquisition of equity securities issued by the unlisted corporation

2-1. List of transferors of equity securities and the number of transferred stocks per each transferor	
2-2. Whether there are any key investors ⁽¹⁾ of the unlisted corporation among the transferors of equity securities or not?	Yes/No
* If 'Yes', the name of the transferor and the relation ⁽²⁾	
2-3. Whether or not the holding ratio of the Corporation in the unlisted corporation after taking over the equity securities is 50% or higher or exceeds 30% becoming the largest investor?	Yes/No
* The holding ratio of the Corporation in the unlisted corporation after the acquisition	
2-4. The date when the material fact report on the acquisition of assets (hereinafter, “the Report”) was submitted	
2-5. The date when the equity securities are to be (or were) taken over	

1. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).

2. It refers to the relation between the transferor of the equity securities and the issuing corporation of the equity securities [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive

officers) of the issuing corporation, and the like]

References:

1. The following table shall be completed only in the cases where the answers to both of “2-2” and “2-3” above are “Yes”.
2. In cases where the answer(s) to one or both of “2-2” and “2-3” above is(are) “No”, only “6-1” of the documents in Table “6” shall be attached. Provided that, in cases where completing Table “3” below and the answers to both of “3-1” and “3-2” are “No”, the submission of “6-1” is exempted.

3. Matters on stock transfer, etc.

3-1. Whether there has been any disclosure ⁽¹⁾ on the change in the largest shareholder made within one year before the submission date of the Report or not?		Yes/No
(If “3-1” is ‘Yes’) ❖ In case where such disclosures have been made more than twice, it shall be stated per disclosure.	3-1-1. Name of the changed & disclosed largest shareholder	
	3-1-2. Whether or not the changed & disclosed largest shareholder falls under the key investor of the unlisted corporation?	Yes/No
	* If ‘Yes’, the relation with the unlisted corporation ⁽²⁾	
	3-1-3. Date of the stock transfer ⁽³⁾	
3-2. Whether or not there is any plan to transfer ⁽⁴⁾ the stocks, etc. ⁽⁵⁾ within six months after the submission date of the Report?		Yes/No
(If “3-2” is ‘Yes’) ❖ In case where the transfers are planned to be made for more than twice, it shall be stated per transfer.	3-2-1. List of the parties ⁽⁶⁾ to whom the stocks, etc. are to be transferred	
	3-2-2. Whether there are the key investors of the unlisted corporation included in the parties concerned or not?	Yes/No
	* If ‘Yes’, the relation with the unlisted corporation ⁽²⁾	
	3-2-3. Types of the securities to be transferred	
	3-2-4. Date of the planned transfer of the stocks, etc. ⁽³⁾	

Notes:

1. It refers to the “report” stipulated in [§7] of the KOSPI Market Disclosure Regulation.
2. It refers to the relation between the unlisted corporation and the changed and disclosed largest shareholder [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]
3. It refers to the date when the report was made pursuant to [§7] of the KOSPI Market Disclosure Regulation
4. It refers to the case of transferring the stocks, etc. held by the largest shareholder, etc. or other shareholders of a stock-listed corporation to the key investors of an unlisted corporation through such methods as trading.
5. The “stocks, etc.” refers to the securities specified in items (a) through (g) of [§2(1)9] of the KOSPI Market Listing Regulation (including the different classes of stocks with voting rights). In such cases, the equity-linked bonds shall be limited to those related to the equity of the concerned listed corporation.
6. It refers to the persons who are to purchase the stocks, etc. held by the largest shareholder, etc.

References:

1. The tables below shall be completed only in the cases where the answer(s) to one or both of “3-1-2” and “3-2-2” is (are) “Yes”.
2. In cases where the answers to both of “3-1” and “3-2” above are “No”, the submission of attachments is exempted.
3. In cases where the answers to both of “3-1-2” and “3-2-2” above are “No”, the submission of attachments of “6-2, 6-3, 6-4, 6-5 and 6-6” in Table 6 below is exempted.
4. If the answer to “3-2-2” is “Yes”, when completing Table “4” and the attachments of “6-1, 6-2 and 6-3”, please include the number of stocks to be held until the date of scheduled stock transfer with respect

to the calculation of number of stocks and the determination of the largest shareholder as of such date of scheduled stock transfer.

4. Matters on whether there is a change in the management rights or not⁽¹⁾

4. Whether or not the management rights have been changed? (Only for the case of “Yes” for one or both of “3-1-2” and “3-2-2”)	Yes/ No	❖ In case of “Yes” for “4-1” and “No” for one or both of “4-2” and “4-3”, it shall be “Yes”
4-1. Whether or not falling under any one of the followings: (a) Whether or not the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the submission date of the Report is more than the number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report? (b) In cases where the key investors of the unlisted corporation purchase the stocks, etc. issued by the Corporation from the largest shareholder, etc. of the Corporation within six months after the submission date of the Report, whether or not the number of stocks held (or to be held) by the key investors of the unlisted corporation as of the date of such purchase is more than the number of stocks of the Corporation held (or to be held) by the largest shareholder, etc. of the Corporation as of the date of such purchase?	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of submission of the Report (or the issuance date): -The number of stocks held by the largest shareholder, etc.: _____ -The number of stocks held by the shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the submission date of the Report (or the date of purchasing/to purchase): _____
4-2. (Only for the case of “Yes” for “4-1a”) Whether there has been a change in the largest shareholder of the concerned common-stock-listed corporation during the last one-year period from the submission date of the Report or not?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽²⁾:
4-3. (Only for the case of “Yes” for “4-1a”) Where or not the largest shareholder in “4-2” is the largest shareholder of the concerned common-stock-listed corporation as of the submission date of the Report?	Yes or No	•Name of the largest shareholder of the Corporation:

Notes:

1. In calculating the number of stocks (based on the stocks with voting rights) in “4-1”, the stocks that will be increased (based on the conversion price as of the submission date of Report or the issuance date of the stocks, etc. concerned; the same hereinafter) by the exercise of rights of equity-linked bonds that have not been exercised as of the submission date of the Report or the issuance date of the stocks, etc. concerned, and the stocks (stocks presale contract, etc.) and equity-linked bonds(based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the submission date of the Report or the issuance date of the stocks, etc. concerned shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

2. The “relation” refers to the relation between the changed largest shareholder of the Corporation and

the unlisted corporation [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director”(including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the cases where the answer to “4(whether there is a change in the management rights or not)” above is “Yes”.
2. In cases where the answer to “4” above is “No”, the attachments of “6-4, 6-5 and 6-6” are exempted.

5. Matters on meeting requirements⁽¹⁾ for acquisition of equity securities issued by unlisted corporation and transfer of stocks, etc.

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	At least three years shall have elapsed since its incorporation and shall continue to operate.		
(2) Profitability ⁽²⁾	Shall meet any one of the following requirements: (a) Income before tax from continuing operations: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income before tax from continuing operations) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified (excluding the qualified opinion due to the limitation on the scope of audit) on the latest two business years.		

Notes:

1. It shall be based on the day of submission of the Report.
2. The “profitability” shall apply based on the performance of the latest three business years.

6. Documents to be attached

	Attachments	Attached or not (○/×)	Remarks
6-1	Summary list of shareholders of the unlisted corporation ⁽¹⁾ (in case of key investors, it shall be stated separately per shareholder)		
6-2	Details on holdings of the stocks of the Corporation by the key investors of the unlisted corporation		
6-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
6-4	Audit report of the unlisted corporation		
6-5	Certified copy of corporate register of the unlisted corporation		

6-6	Any other documents that verify the contents of “1” through “5” above.		
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Notes:

1. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report and the date of stock transfer (limited to the case of stock transfer conducted within six months after the submission of the Report).

2. It shall be prepared separately based on each of the date one year before the submission date of the Report, the submission date of the Report, before and after the stock transfer (limited to the case of stock transfer conducted within six months after the submission of the Report), and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 1” to “4” above).

Reference: Pursuant to [§33(1)] of the KOSPI Market Listing Regulation and [§29(1)3] of the Enforcement Rules of the same Regulation, in the case where a written confirmation regarding the transfer of the stocks, etc. after the submission date of the Report is submitted additionally, “3-2”, Table “4” above and the attachments of “6-1, 6-2 and 6-3” shall be completed based on the actual issuance instead of the issuance plan.

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 12] Confirmation statement on issuance of new stocks by third-party allotment following investment-in-kind

(Amended on October 1, 2014; July 31, 2015; June 28, 2019)

Confirmation Statement on Issuance of New Stocks by Third-party Allotment following Investment-in-Kind

(Pertaining to [§29] of the Enforcement Rules)

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”) hereby confirms, pursuant to [§33(1)] of the KOSPI Market Listing Regulation, that there is no doubt of the truth of following information with respect to the issuance of new stocks by third-party allotment following the investment-in-kind of stocks (including equity securities; the same hereinafter) of an unlisted corporation, and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of the unlisted corporation:

2. Matters on investment-in-kind of stocks issued by unlisted corporations

2-1. List of investors-in-kind and the number of stocks contributed by each investor-in-kind	
2-2. Whether there are any key investors ⁽¹⁾ of the unlisted corporation among the investors-in-kind or not?	Yes/No
* If 'Yes', the name of the investor-in-kind and the relation ⁽²⁾	
2-3. Whether or not the total value of the stocks of the unlisted corporation which are the subject matter of the investment-in-kind is 10/100 or more of the total assets of the Corporation in the latest business year?	Yes/No
* Total value of the investment-in-kind: _____	
2-4. Whether or not the holding ratio of the Corporation in the unlisted corporation after the investment-in-kind is 50% or higher or exceeds 30% becoming the largest investor?	Yes/No
* The holding ratio of the Corporation in the unlisted corporation after the investment-in-kind	
2-5. The (expected) date of the authorization of the court	
2-6. The issue date of the new stocks for third-party allotment (the next day of payment date for stock subscription)	

Notes:

1. The “key investors” shall refer to the largest shareholder, etc. of the unlisted corporation [referring to the largest shareholder and his/her specially related persons (including the unlisted corporation concerned) and including the largest investor, etc.; the same hereinafter], or the shareholders with 5% or more of shares (the same hereinafter).
2. It refers to the relation between the investor-in-kind and the unlisted corporation [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the issuing corporation, and the like]

References:

1. Table 3 and Table 4 shall be completed only in the cases where the answers to all of “2-2”, “2-3” and “2-4” above are “Yes”.
2. In the cases where the answer(s) to one or more of “2-2”, “2-3” and “2-4” above is(are) “No”, only “5-1” and “5-6” among the documents in Table 5 shall be attached.

3. Matters on whether there is a change in the management rights or not

3. Whether there is a change in management rights or not?	Yes/ No	❖ In case of “Yes” for “3-1” and “No” for one or both of “3-2” and “3-3”, it shall be “Yes”
3-1. Whether or not the sum of the number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of report ⁽¹⁾ on the resolution or decision on the issuance of new stocks by third-party allotment (hereinafter referred to as the “date of report”) and the number ⁽²⁾ of new stocks to be delivered to the key investors as a result of the investment-in-kind is more than the number ⁽²⁾ of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the date of report ⁽¹⁾ ?	Yes or No	•The number of stocks of the Corporation held by the key investors of the unlisted corporation as of the date of report: -The number of stocks of the largest shareholder, etc.: _____ -The number of stocks of the shareholders with 5% or more of shares: _____ •The number of new stocks to be delivered to the key investors as a result of the investment-in-kind: -The number of stocks of the largest shareholder, etc.: _____ -The number of stocks of the shareholders with 5% or more of shares: _____ •The number of stocks of the Corporation held by the largest shareholder, etc. of the Corporation as of the date of report: _____
3-2. (Only for the case of “Yes” for “3-1”) Whether there was a change in the largest shareholder of the common-stock-listed corporation during the last one-year period from the date of report ⁽¹⁾ ?	Yes or No	•Date of the change: •Name of the largest shareholder of the Corporation before the change: •Name of the largest shareholder of the Corporation after the change: *Relation⁽³⁾:
3-3. (Only for the case of “Yes” for “3-1”) Where or not the largest shareholder in “3-2” is the largest shareholder of the concerned common-stock-listed corporation as of the date of report ⁽¹⁾ ?	Yes or No	• Name of the largest shareholder of the Corporation:

Notes:

1. The “date of report” shall refer to the date of modified report in case where a modified report is made as a result of the examination by the court pursuant to Article 422 of the Commercial Act after having made the report on the resolution or decision to issue new stocks through third-party allotment according the [§7] of the KOSPI Market Disclosure Regulation.
2. In calculating the number of stocks (shall be based on the stocks with voting rights) in “3-1”, the stocks that will be increased (based on the conversion price as of the date of report; the same hereinafter)

by the exercise of rights of equity-linked bonds that have not been exercised as of the date of report (in case where a modified report is made as a result of the examination by the court pursuant to Article 422 of the Commercial Act, it refers to the date of such modified report; the same hereinafter), and the stocks (stocks presale contract etc.) and equity-linked bonds(based on number of stocks that can be increased by the exercise of rights) that are subject to transfer claims in accordance with the laws and regulations, trade or other agreements as of the date of report shall be included. In such cases, the equity-linked bonds shall include those of which the period for the exercise of rights has not yet arrived.

3. The “relation” refers to the relation between the changed largest shareholder of the Corporation and the unlisted corporation that is the target of the stock swap [please state “key investor”, “representative director” (referring to the chief executive officer for the company that appointed executive officers), “director” (including executive officers) of the unlisted corporation, and the like]

References:

1. The tables below shall be completed only in the case where the answer to “3(whether there is a change in management rights or not” above is “Yes”.
2. For the case of “No” to “3” above, the submission of documents noted in “5-4” and “5-5” under “5” below is exempted.

4. Matters on meeting requirements⁽¹⁾ for issuing new stocks by third-party allotment following investment-in-kind

	Requirements	Met or not (○/×)	Remarks
(1) Period in business	At least three years shall have elapsed since its incorporation and shall continue to operate.		
(2) Profitability ⁽²⁾	Shall meet any one of the following requirements: (a) Income before tax from continuing operations: KRW 3 billion or more for the latest year & KRW 6 billion or more in total for the latest three years; (b) ROE: 5% or higher for the latest year & 10% or higher in total for the latest three years; or (c) KRW 100 billion or more of equity capital & 3% or higher of ROE (or KRW 5 billion or more of income before tax from continuing operations) for the latest year & positive cash flow from operating activities for the latest year.		
(3) Audit opinions	Unqualified opinion on the latest business year and unqualified (excluding the qualified opinion due to the limitation on the scope of audit) on the latest two business years.		

Notes:

1. It shall be based on the date of report.
2. The “profitability” shall apply based on the performance of the latest three business years.

5. Documents to be attached

	Attachments	Attached or not (○/×)	Remarks
5-1	Summary list of shareholders of the unlisted corporation ⁽¹⁾ (in case of key investors, it shall be stated separately per shareholder)		
5-2	Details on holdings of the stocks of the Corporation by the		

	key investors of the unlisted corporation ⁽²⁾		
5-3	Details on shareholdings of the largest shareholder, etc. of the Corporation ⁽²⁾		
5-4	Audit report of the unlisted corporation		
5-5	Certified copy of corporate register of the unlisted corporation		
5-6	The report on investigation prepared by an inspector or the outcomes of appraisal conducted by an appraiser prescribed in Article 422 of the Commercial Act.		
5-7	In case where the court authorized the investment-in-kind, any documents verifying such fact.		
5-8	Any other documents that verify the contents of “1” through “4” above.		

Notes:

1. It shall be prepared separately based on each of the date one year before the date of the resolution or decision on the issuance of new stocks through third-party allotment, the date of report, the date of modified report and the issue date of new stocks by third-party allotment.

2. It shall be prepared separately based on each of the date one year before the date of the resolution or decision on the issuance of new stocks through third-party allotment, the date of report, the date of modified report and the issue date of new stocks by third-party allotment, and the matters such as (a) the number of stocks held, (b) the number of stocks to be issued by right exercise of equity-linked bonds, (c) the number of stocks subject to claims for transfer and (d) the number of stocks to be issued by right exercise of equity-linked bonds subject to claims for transfer shall be stated separately (please refer to “note 2” to “3” above).

Date: mm/dd/yyyy

Corporate name:

Address:

Name and seal/signature of representative:

[Annex: Form No. 13] Application for shelf-listing of new stocks

(Amended on September 10, 2019)

Application for Shelf-listing of New Stocks

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name and seal/signature of representative:

xxxx (Company name) hereby files an application for the listing of new stocks as follows pursuant to [§45(1)] of the KOSPI Market Listing Regulation and [§39(1)] of the Enforcement Rules of the same Regulation.

Name of issue (ISIN)	()
Class of stocks	
Number of issuance	
Par value / No par value	
Amount at par value per share (KRW)	
Issuing amount per share (KRW)	
Number of the stocks to be issued	
Total price of the stocks to be issued (KRW)	
Remarks	

References:

1. In the column of “name of issue”, the name of issue of the stock of which shelf listing is applied shall be entered.

2. The column of “Class of stocks” shall be entered with ‘common stocks’, ‘different class of stocks No. 1’, ‘different class of stocks No. 2’ ... ‘different class of stocks No. 9’, and the like. 3. The serial number of issuance of the concerned stock shall be entered in the column of “number of issuance”.

4. The column of “par value / No par value” shall be entered with ‘par value stock’ or ‘no par value stock’.

5. In the column of “number of stocks to be issued”, the total number of stocks which are scheduled to be issued by the exercise of convertible rights, subscription rights or stock options shall be entered.

☐ Issuing terms of convertible bonds and bonds with warrants

Name of issue (ISIN)		()
Issue date		
Annual interest rate (%)		
Issuance value per face value of KRW 100,000 (KRW)		
Total par value (Total amount electronically registered) (KRW)		
Amount of redemption up to date (KRW)		
The term unredeemed		
Redemption period		
Terms of request for conversion (exercise of warrants)		
Ratio of conversions requested (warrants exercised)		
Period for requesting conversions (exercising warrants)	Date of start	
	Date of end	
Profit dividend of new stocks		
Issuing method		
Method of redemption		
Registry agency		
Underwriter		
Subscription or intermediation agency		
Method of interest payment		
Period for interest payment		
Place for paying principal and interest		
Guarantee : Payment agency for principal and interest		
Collateral	Type	
	Subject property	
	Order of priority	
	Secured party	
Remarks		

☐ Details of stock options

Date of the resolution on stock options		
Method of the resolution on stock options		
Total number of granted stocks		
Period for exercise of stock options	Date of start	
	Date of end	
(expected) Date of registration		
Method of granting stocks when exercised		
Exercise price (KRW)		

[Annex: Form No. 14] Written notice on issuance of new stocks
(Amended on September 10, 2019)

Written Notice on Issuance of New Stocks

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name and seal/signature of representative:

xxxx (name of company) hereby makes an application for the listing of new stocks as follows pursuant to [§45(2)] of the KOSPI Market Listing Regulation and [§39(2)] of the Enforcement Rules of the same Regulation.

Name of issue (ISIN)	()
Class of stocks	
Number of issuance	
Par value / No par value	
Amount at par value per share (KRW)	
Issue date	
Issuing amount per share (KRW)	
Number of stocks issued	
Total price of stocks issued (KRW)	
Record date for dividend payment	
Date of book settlement	
Identification number of stocks	
Total number of stocks issued and outstanding	
Gross capital (KRW)	
Method of issuance	
Place for stock subscription payment	
Remarks	

Details of Different Classes of Stocks (DCS)			
Perpetual or non-perpetual	○ / ×	Maturity date (mm/dd/yyyy)	
Expiry date (mm/dd/yyyy)			
Entitled to profit dividends or not	○ / ×		
Types of dividends		Dividend ratio (%)	
Cash dividends or not	○ / ×	Participating or not	○ / ×
Cumulative or not	○ / ×	Entitled to voting rights or not in	○ / ×

		case of no dividend payment	
Entitled to distribution of residual property?	○ / ×		
Non-voting rights or not	○ / ×	Restricted voting rights or not	○ / ×
DCS concerning redemption or not	○ / ×		
The issuer has the redemption right?	○ / ×	Shareholders have the redemption right?	○ / ×
Redemption period		Redemption period	
Redemption for cash or not	○ / ×	Redemption for cash or not	○ / ×
DCS concerning conversion or not	○ / ×		
The issuer has conversion right?	○ / ×	Shareholders have conversion right?	○ / ×
Conversion ratio (%)		Conversion ratio (%)	
Stocks to be converted into		Stocks to be converted into	
Conversion period		Conversion period	

References:

1. In the column of “name of issue”, the name of issue of the stock of which shelf listing is applied for shall be entered.
2. The column of “class of stocks” shall be entered with ‘common stocks’, ‘different class of stocks (DCS) No. 1’, ‘DCS No. 2’ ... ‘DCS No. 9’, and the like.
3. The column of “par value / No par value” shall be entered with ‘par value stock’ or ‘no par value stock’.
4. For the stocks with no par value, the ‘amount to be included in the paid-up capital’ shall be entered in the column of ‘amount at par value per share’.
5. The “total price of stocks issued” shall be calculated by multiplying the number of stocks issued by the issue price per share.
6. The column of “method of issuance” shall be entered with ‘conversion of CBs’, ‘exercise of BWs’, ‘exercise of stock options’, and etc.
7. In case of accompanying payment of stock prices, it is mandatory to enter the ‘place for stock subscription payment’.
8. The table of “details of different classes of stocks” shall be entered only for the classes of stocks other than common stocks.
9. The column of “types of dividends” shall be entered with any of followings: ‘common stocks+1%’ (for old type of preferred stocks), ‘minimum dividend ratio’ (for new type of preferred stocks) and ‘others’.

☐ **Capital increase by the exercise of conversion rights of convertible bonds**

Name of issue		
Convertible bonds	Issue date	
	Total issuing amount (A) (KRW)	
	Conversion period	Date of start
		Date of end
	Conversion ratio (%)	
Matters on new stocks	Conversion date (Issue date)	
	(Expected) Conversion registration date	
	Conversion price (KRW)	
	Number of stocks to be issued	

	Circulation date	
Amount of conversion requested (KRW)		
Accumulated total amount of conversion (B) (KRW)		
Total non-converted amount (KRW)		
Non-converted ratio $[(A-B)/A] \times 100$ (%)		
Change in conversion prices (for current year)		

☐ **Capital increase by the exercise of subscription rights of bonds with warrants**

Name of issue		
Bonds with warrants	Issuing date	
	Total issuing amount (A) (KRW)	
	Period for exercise of subscription rights	Date of start Date of end
	Exercise ratio (%)	
Matters on new stocks	Exercise date of subscription rights	
	Payment date of stock price	
	Payment method of stock price	
	(expected) Date of registration of exercise	
	Exercise price (KRW)	
	Number of stocks to be issued	
	Circulation date	
Amount of exercise of subscription rights (KRW)		
Accumulated total amount of exercise (B) (KRW)		
Total non-exercised amount (KRW)		
Non-exercise ratio $[(A-B)/A] \times 100$ (%)		
Change in exercise prices (for current year)		

☐ **Capital increase by the exercise of subscription rights of subscription warrants**

Name of issue		
bonds with warrants	Issuing date	
	Total issuing amount (A) (KRW)	
	Exercise period of subscription rights	Date of start Date of end
	Exercise ratio (%)	
Matters on new stocks	Exercise date of subscription rights	
	Number of warrants exercised	
	Number of stocks issued	
	Stock subscription payment date	

	Method of stock subscription payment		
	(expected) Registration date		
	Exercise price (KRW)		
	Circulation date		
Details on the change in subscription warrants after the exercise of subscription rights		Before change	After change
Number of subscription warrants			
Class of stocks to be issued by the exercise of rights			
Number of stocks to be issued by exercise of rights			
Change in exercise prices			

☐ **Capital increase by the exercise of stock options**

Name of issue			
Status of stock options granted	Resolution date		
	Method of resolution		
	Total number of stocks granted (A)		
	Exercise period of stock options	Date of start	
		Date of end	
Matters on exercise of stock options	Exercise date of stock options		
	Payment date of stock price		
	Payment method of stock price		
	(expected) Registration date		
	Exercise price (KRW)		
	Number of stocks issued		
Accumulated total number of stocks exercised (B)			
Non-exercise ratio [(A-B)/A] × 100(%)			
Change in exercise prices (for current year)			

[Annex: Form No. 15] Written report on change of the largest shareholder of a paper company who is the largest shareholder

Written Report on Change of the Largest Shareholder of a Paper Company who is the Largest Shareholder

(Pertaining to [§71(3)] of the Enforcement Rules)

1. Details of the change	The largest shareholder before the change	The largest shareholder, etc.	
		Number of stocks held	
		% of stockholding	
	The largest shareholder after the change	The largest shareholder, etc.	
		Number of stocks held	
		% of stockholding	
2. Reasons for the change			
3. Date of the change			
4. Date of confirmation of the change			
5. Other reference matters for the investment decisions			

[Details on the largest shareholder of the paper company who is the largest shareholder]

Name (Corporate Name)	Relation	Before the change		After the change		Remarks
		No. of stocks	% of stake	No. of stocks	% of stake	

[Details on the paper company who is the largest shareholder]

Name (Corporate Name)	Relation	No. of stocks	% of stake	Date of the change	Remarks

References:

1. In cases where the largest shareholder of a KOSPI-listed corporation is the paper company stipulated in [§2(1)19] of the KOSPI Market Listing Regulation, the report shall be made when it is confirmed that the largest shareholder of such paper company was changed.

A: The largest shareholder of the largest shareholder (paper company) B: The largest shareholder (paper company) C: KOSPI-listed corporation
--

2. The columns under "1. Details of the change" shall be entered as follows:

- In the column of "The largest shareholder, etc.", the name of "A" before and after the change and the number of specially-related persons of "A" shall be entered.
- In the column of "Number of stocks held", the number of stocks of "B" that are held by

“A” (including specially-related persons) before and after the change, respectively shall be entered. In such cases, the non-voting stocks and the treasury stocks owned by “B” (including the treasury stocks held by a trust contract, etc.) shall be excluded in calculating the number of stocks held.

- In the column of “% of stockholding”, the portion that the respective stockholding of A (including specially-related persons) before and after the change takes up in the total number of outstanding stocks of “B” (excluding non-voting stocks) shall be stated.

3. In “3. Date of the change”, the date when “A” was changed shall be entered.

4. In “4. Date of confirmation of the change”, the date when “C” has confirmed the fact that “A” was changed shall be entered.

5. In case where “A” after the change is a corporation, the financial position (referring to capital, total assets, total liabilities, total capital, etc. of the latest business year) of “A” after the change, other matters on “A” after the change shall be entered in the column, “5. Other reference matters for the investment decisions”, and any material facts other than those mentioned above, which can be of reference for investment decisions relating to the change of “A” shall be stated in detail in the column, “5. Other reference matters for the investment decisions”.

6. In the table, “Details on the largest shareholder of the paper company who is the largest shareholder”, all of the details on the changes of the stakes of “A” before the change (including specially-related persons) and “A” after the change (including specially-related persons) in “B” shall be stated. In such cases, the non-voting stocks shall be excluded in calculating the details of changes in stake. In the column, “Relation”, the largest shareholder before the change, the specially-related persons of the largest shareholder before the change, the largest shareholder after the change and the specially-related persons of the largest shareholder after the change shall separately be entered and, with regards to the specially-related persons of the largest shareholder before and after the change, the detailed relations with the largest shareholder shall be stated in the column of “Remarks”.

(Example) Spouse of John Doe, the largest shareholder.

7. In the table “Details on the paper company who is the largest shareholder”, the details on “C” of “B” (including specially-related persons. In such cases, the non-voting stocks shall be excluded in calculating the details of changes in stake. In the column, “Relation”, the largest shareholder and the specially-related persons of the largest shareholder shall separately be entered and, with regards to the specially-related persons of the largest shareholder, the detailed relations with the largest shareholder shall be stated in the column of “Remarks”. (Example) Spouse of John Doe, the largest shareholder.

Written Confirmation on Paper Company

To Chairperson of Korea Exchange,

ABC Corporation (hereinafter referred to as “the Corporation”), the under signed, hereby submits this written confirmation to ensure whether or not the largest shareholder of the Corporation meets the requirements for a paper company stipulated in [§71(3)] of the Enforcement Rules of the KOSPI Market Listing Regulation, and if any false fact is found, the Corporation will make no objections to the delisting, designation as administrative issue and any other measures taken by the Korea Exchange against the Corporation in accordance with the relevant regulations and enforcement rules of the KOSPI market, and that the Corporation will indemnify any and all claims and damages which may arise in connection with the breach of the confirmation duty.

1. Name of corporation

- ☐ Name of listing (to be listed) corporation:
☐ Name of the largest shareholder (paper company) of listing (to be listed) corporation:

2. Organizational structure and status of shareholdings

<u>The largest shareholder, etc.(the largest shareholder of the paper company)</u> ○(number) persons including xxx (name)	Shareholding ratio: _____%
<u>Paper company[the largest shareholder of the listing (to be listed) corporation]</u> (Name of paper company: ○○○) (Place of incorporation: ○○○)	Shareholding ratio: _____%
<u>Listing (to be listed) corporation</u> (Name of corporation: ○○○) (Place of incorporation: ○○○)	Shareholding ratio: _____%
<u>Investing corporation</u> (Name of corporation: ○○○) (Place of incorporation: ○○○)	

3. Requirements for a paper company

Categories	Requirements	Details	Met or Unmet
Listing of the paper company	It shall not be the stock-listed corporation(including the corporation that has listed foreign stocks or foreign stock DRs on the recognized overseas securities markets) prescribed in Article 9(15)3 of the Act	Name of listed Exchange:	
Stock investment	The total value of shares of the target company held by the corporation concerned as of the end of latest business year shall be 50% or more of the total asset ^(Note)	- Total value of shares invested: - Total asset: - Ratio: _____%	
Conducting for-profit-business	The sales amount created from the businesses other than followings shall be less than 30% of the total sales based on the income statement of the latest business year: (1) Business of managing the company targeted for investment; (2) Businesses related to financing such as issuance of stocks/bonds and listing, etc.; (3) Businesses generally required for the operation of company, including establishment and implementation of budget, hiring and administration of human resources, and development and operation of computer systems, etc.; and (4) Other businesses incidental to the above-mentioned.	- List of business objectives: - Total sales (C): •Sales related to (1) through (4) (A): •Sales related to businesses other than those in (1) through (4) (B): - Ratio (B/C):____%	

Note: In cases where the documents verifying current stock value and total asset were submitted after the end of the latest business year, the documents concerned may be used as the basis.

4. Documents to be attached

	Attachments	Attached or not (○, ×)	Remarks
4-1	Documents verifying the fact of listing (domestic listed corporations are excluded)		
4-2	Documents showing financial status as of the end of the latest business year ^(Note) (including auditor's confirmation letter)		
4-3	Articles of incorporation		
4-4	List of shareholders		
4-5	Sales by business sector (including auditor's confirmation letter)		
4-6	Documents verifying the establishment of paper company		
4-7	Other documents verifying details of "1" through "3" above		

Note: In cases where the documents verifying current stock value and total asset were submitted after the end of the latest business year, the documents concerned may be used as the basis.

Date: mm/dd/yyyy

Name of company:

Address:

Name and seal/signature of representative:

[Annex: Form No. 17] Written report on operation of the internal accounting management system

Written Report on Operation of the Internal Accounting Management System

(Pertaining to [§71(6)] of the Enforcement Rules)

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of Company:

Name and seal/signature of representative:

Address of principal office:

(Phone number:)

Manager in Charge of Internal Accounting:

(Phone number:)

1. Regulation on internal accounting management and matters on organization for management and operation of the internal accounting system

(a) Introduction and progress of the internal accounting management system

(b) Regulation on internal accounting management

(i) Title of the regulation: _____ (formulated on mm/dd/yyyy)

(ii) Summary of details

Items	Details	Related Articles
(Management of accounting information) • Process of accounting business (Procedures the persons in charge of preparing accounting information shall follow) - Methods of accounting - Change of accounting methods - Report of accounting information - Methods of recording accounting transactions • Inspection of accounting process - Matters on internal examination such as periodical inspection and coordination of accounting information - Methods of error control and correction of accounting information • Administration and keeping of accounting records		

- Methods of keeping books for record and conservation of accounting information and control procedures to prevent forgery, etc.		
(Administration and operation of internal accounting management system) • Segregation of duties and responsibilities among the officers and employees in charge of preparation of accounting information - Officer in charge of administration and operation of internal accounting management system - Manager in charge of internal accounting management - Segregation of duties relating to accounting information - Methods of handling violations of internal accounting management regulation - Reporting obligation of auditor - Disclosure of internal accounting management system		
(Others) • Disciplinary actions against officers and employees who violate the regulation • Procedure of revising the regulation		

Reference: Please include contents equivalent to those in the “Standard Examples of Internal Accounting Management Regulation” of the Korea Listed Companies Association

(iii) Major revisions to the regulation on internal accounting management during the current business year

Date of revision	Before revision	After revision	Remarks (Reasons for revision)

(c) Organization for the management of internal accounting system

(i) Personnel in charge of management and operation of internal accounting system

Organization / Department	Name of person in charge	Position	Tasks		Phone No.
			Relating to internal accounting management system	Others	
Auditor (Audit Committee)		Auditor			
Board of Directors		Internal accounting Manager			
Accounting Dept.					
IT systems Dept.					
Financial management Dept.					
Other related department					

(ii) Personal information of internal accounting manager

Name	Organization/Department	Date of birth	Education	Terms of office	Work experience	Others
				~		

(iii) Human resources relating to administration and operation of internal accounting system and CPAs

Organization / Department	Total number of staff	Percentage of CPAs among total internal accounting staff			Average length of experience of internal accounting staff (in months) *
		Number of internal accounting staff (A)	CPAs (B)	Percentage (B/A×100)	
Auditor (Audit Committee)					
Board of Directors					
Accounting Dept.					
IT systems Dept.					
Financial management Dept.					
Other related department					

* Average length of experience of internal accounting staff (in months) = Simple summation of A's internal accounting experience (in months; including experiences before entering the company) / Total number of internal accounting staff (A)

2. Results of operation of internal accounting management system reported by internal accounting manager

Period(Business Year)	Date of report	Reporter	Details of report	Reported to:	Remarks
××th period					
××th period (semi-annual)					
Others					

3. Auditor's Report to BOD on Evaluation of Operation of Internal Accounting Management System

Period(business year)	Date of report	Reporter	Details of report	Remarks
××th period				
××th period (semi-annual)				
Others				

4. Auditor's Review and Opinion (Name of Auditor:)

	Details of opinions	Improvements made by the company	Improvement plans	Remarks
Regulation on internal accounting management				
Organization for the management of internal accounting system				
Operation of internal accounting management system				
Other internal accounting-related opinions				

References:

1. The review shall be made in accordance with the "Review Criteria of Internal Accounting Management System" of the KICPA when evaluating the operation of internal accounting management system based on the "Standard Examples of Internal Accounting Management Regulation" of the Korea Listed Companies Association.
2. A copy of the review opinion on internal accounting management system issued by auditor shall be separately attached.

5. Details of disciplinary actions taken against violations of internal accounting management regulation

Date of violation	Person violated		Violation details	Details of disciplinary actions	Date of disciplinary actions
	Position	Name			

6. Other matters necessary for investors' understanding and evaluation of internal accounting management system

(Attachment) A copy of auditor's review opinion on internal accounting management system

[Annex: Form No. 18] Written report on changes in shareholding of the largest shareholder, etc.

(Amended on October 1, 2014)

Written Report on Changes in Shareholding of the Largest Shareholder, etc.

(Pertaining to [§72]) of the Enforcement Rules)

1. Information on issuing company

Company Name		Company Code		Department in charge		Name of the Person in charge		Tel.	
								(Fax)	

2. Information on the number of stocks issued

No. of common stocks (a)	No. of different classes of stocks (b)	Total number of stocks issued (a+b)

3. Overview of the report

Date of reporting		Stocks owned		
			No. of stocks	Portion (%)
Submission date of the last report		Common stocks		
		Different classes		
		DRs		
		Total		
Submission date of this report		Common stocks		
		Different classes		
		DRs		
		Total		
Increase / Decrease		Common stocks		
		Different classes		
		DRs		
		Total		

(Note) In the columns of "Submission date of this report" and "No. of stocks increased / decreased", from among the changes that have occurred since the submission of the last report, those that were not reported (including those exempted from reporting pursuant to [§83(3)] of the Regulation) shall be entered.

■ In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the following table.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

4. Details of changes per individual

Name		Date of birth / Business Registration number			
Resident / Non-resident		Gender			
Relation with the largest shareholder and the issuer		Details of concurrent business 1		Details of concurrent business 2	
Date of the change		Class of stock		No. of stocks increased / decreased	
Reasons for the change		No. of stocks before the change		No. of stocks after the change	

(Note) The details above shall include, from among the changes that have occurred since the submission of the last report, those that were not reported (including those exempted from reporting pursuant to [§83(3)] of the Regulation).

- If there are multiple largest shareholders whose stockholdings have changed, the details shall be prepared for each shareholder.

5. Current status of shareholding of the largest shareholder, etc. (Overall status)

Name	Date of birth / Business registration no.	Resident / Non-resident	Gender	Relations with the largest shareholder or the issuer	Details of concurrent business 1	Details of concurrent business 2	Nationality	Common stocks		Different classes		DRs		Total	
								No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)
Total															

(Note) From among the changes that have occurred since the submission of the last report, those that were not reported (including those exempted from reporting pursuant to [§83(3)] of the Regulation) shall be included.

- If there are multiple largest shareholders, the table above shall be prepared for each shareholder.

- In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the following table.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

Written Report on Changes in Shareholding of the Largest Shareholder, etc.

[In cases where the largest shareholder has changed]

(Pertaining to [§72]) of the Enforcement Rules)

1. Information on issuing company

Company Name		Company Code		Department in charge		Name of the Person in charge		Tel.	
								(Fax)	

2. Information on the number of stocks issued

No. of common stocks (a)	No. of different classes of stocks (b)	Total number of stocks issued (a+b)

[For the largest shareholder, etc. before the change]

3. Overview of the report

Date of reporting		Stocks owned		
			No. of stocks	Portion (%)
Submission date of the last report		Common stocks		
		Different classes		
		DRs		
		Total		
Submission date of this report		Common stocks		
		Different classes		
		DRs		
		Total		
Increase / Decrease		Common stocks		
		Different classes		
		DRs		
		Total		

■ In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the followings.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

4. Details of changes per individual

Name		Date of birth / Business Registration number					
Resident / Non-resident		Gender					
Relation with the largest shareholder and the issuer		Details of concurrent business 1		Details of concurrent business 2		Nationality	
Date of the change	Reasons for the change	Class of stock	No. of stocks before the change	No. of stocks increased / decreased	No. of stocks after the change	Remarks	

■ If there are multiple largest shareholders whose stockholdings have changed, the details shall be prepared for each shareholder.

5. Current status of shareholding of the largest shareholder, etc. (Overall status)

Name	Date of birth / Business registration no.	Resident / Non-resident	Gender	Relations with the largest shareholder or the issuer	Details of concurrent business 1	Details of concurrent business 2	Nationality	Common stocks		Different classes		DRs		Total	
								No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)
Total															

■ If there are multiple largest shareholders, the table above shall be prepared for each shareholder.

■ In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the following table.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

[For the largest shareholder, etc. after the change]

6. Overview of the report

Date of reporting		Stocks owned		
			No. of stocks	Portion (%)
Submission date of the last report		Common stocks		
		Different classes		
		DRs		
		Total		
Submission date of this report		Common stocks		
		Different classes		
		DRs		
		Total		
No. of stocks increased / decreased		Common stocks		
		Different classes		
		DRs		
		Total		

■ In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the following table.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

7. Details of changes per individual

Name		Date of birth / Business Registration number			
Resident / Non-resident		Gender			
Relation with the largest shareholder and the issuer		Details of concurrent business 1		Details of concurrent business 2	
Nationality					
Date of the change	Reasons for the change	Class of stock	No. of stocks before the change	No. of stocks increased / decreased	No. of stocks after the change

■ If there are multiple largest shareholders whose stockholdings have changed, the details shall be prepared for each shareholder.

8. Current status of shareholding of the largest shareholder, etc. (Overall status)

Name	Date of birth / Business registration no.	Resident / Non-resident	Gender	Relations with the largest shareholder or the issuer	Details of concurrent business 1	Details of concurrent business 2	Nationality	Common stocks		Different classes		DRs		Total	
								No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)	No. of stocks	Portion(%)
Total															

■ If there are multiple largest shareholders, the table above shall be prepared for each shareholder.

■ In case of DRs (limited to the DRs of which underlying assets are stocks), please insert the following table.

- Exchange ratio of underlying stocks: No. of DRs = No. of stocks per class
The number of DRs shall be entered with the number of underlying stocks and the ratio shall be calculated based on total number of underlying stocks issued.

[Annex: Form No. 19] Request for listing of government debt securities

Request for Listing of Government Debt Securities

❖ *Since this form is applicable only for the debt securities issued by the Korean government, English version is not provided here.*

[Annex: Form No. 20] Application for shelf-listing of debt securities
(Amended on September 10, 2019)

Application for Shelf-listing of Debt Securities

To Chairperson of Korea Exchange,

Date: mm / dd / yyyy

Name of corporation:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the shelf-listing of debt securities as follows pursuant to [§87] of the KOSPI Market Listing Regulation and [§74] of the Enforcement Rules of the same Regulation.

I. Issuing institution:

II. Types of debt securities:

III. Details of issuance

(in KRW million)

Issuing Month	Issue 1			Issue 2			Issue 3		
	Year of xxxx	Year of xxxx		Year of xxxx	Year of xxxx		Year of xxxx	Year of xxxx	
	Amount issued	Expected amount to issue	Daily average	Amount issued	Expected amount to issue	Daily average	Amount issued	Expected amount to issue	Daily average
Jan.									
Feb.									
Mar.									
Apr.									
May									
Jun.									
Jul.									
Aug.									
Sep.									
Oct.									
Nov.									
Dec.									
Total									

IV. Grounds for the issuance:

V. Conditions of the issuance

	Issue 1	Issue 2	Issue 3
Purpose of issue			
Issuing methods			
Issuing types			
Principal redemption period & Redemption method			
Interest rate & Payment methods of interests			
Date of issue			

VI. Electronic registry:

VII. Place for payment of principal and interests:

Issue 1	Issue 2	Issue 3

[Annex: Form No. 21] Written report on exercise of conversion (subscription/exchange) rights

(Amended on October 1, 2014; July 31, 2015; June 28, 2019; September 10, 2019)

Written Report on Exercise of Conversion (Subscription/Exchange) Rights

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby submits a written report on exercise of conversion (subscription or exchange) rights as follows pursuant to [§93] of the KOSPI Market Listing Regulation and [§79] of the Enforcement Rules of the same Regulation.

1. Name of issue (No. of issuance): ()

2. Details of exercise of conversion (subscription / exchange) rights

Date of exercise	Total par value requested for exercise	Exercise price	No. of stocks to be issued by the exercise of rights		Remarks
			Class of stocks	No. of stocks	

3. Details of changes in CBs (BW / EBs)

Total amount issued	Total outstanding amount as at the end of previous month	Total par value converted during current month	Total outstanding amount as at the end of current month	Remarks

[Annex: Form No. 22] Written report on exercise of rights of ELWs

Written Report on Exercise of Rights of ELWs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the details of exercise of rights of ELWs as follows pursuant to [§145] of the KOSPI Market Listing Regulation and [§119] of the Enforcement Rules of the same Regulation.

1. Matters on ELWs

Issue name / Abbreviated issue name	ISIN / Abbreviated ISIN
Date of listing	No. of listed stocks (based on the last trading day)
	No. of stocks held by LP (based on the date of exercise)
Period for exercise of rights (expiry date)	Expiration or Early termination
Underlying assets	Exercise price
Conversion ratio	Appraisal price at maturity

2. Matters on exercise of rights and settlement

Date of exercise	Quantity exercised	Settlement methods	Settlement details			ELWs unexercised	
			Settlement date	Settlement amount	No. of settlement stocks	Quantity	Portion (%)

Reference: The table above shall be prepared based on the exercise date. The settlement methods shall be classified into 'cash settlement' and 'settlement by physical delivery', and please enter the settlement amount in case of case settlement and the number of settlement stocks in case of physical delivery. The portion of unexercised ELWs shall be calculated based on the number of stocks listed.

Written Report on Early Termination of ELWs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the details on occurrence of early termination of ELWs as follows pursuant to [§145] of the KOSPI Market Listing Regulation and [§119] of the Enforcement Rules of the same Regulation.

Issue name		ISIN	
Abbreviated issue code		Abbreviated ISIN	
Date of listing		No. of listed stocks (based on the last trading day)	
Underlying assets		Exercise price	
Base price for occurrence of early termination		Time of occurrence of early termination	
Date of delisting		Expiry date of exercise period	
Appraisal period for early termination			

Reference: The time of occurrence of early termination shall be entered in the format of “mm/dd/yyyy, hh:mm:ss”. Such time shall be the time when the Exchange system confirms the fact that the underlying asset of the ELW for early termination has reached at the base price for occurrence of early termination and starts to reject the reception of quotations of the ELW concerned, and therefore there could be some differences between the time of occurrence of early termination and the time of reaching at the base price.

[Annex: Form No. 24] Written report on settlement of early termination of ELWs

Written Report on Settlement of Early Termination of ELWs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the details of settlement of early termination of ELWs as follows pursuant to [§145] of the KOSPI Market Listing Regulation and [§119] of the Enforcement Rules of the same Regulation.

Issue name	ISIN	
Abbreviated issue code	Abbreviated ISIN	
Date of listing	No. of listed stocks (based on the last trading day)	
Underlying assets	Exercise price	
Conversion ratio	Base price for occurrence of early termination	
Time of occurrence of early termination	Appraisal price for early termination	
Amount of residual value of one ELW	Payment date of the amount of residual value	
Appraisal period for early termination	Starting time	Closing time
Calculation methods of appraisal prices and residual values		

Reference: The time of occurrence of early termination shall be entered in the format of “mm/dd/yyyy, hh:mm:ss”. Such time shall be the time when the Exchange system confirms the fact that the underlying asset of the ELW for early termination has reached at the base price for occurrence of early termination and starts to reject the reception of quotations of the ELW concerned, and therefore there could be some differences between the time of occurrence of early termination and the time of reaching at the base price.

[Annex: Form No. 25] Written report on liquidity provision and acquisition (disposal) of ELWs

Written Report on Liquidity Provision and Acquisition (Disposal) of ELWs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the details of liquidity provision of liquidity providers and the details of acquisition or disposal of ELWs by the issuer of the ELWs concerned as follows pursuant to [§145] of the KOSPI Market Listing Regulation and [§119] of the Enforcement Rules of the same Regulation.

1. Details of liquidity provision of liquidity providers

ISIN	Abbreviated issue name	Liquidity provider	Exchange-traded / OTC	Quantity sold	Average selling price	Quantity bought	Average buying price	ELW holding after liquidity provision	
								Quantity	Portion (%)

2. Details of the issuer's acquisition / disposal of ELWs issued by itself

Issue code	Abbreviated issue name	Buy/Sell	Quantity sold	Average selling price	Quantity bought	Average buying price

[Annex: Form No. 25-2] Written report on correction of quantity of acquisition (disposal) by liquidity providers of ETNs

[September 2, 2014] (Amended on July 23, 2020)

**Written Report on Correction of Quantity of Acquisition (Disposal) by
Liquidity Providers of ETNs**

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the correction of quantity of acquisition or disposal by liquidity providers of ETNs as follows pursuant to [§149-9] of the KOSPI Market Listing Regulation and [§123-9] of the Enforcement Rules of the same Regulation.

Name of issue					
Liquidity provider					
Reasons for correction					
	Base quantity to be held by the LP on the day	Holding ratio (%)	Details on the quantity held by the LP		
			Quantity held on the previous day	Quantity increased on the day (supplementary listing)	Quantity decreased on the day (redemption before maturity)
Before the correction					
After the correction					

References:

1. The reporting date shall be the date when the report was prepared and the 'quantity held on the previous day' shall be the last quantity held by the LP on the business day immediately preceding the reporting date.
2. The number of 'holding ratio' shall be rounded off to the nearest second decimal place.

[Annex: Form No. 25-3] Written report on early redemption of ETNs

[February 8, 2017] (Amended on July 23, 2020)

Written Report on Early Redemption of ETNs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the fact on the occurrence of early redemption of ETNs as follows pursuant to [§149-9] of the KOSPI Market Listing Regulation and [§123-9] of the Enforcement Rules of the same Regulation.

Issue name			
ISIN			
Date of listing		No. of listed stocks	
Name of underlying index			
Criteria for early redemption			
Closing value of the underlying index on the reporting date		Assessment date of early redemption	
Date of delisting			
Others	No off-hours trading after the occurrence of early redemption on the day		

References:

- 1. The early redemption criteria shall be stated in the form "with the closing value of the underlying index of the assessment date being XXX.XX or higher / lower".*
- 2. The early redemption price (the closing indicative value of the day) shall be disclosed on the following day using the form 'written report on settlement of early redemption of ETNs'.*

[Annex: Form No. 25-4] Written report on settlement of early redemption of ETNs

[February 8, 2017] (Amended on July 23, 2020)

Written Report on Settlement of Early Redemption of ETNs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the settlement details of early redemption of ETNs as follows pursuant to [§149-9] of the KOSPI Market Listing Regulation and [§123-9] of the Enforcement Rules of the same Regulation.

Issue name		
ISIN		
Date of listing	No. of listed stocks	
Name of underlying index		
Criteria for early redemption		
Closing value of the underlying index on the reporting date	Assessment date of early redemption	

Reference: The early redemption criteria shall be stated in the form "with the closing value of the underlying index of the assessment date being XXX.XX or higher / lower".

[Annex: Form No. 25-5] Written report on non-fulfillment of conditions for early redemption of ETNs

[February 8, 2017] (Amended on July 23, 2020)

Written Report on Non-fulfillment of Conditions for Early Redemption of ETNs

To Chairperson of Korea Exchange,

Reporting date: mm / dd / yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the fact on the non-fulfillment of conditions for early redemption of ETNs as follows pursuant to [§149-9] of the KOSPI Market Listing Regulation and [§123-9] of the Enforcement Rules of the same Regulation.

Issue name		
ISIN		
Date of listing	No. of listed stocks	
Name of underlying index		
Criteria for early redemption		
Assessment date of early redemption	Closing value of the underlying index on the assessment date of early redemption	
Early redemption price per ETN	Payment date of early redemption	
Date of delisting		
Method of determining early redemption prices	The closing indicative value of the assessment date of early redemption	

Reference: The early redemption criteria shall be stated in the form “with the closing value of the underlying index of the assessment date being XXX.XX or higher / lower”.

[Annex: Form No. 26] Written report on net capital ratio

(Amended on June 25, 2014; September 2, 2014; February 23, 2015; January 31, 2018; January 25, 2019; July 23, 2020)

Written Report on Net Capital Ratio

To Chairperson of Korea Exchange,

Reporting date: mm/dd/yyyy

Reporting company:

Name and seal/signature of representative:

xxxx (name of corporation) hereby makes a report on the details of net capital ratio as follows pursuant to [§145] and [§149-9] of the KOSPI Market Listing Regulation and [§119] and [§123-9] of the Enforcement Rules of the same Regulation.

1. Net capital ratios of the issuer

(in KRW mil., %)

mm / yyy y	Equity capital (①)	Net capital ratio [(a-b)/c]			Gross risks of OTC derivatives trading (②)	Ratio (②/①)
		Net operating capital (a)	Gross risks (b)	Minimum maintenance equity capital (c)		

Notes:

1. The net capital ratio is an indicator showing the capital adequacy of a brokerage firm. It compares the difference between the net worth of assets measured by the immediate convertibility into cash and the estimation of losses arising from business activities with the minimum size of equity capital needed for the conduct of businesses.
2. Provided that it should be noted that an excessively high net capital ratio of a firm may cause deterioration of profitability of the firm. Brokerage firms are required to maintain their net capital ratios over 100% and in cases where they fail to meet this requirement, they will receive corrective measures in stages.
3. In cases where the net capital ratio of an issuer falls below the listing requirement (based on requirement for the trading of OTC derivatives), the initial listing and the supplementary listing by the issuer are restricted until the listing requirement is met. It should also be advised for investors' attention that if the net capital ratio of an issuer falls short of the requirements for delisting, the stocks issued by the issuer may be delisted.

2. Net capital ratios of liquidity providers

(in KRW mil., %)

mm / yyy y	Equity capital (①)	Net capital ratio [(a-b)/c]			Gross risks of OTC derivatives trading (②)	Ratio (②/①)
		Net operating capital (a)	Gross risks	Minimum maintenance equity capital (c)		

				(b)			

Reference: The figures shall be accumulated for past two years and the most recent one shall be stated in the upper row.

[Annex: Form No. 27] Application for initial listing of debt securities and equity-linked securities

(Amended on June 25, 2014; September 2, 2014; September 10, 2019)

Application for Initial Listing of Debt Securities and Equity-linked Securities

To Chairperson of Korea Exchange,

Date: mm / dd / yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the listing of debt securities as follows pursuant to [§86] of KOSPI Market Listing Regulation.

				Capital stock as of application date		
Name of issue	Size of business	Whether listed stocks or not	Period for settlement of accounts	Types	Registered or Bearer	
					Guaranteed/Non-guaranteed/Secured	
Total amount issued (KRW)	Issue value (as % of total amount of issuance)	Interest rate (%)	Redemption yield (annual compound)	Issue date	Redemption date	Total amount not redeemed (KRW)
Guarantor	Electronic Registry	Trustee	Purpose of funds	Credit rating agency	Credit rating	Are the debt securities for exclusive investment by foreign investors?
			1.Operation (KRW): 2.Facilities (KRW): 3.Refinance (KRW): 4.Others (KRW):			1. Yes 2. No
Issuing methods			Matters on conversion/exchange	Conversion (Exchange) ratio		
Methods of principal redemptions				Conversion (Exchange) price		
Methods of interest payments				Class of stocks to be converted (exchanged) to		
Place for payment of interests & principal				Period for request for conversion (exchange)		
Managing underwriter				Place for conversion (exchange) request		
Underwriters				Matters on the first dividends from the stocks to be issued		
Remarks						

[Annex: Form No. 28] Application for initial listing of foreign debt securities

(Amended on September 10, 2019)

Application for Initial Listing of Foreign Debt Securities

To Chairperson of Korea Exchange,

Date: mm / dd / yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the listing of foreign debt securities as follows pursuant to [§94] of KOSPI Market Listing Regulation.

Name of the applicant	
Name of the representative	
Place of the principal office	
Name of the agent	
Name of the representative	
Place of the principal office	
Contact no.	

I. Overview of issuance

1. Terms of issuance

Name of issue	
Capital stock (as of listing application date)	
Total amount issued	
Issue value	
Total amount not redeemed	
Issuance amount per denomination	
Issue date	
Redemption date	
Coupon rate	
Credit rating company and rating	
Issuing method	
Matters on guarantee or collateral	
Trustee	
Electronic registry	
Methods of redemption of interests and principal	
Place for payment of interests and principal	

2. Matters on underwriting, etc.

A. Managing group	Amount of domestic sales	
	Amount of overseas sales	
B. Underwriting group	Amount of domestic sales	
	Amount of overseas sales	

II. Matters on the issuer

1. Overview

(a) Ground of establishment	
(b) Year of incorporation	
(c) Legal status and privilege	
(d) Relation with Korea	

2. Composition of capital

(a) Capital composition as of the end of the latest business year	
(b) Investors and investment ratios	

3. Business

(a) Overview of business	
(b) Major contracts on business	

4. Organization

(a) Organization	
(b) Executives	

5. Financial condition

(a) Auditor's opinions for the latest three business years	
(b) Balance sheets (summary) for the latest three business years	
(c) Income statements (summary) for the latest three business years	

[Annex: Form No. 29] Application for initial listing of subscription warrants

(Amended on December 28, 2018; September 10, 2019)

Application for Initial Listing of Subscription Warrants

To Chairperson of Korea Exchange,

Date: mm / dd/ yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the listing of subscription warrants as follows pursuant to [§150] of KOSPI Market Listing Regulation.

Scheduled listing date					
Name of issue					
Number of subscription warrants					
Proportion of new share subscription (%)					
Date of issue					
Number of issuance					
Classes of stocks to be issued by the exercise of subscription rights					
Number of stocks to be issued by the exercise of subscription rights					
Par value / No par value					
Amount at par value per share (KRW)					
Total par value (Total amount electronically registered) (KRW)					
Exercise price of a subscription right (KRW)					
Total issuing amount (KRW)					
Period for exercise of subscription rights	<table border="1"> <tr> <td>Date of start</td> <td></td> </tr> <tr> <td>Date of end</td> <td></td> </tr> </table>	Date of start		Date of end	
Date of start					
Date of end					
Payment method of stock subscription					
Place for payment of stock subscription					
Profit dividends of new stocks					

References:

1. The column of "par value / No par value" shall be entered with 'par value stock' or 'no par value stock'.
2. In the case of accompanying payment of stock prices, it is mandatory to enter the 'place for payment of stock subscription'.

■ Issuing terms of the bonds with warrants

Name of issue		
Date of issue		
Annual interest rate (%)		
Issuing price per face value of KRW 100,000		
Total par value (Total amount electronically registered) (KRW)		
Amount of redemption up to date (KRW)		
Term unredeemed		
Redemption period		
Exercise conditions of subscription rights		
Exercise proportion of subscription rights		
Exercise period of subscription rights	Date of start	
	Date of end	
Profit dividends of new stocks		
Issuing methods		
Method of redemption		
Registration institution		
Underwriter		
Sales agency		
Method of interest payment		
Period for interest payment		
Place for payment of principal and interests		
Guarantee: Payment agency for principal and interests		
Collateral	Type	
	Collateral property	
	Order of priority	
	Secured party	
Remarks		

References: The 'issuing methods' shall be stated as 'direct issuance' (public offering or sale) or 'indirect issuance' (public offering or sale) or 'allocation to shareholders'.

[Annex: Form No. 30] Application for initial listing of subscription right certificates

(Amended on December 28, 2018; September 10, 2019)

Application for Initial Listing of Subscription Right Certificates

To Chairperson of Korea Exchange,

Date: mm / dd / yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the listing of subscription right certificates as follows pursuant to [§150] of KOSPI Market Listing Regulation.

Scheduled listing date		
Name of issue		
Number of issuance		
Number of certificates issued		
Number of warrants to list		
Classes of the underlying stocks		
Issuing amount per share of the underlying stocks (KRW)		
Amount at par value per share of the underlying stocks (KRW)		
Number of stocks to be issued		
Total issuing amount (KRW)		
Subscription period of underlying stocks	Date of start	
	Date of end	
Matters related to permission of transfer of subscription rights		
Date of delisting		
Matters on physical issuance of subscription right certificates	Number of shareholders	Number of certificates
Remarks		

References:

1. The 'number of stocks to be issued' shall be classified and stated separately into the total number of stocks to be issued and the number of stocks to be allocated to existing shareholders that were resolved at by the board of directors.
2. The 'subscription period of underlying stocks' shall be the subscription date (period) for existing shareholders.

3. If the transfer of subscription rights is determined by the articles of incorporation (or by the general meeting of shareholders), the contents of the articles of incorporation (contents of the resolution of the general meeting of shareholders) shall be stated and if the same was determined by the board of directors, the contents of the resolution of the board meeting shall be stated.

4. The 'date of delisting' shall be the day that is five (5) days (based on trading day) retroactive from the starting date of subscription for existing shareholders.

[Annex: Form No. 31] Application for re-listing of debt securities

(Amended on September 10, 2019)

Application for Re-listing of Debt Securities

To Chairperson of Korea Exchange,

Date: mm / dd/ yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the re-listing of debt securities as follows pursuant to [§89] of KOSPI Market Listing Regulation.

				Capital stock as of application date		
Name of issue	Size of business	Whether listed stocks or not	Period for settlement of accounts	Types	Registered or Bearer	
					Guaranteed/Non-guaranteed/Secured	
Total amount issued (KRW)	Issue value (as % of total amount of issuance)	Interest rate (%)	Redemption yield (annual compound, %)	Issuing date	Redemption date	Total amount not redeemed (KRW)
Guarantor	Electronic registry	Trustee	Purpose of funds	Credit rating agency	Credit rating	Are the debt securities for exclusive investment by foreign investors?
			1.Operation (KRW): 2.Facilities (KRW): 3.Refinance (KRW): 4.Others (KRW):			1. Yes 2. No
Issuing methods			Matters on conversion/exchange	Conversion (Exchange) ratio		
Methods of principal redemptions				Conversion (Exchange) price		
Methods of interest payments				Class of stocks to be converted (exchanged) to		
Place for payment of interests & principal				Period for request for conversion (exchange)		
Managing underwriter				Place for conversion (exchange) request		
Underwriters				Matters on the first dividends from the stocks to be issued		
Date of delisting		Cause of delisting		Remarks		

[Annex: Form No. 32] Application for supplementary listing

(Amended on September 2, 2014; October 1, 2014; September 10, 2019; March 17, 2022)

Application for Supplementary Listing

To Chairperson of Korea Exchange,

Date: mm / dd / yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for supplementary listing as follows pursuant to the KOSPI Market Listing Regulation.

1. Stocks (Pertaining to [§37], [§54], [§59], [§65], [§104], and [§109] of the Enforcement Rules)

Name of issue			
Class of stocks			
Number of issuance			
Par value / No par value			
Amount at par value per share (KRW)			
Issue date			
Scheduled listing date			
Issuing amount per share (KRW)			
Number of stocks issued			
Total price of stocks issued (KRW)			
Record date for dividend payment			
Date of book settlement			
Identification number of stocks			
Total number of stocks issued and outstanding			
Gross capital (KRW)			
Method of issuance			
Place for stock subscription payment			
Matters on Mandatory Holding			
Name of person subject to mandatory holding		Birth date/Corporate registration number	
Classification of persons subject to mandatory holding		Type of stocks subject to mandatory holding	
Reasons for mandatory holding		Classification of stocks subject to mandatory holding	
Number of stocks under mandatory holding		Period of mandatory holding	Starting date
			Ending date
Remarks			

Whether a lawsuit was filed concerning the effect of issuance of new stocks	○ / ×	Date of filing the lawsuit	
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Details of Different Classes of Stocks (DCS)			
Perpetual or non-perpetual	○ / ×	Maturity date (mm/dd/yyyy)	
Expiry date (mm/dd/yyyy)			
Entitled to profit dividends or not	○ / ×		
Types of dividends		Dividend ratio (%)	
Cash dividends or not	○ / ×	Participating or not	○ / ×
Cumulative or not	○ / ×	Entitled to voting rights or not in case of no dividend payment	○ / ×
Entitled to distribution of residual property?	○ / ×		
Non-voting rights or not	○ / ×	Restricted voting rights or not	○ / ×
DCS concerning redemption or not	○ / ×		
The issuer has the redemption right?	○ / ×	Do shareholders have the redemption right?	○ / ×
Redemption period		Redemption period	
Redemption for cash or not	○ / ×	Redemption for cash or not	○ / ×
DCS concerning conversion or not	○ / ×		
Does issuer have conversion right?	○ / ×	Do shareholders have conversion right?	○ / ×
Conversion ratio (%)		Conversion ratio (%)	
Stocks to be converted into		Stocks to be converted into	
Conversion period		Conversion period	

References:

1. In the column of "name of issue", the name of issue of the stock of which listing is applied for shall be entered.
2. The column of "class of stocks" shall be entered with 'common stocks', 'different class of stocks (DCS) No. 1', 'DCS No. 2' ... 'DCS No. 9', and the like.
3. The column of "number of issuance" shall be entered with the number of issuance of the stocks, etc. concerned.
4. The column of "par value / No par value" shall be entered with 'par value stock' or 'no par value stock'.
5. For the stocks with no par value, the 'amount to be included in the paid-up capital' shall be entered in the column of 'amount at par value per share'.
6. The "total price of stocks issued" shall be calculated by multiplying the number of stocks issued by the issue price per share.
7. The column of "method of issuance" shall be entered with, whatever applicable, 'with consideration', 'without consideration', 'stock dividends', 'merger', 'conversion of CBs', 'exercise of BWs', 'exercise of stock options', and etc.
8. Write down only the corresponding part among methods of issuance (capital increase with consideration, capital increase without consideration, capital increase through stock dividends, capital increase through merger, capital increase through exercises of rights to convert convertible bonds, capital increase through exercises of preemptive rights for bonds with warrants and capital increase through exercises of stock options).
9. In the case of accompanying payment of stock prices, it is mandatory to enter the 'place for stock subscription payment'.

10. The column of “classification of persons subject to mandatory holding” shall be entered with ‘the largest shareholder’, ‘specially related persons’, and ‘others’ for a KOSPI-listed corporations, and in case of an unlisted corporation, ‘unlisted’ shall be indicated. The columns under “Matters on Mandatory Holding” shall be entered by each person subject to mandatory holding.

11. The column of “type of stocks subject to mandatory holding” shall be entered with ‘common stocks’, ‘different class of stocks’, ‘equity-related bonds’, etc.

12. For the column of “classification of stocks subject to mandatory holding”, if ‘the type of stocks subject to mandatory holding’ is ‘different class of stocks’, it shall be entered with ‘convertible preferred stocks’, ‘redeemable preferred stocks’, or ‘redeemable convertible preferred stocks’, etc. and if ‘the type of stocks subject to mandatory holding’ is ‘equity-related bonds’, it shall be entered with ‘convertible bonds’, or ‘bonds with warrant’, etc.

13. The column of “reasons for mandatory holding” shall be entered with ‘merger’, ‘change of the largest shareholder due to all-inclusive stock swap, acquisition of material business/assets & third-party allocation, third-party allocation & stock payment’, ‘change of the largest shareholder due to third-party allocation’, ‘administrative issue & third-party allocation’, ‘exercise of rights within one year after issuing stocks overseas to the persons other than the residents’, ‘capital increase without consideration (during the mandatory holding period)’, ‘exercises of stock options (during the mandatory holding period)’, ‘exercises of rights granted to stocks, etc. (during the mandatory holding period)’, ‘stock dividends (during the mandatory holding period)’, ‘capital increase through private placement (Financial Supervisory Service)’, or ‘voluntary mandatory holding’, etc.

14. The table of “details of different classes of stocks” shall be entered only for the classes of stocks other than common stocks.

54. The column of “types of dividends” shall be entered with any of followings: ‘common stocks+1%’ (for old type of preferred stocks), ‘minimum dividend ratio’ (for new type of preferred stocks) and ‘others’.

☐ Capital increase with consideration

Name of issue		
Date of BOD resolution		
Reference date for allocation		
Deadline for payment		
Registration date		
Circulation date		
Details of capital increase		
Allocation to shareholders	Number of stocks issued	
	Issuing price per share (KRW)	
	Allocation rate per share (%)	
	Subscription period	
Allocation to employee stock ownership association	Number of stocks issued	
	Issuing price per share (KRW)	
	Allocation rate (%)	
Public offering	Number of stocks issued	
	Issuing price per share (KRW)	
	Subscription period	
	Subscription rate (%)	
	Intermediary	
Allocation to third parties	Number of stocks issued	

	Issuing price per share (KRW)	
	Allocation method	

☐ Capital increase without consideration

Name of issue		
Date of resolution of BOD		
Date of resolution at shareholders' meeting		
Reference date for allocation		
Registration date		
Circulation date		
Number of stocks issued		
Allocation rate per share (%)		
Capitalization	Financial resource	
	Amount capitalized (KRW)	

☐ Capital increase by stocks dividends

Name of issue	
Date of resolution of BOD	
Date for merger	
Merger ratio (%)	
Number of stocks issued	
Date of approval on the merger at shareholders' meeting	
Date of report on the merger to shareholders' meeting	
Registration date	
Circulation date	

☐ Capital increase by merger

Name of issue	
Date of resolution of BOD	
Reference date for allocation	
Total amount of profits dividends (KRW)	
Total amount of stock dividends (KRW)	
Number of stocks issued	
Registration date	
Circulation date	

☐ Capital increase by exercise of conversion rights of CBs

Name of issue			
Convertible bonds	Issue date		
	Total amount of issuance (A)(KRW)		
	Period for requesting conversion	Date of start	
		Date of end	
	Conversion ratio (%)		
Matters on exercise of conversion rights	Date of request for conversion (issue date)		
	(Expected) Date of registration of conversion		
	Conversion price (KRW)		
	Number of stocks issued		
	Circulation date		
Total amount converted (B) (KRW)			
Non-conversion ratio [(A-B)/A] (%)			
Changes in conversion prices (for the current year)			

☐ Capital increase by exercise of subscription rights of BWs

Name of issue			
Bonds with warrant	Issue date		
	Total amount of issuance (A)(KRW)		
	Period for exercise of subscription rights	Date of start	
		Date of end	
	Exercise ratio of subscription rights (%)		
Matters on exercise of subscription rights	Date of exercise of subscription rights		
	Payment date of stock price (issue date)		
	Date of registration of rights exercise		
	Exercise price (KRW)		
	Number of stocks issued		
	Circulation date		
Total amount exercised (B) (KRW)			
Non-exercise ratio [(A-B)/A] (%)			
Changes in exercise prices (for the current year)			

☐ Capital increase by exercise of stock options

Name of issue			
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Status of stock options granted	Date of resolution on grant		
	Methods of resolution on grant		
	Total number of stock options granted (A)		
	Period for exercise of stock options	Date of start	
		Date of end	
Matters on exercise of stock options	Date of exercise of stock options		
	Payment date of stock price (issue date)		
	(Expected) Date of registration		
	Exercise price (KRW)		
	Number of stocks issued		
	Circulation date		
Total amount exercised (B) (KRW)			
Non-exercise ratio [(A-B)/A] (%)			
Changes in exercise prices (for the current year)			

2. Debt securities and foreign debt securities (Pertaining to [§76] and [§81] of the Enforcement Rules)

Name of issue (ISIN)		()
Date of initial issue		
Outstanding amount listed (Total amount issued) (KRW)		
Date of additional issue (Date of additional sale)		()
Amount of additional issue (Total amount issued) (KRW)		
Coupon rate (%)		
Total par value after additional issuance (Total amount issued) (KRW)		
Remarks		

3. Securities of investment companies (Pertaining to [§84] of the Enforcement Rules)

Name of issue		
Number of stocks issued additionally		
Issuing amount per share/Par value (KRW)		
Total number of stocks issued after additional issuance		
Capital stock after additional issuance (KRW)		
Matter for reference	Registered or Bearer	
	Date of establishment of collective investment scheme	
	Reference date for dividends payments	
	Number of sheets issued per denomination	
	Collective investment business entity	

	Remarks	
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4. Beneficiary certificates (Pertaining to [§88] of the Enforcement Rules)

Name of issue	
Number of units issued additionally	
Total number of units issued after additional issuance	
Trust principal after additional issuance (KRW)	
Registered or Bearer	
Date of establishment of trust	
Date of establishment of trust period	
Expiry date of trust period	
Principal amount per unit (KRW)	
Number of sheets issued per denomination	
Trust business entity	
Remarks	

[Annex: Form No. 33] Application for listing change

(Amended on September 2, 2014; July 31, 2015; April 4, 2016; September 10, 2019; July 23, 2020)

Application for Supplementary Listing

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for listing change of following securities pursuant to the KOSPI Market Listing Regulation.

1. Stocks (Pertaining to [§40], [§55], [§60], [§66], [§85], [§104] and [§109] of the Enforcement Rules)

			Before the change	After the change
Name of issue				
Number of issuance				
Amount at par value per share (KRW)				
Total number of stocks issued				
Par value / No par value				
Class of stocks				
Reasons for the change				
Matters for reference	Relating to the stocks	Issue date		
		Issuing amount per share (KRW)		
		Number of stocks issued		
		Total price of stocks issued (KRW)		
	Remarks	Record date for dividends payment		
		Date of book settlement		
		Identification number of stocks		
		Gross capital (KRW)		
		Remarks		

Whether or not a lawsuit was filed concerning the effect of issuance of new stocks	○	Date of filing the lawsuit	
	/		
	×		

Total number of common stocks	Number of floating stocks (b)	Number of floating stocks held the largest shareholder, etc. (c)	Number of circulating stocks (d=b-c)	Portion of the circulating stocks (d/a)
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(a)				

References:

1. "Par value" or "No par value" shall be entered in "Par value / No par value".
2. If the reason for the change is the change in corporate name, the details of the change of corporate name shall be clearly described and for the names of listed issues in the details of corporate name change, the prospective name of each issue shall be entered.
3. Descriptions in "Remarks" shall include the details of change in debt securities.
4. The "number of floating stocks" shall refer to the number of stocks determined by subtracting the number of common stocks noted in each of followings from the total number of common stocks issued:
 - a. The number of stocks held by the State and the Korea Deposit Insurance Corporation (KDIC);
 - b. The number of stocks held by foreign investors in a foreign-invested company incorporated pursuant to the Foreign Investment Promotion Act. Provided that this provision shall apply only to a case where the Korean investors hold at least 51/100 of the total common stocks;
 - c. The number of stocks that are kept under mandatory holding by court rulings after having been issued in accordance with the procedures under the Debtor Rehabilitation and Bankruptcy Act or the Corporate Restructuring Promotion Act, or the number of stocks that are under mandatory holding by the measure of resale restriction pursuant to the Regulation on Securities Issuance and Disclosure. Provided that this provision shall apply only to a case where a document verifying mandatory holding, which was issued by the Korea Securities Depository (KSD) was submitted to the Exchange; and
 - d. The number of stocks that are under mandatory holding pursuant to the KOSPI Market Listing Regulation, for which a document verifying such mandatory holding issued by the KSE was submitted, or the number of stocks that are held by listing sponsors pursuant to [§13(3)] of the same Regulation.
5. The "number of circulating stocks" shall refer to the number of stocks calculated by subtracting those held by the largest shareholder, etc. from the number of floating stocks, and the treasury stocks (including trust contracts) shall be included in the "largest shareholders, etc."

☐ Matters on the changes in corporate name

	Before the change	After the change
Corporate name in Korean		
Abbreviated corporate name in Korean		
Corporate name in English		
Abbreviated corporate name in English		
Symbol of English corporate name		

☐ Reasons for the change

(1) Reasons for the change

(2) Process of the change

Date of BOD resolution	
Scheduled circulation date	
Date of registration of the change	
Scheduled listing date	
Others	

2. (Foreign) Debt securities (Pertaining to [§77], [§81] and [§131] of the Enforcement Rules)

		Before the change	After the change
Name of issue (ISIN)			
Total amount issued (KRW)			
Matters for reference	Issue date		
	Remarks		

☐ Matters on the change of issue name (relating to standard name)

	Before the change	After the change
Standard name in Korean		
Abbreviated standard name in Korean		
Standard name in English		
Abbreviated standard name in English		

Reference: In the “Standard name in English”, company notations such as “Co., Ltd.” shall be omitted.

☐ Matters on the changes in corporate name (If stated in the part of “1. Stocks”, please skip this part)

	Before the change	After the change
Corporate name in Korean		
Abbreviated corporate name in Korean		
Corporate name in English		
Abbreviated corporate name in English		
Symbol of English corporate name		

3. Beneficiary certificates (Pertaining to [§89] of the Enforcement Rules)

		Before the change	After the change
Name of issue			
Total number of units			
Amount of trust principal (KRW)			
Matters for reference	Registered or Bearer		
	Date of establishment		
	Date of establishment of trust period		
	Expiration date of trust period		
	Amount of principal per unit (KRW)		
	Number of certificates issued per denomination		
	Trust business entity		
	Remarks		

4. Equity-linked warrants (Pertaining to [§117] of the Enforcement Rules)

		Before the change	After the change
Full name of issue / Abbreviated name of issue			
ISIN / Abbreviated ISIN			
Number of warrants issued			
Number of securities listed (based on application date)			
Matters for reference	Issuing price		
	Total issuing amount		
	Issuing company		
	Issue date		
	Expiration date		
	Remarks		

4-2. Exchange-traded Notes (Pertaining to [§123-6] of the Enforcement Rules)

		Before the change	After the change
Name of issue in Korean			
Abbreviated name of issue in Korean			
Name of issue in English			
Abbreviated name of issue in English			
Split and reverse split	Reverse split ratio		
	Split ratio		
	Listing quantity		
Reasons for the change			
Date of listing change			

5. Subscription warrants and subscription right certificates (Pertaining to [§125] of the Enforcement Rules)

		Before the change	After the change
Name of issue			
Number of warrants or certificates			
Matters for reference	Class of stocks to be issued by exercise of rights		
	Number of warrants or certificates to be issued exercise of rights		
	Exercise price of subscription rights		
	Exercise period	Date of start	
		Date of end	
	Reasons for the change		
	Date of change		
	Remarks		

	Before the change	After the change
Name of issue (ISIN)		

Total par value issued (KRW)			
Matters for reference	Issue date		
	Remarks		

[Annex: Form No. 34] Application for supplementary listing / listing change - ETFs

Application for Supplementary Listing / Listing Change - ETFs

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby makes an application for the supplementary listing/listing change of (foreign) ETF securities as follows pursuant to [§93] and [§98] of the Enforcement Rules of KOSPI Market Listing Regulation.

1. For (foreign) ETF securities

Name of issue (Code No.)	(KR7)			
No. of stocks applied for supplementary listing/listing change (shares)				
Date of expected supplementary listing/listing change				
Date of establishment or redemption of the stocks to be listed				
Details of change	No. of stocks before supplement/change	No. of stocks increased	No. of stocks reduced	No. of stocks after supplement/change

Reference: The number of stocks that are increased or reduced by arbitrage trading, etc. shall be attached separately per authorized participant.

2. For (foreign) ETF beneficiary certificates

Name of issue (Code No.)	(KR7)			
No. of beneficiary certificates applied for supplementary listing/listing change (units)				
Date of expected supplementary listing/listing change				
Date of establishment or redemption of the beneficiary certificate to be listed				
Details of change ^(Note)	No. of certificates before supplement/change	No. of certificates increased	No. of certificates reduced	No. of certificates after supplement/change

Reference: The number of beneficiary certificates that are increased or reduced by arbitrage trading, etc. shall be attached separately per authorized participant.

[Annex: Form No. 35] Application for listing change subsequent to reduction in quantity of ETNs

[September 2, 2014]

Application for Listing Change subsequent to Reduction in Quantity of ETNs

To Chairperson of Korea Exchange,

Date: mm/dd/yyyy

Name of corporation:

Name & seal/signature of representative:

xxxx (name of corporation) hereby files an application for the listing change of Exchange Traded Notes subsequent to the reduction in quantity as follows pursuant to [§149-5] of KOSPI Market Listing Regulation and [§123-6] of the Enforcement Rules of the same Regulation.

Name of issue			
Quantity applied for listing change			
Details of the change (shares)	Quantity before the change	Quantity reduced	Quantity after the change
Whether or not the quantity reduced is held by liquidity providers		If yes, the quantity held by liquidity providers	
Reasons for the reduction			
Date of reduction			
Date of listing change			

Written Confirmation on Status of Asset Composition

To Chairperson of Korea Exchange,

We hereby submit a written confirmation on the status of composition of assets as follows, pursuant to [§129(1)11] of the KOSPI Market Listing Regulation and [§105(7)] of the Enforcement Rules of the same Regulation.

1. Status of composition of total assets

(in KRW million, %)

Classification		Total amount	Ratios	Remarks
Real estate	Land and things firmly affixed thereto			
	Rights on real estate such as superficies and lease			
Deemed real estate	Securities related to real estate			
	Securities			
	Equity securities			
	Debt securities			
				
Others				
Total				
Amount of investment in real estate development projects (expenses, costs, etc.			(Ratio to total assets)	

2. Composition of investment assets for real estate development projects in total assets

(in KRW million, %)

Classification	Investment amount	Development investment amount in total investment amount	Ratio of development investment amount to total assets	Remarks
Name of investment case				
.....				
Total				

References:

1. It shall be prepared based on the submission date of the business reports under Articles 159 and 160 of the Act.
2. The “development investment amount in total investment amount” shall be calculated by reflecting the ratio of the amount invested in development projects to the total investment amount.
3. The “development investment amount” shall be the amount invested in the real estate develop

ment projects set forth in Subparagraph 4 of Article 2 of the Real Estate Investment Company Act.

4. In the "Remarks" column,, the grounds for calculating the development investment amount for each investment amount shall be stated in detail.

5. For a corporation that owns a subsidiary, it shall be calculated based on the consolidated financial statements.

Name of company:

Address:

Name and seal/signature of representative: